



AWS Response to Michigan Department of Technology, Management and Budget Cloud Services Request for Proposal

RFP No. 250000000414
February 7, 2025





AWS Response to Michigan Department of Technology, Management and Budget Cloud Services Request for Proposal

Submitted by:

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Submitted to:

State of Michigan
Department of Technology,
Management and Budget

Attn: Ms. Shannon Romein,
Solicitation Manager
(517) 898-8102
RomeinS@michigan.gov

AWS is pleased to submit the attached package for your review. AWS has provided answers based on its current knowledge, but these answers may change due to a variety of factors, including changes in your requirements, the capabilities of any third party selected to assist with implementation, and changes to AWS service offerings. Unless required by law, Customer agrees not to disclose the contents of this document that AWS has identified as subject to Confidential Treatment. The areas of the document subject to Confidential Treatment is indicated on the Confidential Treatment Form included in this submission. Where Customer is requested to disclose contents of this document by law, Customer will provide AWS with written notice and an opportunity to review and seek redactions or otherwise prevent disclosure of the information to the maximum extent permitted by law. This package may include a set of suggested solutions for this opportunity. These solutions are potential suggestions for your evaluation based on our limited understanding of Customer's requirements. The responsibilities and liabilities of AWS to its customers are controlled by AWS agreements, and this document is not part of, nor does it modify, any agreement between AWS and its customers. For current prices for AWS services, please refer to the AWS website at www.aws.amazon.com.





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PROPOSAL INSTRUCTIONS

Department of Technology, Management and Budget—Procurement

Cloud Services

Request for Proposal No. 250000000414

Solicitation Manager Name: Shannon Romein

Direct Phone:517-898-8102

Email: RomeinS@michigan.gov

Main Phone: 1-855-MI-PURCH 1-855-647-8724

This is a Request for Proposal (RFP) for:

Cloud Services

Solicitation Timeline

Event	Time	Date
Solicitation issue date	N/A	Friday, December 6, 2024
Pre-proposal meeting	9:30 a.m.	Thursday, December 12, 2024
Deadline for bidders to submit questions about this Solicitation	3:00 p.m. Eastern	Friday, December 20, 2024
Anticipated date the State will post answers to bidder questions on www.michigan.gov/SIGMAVSS	5:00 p.m. Eastern	Tuesday, January 7, 2025
Deadline for bidders to submit questions for an additional second round of questions	3:00 p.m. Eastern	<u>Friday, January 10th, 2025</u>
Anticipated date the State will post answers to second round of bidder questions on www.michigan.gov/SIGMAVSS	5:00 p.m. Eastern	Friday, January 17 th , 2025
Proposal deadline*	11:00 a.m. Eastern	Friday, February 7, 2025
Anticipated contract begin date	N/A	Monday, June 2, 2025

*A bidder’s proposal received at 11:00:01 a.m. Eastern is late and subject to disqualification.

This Solicitation is subject to change. Check www.michigan.gov/SIGMAVSS for current information.





RESPONSE REQUIREMENT: Download this RFP/RFS Word document, insert responses directly into the locations provided, referencing any external attachments, save under a new name and upload with any attachments. **DO NOT BREAK UP SOLICITATION. Please upload completed Pricing Schedule separately.**

1. PROPOSAL PREPARATION. The State recommends reading all Solicitation materials prior to preparing a proposal, particularly these Proposal Instructions and the Vendor Questions Worksheet. Bidders must follow these Proposal Instructions and provide a complete response to the items indicated in the table below. References and links to websites or external sources may not be used in lieu of providing the information requested in the Solicitation within the proposal. Include the bidder’s company name in the header of all documents submitted with your proposal. **Note that all documents and information submitted as part of a proposal will become public record immediately upon receipt by the State. Proposals received by the State may be posted on the State’s publicly available website after bidders are notified of the award recommendation.**

Solicitation Structure and Documentation

Document	Description	Bidder Response Instructions
Cover Page	Provides Solicitation title and number, important dates, and contact information for Solicitation Manager	Informational
Proposal Instructions	Provides Solicitation instructions to bidders	Informational
Confidential Treatment Form	Required verification on whether bidder’s proposal contains confidential information	Bidder must complete and submit by proposal deadline
Vendor Questions Worksheet	Questions to bidders on background and experience	Bidder must complete and submit by proposal deadline
Attachment 1, Resume Templates	Key Personnel Resume Templates	Bidder must complete and submit by proposal deadline
Initial Response: High-level Terms and Conditions concepts	High-level Terms and Conditions concepts	Bidder must complete and submit by proposal deadline
Software Terms and Conditions	This document provides the standard IT Contract Terms which is provided for reference only	Bidder to provide proposed terms applicable to this purchase
Schedule A – Statement of Work	Statement of Work details	Bidder must complete and submit by proposal deadline





Document	Description	Bidder Response Instructions
Schedule A - Attachment 1 -Business Specification Worksheet	Business requirements	Bidder must complete and submit by proposal deadline
Schedule B – Pricing	Pricing for goods and services sought by the State through this Solicitation	Bidder must complete and submit by proposal deadline
Schedule C – Insurance	This document provides the Contract Insurance Requirements for any contract awarded from this solicitation.	Deemed accepted by Bidder unless information required in the Evaluation Process section of this document is submitted by the proposal deadline.
Schedule D - Service Level Agreement	This document provides the Service Level Agreement for any contract awarded from this solicitation.	Deemed accepted by Bidder unless written exceptions in accordance with the Evaluation Section are provided to State with Bidder’s proposal.
Schedule E – Data Security Requirements	This document provides the Data Security Requirements for any contract awarded from this solicitation.	Deemed accepted by Bidder unless written exceptions in accordance with the Evaluation Section are provided to State with Bidder’s proposal.
Schedule F - Disaster Recovery Plan	This schedule is a placeholder for the Bidder to provide their as Disaster Recovery Plan as Schedule G - Disaster Recovery Plan.	To be provided by Bidders and subject to negotiation.
Schedule G – Transition In and Out Plan	This document provides the Transition in and Out Plan from the Contractor for any contract awarded from this.	To be provided by Bidders and subject to negotiation.
Schedule J - Federal Provision Addendum	The document provides federally required provisions when federal funds are used for the procurement.	Informational
Schedule J, Attachment 1 Byrd Anti-Lobbying Certification	Limitation on Payments to Influence Certain Federal Transactions	To be completed by Bidders





2. CONTACT INFORMATION FOR THE STATE. The sole point of contact for the State concerning this Solicitation is listed on the Cover Page. Contacting any other State personnel, agent, consultant, or representative about this Solicitation may result in Bidder disqualification.

3. OPTIONAL PRE-PROPOSAL MEETING.

An optional pre-proposal meeting will be held on December 12 at 9:30am Eastern Time via Teams.

Microsoft Teams [Need help?](#)

[Join the meeting now](#)

Meeting ID: 286 811 784 653

Passcode: 3thMpZ

Dial in by phone

[+1 248-509-0316,,262997580#](#) United States, Troy

[Find a local number](#)

Phone conference ID: 262 997 580#

For organizers: [Meeting options](#) | [Reset dial-in PIN](#)

The purpose of the pre-proposal meeting is to discuss the RFP/RFS and the work to be performed, and may include an inspection of the facility to receive the goods or services sought in this RFP/RFS. Statements made by the Solicitation Manager or designee at a pre-proposal meeting are not considered modifications to the Solicitation. If, however, the Solicitation Manager determines modifications to the Solicitation are warranted after the meeting, modifications will be posted in writing on [www.michigan.gov/SIGMAVSS](#) as explained in the **Modifications** section of this document.

Attendance at the pre-proposal meeting is limited to 5 people per bidder. If the pre-proposal meeting is mandatory, a bidder may be disqualified by being late. Subcontractor sign-in is permitted in lieu of the bidder as evidence of attendance. Accessibility requests for reasonable accommodations at the pre-proposal meeting should be made with the Solicitation Manager at least 10 business days before the date of the meeting. Accommodation requests received outside this time period cannot be guaranteed.

4. MODIFICATIONS. The State may modify the Solicitation any time. Modifications will be posted on [www.michigan.gov/SIGMAVSS](#) . This is the only method by which the Solicitation may be modified.

5. QUESTIONS. Bidder questions about this Solicitation must be emailed to the Solicitation Manager no later than the time and date specified on the Cover Page. In the interest of transparency, only written questions are accepted. Answers to questions will be posted on [www.michigan.gov/SIGMAVSS](#). Submit questions using the format below; a Microsoft Excel format or similar is suggested.

Q #	Document and Section	Page #	Bidder Question





6. DELIVERY OF PROPOSAL.

Electronic – The bidder must submit its proposal, all attachments, and any modifications or withdrawals electronically through www.michigan.gov/SIGMAVSS. The price proposal should be saved separately from all other proposal documents. The bidder should submit all documents in a modifiable (native) format (examples include but are not limited to Microsoft Word or Excel and Google Docs or Sheets). In addition to submitting documents in a modifiable format, the bidder may also submit copies of documents in PDF. Attachment file size is limited to 6 MB per document. Bidder's failure to submit a proposal as required may result in disqualification. The proposal and attachments must be fully uploaded and submitted prior to the proposal deadline. Do not wait until the last minute to submit a proposal, as the SIGMA VSS system requires the creation of an account and entry of certain information, in addition to uploading and submitting the materials. The SIGMA VSS system will not allow a proposal to be submitted after the proposal deadline identified in the solicitation Closing On/Closing Date fields (Summary view/Detail view), even if a portion of the proposal has been uploaded.

Questions on how to submit information or how to navigate in the SIGMA VSS system can be answered by calling (517) 284-0540 or (888) 734-9749. The Solicitation Manager will not provide assistance related to the submittal of the proposal and all attachments on the day of the proposal deadline. Responsibility for a complete submission lies with the bidder. Note that all documents and information submitted in any manner as part of a proposal will become public record immediately upon receipt by the State. Proposals received may be posted by the State on the State's publicly available website after bidders are notified of the award recommendation.

7. MANDATORY MINIMUM REQUIREMENTS. To avoid disqualification, the Bidder must provide documentation to support the following:

Minimum Requirements	
1.	Bidders must be a Direct Cloud Service Provider listed as 'FedRAMP Authorized' in the General Services Administration (GSA) FedRAMP Marketplace at Impact Level 'Low', 'Moderate', or 'High' and a Service Model that includes 'IaaS' and 'PaaS'

Only those proposals that meet the mandatory minimum requirements will be considered for evaluation.

BIDDER RESPONSE: Amazon Web Services, Inc. (AWS) (UEI Number: NQEWN6C1LSU5) is a Direct Cloud Service Provider listed as 'FedRAMP Authorized' in the General Services Administration FedRAMP Marketplace at Impact Level 'Moderate' and as a Service Model that includes 'IaaS,' 'PaaS,' and 'SaaS.' [Please visit this entry on the FedRAMP Marketplace site to reference the Authorization Status for AWS.](#)

8. EVALUATION PROCESS. The State will evaluate each proposal based on the following factors:

	Technical Criteria Name	Weight
1.	Vendor Questions Worksheet	5





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2.	Schedule A- Statement of Work	20
3.	Schedule A- Table 1- Business Specification Worksheet	75
	Total	100

Proposals receiving 80 or more evaluation points will have pricing evaluated and be considered for award.

The State may utilize all Bidder information, without regard to a proposal's technical score, to determine fair market value for goods or services sought. The State is not obligated to accept the lowest price proposal. If applicable, the State's evaluation will include consideration of a bidder's qualified disabled veterans/service-disabled veteran owned business(QDV/SDVOB) status under [MCL 18.1261\(8\)](#). Additional information on the SDVOB preference is available at: [Michigan.gov/SDVOB](#).

The State strongly encourages strict adherence to the Contract Terms and Schedules. The State reserves the right to deem a bid non-responsive for failure to accept the Contract Terms and Schedules. Nevertheless, the Bidder must submit any and all proposed changes to the Contract Terms and Schedules in tracked changes (i.e., visible edits) with an explanation of the Bidder's need for each proposed change. Failure to include track changes with an explanation of the Bidder's need for the proposed change constitutes the Bidder's acceptance of the Contract Terms and Schedules. State may choose not to accept redlines proposed by Bidders after the initial bid submission and Bidders who fail to submit redlines with their initial submission may be disqualified. Volume and type of changes may impact evaluation scores. General statements, such as that the Bidder reserves the right to negotiate the terms and conditions or extensive redlines, may be considered non-responsive. Failure to respond timely to requests for proposed changes to Contract Terms during ongoing negotiations may be cause for disqualification.

☒ Bidder understands that proposed changes may affect the evaluation score and may be considered non-responsive.

The State may, but is not required to, [conduct an on-site visit to tour and inspect the Bidder's facilities](#), require an oral presentation of the Bidder's proposal, attend a proof of concept meeting, conduct interviews with Bidders, or request additional price concessions at any point during the evaluation process.

The State may deduct points or reject a proposal if the Bidder fails to demonstrate to the State's satisfaction the viability or functionality of the goods or services at the proof of concept meeting, [on-site visit tour](#), oral presentations, or during Bidder interviews.

9. NOTICE OF DEFICIENCY. The State reserves the right to issue a **Notice of Deficiency** to Bidders if the State determines after the proposal deadline that a portion of the Solicitation was deficient, unclear, or ambiguous. Failure to respond to a **Notice of Deficiency** timely may be cause for disqualification.

10. CLARIFICATION REQUEST. The State reserves the right to issue a **Clarification Request** to a Bidder to clarify its proposal if the State determines the proposal is not clear. Failure to respond to a **Clarification Request** timely may be cause for disqualification.

11. RESERVATIONS. The State reserves the rights, including, but not limited to:

- a. Disqualify a Bidder for failure to follow these instructions.

Commented [A1]: We understand from the Q&A that the State does not plan any on-site visits. However, restricting physical access to data centers is an industry standard security control for cloud service providers (CSPs). CSPs should provide physical data center access only to approved employees or approved third party auditors. AWS will provide third party audit results in lieu of on-site tours

Commented [A2]: Please see the explanation above





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- b. Discontinue the solicitation process at any time for any or no reason. The issuance of a solicitation, your preparation and submission of a proposal, and the State's subsequent receipt and evaluation of your proposal does not commit the State to award a contract to you or anyone, even if all the requirements in the solicitation are met.
- c. Consider late proposals if: (i) no other proposals are received; (ii) no complete proposals are received; (iii) the State received complete proposals, but the proposals did not meet mandatory minimum requirements or technical criteria; or (iv) the award process fails to result in an award.
- d. Consider an otherwise disqualified proposal, if no other proposals are received.
- e. Disqualify a proposal based on: (i) information provided by the Bidder in response to this solicitation; (2) the Bidder's failure to complete registration on www.michigan.gov/SIGMAVSS; or (3) if it is determined that a Bidder purposely or willfully submitted false or misleading information in response to the solicitation.
- f. Consider prior performance with the State in making its award decision.
- g. Consider overall economic impact to the State when evaluating proposal pricing and in the final award recommendation. This includes but is not limited to: considering principal place of performance, number of Michigan citizens employed or potentially employed, dollars paid to Michigan residents, Michigan capital investments, job creation, tax revenue implications, and economically disadvantaged businesses.
- h. Consider total-cost-of-ownership factors (e.g., transition and training costs) when evaluating proposal pricing and in the final award recommendation.
- i. Refuse to award a contract to any Bidder that has failed to pay State taxes or has outstanding debt with the State.
- j. Enter into negotiations with one or more Bidders on price, terms, technical requirements, or other deliverables.
- k. Award multiple, optional-use contracts, or award by Contract Activity.
- l. Evaluate the proposal outside the scope identified in the **Evaluation Process** section of this document, if the State receives only one proposal.

12. AWARD RECOMMENDATION. The contract will be awarded to the responsive and responsible Bidder who offers the best value to the State, as determined by the State. Best value will be determined by the Bidder meeting the minimum point threshold and offering the best combination of the factors stated in the **Evaluation Process** section of this document, and price, as demonstrated by the proposal. The State will post an **Award Recommendation and Evaluation Synopsis** on www.michigan.gov/SIGMAVSS or in the manner it was originally published.

13. DEBRIEF MEETINGS AND PROTEST. The State will post an **Award Recommendation and Evaluation Synopsis**, which will provide instructions on how to request a debrief meeting.

If you wish to initiate a protest of the award, you must submit your written protest electronically at BidProtest-DTMB@michigan.gov no later than 5:00 p.m. Eastern, 5 business days after posting the **Award Recommendation and Evaluation Synopsis** on SIGMA VSS. The State reserves the right to adjust this timing and will publish any change on the SIGMA VSS system.

Additional information about the protest process is available at [DTMB - Programs and Policies \(michigan.gov\)](http://DTMB-Programs and Policies (michigan.gov)) under the "Bidder Protests" link.





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14. STATE ADMINISTRATIVE BOARD. Contracts equal to \$250,000 or greater require approval by the State Administrative Board. The State Administrative Board's decision is final; however, its approval does not constitute a contract. The award process is not complete until the awarded contractor receives a contract fully executed by all parties.

15. GENERAL CONDITIONS. The State will not be liable for any costs, expenses, or damages incurred by a Bidder participating in this solicitation. The Bidder agrees that its proposal will be considered an offer to do business with the State in accordance with its proposal, including the Contract Terms, and that its proposal will be irrevocable and binding for a period of 180 calendar days from date of submission. If a contract is awarded to the Bidder, the State may, at its option, incorporate any part of the Bidder's proposal into a contract. This solicitation is not an offer to enter into a contract. This solicitation may not provide a complete statement of the State's environment or contain all matters upon which agreement must be reached. The bidder understands that their proposal will become public record immediately upon receipt by the State. Other than verified trade secrets, proposals submitted via www.michigan.gov/SIGMAVSS are the State's property.

16. CONFIDENTIAL TREATMENT FORM AND THE FREEDOM OF INFORMATION ACT. As a public record, all portions of the bidder's proposal and resulting contract are subject to disclosure as required under Michigan's Freedom of Information Act (FOIA), MCL 15.231, et seq. However, the State may exempt some information from disclosure as permitted by law. Under MCL 18.1261(13)(b), records containing "a trade secret as defined under section 2 of the uniform trade secrets act, 1998 PA 448, MCL 445.1902," are exempt from disclosure under FOIA. In addition, "financial or proprietary information" and "information of a personal nature if public disclosure of the information would constitute a clearly unwarranted invasion of an individual's privacy" submitted with a bidder's proposal is exempt from disclosure under FOIA. **A bidder's failure to comply with this Section is grounds for rejecting a bidder's proposal as non-responsive.** As a part of its proposal, each bidder must follow the procedure below.

a. SUBMIT A COMPLETED "CONFIDENTIAL TREATMENT FORM" (CT FORM) WITH YOUR BID.

Completion and submission of the CT Form is required regardless of whether the bidder seeks confidential treatment of information. **Failure to submit a completed CT Form may be cause for disqualification from the solicitation process. If a bidder fails to properly complete and submit the CT Form or otherwise fails to follow CT Form instructions, the proposal may be publicly disclosed in its entirety without redaction after an award recommendation.**

- i. Complete and sign Section 1 of the CT Form if the bidder does NOT request confidential treatment of information contained in its proposal; or
- ii. Complete and sign Section 2 of the CT Form if the bidder requests confidential treatment of certain information. Bidder must also submit a "Public Copy" of the proposal with the trade secret, financial, and proprietary information redacted and clearly labeled as the "Public Copy."
- iii. Failure to complete and sign a CT Form may result in disqualification of the bidder. If a bidder fails to properly complete and submit the CT Form or otherwise fails to follow the CT Form instructions, the proposal, in its entirety, will be treated as a "Public Copy" and may be publicly disclosed by the State without redaction after bidders have been notified of an award recommendation.

b. FOIA REQUESTS. If a FOIA request is made for a bidder's proposal, the Public Copy may be distributed to the public along with the bidder's CT Form. The CT Form is a public document and

Commented [A3]: AWS has provided thorough information for the State to evaluate. However, the information provided is AWS's intellectual property (IP) and AWS does not waive nor transfer its ownership or rights to this information upon submission of this proposal.

Commented [A4]: Responders are entitled to claim exemptions for certain personal information, as provided under MCL 15.243(1)(a).





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serves as an explanation for the redactions to the Public Copy. Do not put any trade secret, financial, or proprietary information in the CT Form. Do not redact the CT Form itself.

c. NO ADVICE. The State will not advise a bidder as to the nature or content of documents entitled to protection from disclosure under FOIA or other laws, as to the interpretation of such laws, or as to the definition of trade secret or financial or proprietary information. Nothing contained in this provision will modify or amend requirements and obligations imposed on the State by FOIA or other applicable law.

d. FAILURE TO REQUEST CONFIDENTIAL TREATMENT. Failure to request material be treated as confidential as specified herein relieves the State, its agencies, and personnel from any responsibility for maintaining material in confidence.

e. Bids containing a request to maintain an entire proposal as confidential may be rejected as non-responsive. Bidders may not request confidential treatment with respect to resumes, pricing, and marketing materials, except as such information may be protected from disclosure as permitted by law, including MCL sections 15.243(1)(a) and 18.1261(13)(b). The State reserves the right to determine whether material designated as exempt by a bidder falls under MCL 18.1261 or other applicable FOIA exemptions. If a FOIA request is made for materials that the bidder has identified as trade secret, financial, or proprietary information, the State has the final authority to determine whether the materials are exempt from disclosure under FOIA.

f. Bidder forever releases the State, its departments, subdivisions, officers, and employees from all claims, rights, actions, demands, damages, liabilities, expenses and fees, which arise out of or relate to the disclosure of all or a portion of bidder's proposal submitted under this Solicitation. Bidder must defend, indemnify and hold the State, its departments, subdivisions, officers, and employees harmless, without limitation, from and against all actions, claims, losses, liabilities, damages, costs, attorney fees, and expenses (including those required to establish the right to indemnification), arising out of or relating to any FOIA request, including potential litigation and appeals, related to the portion of bidder's proposal submitted under this Solicitation that bidder has identified as a trade secret, or financial or proprietary information. The State will notify bidder in writing if indemnification is sought. The State is entitled to: (i) regular updates on proceeding status; (ii) participate in the defense of the proceeding; (iii) employ its own counsel; and to (iv) retain control of the defense, or any portion thereof, if the State deems necessary. Bidder will not, without the State's written consent (not to be unreasonably withheld), settle, compromise, or consent to the entry of any judgment in or otherwise seek to terminate any claim, action, or proceeding. If a State employee, official, or law is involved or challenged, the State may control the defense of that portion of the claim. Any litigation activity on behalf of the State, or any of its subdivisions under this Section, must be coordinated with the Department of Attorney General. An attorney designated to represent the State may not do so until approved by the Michigan Attorney General and appointed as a Special Assistant Attorney General.

Commented [A5]: As noted above, in Section 16, certain information may be exempt from disclosure under FOIA, including: personal information, the disclosure of which would constitute an invasion of privacy; trade secrets; and "financial and proprietary information" is exempt from disclosure under FOIA.





CONFIDENTIAL TREATMENT FORM

INSTRUCTIONS. Bidder must complete either *Section 1* or *Section 2* of this CT Form and sign where indicated. **Do not complete both sections.** This CT Form must be signed by the individual who signed the bidder’s proposal. A completed CT Form must be submitted with your proposal, regardless of whether your proposal contains confidential information.

Failure to submit a completed CT Form with your bid is grounds for rejecting the proposal as non-responsive. If a bidder fails to properly complete and submit the CT Form or otherwise fails to follow CT Form Instructions, the proposal, in its entirety, will be treated as a “Public Copy” and may be publicly disclosed by the State without redaction after bidders have been notified of an award recommendation. See the Confidential Treatment Form and The Freedom of Information Act (FOIA) sections of the *Proposal Instructions* for additional information.

Section 1. CONFIDENTIAL TREATMENT IS NOT REQUESTED

This section must be completed, signed, and submitted with the proposal if the bidder does **not** request confidential treatment of any material contained in the proposal. **If this section is completed, do not complete Section 2. CONFIDENTIAL TREATMENT IS REQUESTED.**

By signing below, the bidder affirms that confidential treatment of material contained in their proposal is not requested.

	Department of Technology, Management and Budget—Procurement
RFP No. 250000000414	Cloud Services
Solicitation Number	Solicitation Title
Signature	Date
Printed Name, Title, Company	





Section 2. CONFIDENTIAL TREATMENT IS REQUESTED

This section must be completed, signed, and submitted with the proposal if bidder requests confidential treatment of any material contained in the proposal. Submission of a completed CT Form is required to request confidential treatment. If this section is completed, **do not** complete Section 1. CONFIDENTIAL TREATMENT IS NOT REQUESTED.

Provide the information in the table below. Bidder may add rows or additional pages using the same format shown in the table. Bidder must specifically identify the information to be protected as confidential and state the reasons why protection is necessary.

The CT Form will not be considered fully complete unless, for each confidentiality request, the bidder: (1) identifies the Proposal Page #, Section #, and Paragraph #, (2) identifies whether the material is a Trade Secret (TS), Proprietary Financial Information (FI), or Proprietary Information (PI), and (3) explains the specific legal grounds that support treatment of the material as TS, FI, or PI. Bidders must provide a complete justification as to how the material falls within the scope of an applicable FOIA exemption or relevant case law. Bidders must not simply cite to an applicable exemption or case name. Bidders must also provide the contact information for the person at their organization authorized to respond to inquiries by the State concerning the material.

Bidder must also submit a "Public Copy" of the proposal with the trade secret, financial, and proprietary information redacted and clearly labeled as the "Public Copy".

(1) Proposal Page #, Section #, Paragraph #	(2) Material is Trade Secret (TS), Proprietary Financial Information (FI), Proprietary Information (PI)	(3) Applicable FOIA Exemption with Written Justification	(4) Bidder Contact Information
Cover Page; and Schedule J, Exhibit 1, Page 296	Personally Identifiable Information (PII)	The name and contact information of an AWS employee represent PII that AWS takes care to protect, and the release of that information would result in an unwarranted invasion of privacy. Michigan’s Freedom of Information Act (“FOIA”) exempts from disclosure “[i]nformation of a personal nature if public disclosure of the information would constitute a clearly unwarranted invasion of an individual’s privacy.” See MCL 15.243(1)(a). This privacy exemption consists of two distinct elements. First, the information at issue must be of a “personal nature.” <i>Id.</i> Second, the disclosure of such	Faisal Hanafi, Authorized Signatory 410 Terry Ave N. Seattle, WA 98109 aws-wwps- contract- mgmt@amazon.com (206) 266-1000





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(1) Proposal Page #, Section #, Paragraph #	(2) Material is Trade Secret (TS), Proprietary Financial Information (FI), Proprietary Information (PI)	(3) Applicable FOIA Exemption with Written Justification	(4) Bidder Contact Information
		information must constitute a “clearly unwarranted” invasion of privacy. Under the first prong, information is of a personal nature when it is intimate, embarrassing, private, or confidential information. <i>See Mich. Federation of Teachers & Sch Related Personnel, AFT, AFL-CIO v. Univ of Mich</i>, 481 Mich. 657, 676; 753 NW.2d 28 (2008). In <i>Michigan Federation of Teachers and School Related Personnel, AFT, AFL-CIO v. University of Michigan</i>, the Court held that employees’ home addresses and telephone numbers met both prongs of FOIA’s privacy exemption because that information is “of a personal nature” and its disclosure would constitute a clearly unwarranted invasion of an individual’s privacy. 481 Mich. 657; 753 NW.2d 28 (2008). The Court explained that the FOIA protections encompassed information of an embarrassing, intimate, private, or confidential nature, and that employee’s home addresses and telephone numbers therefore met the second prong of the exception. Here, these sections contain the name, title, email address, and phone number of an AWS employee. Disclosure of this private information would constitute an unwarranted invasion of an individual’s privacy. Accordingly, it is exempt from disclosure.	
Proposal Instructions, Sections 8, 16 Pages 6, 8	PI, TS	Michigan’s FOIA statute provides for the nondisclosure of “[r]ecords or information specifically described and exempted from disclosure by statute.” <i>See MCL 15.243(1)(d); Titus v. Shelby Charter Twp.</i>, 226 Mich. App. 611, 613, 574 N.W.2d 391 (1997); <i>see also Michigan Open Carry, Inc. v. Department of State Police</i>, 330 Mich. App. 614, 629-620, 950 N.W.2d 484 (2019). In accordance with this	Faisal Hanafi, Authorized Signatory 410 Terry Ave N. Seattle, WA 98109 aws-wwps- contract- mgmt@amazon.com





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		provision, the State of Michigan and its agencies are not required to disclose records exempted from disclosure by other statutes. <i>See Booth Newspapers, Inc. v. Univ. of Michigan Bd. of Regents</i>, 444 Mich. 211, 231–32, 507 N.W.2d 422, 431 (1993) (“The act outlines several instances in which public records may be exempt from disclosure”). Here, the Management and Budget Act provides that the type of records at issue (including AWS’ Trade Secrets TS, FI, and PI) are exempt from disclosure. Section 18.1261(13)(b) of the Management and Budget Act clarifies that the following types of records “are exempt from disclosure under the [FOIA]”: [r]ecords containing a trade secret as defined under section 2 of the uniform trade secrets act, ... MCL 445.1902, or financial or proprietary information submitted in connection with the authority granted under this section. The Management and Budget Act affords broad coverage to financial and proprietary information, extending protection to “information that has not been publicly disseminated or which is unavailable from other sources, the release of which might cause the submitter of the information competitive harm.” MCL 18.1261(15)(c). AWS’s redlines to the Proposal Instructions and its explanations consist of information that is not available to the public, has not been disclosed to the public, nor would it be disclosed to the public, as they provide insight into AWS’s competitive positions. Moreover, AWS takes precautions with regard to	





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		such information to ensure that it is not disclosed outside of AWS. AWS has internal written policies to protect against the disclosure of such AWS confidential information, saves the information (and other similar nonpublic information) to an internal network, and releases the nonpublic information contained in the submission only under cover of a non-disclosure agreement (NDA) or where, as here, there is expectation of confidentiality. Release of such information would afford AWS's competitors an advantage, and cause AWS considerable competitive harm. See MCL 18.1261(13)(b). The information is therefore exempt from disclosure In addition, trade secrets are also exempt from disclosure under the Management and Budget Act. Specifically, the Act incorporates the definition of "trade secret" contained in Section 445.1902 of the Uniform Trade Secrets Act: Information, including a formula, pattern, compilation, program, device, method, technique, or process, that is both of the following: (i) Derives independent economic value, actual or potential, from not being generally known to, and not being readily ascertainable by proper means by, other persons who can obtain economic value from its disclosure or use. (ii) Is the subject of efforts that are reasonable under the circumstances to maintain its secrecy Determination of a trade secret is a fact-specific inquiry. In <i>Hayes-Albion v. Kuberski</i>, 421 Mich. 170,	





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		182; 364 N.W.2d 609 (1984), the Michigan Supreme Court listed a number of factors that may be used to determine whether certain information is a trade secret: (1) the extent to which information is known outside of the owner's business; (2) the extent to which information is known by employees and others involved in the business; (3) the extent of measures taken to guard secrecy of information; (4) the value of information to owners and competitors; (5) the amount of effort and money expended in developing information; and (6) the ease or difficulty with which information could be properly acquired or duplicated by another. <i>See id.</i>; <i>see also Erlich Prot. Sys., Inc. v. Flint</i>, No. 345323, 2019 WL 5851938, at *2 (Mich. Ct. App. Nov. 7, 2019). Trade secrets may include vendor lists and customer information. <i>See Giasson Aerospace Science, Inc. v. RCO Engineering, Inc.</i>, 680 F. Supp. 2d 830, 843 (E.D. Mich., 2010); <i>see also Electronic Planroom v. McGraw-Hill Cos.</i>, 135 F. Supp. 2d 805, 19 (E.D. Mich., 2001). Here, information at issue must also be protected as Trade Secrets. As explained above, this information is not available to the public, has not been disclosed to the public, and nor would it be disclosed to the public. It therefore qualifies under the first three prongs of the trade secret analysis. <i>See Hayes-Albion v. Kuberski</i>, 421 Mich. at 182. AWS's redlines and explanations also meet prongs 4-6 of the trade secret analysis. The information at issue address requirements specific to the State, or explain information relative to AWS security, administration and operational practices. The information sheds valuable insight into the types of requirements that AWS seeks to modify. Competitors	





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		could use this information to duplicate AWS's contracting strategies or to undercut AWS in order to capture AWS business. For these reasons, disclosure of the information would directly result in harm to AWS' competitive and economic position in winning future contracts. <i>See Chem-Trend Inc. v. McCarthy</i>, 780 F.Supp. 458, 461 (E.D.Mich.1991). This information therefore should be exempt from disclosure in accord with Michigan Law. <i>See MCL § 18.1261(13)(b); see also Hayes-Albion v. Kuberski</i>, 421 Mich. at 182.	
Vendor Questions Worksheet, Sections 1 and 6, Pages 34 and 42	PII	The Vendor Questions Worksheet contain the names and contact information of the AWS employees. The release of such information would result in an unwarranted invasion of privacy. As explained above, Michigan's FOIA statute exempts from disclosure "[i]nformation of a personal nature if public disclosure of the information would constitute a clearly unwarranted invasion of an individual's privacy." <i>See MCL 15.243(1)(a)</i>. Information is of a personal nature when it is intimate, embarrassing, private, or confidential information. <i>See Mich. Federation of Teachers & Sch Related Personnel, AFT, AFL-CIO v. Univ of Mich</i>, 481 Mich. 657, 676; 753 NW.2d 28 (2008). Here, the Vendor Questions Worksheet contains the names, titles, addresses, emails and phone numbers of AWS employees. Disclosure of this private information provides no public benefit and would constitute an unwarranted invasion of an individual's privacy.	Faisal Hanafi, Authorized Signatory 410 Terry Ave N. Seattle, WA 98109 aws-wwps-contract-mgmt@amazon.com (206) 266-1000





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Vendor Questions Worksheet, Section 5 State of Michigan Experience and Prior Experience, Pages 38-41	PI, TS, PII	Section 5 of the Vendor Questions Worksheet contains the names, titles, emails and phone numbers of Amazon's customers. As explained above, "public disclosure of the information would constitute a clearly unwarranted invasion of an individual's privacy." See MCL 15.243(1)(a). Thus, this information is exempt from disclosure. In addition, as noted above, Michigan FOIA allows for the nondisclosure of "[r]ecords or information specifically described and exempted from disclosure by statute." See MCL 15.243(1)(d); <i>Titus v. Shelby Charter Twp.</i>, 226 Mich. App. 611, 613, 574 N.W.2d 391 (1997); see also <i>Michigan Open Carry, Inc. v. Department of State Police</i>, 330 Mich. App. 614, 629-620, 950 N.W.2d 484 (2019). While some of the contracts listed in the Vendor Questions Worksheet themselves are publicly known, the details of AWS's performance, as well as the fact that the contracts are being used as references are confidential. AWS takes care to protect this information. The information at issue has not been disclosed to the public, and nor would it be disclosed to the public. Moreover, AWS takes considerable precautions with regard to such information to ensure that it is not disclosed outside of AWS. AWS has internal policies governing the protection of AWS confidential information, saves the information (and other similar nonpublic information) to an internal network, and releases the nonpublic information contained in the submission only under cover of a non-disclosure agreement (NDA) or where, as here, there is expectation of confidentiality. Release of the	Faisal Hanafi, Authorized Signatory 410 Terry Ave N. Seattle, WA 98109 aws-wwps-contract-mgmt@amazon.com (206) 266-1000





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		information would afford AWS’s competitors an advantage, and cause AWS considerable competitive harm. See MCL 18.1261(13)(b). The information is therefore exempt from disclosure. Finally, the information at issue must also be protected as AWS Trade Secrets. As explained above, this information is not available to the public, has not been disclosed to the public, and nor would it be disclosed to the public. It therefore qualifies under the first three prongs of the trade secret analysis. See <i>Hayes-Albion v. Kuberski</i>, 421 Mich. at 182. The details of AWS’s contracts supporting customers, as well as contact information provided in the Vendor Questions Worksheet also meet prongs 4-6 of the trade secret analysis. The information at issue in the submission represents a substantial investment by AWS that has unique economic value vis-à-vis AWS’s competitors. There is considerable competition in the information technology space, and AWS competes with many other companies for contracts, including those for cloud services. In such a competitive environment, companies seek any increment of useful information about their competitors’ businesses, negotiation and business strategy, including confidential business and technical information regarding customers and the nature of work performed or offered. Obtaining the Trade Secrets reflected in the submission would give competitors nonpublic insight into AWS that would provide competitors with an advantage given that the Trade Secrets derive economic value from not being publicly known. For these reasons, disclosure of the information would directly result in harm to AWS’ competitive and economic position in winning future	





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		contracts. <i>See Chem-Trend Inc. v. McCarthy</i>, 780 F.Supp. 458, 461 (E.D.Mich.1991). This information therefore should be exempt from disclosure in accord with Michigan Law. <i>See MCL § 18.1261(13)(b); see also Hayes-Albion v. Kuberski</i>, 421 Mich. at 182.	
Attachment 1, Resume Templates, Pages 47-59	PII, PI	Attachment 1, Resume Templates, contains the resumes of proposed contractor personnel. These resumes provide personal information, including the names, titles, experience, and education of proposed personnel. As explained above, Michigan's FOIA statute exempts from disclosure "[i]nformation of a personal nature if public disclosure of the information would constitute a clearly unwarranted invasion of an individual's privacy." <i>See MCL 15.243(1)(a)</i>. Disclosure of this private information, the disclosure of which serves no public benefit, would constitute an unwarranted invasion of an individual's privacy. Furthermore, information about how AWS proposes to staff this contract is protected under Section 18.1261(13)(b) of the Management and Budget Act. AWS's proposed staffing is "information that has not been publicly disseminated or which is unavailable from other sources, the release of which might cause the submitter of the information competitive harm." MCL § 18.1261(13)(b). The information at issue in AWS's submission is not available to the public, has not been disclosed to the public, and nor would it be disclosed to the public. Disclosure of the information would allow AWS's competitors use this information	Faisal Hanafi, Authorized Signatory 410 Terry Ave N. Seattle, WA 98109 aws-wwps- contract- mgmt@amazon.com (206) 266-1000





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		to either duplicate similar strategies or to undercut AWS for AWS business. As a result, the information identified in this section is exempt from public disclosure.	
Initial Response: High-Level Terms and Conditions Concepts, Pages 60-67	PII, PI, TS	The Initial Responses section contains the name, position and signature of an AWS employee. As explained above, “public disclosure of the information would constitute a clearly unwarranted invasion of an individual’s privacy.” See MCL 15.243(1)(a). Thus, this information is exempt from disclosure. In addition, the Initial Responses section contains Proprietary Information and Trade Secrets, including AWS’s explanations to exceptions taken to some of the State’s requirements. AWS treats this information as highly confidential. The responses provide insight into AWS’s competitive positions and details on how AWS provides services to its customers. The responses also explain AWS’s non- public processes and methods for contracting with public entities such as the State and were provided to speak to the State’s requirements. AWS takes precautions with regard to such information to ensure that it is not disclosed outside of AWS. AWS has internal policies governing the protection of AWS confidential information, saves the information (and other similar nonpublic information) to an internal network, and releases the nonpublic information contained in the submission only under cover of a non-disclosure agreement (NDA) or where there is expectation of confidentiality. Release of these responses would unquestionably afford AWS’s competitors an advantage, and cause AWS	Faisal Hanafi, Authorized Signatory 410 Terry Ave N. Seattle, WA 98109 aws-wwps- contract- mgmt@amazon.com (206) 266-1000





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		considerable competitive harm. See MCL 18.1261(13)(b). The information is therefore exempt from disclosure. This information also qualifies as a Trade Secret. As explained above, the information at issue is not available to the public, has not been disclosed to the public, and nor would it be disclosed to the public. It therefore qualifies under the first three prongs of the trade secret analysis. See <i>Hayes-Albion v. Kuberski</i>, 421 Mich. at 182. The details of AWS responses also meet prongs 4-6 of the trade secret analysis. The information at issue explains information relative to AWS security, administration, and operational practices. The information sheds valuable insight into the types of clauses that AWS will agree to. Competitors could use this information either to duplicate the same or similar strategies when negotiating with the State or other public entities to secure future contracting opportunities for cloud services, or to craft their own sales strategies as to how to offer better terms than AWS in order to capture AWS business. Indeed, access to this information would provide competitors with an advantage given that the AWS's derive economic value from its terms and exceptions not being publicly known. For these reasons, disclosure of the information would directly result in harm to AWS's competitive and economic position in winning future contracts. See <i>Chem-Trend Inc. v. McCarthy</i>, 780 F.Supp. 458, 461 (E.D.Mich.1991).	
Schedule A – Statement of Work,	PI, TS	The information included in Schedule A, Statement of Work, contains information regarding how AWS is responding to this RFP, including in some instances	Faisal Hanafi, Authorized Signatory 410 Terry Ave N.





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Section 5, Pages 119- 124; and Section 10, Pages 130- 131		AWS's exceptions and corresponding exceptions. In addition, it includes non-public details regarding the nature of AWS's services and how certain services can be architected and deployed by the State to meet its requirements. As explained above, "[r]ecords containing a trade secret as defined under section 2 of the uniform trade secrets act, MCL 445.1902, or financial or proprietary information" are exempt from disclosure under FOIA. See MCL § 18.1261(13)(b). Here, the information qualifies as both Proprietary Information and Trade Secrets. It must be exempt from disclosure. The information at issue here is not available to the public, has not been disclosed to the public, nor would it be disclosed to the public. AWS's response to this Schedule A was prepared specifically in response to the State's requirements in this RFP, and provides non-public information about AWS services. Release of this information is not only likely to cause AWS substantial economic injury, but almost certainly will do so. There is considerable competition in the information technology space, and AWS competes with countless companies for contracts, including those for cloud services. In such a competitive environment, companies seek any increment of useful information about their competitors' businesses, negotiation and business strategy, including confidential business and technical information. Obtaining the information identified in this section as PI and TS would give competitors nonpublic insight into AWS that would provide competitors with an advantage given that this information derives economic value from not being publicly known.	Seattle, WA 98109 aws-wwps-contract-mgmt@amazon.com (206) 266-1000

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		Finally, the information is subject to reasonable efforts by AWS to maintain its secrecy. As set out in more detail above, AWS has internal policies governing the use and release of such information. AWS only releases such information to third parties outside the company on such basis and only under nondisclosure agreements/subject to confidentiality requirements. Release of the information would unquestionably afford AWS's competitors an advantage, and cause AWS considerable competitive harm. See MCL 18.1261(13)(b). It should therefore be exempt from disclosure.	
Schedule A – Statement of Work, Sections 18-20, Pages 140-141	PII, PI	Schedule A, Statement of Work, contains the names, addresses, and contact information for AWS's proposed contractor personnel. As explained above, Michigan's FOIA statute exempts from disclosure "[i]nformation of a personal nature if public disclosure of the information would constitute a clearly unwarranted invasion of an individual's privacy." See MCL 15.243(1)(a). Disclosure of this private information, the disclosure of which serves no public good, would constitute an unwarranted invasion of an individual's privacy. Furthermore, information about how AWS proposes to staff this contract is protected under Section 18.1261(13)(b) of the Management and Budget Act. AWS's proposed staffing is "information that has not been publicly disseminated or which is unavailable from other sources, the release of which might cause the submitter of the information competitive harm." See MCL § 18.1261(13)(b). The information at is not available to the public, has not been disclosed to the	Faisal Hanafi, Authorized Signatory 410 Terry Ave N. Seattle, WA 98109 aws-wwps-contract-mgmt@amazon.com (206) 266-1000





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		public, and nor would it be disclosed to the public. Disclosure of the information would allow AWS's competitors use this information to duplicate the same or similar strategies when negotiating with the State or other public entities to secure future contracting opportunities for cloud services.	
Schedule A, Attachment 1, Business Specification Worksheet, Pages 144-211	PI, TS	AWS's response to Schedule A, Table 1 Business Specifications provides non-public details regarding the nature of AWS's services and how certain services operate and can be architected and deployed by the State to meet its specific business, technical, and administrative requirements. As explained above, "[r]ecords containing a trade secret as defined under section 2 of the uniform trade secrets act, MCL 445.1902, or financial or proprietary information" are exempt from disclosure under FOIA. See MCL § 18.1261(13)(b). Here, the information qualifies as both Proprietary Information and Trade Secrets. AWS unquestionably derives economic value from the fact that the Information in question is confidential. AWS faces actual competition for cloud services. AWS carefully protects the information at issue. Furthermore, it is likely that AWS's competitors could use the information to gain a competitive advantage over AWS, and thus cause AWS competitive harm. Release of this information would allow AWS's competitors insight into both the technical and security features that were part of AWS's proposal. Release of this information would thus result in substantial competitive harm to AWS by allowing competitors to reverse engineer AWS's solution for the same or similar services.	Faisal Hanafi, Authorized Signatory 410 Terry Ave N. Seattle, WA 98109 aws-wwps-contract-mgmt@amazon.com (206) 266-1000





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		In addition, the information is subject to reasonable efforts by AWS to maintain its secrecy. As set out in more detail above, AWS has internal policies governing the use and release of its confidential information. AWS only releases such information to third parties outside the company on such basis and only under nondisclosure agreements, or as here, subject to an expectation of confidentiality. In short, the information is highly sensitive, and given the proprietary, confidential, and commercial nature of the information in question, disclosure of it to the public would cause substantial harm to AWS's competitive position. The information therefore should be exempt from disclosure in accord with Michigan Law. <i>See</i> MCL § 18.1261(13)(b); <i>see also</i> <i>Hayes-Albion v. Kuberski</i>, 421 Mich. at 182.	
Schedule B, Pricing, Pages 212, 218	FI, TS	Schedule B, Pricing contains information regarding how AWS structures pricing and administrative and operational considerations that are internal to AWS. As explained above, “[r]ecords containing a trade secret as defined under section 2 of the uniform trade secrets act, MCL 445.1902, or financial or proprietary information” are exempt from disclosure under FOIA. <i>See</i> MCL § 18.1261(13)(b). Here, the information at issue qualifies as both Financial Proprietary Information and Trade Secrets. AWS unquestionably derives economic value from the fact that the redacted Information is confidential. The information includes AWS's overall approach to offering more competitive pricing. AWS faces actual competition for cloud services. Release of this information would allow AWS's competitors insight into both the pricing structure that was part of AWS's	Faisal Hanafi, Authorized Signatory 410 Terry Ave N. Seattle, WA 98109 aws-wwps-contract-mgmt@amazon.com (206) 266-1000





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		proposal, as well as AWS's internal administrative and operational pricing considerations. Such disclosure would unfairly reveal AWS's confidential pricing approach. This information would assist AWS's competitors in anticipating AWS's pricing strategies and prices in future government and/or commercial procurements for similar products and services. Release of the cost and pricing information at issue would thus result in substantial competitive harm to AWS by allowing these competitors to underbid AWS in future competitions for the same or similar services. Lastly, the information is subject to reasonable efforts by AWS to maintain its secrecy. As set out in more detail above, AWS has internal policies governing the use and release of such information. AWS only releases the information to its own employees on a need to know basis, and to individuals outside the company only under nondisclosure agreements or, as here, where there is an expectation of confidentiality. In short, the information is highly sensitive, and given the proprietary, confidential, and commercial nature of the information in question, disclosure of it to the public would cause substantial harm to AWS's competitive position. The information therefore should be exempt from disclosure in accord with Michigan Law. <i>See</i> MCL § 18.1261(13)(b); <i>see also</i> <i>Hayes-Albion v. Kuberski</i>, 421 Mich. at 182.	
Schedule C, Insurance Requirement	PI, TS	Schedule C, Insurance Requirements contains non-public information about administrative and operational considerations that are internal to AWS. This information is exempt from disclosure under	Faisal Hanafi, Authorized Signatory 410 Terry Ave N. Seattle, WA





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s, Pages 21- 221		Michigan law as both financial and proprietary information. As explained above, “[r]ecords containing a trade secret as defined under section 2 of the uniform trade secrets act, MCL 445.1902, or financial or proprietary information” are exempt from disclosure under FOIA. See MCL § 18.1261(13)(b). Here, the information at issue qualifies as both Proprietary Information, as well as Trade Secrets. AWS unquestionably derives economic value from the fact that the redacted information is secret. AWS faces actual competition for cloud services. AWS carefully protects the information at issue. Furthermore, it is likely that AWS’s competitors could use the information to gain a competitive advantage over AWS, and thus cause AWS competitive harm. Release of this information would allow AWS’s competitors insight into internal administrative and operational considerations related to insurance. This information would assist AWS’s competitors in anticipating AWS’s strategies in future government and/or commercial procurements for similar products and services. Lastly, the information is subject to reasonable efforts by AWS to maintain its secrecy. As set out in more detail above, AWS has internal policies governing the use and release of such information. AWS only releases the information to third parties under an NDA or, as here, subject to an expectation of confidentiality. The information therefore should be exempt from disclosure in accord with Michigan Law. See MCL §	98109 aws-wwps-contract-mgmt@amazon.com (206) 266-1000





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		18.1261(13)(b); <i>see also Hayes-Albion v. Kuberski</i> , 421 Mich. at 182	
Schedule D- Attachment 1, Contact List, Page 223	PII	The names and contact information of the AWS Account Team and Contract Team members are Personally Identifiable Information, which AWS takes care to protect, and the release of such information would result in an unwarranted invasion of privacy. As explained above, Michigan's FOIA statute exempts from disclosure "[i]nformation of a personal nature if public disclosure of the information would constitute a clearly unwarranted invasion of an individual's privacy." <i>See</i> MCL 15.243(1)(a). Information is of a personal nature when it is intimate, embarrassing, private, or confidential information. <i>See Mich. Federation of Teachers & Sch Related Personnel, AFT, AFL-CIO v. Univ of Mich</i>, 481 Mich. 657, 676; 753 NW.2d 28 (2008). Here, Schedule D contains the names and positions of AWS employees. Disclosure of this information serves no public good, and would constitute an unwarranted invasion of an individual's privacy.	Faisal Hanafi, Authorized Signatory 410 Terry Ave N. Seattle, WA 98109 aws-wwwps-contract-mgmt@amazon.com (206) 266-1000
Schedule E, Data Security Requirement s, including all Attachments (Attachment B – Safeguard Requirement s of Confidential	PI, TS	Schedule E, including all attachments, contains Proprietary Information and Trade Secrets, including AWS's explanations to exceptions and proposed redlines. AWS treats this information as highly confidential. Specifically, the comments and exceptions provide insight into AWS's competitive position and details on how AWS provides services to its customers. The exceptions and comments also detail security features and exceptions to terms that are not publicly available. The comments and exceptions explain AWS's non-public processes and	Faisal Hanafi, Authorized Signatory 410 Terry Ave N. Seattle, WA 98109 aws-wwwps-contract-mgmt@amazon.com (206) 266-1000

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Data; Attachment 1 – PCI Compliance and PECAS; Attachment C – HIPAA Business Associate Addendum; FBI Criminal Justice Information Services Security Addendum; Exhibit 7 Safeguarding Contract (Language), Pages 224-265, and PDF pg. 309		methods for contracting with public entities such as the State and were provided to speak to the State's requirements Absent its potential business relationship with the State, AWS would not have provided it redlines along with corresponding explanations as these contain nonpublic information about custom, nonpublic terms that have been offered/negotiated specifically for the State to provide more favorable terms. If not for the requirements of the RFP, AWS would only release such information to a customers that signed an NDA or entered into a direct agreement with AWS containing confidentiality provisions governing the terms of the parties' agreement, negotiation, and discussions. Release of the redlines and corresponding detailed analysis of each is information that would unquestionably afford AWS's competitors an advantage, and cause AWS considerable competitive harm. See MCL 18.1261(13)(b). The information is therefore exempt from disclosure. This information also qualifies as a Trade Secret. As explained above, the information at issue in is not available to the public, has not been disclosed to the public, and nor would it be disclosed to the public. It therefore qualifies under the first three prongs of the trade secret analysis. See <i>Hayes-Albion v. Kuberski</i>, 421 Mich. at 182. The details of AWS's redlines and explanations also meet prongs 4-6 of the trade secret analysis. The information at issue contains custom, nonpublic terms that have been provided specifically for the State, address requirements specific to the State, or explain information relative to AWS security, administration, and operational practices as why	

Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this document.
February 7, 2025





AWS Response to Michigan DTMB Cloud Services RFP
RFP No. 250000000414

(1) Proposal Page #, Section #, Paragraph #	(2) Material is Trade Secret (TS), Proprietary Financial Information (FI), Proprietary Information (PI)	(3) Applicable FOIA Exemption with Written Justification	(4) Bidder Contact Information
		certain edits were proffered. The information sheds valuable insight into the types of clauses that AWS will agree to modify via negotiated contractual amendments. Competitors could use this information either to duplicate the same or similar strategies when negotiating with the State or other public entities to secure future contracting opportunities for cloud services, or to craft their own sales strategies as to how to offer better terms than AWS in order to capture AWS business. Indeed, access to the RFP and redlines would provide competitors with an advantage given that the AWS's derive economic value from its terms and exceptions not being publicly known. For these reasons, disclosure of the information would directly result in harm to AWS's competitive and economic position in winning future contracts. <i>See Chem-Trend Inc. v. McCarthy</i> , 780 F.Supp. 458, 461 (E.D.Mich.1991).	
Schedule F – Disaster Recovery Plan, Pages 268, 269, 271 Schedule G – Transitions In and Out, Pages 277, 284, 286	PI, TS	Information included in Schedule F, Recovery Plan Contract Plan and Schedule G, Transition In and Out represent AWS's Proprietary Information and Trade Secrets. "Records containing a trade secret as defined under section 2 of the uniform trade secrets act, MCL 445.1902, or financial or proprietary information" are exempt from disclosure under FOIA. See MCL § 18.1261(13)(b). This provision extends protection to all "information that has not been publicly disseminated or which is unavailable from other sources, the release of which might cause the submitter of the information competitive harm." <i>Id</i> Both AWS's Disaster Recovery Plan and Transition In and Out sections were prepared specifically in	Faisal Hanafi, Authorized Signatory 410 Terry Ave N. Seattle, WA 98109 aws-wwps-contract-mgmt@amazon.com (206) 266-1000





(1) Proposal Page #, Section #, Paragraph #	(2) Material is Trade Secret (TS), Proprietary Financial Information (FI), Proprietary Information (PI)	(3) Applicable FOIA Exemption with Written Justification	(4) Bidder Contact Information
		response to this RFP and provides non-public details regarding the nature of AWS's services and how certain services can be deployed by the State to meet its requirements. These sections were prepared for the State per its express direction in order to meet specific requirements and includes proprietary solution information regarding AWS's submission. AWS unquestionably derives economic value from the fact that the redacted information is secret. AWS faces actual competition for cloud services. Furthermore, it is likely that AWS's competitors could use the information to gain a competitive advantage over AWS, and thus cause AWS competitive harm. Release of this information would allow AWS's competitors insight into proposal features for this RFP and how AWS structures a Disaster Recovery Plan and guidance for its customers. Release of this information would thus result in substantial competitive harm to AWS by allowing competitors to reverse engineer AWS's solution for the same or similar services. Finally, the information is subject to reasonable efforts by AWS to maintain its secrecy. As set out in more detail above, AWS has policies governing the use and release of such information. AWS only releases the information outside the company only under nondisclosure agreements or, as here, with the expectation of confidentiality. The Disaster Recovery Plan and Transition In and Out contain information that is proprietary and confidential, and disclosure would cause substantial harm to AWS's competitive position. The information therefore should be exempt from disclosure in accord	





AWS Response to Michigan DTMB Cloud Services RFP
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(1) Proposal Page #, Section #, Paragraph #	(2) Material is Trade Secret (TS), Proprietary Financial Information (FI), Proprietary Information (PI)	(3) Applicable FOIA Exemption with Written Justification	(4) Bidder Contact Information
		with Michigan Law. <i>See</i> MCL § 18.1261(13)(b); <i>see also Hayes-Albion v. Kuberski</i> , 421 Mich. at 182.	
Schedule J, Federal Provisions Addendum, Pages 289- 296	PI	AWS's response to Schedule J is protected under Section 261(13)(b) of the Management and Budget Act. AWS's response reveals information about AWS's position on certain requirements included in this schedule, which is "information that has not been publicly disseminated or which is unavailable from other sources, the release of which might cause the submitter of the information competitive harm." <i>See</i> MCL § 18.1261(13)(b). The information at issue in AWS's submission is not available to the public, has not been disclosed to the public, and nor would it be disclosed to the public. Disclosure of the information would allow AWS's competitors use this information to either duplicate similar strategies or to undercut AWS for future work. As a result, the information identified in this schedule is exempt from public disclosure. <i>See</i> MCL § 18.1261(13)(b); <i>see also Hayes-Albion v. Kuberski</i>, 421 Mich. at 182.	Faisal Hanafi, Authorized Signatory 410 Terry Ave N. Seattle, WA 98109 aws-wwps- contract- mgmt@amazon.com (206) 266-1000



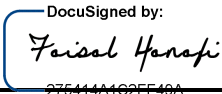


AWS Response to Michigan DTMB Cloud Services RFP
RFP No. 250000000414

By signing below, the bidder affirms that confidential treatment of material contained in their proposal is requested and has attached to this form a redacted “Public Copy” of the bidder’s proposal.

RFP No. 250000000414

Department of Technology, Management and
Budget—Procurement
Cloud Services

Solicitation Number  275444A402FF40A...

Solicitation Title
February 5, 2025

Signature
Faisal Hanafi, Director for US State & Local Government, Amazon Web Services, Inc.

Date

Printed Name, Title, Company





VENDOR QUESTIONS WORKSHEET

Provide a detailed response to each question. "You" and "company" refers to the bidder.

Information Sought	Bidder Response
1. Contact Information	
Bidder's sole contact person during the Solicitation process. Include name, title, address, email, and phone number.	Todd Davis Director of Public Sector Sales for State & Local Government 410 Terry Ave N. Seattle, WA 98109 tgdavis@amazon.com (206) 266-1000
Person authorized to receive and sign a resulting contract. Include name, title, address, email, phone number and vendor customer code in SIGMA VSS.	Faisal Hanafi, Authorized Signatory 410 Terry Ave N. Seattle, WA 98109 aws-wwps-contract-mgmt@amazon.com (206) 266-1000
2. Company Background Information	
Legal business name and address. Include business entity designation, e.g., sole proprietor, Inc., LLC, or LLP.	Amazon Web Services, Inc. (AWS) 410 Terry Ave N. Seattle, WA 98109
What state was the company formed in?	AWS was incorporated in Delaware, USA.
Phone number.	(206) 266-1000
Website address.	http://aws.amazon.com/
Number of years in business.	AWS launched in the spring of 2006 and has been in business for 18 years.
Number of employees.	According to the Amazon Q3 2024 Quarterly Report , Amazon has employed approximately 1,551,000 full-time and part-time employees as of October 31, 2024. Note that employment levels fluctuate due to seasonal factors that affect our business.
Legal business name and address of parent company, if any.	Amazon.com, Inc 410 Terry Avenue North Seattle, WA 98109-5210
Has there been a recent change in organizational structure (e.g., management team) or control (e.g., merger or acquisition) of your company? If the answer is yes: (a) explain why the change occurred and (b) how this change has affected your company.	There has not been a recent change in organizational structure or control.
Discuss your company's history. Has growth been organic, through mergers and acquisitions, or both?	AWS has been operating since 2006 and now serves millions of active customers every month worldwide. AWS relies on growing business organically through developing new functionalities, services, and segments, and while AWS has strategic relationships, we have only made limited acquisitions.





AWS Response to Michigan DTMB Cloud Services RFP
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Information Sought	Bidder Response
	Amazon has a long history of using a decentralized IT infrastructure. This has allowed our development teams to access compute and storage resources on demand, and it has increased Amazon's overall productivity and agility. By 2005, Amazon had spent over a decade and millions of dollars building and managing the large-scale, reliable, and efficient IT infrastructure that powers one of the world's largest online retail platforms. Amazon launched AWS so that other organizations could benefit from Amazon's experience and investment in running a large-scale, distributed, transactional IT infrastructure.
Has bidder ever been debarred, suspended, or disqualified from bidding or contracting with any entity, including the State of Michigan? If yes, provide the date, the entity, and details about the situation.	AWS is not and has not been debarred, suspended, or disqualified from bidding or contracting with any entity, including the State of Michigan or the U.S. federal government.
Has your company been a party to litigation against the State of Michigan? If the answer is yes, then state the date of initial filing, case name and court number, and jurisdiction.	Neither AWS, nor any Amazon-affiliated company, has been a party to litigation against the State.
Within the last 5 years, has your company or any of its related business entities defaulted on a contract or had a contract terminated for cause? If yes, provide the date, contracting entity, type of contract, and details about the termination or default.	To the best of our knowledge and belief, AWS has not defaulted on a government contract or had a government contract terminated for cause within the last five years.
State your gross annual sales for each of the last 5 years. If receiving a contract under this Solicitation will increase your gross revenue by more than 25% from last year's sales, explain how the company will scale-up to manage this increase.	AWS is a large and ever-growing business, and we can handle any increased demand caused by this contract. AWS's gross annual sales (net sales) for the past 5 years are as follows: 2023--\$90.76 billion; 2022--\$80.1 billion; 2021--\$62.2 billion; 2020--\$45.37 billion; 2019--\$35.03 billion. Refer to https://ir.aboutamazon.com/quarterly-results for more information on AWS revenue.
Describe partnerships and strategic relationships you think will bring significant value to the State.	AWS recommends the AWS Partner Network (APN) for architecting, delivering, and managing AWS Cloud-based solutions for customers. The APN provides an extensive community of partner companies that AWS has strategic relationships with. They offer





Information Sought	Bidder Response
	solutions in areas such as value-added software, developer tools, and consulting expertise to help deploy and manage mission-critical workloads in the AWS Cloud. The APN includes tens of thousands of AWS Partners from across the globe, including Partners focused on serving government, education, and nonprofit customer missions around the world. Our APN community includes two types of AWS Partners: AWS Consulting Partners: AWS Consulting Partners are professional services firms that help customers design, architect, build, migrate, and manage workloads and applications in the AWS Cloud. AWS Consulting Partners include systems integrators (SIs), strategic consulting agencies, managed service providers (MSPs), and value-added resellers (VARs). AWS Technology Partners: AWS Technology Partners provide software solutions that are either hosted on or integrated with the AWS Cloud. AWS Technology Partners include independent software vendors (ISVs), software as a service (SaaS), platform as a service (PaaS), and developer tool, management, and security vendors. Vendors focused on serving The State must enter into a separate agreement with your chosen AWS Partner(s) for any work outside the scope of this contract that the State wants a Partner to perform.
State the physical address of the place of business that would have primary responsibility for this account if bidder is awarded a contract under this Solicitation.	Amazon Web Services, Inc. 410 Terry Avenue North Seattle, WA 98109-5210 Additionally, our office in Michigan: Amazon Web Services, Inc. 150 West Jefferson Ave 10th Floor Detroit, MI 48226





AWS Response to Michigan DTMB Cloud Services RFP
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Information Sought	Bidder Response
Bidder affirms that any business types identified on its SIGMA VSS profile, including those eligible for Geographically Disadvantaged Business Enterprise (GDBE) and Michigan Supplier Community Program (MiSC) , are valid.	Yes
3. Qualified Disabled Veteran/Service-Disabled Veteran-Owned Business Program	
Under MCL 18.1261 , a “qualified disabled veteran” means a business entity that is 51% or more owned by 1 or more veterans with a service-connected disability. A “service-connected disability” means a disability incurred or aggravated in the line of duty in the active military, naval, or air service as described in 38 USC 101(16). Are you a qualified disabled veteran?	No
To demonstrate qualification as a qualified disabled veteran, you must provide: (a) Proof of service and conditions of discharge (DD214 or equivalent); (b) Proof of service-connected disability (DD214 if the disability was documented at discharge or Veterans Administration Rating Decision Letter or equivalent if the disability was documented after discharge); and (c) Legal documents setting forth the ownership of the business entity. In lieu of the documentation identified above, you may provide proof of certification by the National Veterans Business Development Council.	N/A
4. Participation in Solicitation Development or Evaluation	
Did your company, an employee, agent, or representative of your company, or any affiliated entity participate in developing any component of this solicitation? For purposes of this question, business concerns, organizations, or individuals are affiliates of each other if, directly or indirectly: (1) either one controls or has power to control the other or (2) a third-party controls or has the power to control both. Indicia of control include, but are not limited to, interlocking management or ownership, identity of interests among family members, shared facilities or equipment, and common use of employees.	No If you enter “YES”, you are not eligible for contract award or to work as a subcontractor for the awarded vendor.
If you are awarded a contract under this solicitation, in order to provide the goods or services required	No





Information Sought	Bidder Response
under a resulting contract, do you intend to partner or subcontract with a person or entity that assisted in the development of this solicitation?	If you enter "YES," you are not eligible for contract award. An awarded vendor may not partner or subcontract with anyone to provide goods and services required under a resulting contract if that subcontractor or partner assisted in the development of this solicitation.
Will your company, or an employee, agent, or representative of your company, participate in the evaluation of the proposals received in response to this Solicitation?	No If you enter "YES", you are not eligible for contract award or to work as a subcontractor for the awarded vendor.
5. State of Michigan Experience and Prior Experience	
Does your company have experience working with the State of Michigan? If so, please provide a list (including the contract number) of the contracts you hold or have held with the State for the last 10 years.	Yes. AWS holds Contract No. 230000000198 through December 6, 2027, with the State of Michigan. This contract offers eligible customers a direct path to procure AWS cloud hosting services. Additionally, we have experience working with the State through our various AWS Partners. Our Partners hold several contracts with the State and its various entities and have built solutions for the State running on AWS. With AWS, customers create self-service accounts; we do not track or report on those accounts on an individual level.
Describe at least 3 relevant experiences from the last 5 years supporting your ability to successfully manage a contract of similar size and scope for the work described in this Solicitation.	AWS has similar integrated IaaS and PaaS contracts with 49 states and has successfully managed those contracts through a variety of AWS services and AWS Partners. The following are three relevant contracts.
Experience 1	
Company name.	North Carolina Department of IT
Contact name.	
Contact role at time of project.	
Contact phone.	
Contact email.	
City.	
State.	
Zip.	





Information Sought	Bidder Response
1. Project name and description of the scope of the project. 2. What role did your company play? 3. How is this project experience relevant to the subject of this Solicitation?	1. Statewide cloud contract vehicle. 2. Direct contract holder. 3. This contract is similar in services covered and is statewide, similar to the State's intended purpose. AWS shows our ability to use a centralized State contract to deliver cloud services to a variety of customers. From NCDIT's website: "NCDIT's Cloud Services includes consulting and provisioning a cloud infrastructure using Amazon Web Services, Microsoft Azure and Google Cloud Platform... [NCDIT uses the contracts to help customers] save time and effort in managing cloud deployments."
Dollar value.	Due to confidentiality obligations, AWS is not allowed to share this information in our proposal response.
Start and end date (mm/yy – mm/yy)	July 2024–June 2025
Status (completed, live, other – specify phase)	Live
Results obtained.	





Information Sought	Bidder Response
Experience 2	
Company name.	Texas Department of Information Resources
Contact name.	
Contact role at time of project.	
Contact phone.	
Contact email.	
City.	
State.	
Zip.	
1. Project name and description of the scope of the project. 2. What role did your company play? 3. How is this project experience relevant to the subject of this Solicitation?	1. Statewide cloud contract vehicle. 2. Direct contract holder. 3. This contract is similar in services covered and is statewide, similar to the State's intended purpose. AWS shows our ability to use a centralized State contract to deliver cloud services to a wide variety of customers. From the Texas DIR contract site: "Amazon Web Services, Inc. (AWS) offers Cloud Infrastructure as a Service, Cloud Platform as a Service, and Related Services through this contract. Customers can purchase directly through this DIR contract. Contracts may be used by state and local government, public education, other public entities in Texas, as well as public entities outside the state. Resellers are not available for this contract."
Dollar value.	Due to confidentiality obligations, AWS is not allowed to share this information in our proposal response.
Start and end date (mm/yy – mm/yy)	06/23–06/25
Status (completed, live, other – specify phase)	Live
Results obtained.	





AWS Response to Michigan DTMB Cloud Services RFP
RFP No. 250000000414

Information Sought	Bidder Response
Experience 3	
Company name. Contact name. Contact role at time of project. Contact phone. Contact email.	OMNIA Partners and the City of Rochester Hills, MI
City. State. Zip.	
1. Project name and description of the scope of the project. 2. What role did your company play? 3. How is this project experience relevant to the subject of this Solicitation?	1. National Cooperative Contract for a Software Marketplace including Cloud Services. 2. Direct contract holder. 3. AWS worked with OMNIA Partners and the City of Rochester Hills, MI to develop a first of its kind contract for cloud services with AWS Marketplace in scope. AWS's collaboration with OMNIA and Rochester Hills offers a pre-competed contract for every product in AWS Marketplace and associated cloud services for 234,000 state and local government and education customers nationwide.
Dollar value.	Due to confidentiality obligations, AWS is not allowed to share this information in our proposal response.
Start and end date (mm/yy – mm/yy)	02/2023–12/2027
Status (completed, live, other – specify phase)	Live
Results obtained.	
6. Standard Contract Terms	





AWS Response to Michigan DTMB Cloud Services RFP
RFP No. 25000000414

Information Sought	Bidder Response
Bidder must affirm agreement with all items within the "Initial Response: High-level Terms and Conditions". If not in agreement, written exceptions may only be provided in accordance with the Evaluation Process section of the Proposal Instructions must be provided with Bidder's proposal. Having exceptions to the "Initial Response: High-level Terms and Conditions" may be cause for disqualification.	Written exceptions are provided in accordance with the Evaluation Process section of the Proposal Instructions.
Please indicate whether Bidder is listed on the government-wide exclusions in the System for Award Management (SAM), in accordance with the OMB guidelines at 2 CFR 180 that implement Executive Orders 12549 (51 FR 6370; February 21, 1986) and 12689 (54 FR 34131; August 18, 1989), "Debarment and Suspension." SAM Exclusions contains the names of parties debarred, suspended, or otherwise excluded by agencies, as well as parties declared ineligible under statutory or regulatory authority other than Executive Order 12549.	AWS is not listed on the government-wide exclusions in the System for Award Management (SAM).
Bidder must include all persons who reviewed or edited the Contract terms, and their applicable role and title within your organization.	Todd Davis—Sales Director Beth Fetzer—Business Development/Capture Judy Choi—Legal Counsel Julie Yun—Business Contracts Manager Vishanth Davidar—Solutions Architect Moses Arockiam—Professional Services Consultant Joe Reinhold—Training BD Manager Andrew Murphree—Proposal Manager Donna Jaikaran—Proposal Writer Daniel Kinney-Spears—Proposal Writer
7. Insurance Requirements	
Bidder must affirm agreement with the attached Schedule C (Insurance Requirements). If not in agreement, written exceptions in accordance with the Evaluation Process section of the Proposal Instructions must be provided with the Bidder's proposal.	Yes
8. Michigan Economic Impact	
Number of employees currently employed at locations within the State of Michigan.	As of January 2024, Amazon had created 24,000 full- and part-time jobs in Michigan, and indirectly supports an additional 32,000.





Information Sought	Bidder Response
	Beyond this, Amazon.com enables more than 11,000 independent sellers located in Michigan (typically small and medium sized businesses) to reach their customers via the Amazon.com store. We have also invested over \$15 billion in Michigan since 2010, including infrastructure and compensation to our employees. Amazon's main investments in Michigan include: • 12 fulfillment and sortation centers • 14 delivery stations • 8 Whole Foods Market locations • 1 Amazon Hub Locker+ • 1 solar farm.
Number of additional employees to be employed at locations within the State of Michigan if awarded this Contract (if any)	Although AWS cannot disclose the number of employees who will be employed within the State if we are awarded the contract, AWS can disclose that we employ full-time staff supporting the State's accounts. The resources supporting the State's needs include an Account Manager located in Michigan, a Capture Manager, and a Solutions Architect. Additionally, because of this contract can be used by other public sector entities in MI, several other Account Managers and Solution Architects located in MI are required to support the full list of possible customers through this contract.
Minimum wage paid to employees employed at locations within the State of Michigan.	Effective November 1, 2020, Amazon has set a minimum wage of \$15 per hour for all U.S. full-time, part-time, temporary (including those hired by agencies), and seasonal employees at Amazon and all its subsidiaries.
Average wage paid to employees employed at locations within the State of Michigan.	In September 2024, we announced that hourly members of our front-line team would get at least an additional \$1.50 per hour, bringing their average base wage to over \$22 an hour and average total compensation (wage and benefits) to over \$29 per hour.
Percentage of employees employed at locations within the State of Michigan that are covered by employer-provided health insurance.	At Amazon, taking care of employees' health and wellness is a priority. That is why Amazon offers medical, prescription drug, dental, and vision coverage to all of our employees, regardless of their level, tenure, position, or location.





Information Sought	Bidder Response
	Amazon also offers a medical advice line and counseling services that are completely confidential and available 24/7. When employees want to take time away from work, they receive paid time off, which is accrued annually based on the employee’s classification, and company paid holidays. Amazon also offers other leave and medical accommodation options that are available for mental and physical health concerns.
9. Labor, Antidiscrimination and Environmental Laws Compliance	
Bidder must disclose any violations of state or federal labor, antidiscrimination and employment laws and regulations received within the past five years.	AWS has not committed any violations of state or federal labor, antidiscrimination and employment laws and regulations within the past five years to the best of our knowledge and belief.
Bidder must disclose any violations of state or federal environmental laws and regulations received within the past five years.	AWS has not committed any violations of state or federal environmental laws and regulations within the past five years as accurate to the best of our knowledge and belief.
10. Supplier Diversity	
Does your company have a supplier diversity program or training?	Yes
Bidder agrees that if Bidder is awarded a contract with a dollar amount of \$500,000 or greater from this Solicitation, Bidder shall provide a copy of their current EEO-1 demographic report provided that Bidder meets Federal requirements to file an EEO-1 report.	Yes
11. Other	
Classification of Employees. I certify that the company has properly classified its employees in accordance with federal/state labor and employment laws.	Yes
Abusive Labor Practices. The Contractor certifies that it will not furnish any Deliverable that was produced fully or partially by forced labor, forced or indentured child labor, or indentured servitude.	Yes
Certification of Michigan Business- Public Act 431 of 1984, Sec. 268. I certify that the company has, pursuant to the provisions of Sec 268 of Public Act 431 of 1984, filed a Michigan Business Tax Corporate Income Tax Return. I certify that the company has, pursuant to the provisions of Sec 268	Yes





Information Sought	Bidder Response
of Public Act 431 of 1984, filed a Michigan Income Tax return showing income generated in, or attributed to the State of Michigan. I certify that the company has, pursuant to the provisions of Sec 268 of Public Act 431 of 1984, withheld Michigan Income Tax from compensation paid to the company's owners and remitted the tax to the Michigan Department of Treasury.	
Iran Linked Business- Public Act 517 of 2012. I certify that the Company is not an Iran-Linked business as defined by Public Act 517 of 2012.	Yes
Clean Corporate Citizen. I certify that the Company is a Clean Corporate Citizen as defined by the Environmental Protection Act, 1994 PA 451.	No, Amazon is a global company with global sustainability goals. As such, we are unable to participate in various local voluntary sustainability programs and alliances. We are a member of global programs such as the Responsible Business Alliance, Advanced Energy Buyers Group, Business for Social Responsibility, Center for Climate and Energy Solutions (C2ES), Corporate Eco Forum (CEF), Closed Loop Fund, Green Chemistry and Commerce Council, RE-Source Platform, Renewable Energy Buyers Alliance (REBA), and the American Council on Renewable Energy (ACORE). We are also a co-founder and signatory of The Climate Pledge, which demonstrates our commitment to measure and report greenhouse gas emissions on a regular basis. At Amazon, there are multiple ways our sustainability work aligns with the goals of the Corporate Citizen Program. Amazon launched a new, comprehensive website to share information with stakeholders about our Sustainability goals, initiatives and progress towards reaching our goals. Please visit https://sustainability.aboutamazon.com/ for more information.
Convict Labor. The Contractor certifies that if using convict labor, it is complying with all applicable state and federal laws and policies.	Yes
SOM Debt/Tax Payment. All SOM tax/debts. I certify that all applicable State of Michigan taxes are paid, and that no outstanding debt is owed to the State of Michigan.	Yes





Information Sought	Bidder Response
Authorization to Verify Information Provided by Vendor. I authorize the State to verify that all information provided in this registration, in bidding and contracting documents, and any attachments or supplement documents and processes are accurate.	Yes, as accurate to the best of our knowledge and belief.
12. Response to State Requests	
Bidder agrees to respond, by established deadlines, to all requests from the State including but not limited to, clarification requests, notices of deficiency, and proposed changes to Contract Terms.	Yes





ATTACHMENT 1, RESUME TEMPLATES

The Contractor must use the Résumé Summary Template(s) provided in this attachment. Résumés for personnel should not exceed four (4) pages each in length.

Résumés for personnel must include relevant skills, experience, and references.

It is acceptable for one person to fill multiple key positions for this project. However, a key résumé template must be completed for each key position to demonstrate that the required skills and experience are met and the proposal must demonstrate that the individual is assigned to the project for sufficient hours to meet the requirements of all roles for which they have been designated.

The State may evaluate such criteria as time spent by the personnel directly supporting similar solutions, and comparable size, scope and complexity of implementations accomplished.

The Contractor must submit a Letter of Commitment for key personnel who will be assigned to the Contract, signed by the identified resource, stating their commitment to work for the Contractor on this project contingent on award of the bid. If the identified personnel are currently assigned to another State project the Contractor must provide a letter signed by the State Program Manager releasing the individual from the other project upon execution of the Contract.

Commented [A6]: Commercial cloud services are provided at scale to serve customers globally. Employees are not hired to support a particular contract as that does not align to a supplier of commercial services. In addition, for large companies, personnel may be subject to internal transfers or switch roles generally. Any removal would not interfere with the timely and proper completion of the contract.





Contractor Program Manager

Proposed Resource Name:	Alicia Blackburn
Proposed Classification:	Contractor Program Manager
If resource is associated with a subcontractor provide name of company:	Not Applicable (N/A)
Percentage of time resource will be allocated to project:	As required throughout contract duration.
Contractor list the skills and experience that qualify the individual for the duties and responsibilities on this project for the proposed role. Provide the name of the project(s) and the year(s) the experience was obtained.	Ms. Blackburn possesses extensive experience in cloud engineering, software development, and program management. She has a proven track record of leading cross-functional teams and driving product development from concept, implementation, through to delivery. Ms. Blackburn has a strong background in leading solution management, using her deep understanding of AWS native cloud services, Internet of Things (IoT) technologies, automated infrastructure, and agile methodologies.

The experience requirements are restated as follows:

Required Skills	Bidder's Response
5 years of experience managing projects of similar size and scope of this solicitation.	Does resource have this required skill: Yes " or No " Ms. Blackburn's skills and experience related to this role include: Skills: • Delivering powerful and modern security implementations and networking solutions. • Leading cross-functional teams designing and implementing innovative cloud solutions for CSP accounts and tenant lifecycle management platforms at an enterprise scale. • Driving digital modernization through the adoption of cloud technologies, resulting in improved operational efficiency, cost savings, and enhanced customer experiences. Experience: Ms. Blackburn has seven years of relevant contract program manager experience managing projects of similar size and scope of this solicitation. From 05/2013 to present, Ms. Blackburn has served in these key roles: • Customer Solutions Manager, AWS, 12/2024–present • Director of Cloud Development and Embedded Systems, Terrasmart, 06/2023–4/2024 • Director of Cloud Engineering and Architecture—Corporate Cloud Center of Excellence, The General Electric Company, 1/2017–6/2023 Name of project(s) and year(s) experience was obtained: • Specific names of projects on which Ms. Blackburn has served as a contract program manager are proprietary information. Ms. Blackburn





Required Skills	Bidder's Response
	has 11 years of relevant contract program manager experience managing projects of similar size and scope.
5 years of experience facilitating meetings w/ clients & stakeholders	Does resource have this required skill: Yes " or No " Ms. Blackburn's skills and experience related to this role include: Skills: • Managing large-scale, cross-functional meetings with clients and stakeholders focused on multicloud architecture, security, networking, and identity management for full lifecycle services of over 2,000 CSP enterprise cloud accounts and tenants. • Facilitating meetings with clients and stakeholders to implement powerful continuous integration/continuous delivery (CI/CD) pipelines for cloud accounts and tenants. • Provisioning and developing bots for real-time risk monitoring and managing asset optimization. Experience: Ms. Blackburn has 11 years of relevant contract program manager experience managing projects of similar size and scope of this solicitation. From 05/2013 to present, Ms. Blackburn has served in these key roles: • Customer Solutions Manager, AWS, 12/2024–present • Director of Cloud Development and Embedded Systems, Terrasmart, 06/2023–4/2024 • Director of Cloud Engineering and Architecture—Corporate Cloud Center of Excellence, The General Electric Company, 1/2017–6/2023 Name of project(s) and year(s) experience was obtained: Specific names of projects on which Ms. Blackburn has served as a contract program manager are proprietary information. Ms. Blackburn has 11 years of relevant contract program manager experience facilitating meetings with clients and stakeholders from 05/2013 to present. • Customer Solutions Manager, AWS, 12/2024–present • Director of Cloud Development and Embedded Systems, Terrasmart, 06/2023–4/2024 • Director of Cloud Engineering and Architecture—Corporate Cloud Center of Excellence, The General Electric Company, 1/2017–6/2023 • Senior Software Engineer, University of Cincinnati—Student Information Systems, 5/2013–01/2017
Excellent communication and organization skills required Ability to motivate and guide staff to ensure accurate, efficient, and	Does resource have this required skill: Yes " or No " Ms. Blackburn's skills and experience related to this role includes: Skills: • Leveraging excellent communication skills to collaborate with cross-functional teams to design, develop, and maintain standard customizations from enterprise software applications.





Required Skills	Bidder's Response
timely delivery of service	• Motivating and guides staff to initiate the integration of controls data at the edge into a single digital solution, creating intuitive, configurable, and scalable software implementations—ensuring accurate, efficient, and timely delivery of service. • Ensuring adherence to renewable industry compliance standards, leveraging encryption to protect sensitive data at every level. Experience: Ms. Blackburn has 11 years of relevant contract program manager experience managing projects of similar size and scope of this solicitation. From 05/2013 to present, Ms. Blackburn has served in these key roles: • Customer Solutions Manager, AWS, 12/2024–present • Director of Cloud Development & Embedded Systems, Terrasmart, 06/2023–4/2024 • Director of Cloud Engineering & Architecture – Corporate Cloud Center of Excellence, The General Electric Company, 1/2017–6/2023 Name of project(s) and year(s) experience was obtained: Specific names of projects on which Ms. Blackburn has served as a contract program manager are proprietary information. Ms. Blackburn has 11 years of relevant contract program manager experience—demonstrating excellent communication skills to guide staff to help ensure accurate, efficient, and timely delivery of service—from 05/2013 to present.
Education: Bachelor's degree	List your degree and the conferring institution: • Associate's Degree—Cincinnati State Technical and Community College • Bachelor's Degree—School of the Art Institute of Chicago

List client references for work performed to meet the requirements stated above, and all projects the proposed resource has worked on in the last three (3) years. A minimum of three (3) references are required. By submission of this information, the Contractor and identified key person authorize the State of Michigan to contact references and previous employers provided to verify the accuracy of the information. Provide the identified information for each:

Start Date:	End Date:
Client/Project:	
Employer:	
Title/Percentage of time:	
Description:	
Start Date:	End Date:
Client/Project:	
Employer:	

Commented [A7]: Providing this information would violate the confidentiality of AWS customers and potentially violate the confidentiality of other entities this individual has serviced at prior companies.





Title/Percentage of time:	
Description:	
Start Date:	End Date:
Client/Project:	
Employer:	
Title/Percentage of time:	
Description:	

EDUCATION

Education		
Degree (i.e. PhD, Master’s, Bachelors)	Associate’s Degree	Year Completed: 2019
Program	Major(s) area of study: Computer Software Engineering	Minor area of study: N/A
University	Cincinnati State Technical and Community College	

Additional Education		
Degree (i.e. PhD, Master’s, Bachelors)	Bachelor’s Degree	Year Completed: 2010
Program	Major(s) area of study: Visual and Critical Studies	Minor area of study: N/A
University	School of the Art Institute of Chicago	

TRAINING – Provide any relevant technical or professional training related to the role resource will be providing on this project.

Technical or Professional Training	
Course Name	AWS Certified Solutions Architect—Associate
Topic	The AWS Certified Solutions Architect—Associate exam validates Ms. Blackburn’s expertise in designing and deploying scalable, highly available, and fault-tolerant systems. The exam also certifies Ms. Blackburn’s proficiency in effectively designing and recommending optimal AWS solutions to meet specific business requirements.
Date taken	Issued 12/2024; Expires 12/2027

Technical or Professional Training	
Course Name	AWS Certified Cloud Practitioner
Topic	The AWS Certified Cloud Practitioner certification demonstrates Ms. Blackburn’s foundational understanding of AWS and cloud computing principles.
Date taken	Issued 9/2024; Expires 9/2027





Contractor Contract Administrator

Proposed Resource Name:	John Malloy
Proposed Classification:	Contractor Contract Administrator
If resource is associated with a subcontractor provide name of company:	Not Applicable (N/A)
Percentage of time resource will be allocated to project:	As required throughout contract duration.
Contractor list the skills and experience that qualify the individual for the duties and responsibilities on this project for the proposed role. Provide the name of the project(s) and the year(s) the experience was obtained.	Mr. Malloy has over a decade of progressive contracting experience across federal, state, and local government sectors. He currently leads the State and Local Government and Education (SLED) Business Contracts Team at AWS, where he administers complex contracts and manages scope delivery while helping ensure compliance with all contractual requirements and regulations. Prior to joining AWS in 2018, he served as a Senior Contract Specialist at the U.S. Department of State through E-9 Corporation, and as an Acquisition and Assistance Specialist at USAID through Jefferson Consulting Group. His career began at the General Services Administration as a Contract Specialist. Throughout his roles, Mr. Malloy excels at analyzing solicitations, negotiating agreements, and advising program management on critical issues. He effectively interfaces with customers and management while skillfully resolving client concerns through collaboration with internal stakeholders.

The experience requirements are restated as follows:

Required Skills	Bidder's Response
5 years of experience facilitating, documenting and monitoring Contractor responsibilities and activities in the fulfillment of Contract requirements.	Does resource have this required skill: Yes " or No " Mr. Malloy's skills and experience related to this role include: Skills: • Reviewing contract obligations and aiding customers through the AWS procurement process. • Guiding staff in developing and revising statements of work. • Formulating the optimal contract approach to satisfy program requirements. • Modifying awards, closing out contracts, and reviewing approval requests. Experience • State and Local Government and Education (SLED) Business Contracts Team Lead, AWS, 05/2018–present





Required Skills	Bidder's Response
	• Senior Contract Specialist—U.S. Department of State, E-9 Corporation, 07/2016–05/2018 • Acquisition and Assistance Specialist—United States Agency for International Development (USAID), Jefferson Consulting Group, 10/2013–07/2016 • Contract Specialist, General Services Administration, 04/2012–10/2013 Name of project(s) and year(s) experience was obtained: Mr. Malloy has facilitated, documented, and monitored contracts for numerous federal, state, and local government projects over the past six years. The names of these projects are proprietary information. Mr. Malloy has 12 years of contract administration experience from 04/2012 to present.
5 years of experience facilitating meetings w/ clients & stakeholders	Does resource have this required skill: Yes " or No " Mr. Malloy's skills and experience related to this role include: Skills: • Fostering collaborative working relationships with various stakeholders. • Interacting effectively and professionally with Amazon executives at all levels and customers. • Overseeing contract compliance of assigned tasks per contract requirements, company policy and procedures, and applicable laws. • Resolving client questions and concerns and collaborating with internal stakeholders on specific areas of concern. • Prioritizing work activities in a fast-paced environment and effectively communicating at all levels of the organization. Experience: • State and Local Government and Education (SLED) Business Contracts Team Lead, AWS, 05/2018–present • Senior Contract Specialist—U.S. Department of State, E-9 Corporation, 07/2016–05/2018 • Acquisition and Assistance Specialist—United States Agency for International Development (USAID), Jefferson Consulting Group, 10/2013–07/2016 • Contract Specialist, General Services Administration, 04/2012 – 10/2013 Name of project(s) and year(s) experience was obtained: Specific names of projects on which Mr. Malloy has served as contract administrator are proprietary information. Mr. Malloy has 12 years of contract administration experience from 04/2012 to present.





Required Skills	Bidder's Response
Excellent communication and organization skills required Ability to motivate and guide staff to ensure accurate, efficient, and timely delivery of service	Does resource have this required skill: Yes " or No " Mr. Malloy's skills and experience related to this role include: Skills: • Using excellent communication and organization skills to mentor members of the AWS State, Local, and Education Business Contracts to help ensure delivery of timely contract deliverables while maintaining compliance with government regulations. • Managing multiple projects at once, following through, and meeting deadlines pertaining to public sector contracts. • Guiding government contracting officers and AWS Resellers/Partners on AWS services and advise them on contracting issues and approaches to cloud computing. Experience • State and Local Government and Education (SLED) Business Contracts Team Lead, AWS, 05/2018–present • Senior Contract Specialist—U.S. Department of State, E-9 Corporation, 07/2016–05/2018 • Acquisition and Assistance Specialist—United States Agency for International Development (USAID), Jefferson Consulting Group, 10/2013–07/2016 • Contract Specialist, General Services Administration, 04/2012 – 10/2013 Name of project(s) and year(s) experience was obtained: Specific names of projects on which Mr. Malloy has served as contract administrator are proprietary information. Mr. Malloy has 12 years of contract administration experience from 04/2012 to present.
Education: Bachelor's degree	List your degree and the conferring institution: • Bachelor's Degree—Ohio University • Master's Degree—The Catholic University of America

List client references for work performed to meet the requirements stated above, and all projects the proposed resource has worked on in the last three (3) years. A minimum of three (3) references are required. By submission of this information, the Contractor and identified key person authorize the State of Michigan to contact references and previous employers provided to verify the accuracy of the information. Provide the identified information for each:

Start Date:	End Date:
Client/Project:	
Employer:	
Title/Percentage of time:	

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Description:	
Start Date:	End Date:
Client/Project:	
Employer:	
Title/Percentage of time:	
Description:	
Start Date:	End Date:
Client/Project:	
Employer:	
Title/Percentage of time:	
Description:	

EDUCATION

Education		
Degree (i.e., PhD, Master’s, Bachelors)	Master’s Degree	Year Completed: 2013
Program	Major(s) area of study: Federal Contract Acquisition and Contract Management	Minor area of study: N/A
University	The Catholic University of America	

Additional Education		
Degree (i.e., PhD, Master’s, Bachelors)	Bachelor’s Degree	Year Completed: 2008
Program	Major(s) area of study: Political Science	Minor area of study: N/A
University	Ohio University	

TRAINING – Provide any relevant technical or professional training related to the role resource will be providing on this project.

Technical or Professional Training	
Course Name	Mr. Malloy possesses the following relevant technical and professional training: • Rhetoric: The Art of Persuasive Writing, Harvard University (4/2024) • Exploring AI: Core Concepts, Purdue University (2/2024) • Connected Leadership, Yale School of Management (8/2023) • Contract Law, Harvard Business School (11/2019)
Topic	Topics Mr. Malloy has covered in professional training include contract law, negotiations, U.S. Federal contract vehicles, State and Local Government contract vehicles, cloud services procurement, and industry partner terms and conditions.
Date taken	Please refer to the “Course Name” field above for dates on which Mr. Malloy completed his technical and professional training.





Contractor Security Officer

Proposed Resource Name:	James Perry
Proposed Classification:	Contractor Security Officer
If resource is associated with a subcontractor provide name of company:	N/A
Percentage of time resource will be allocated to project:	As required throughout contract duration.
Contractor list the skills and experience that qualify the individual for the duties and responsibilities on this project for the proposed role. Provide the name of the project(s) and the year(s) the experience was obtained.	Mr. Perry is a security leader with more than 30 years of experience driving organizational security strategies, managing high-performing teams, and delivering customer-centric solutions. He possesses a proven track record in risk management, compliance, and implementing cutting-edge security technologies across diverse industries.

The experience requirements are restated as follows:

Required Skills	Bidder's Response
5 years of experience managing the security for similar size and scope of this solicitation.	Does resource have this required skill: Yes or No Mr. Perry's skills and experience related to this role include: Skills: • Spearheading the delivery of secure cloud solutions, guiding technical strategy and roadmaps to accelerate customer adoption of AWS services across the Worldwide Public Sector segments. • Fostering a culture of innovation and continuous learning, mentoring teams on emerging security technologies, proven practices, and industry trends to drive technical readiness and capability enhancement. • Collaborating with cross-functional stakeholders—including Sales, Engineering, and Product teams—to gather insights, address technical blockers, and influence product roadmaps aligned with customer needs. Experience: • Senior Manager for State and Local Government and Education (SLED) Security Specialists, AWS, 07/2018–present • Chief Information Security Officer, University of South Carolina, 09/2014–07/2018 • Chief Information Security Officer, University of Tennessee, 04/2002–08/2014 • General Manager of East Tennessee, Broadslate Networks, Inc., 10/2000–12/2001 • Senior Network Engineer, Netstar Communications, Inc., 09/1997–10/2000 • System Administrator, Infotek, Inc., 03/1997–09/1997 • Network Technician, Lee University, 07/1993–03/1997 Name of project(s) and year(s) experience was obtained: Specific names of projects on which Mr. Perry has served as contractor security officer are proprietary information. Mr. Perry has over 30 years of contract security officer experience from 07/1993 to present.





Required Skills	Bidder's Response
5 years of experience facilitating compliance for clients & stakeholders	Does resource have this required skill: Yes or No Mr. Perry's skills and experience related to this role include: Skills: • Leading a team of solutions architects supporting State and Local Government customers. • Facilitating effective collaboration between cross-functional teams, fostering knowledge sharing and leveraging collective expertise to deliver innovative solutions. • Establishing powerful governance frameworks and methodologies to help ensure technical work adhered to industry standards and proven practices, mitigating business and technical risks. Experience: • Senior Manager for State and Local Government and Education (SLED) Security Specialists, AWS, 07/2018–present • Chief Information Security Officer, University of South Carolina, 09/2014–07/2018 • Chief Information Security Officer, University of Tennessee, 04/2002–08/2014 • General Manager of East Tennessee, Broadslate Networks, Inc., 10/2000–12/2001 • Senior Network Engineer, Netstar Communications, Inc., 09/1997–10/2000 • System Administrator, Infotek, Inc., 03/1997–09/1997 • Network Technician, Lee University, 07/1993–03/1997 • Network Technician, Lee University, 07/1993–03/1997 Name of project(s) and year(s) experience was obtained: Specific names of projects on which Mr. Perry has served as contractor security officer are proprietary information. Mr. Perry has more than 30 years of contract security officer experience from 07/1993 to present.
Excellent communication and organization skills required Ability to motivate and guide staff to ensure secure, accurate, efficient, and timely delivery of service	Does resource have this required skill: Yes or No Mr. Perry's skills and experience related to this role include: Skills: • Overseeing the recruitment, development, and management of a high-performing team, providing strategic guidance, coaching, and career pathing opportunities. • Serving as a trusted advisor, collaborating with customers to design and architect scalable, resilient, and secure cloud architectures aligned with their business objectives. • Conducting workshops, design sessions, and technical analyses to educate customers on AWS services, cloud migration strategies, and industry standard practices. Experience: Specific names of projects on which Mr. Perry has served as contractor security officer are proprietary information. Mr. Perry has over 30 years of contract security officer experience from 07/1993 to present. • Senior Manager for State and Local Government and Education (SLED) Security Specialists, AWS, 07/2018–present





Required Skills	Bidder's Response
	• Chief Information Security Officer, University of South Carolina, 09/2014–07/2018 • Chief Information Security Officer, University of Tennessee, 04/2002–08/2014 • General Manager of East Tennessee, Broadslate Networks, Inc., 10/2000–12/2001 • Senior Network Engineer, Netstar Communications, Inc., 09/1997–10/2000 • System Administrator, Infotek, Inc., 03/1997–09/1997 • Network Technician, Lee University, 07/1993–03/1997
Education: Bachelor's degree Certification: Security certifications actively held	List your degree and the conferring institution and active security certifications: • Bachelor's Degree—Lee University • Master's Degree—Tennessee Tech University • ArcSight Certified Security Analyst (ACSA): Issued 03/2004, No Expiration • AWS Certified Solutions Architect—Professional: Issued 02/2024, Expires 02/2027

List client references for work performed to meet the requirements stated above, and all projects the proposed resource has worked on in the last three (3) years. A minimum of three (3) references are required. By submission of this information, the Contractor and identified key person authorize the State of Michigan to contact references and previous employers provided to verify the accuracy of the information. Provide the identified information for each:

Start Date:	End Date:
Client/Project:	
Employer:	
Title/Percentage of time:	
Description:	
Start Date:	End Date:
Client/Project:	
Employer:	
Title/Percentage of time:	
Description:	
Start Date:	End Date:
Client/Project:	
Employer:	
Title/Percentage of time:	
Description:	

Commented [A9]: Providing this information would violate the confidentiality of AWS customers and potentially violate the confidentiality of other entities this individual has serviced at prior companies.





EDUCATION

Education		
Degree (i.e., PhD, Master’s, Bachelors)	Master’s Degree	Year Completed: 2012
Program	Major(s) area of study: Master of Business Administration	Minor area of study: N/A
University	Tennessee Tech University	

Additional Education		
Degree (i.e. PhD, Master’s, Bachelors)	Bachelor’s Degree	Year Completed: 1997
Program	Major(s) area of study: Business Administration	Minor area of study: N/A
University	Lee University	

TRAINING – Provide any relevant technical or professional training related to the role resource will be providing on this project.

Technical or Professional Training	
Course Name	Mr. Perry possesses the following relevant technical and professional training: • Certified Information Systems Security Professional (CISSP) • Certified Cloud Security Professional (CCSP) • ITIL 2011 Foundations; Certified Information Privacy Manager (CIPM) • GIAC Certified Intrusion Analyst (GCIA); GIAC Certified Forensics Analyst (GCFA) • GIAC Legal Issues in Information Technology & Security Certification (GLEG)
Topic	The training listed encompass a comprehensive range of cybersecurity and information technology disciplines, all aimed at digital assets and information systems.
Date taken	Mr. Perry completed these trainings over the course of his 30-year career.

Certifications/Affiliations	
Name	Mr. Perry possesses the following relevant certifications: • ArcSight Certified Security Analyst (ACSA) • AWS Certified Solutions Architect—Professional • AWS Certified Machine Learning—Specialty
Topic/Description	These certifications signify Mr. Perry’s high level of expertise in applying security principles and proven practices within modern, cloud-centric IT environments. They demand hands-on experience and in-depth knowledge, making them important benchmarks of professional competence in the ever-evolving fields of cloud computing and cybersecurity.
Date completed & current expiration	• ArcSight Certified Security Analyst (ACSA): Issued 03/2004, No Expiration • AWS Certified Solutions Architect—Professional: Issued 02/2024, Expires 02/2027 • AWS Certified Machine Learning—Specialty: Issued 08/2019, Expired 08/2022





INITIAL RESPONSE: HIGH-LEVEL TERMS AND CONDITIONS CONCEPTS

The State intends to execute an addendum to any terms offered by Bidder. This addendum is intended to supersede and take precedence over those terms, including Bidder’s security terms and data privacy addendums.

☒	I confirm the above requirement and agree with no exception.
☐	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
AWS accepts this requirement, but understands that AWS and the State will have an opportunity to agree upon the terms of the superseding addendum.	

The following is a list of areas of contractual concerns that the addendum may address. The State of Michigan will evaluate Bidder’s responses to this list to determine Bidder acceptability for the IaaS Expansion Program. Responses may be taken into consideration by the State in making a Best Value Determination or otherwise in Bidder evaluation as part of a potential bid award. This list, however, is not exhaustive and non-binding on the State. Capitalized terms may be found in the State’s template Software Terms, which are provided as a reference and for illustrative purposes only.

1. Bidder agrees to the definition of Access, found in the State’s template Software Terms.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
As set forth in section 1.4 of the AWS Enterprise Agreement (“AWS EA”), AWS can access and use Customer Content (as defined in the AWS EA) only to maintain and provide the Services (as defined in the AWS EA), and as necessary to comply with law. No individual at AWS has programmatic access to view Customer Content in human readable form. However, as part of using AWS Services, Customers are interacting with automated AWS tools, and are providing instruction through the AWS Management Console or the AWS APIs as to the actions that the Services should perform. Customer often provide instructions that require Services to access Customer Content. Therefore, in the context of its Enterprise Agreement terms, this definition of “Access” may not fully capture all the ways in which AWS and the Services might interact with Customer Content in order to effectively provide and maintain its Services or to comply with law.	

2. Bidder agrees to the definition of State Data, found in the State’s template Software Terms.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
As AWS is proposing its AWS Enterprise Agreement in lieu of the template Software Terms, AWS proposes to revise the definition to read: “State Data has the same meaning as “Customer Content,” which is defined in the AWS EA.	





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For reference, the AWS EA defines “Customer Content” as follows: “Content that Customer or any End User transfers to AWS for processing, storage, or hosting by the Services in connection with an AWS Enterprise Account and any computational results that Customer or any End User derive from the foregoing through its use of the Services. For example, Customer Content includes Content that Customer or any End User stores in Amazon Simple Storage Service. Customer Content does not include Account Information.”

3. Bidder agrees to the definition of Work Product, found in the State’s template Software Terms.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
The concept of “Work Product” does not align with commercial practices given the nature of cloud services, where code or improvements are developed and implemented into AWS Services for all customers. Specific IP ownership cannot transfer from AWS as it would prevent innovation to the Services to benefit all customers. Instead, as noted in Section 6.2 of our AWS EA, the Intellectual Property License (located at https://aws.amazon.com/legal/aws-ip-license-terms/) governs customers’ use of AWS Content (as defined in the AWS EA) and the Services. The IP License explains the rights that customers have to AWS Content, but clarifies that no ownership or other proprietary interest in or to AWS Content or the Services is transferred to customers. Furthermore, AWS Professional Services does not operate as a work for hire. Instead, AWS owns the IP rights for new software or documentation content that it specifically develops and delivers to Customer as part of the engagement (“Developed Content”), and provides Customer with broad, irrevocable, open source licenses to that Developed Content. These licenses are set out in Section 45.6 of the Service Terms (Apache License, Version 2.0 for Software and Creative Commons 4.0 International License for Documents). The AWS Service Terms are available at: https://aws.amazon.com/service-terms/.	

4. Bidder will disclose all subcontractors with Access to State Data. Disclosures may be provided on Bidder’s websites in a manner available to all similarly situated customers.

☒	I confirm the above requirement and agree with no exception.
☐	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
AWS uses sub-processors who could provide processing activities on State Data that is uploaded to the State’s AWS account(s) on behalf of a Customer, which as listed on AWS’s website at: https://aws.amazon.com/compliance/sub-processors/. AWS also informs customers about subcontractors that have access to State Data that is uploaded to the State’s AWS account(s). There are currently no subcontractors that are authorized by AWS to access Customer Content, but any such subcontractors are listed on AWS’s Third-Party Access website, available at: https://aws.amazon.com/compliance/third-party-access/. If State engages the AWS Professional Services team on an engagement that requires access to State Data, and a subcontractor on that engagement is also expected to require access to State Data, such subcontractor(s) would be identified to the State on an engagement-by-engagement basis.	





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5. Bidder agrees to register with the State at <http://www.michigan.gov/SIGMAVSS> to receive electronic fund transfer payments. To the extent Bidder wishes to retain a subcontractor for the acceptance and transmittal of payment ONLY, Bidder agrees that payment to the subcontractor waives any and all claims against the State for non-payment, and Bidder may not terminate the State's access to Bidder offerings in the event Bidder's subcontractor fails to transmit payment.

☒ X	I confirm the above requirement and agree with no exception.
☐	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	

6. Bidder agrees that Bidder will contractually meet obligations set forth in the State's template Data Security schedule appended to the State's template Software Terms.

☐	I confirm the above requirement and agree with no exception.
☒ X	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
AWS can meet the obligations included in Schedule E, Data Security Requirements, as revised by the redlines and comments proposed by AWS.	

7. Bidder agrees that Bidder will contractually meet obligations set forth in Bidder's Service Level Agreement, including complying with Bidder obligations with respect to Service Credits.

☒ X	I confirm the above requirement and agree with no exception.
☐	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	

8. Bidder agrees that the State may terminate all or part of any awarded contract at any time, for any reason, including budget shortfalls.

☒ X	I confirm the above requirement and agree with no exception.
☐	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	

9. Bidder agrees to forgo the right for Bidder to terminate a subsequently awarded Contract at any time, or for any reason, except for violation of law or Bidder's license restrictions. Bidder may change service offerings utilized by the State only if Bidder provides a substantially equivalent offering and provides notice to the State of the change.

☐	I confirm the above requirement and agree with no exception.
☒ X	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	





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As noted in section 1.5 of the AWS Enterprise Agreement, AWS can change or discontinue a Service or a material functionality of a Service, provided that AWS provide at least 12 months' prior notice before discontinuing a Service (or material functionality of a Service) that it makes generally available to its customers and that the State is using. However, the 12 months' prior notice does not apply if the discontinuation is necessary to (a) address an emergency, or risk of harm to the Services or AWS, (b) respond to claims, litigation, or loss of license rights related to third party intellectual property rights, or (c) comply with law. Because the Services operate the same way for every customer, a change or discontinuation of a Service is a strategic and important decision that AWS does not take lightly. We recognize that changes – even those focusing on improvement – have the ability to affect a large number of customers. However, from an operational perspective, it is not feasible for AWS to change the Services for a set of customers but wait to implement the change for another set of customers.

In addition, AWS retains the right to terminate the AWS Enterprise Agreement without cause, by providing at least two years' notice, as set forth in section 5.2 of the AWS Enterprise Agreement. Given that the Enterprise Agreement continues indefinitely until terminated by either party, at some point in the future, there may be a reason that AWS would need to terminate the Enterprise Agreement for convenience.

10. Bidder agrees and understands that the State may not indemnify Bidder, Bidder's subcontractors or any third parties.

☒	I confirm the above requirement and agree with no exception.
☐	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	

11. Bidder agrees and understands that the State must retain control of any defense provided by Bidder pursuant to Bidder's indemnification obligations.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
As set forth in section 7.6 of the AWS Enterprise Agreement, AWS's indemnification obligation "will apply only if the party seeking defense or payment (a) gives the defending party prompt Notice of the claim, (b) permits the defending party to control the defense and settlement of the claim, and (c) reasonably cooperates with the defending party (at the defending party's expense) in the defense and settlement of the claim."	

12. Bidder understands that the State is statutorily obligated to comply with the Michigan Freedom of Information Act, MCL 15.231 *et seq.* "FOIA"

☒	I confirm the above requirement and agree with no exception.
☐	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	





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13. Bidder understands that pursuant to MCL 18.1470, the State or its designee may audit Contractor to verify compliance with this Contract.

☒ X	I confirm the above requirement and agree with no exception.
☐	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	

14. Bidder understands that the State will not be bound by any terms requiring indemnification by the State to third- parties; consent to arbitration; provisions regarding audits; provisions regarding remote access to State systems; agreeing to be bound by the laws of another state; or to waive any claims or defenses, including governmental or sovereign immunity contained in any of the product-specific end user license agreements (EULA(s)) or any other documents, policies, or terms located in links referenced herein.

☒ X	I confirm the above requirement and agree with no exception.
☐	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
AWS agrees, but understands that any provisions regarding audits or remote access to State systems (e.g., if required due to a change in scope of work) will be negotiated by the parties as needed.	

15. Bidder agrees and understands that State Data may not be used for commercial purposes, nor may it be comingled with data from other similarly situated customers, whether to train Artificial Intelligence or for any other reason.

☐	I confirm the above requirement and agree with no exception.
☒ X	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
State Data that is uploaded to the State's AWS account is Customer Content, and as laid out in section 1.4 of the AWS Enterprise Agreement, AWS commits to not using Customer Content except as necessary to maintain or provide the Services or to comply with law. Customer Account Information (i.e., information about Customer that Customer provides to AWS in the creation or administration of an AWS Enterprise Account, such as names, usernames, phone numbers, email addresses, and billing information associated with an AWS Enterprise Account) will be used only in accordance with the AWS Privacy Notice, available here: https://aws.amazon.com/privacy/ .	
With respect to AI training, AWS will not use input or outputs generated through Amazon Bedrock to train Amazon Bedrock models. Some AWS AI Services (as defined in the AWS Services Terms, available at: https://aws.amazon.com/service-terms/) are subject to AWS Service Terms that instructs that AWS may use Customer Content to develop and improve that service and its underlying technology unless the customer opts out of such use. In those cases, it is the customer's responsibility to configure the opt-out. The AI opt-out right is set forth in AWS Service Terms 50.3 (incorporated by reference by the AWS Enterprise Agreement). Additional information can be found in the AWS Organizations User Guide .	





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16. Bidder agrees that, if the State determines that State or federal rules or regulations require the appendage of specific contractual language in contracts related to specific types of data, including by not limited CJIS and IRS/FTI data, Bidder will append such required contractual language to any awarded contract.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Please see AWS redlines and comments to Schedule E, Data Security Requirements (including attachments). Should the State require additional contractual language related State or federal rules or regulations, AWS is willing to work with the State to incorporate the relevant and applicable language to the contract.	

17. Bidder understands and agrees that, if, upon contract award and use of Bidder systems by the State, Bidder does not comply with its data security and privacy obligations, Bidder will provide data breach services as requested by the State to the State and its citizens at no additional cost to the State.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
Under our Shared Responsibility Model, each customer (not AWS) manages the security of the applications and content that it runs on AWS Services. Customer has the responsibility to secure those Services. For example, customers control whether to encrypt their content, who has access to encryptions keys, and how content is secured.	
However, as noted in Section 3 of the AWS Security Standards (Attachment B of the AWS Enterprise Agreement), AWS agrees that if AWS knows of a breach of the security measures described in the AWS Security Standards that resulted in either (a) any unlawful access to any Customer Content stored on AWS's equipment or in AWS's facilities, or (b) any unauthorized access to such equipment or facilities, where in either case such access results in loss, disclosure, or alteration of Customer Content (each a "Security Event"), AWS will promptly (i) notify Customer of the Security Event, and (ii) take reasonable steps to mitigate the effects and to minimize any damage resulting from the Security Event.	

18. Bidder understands and agrees that Bidder will ensure compliance with all federally mandated accessibility requirements.

☐	I confirm the above requirement and agree with no exception.
☒	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	
AWS reviews the accessibility of its Services with reference to various internal and external accessibility guidance. Customers can access current VPATS and Accessibility Conformance Reports in AWS Artifact (https://aws.amazon.com/artifact/), that explains how our Services conform with various accessibility guidelines (e.g. WCAG 2.1 Level AA). Please see the Bidder Response to Section 5. ADA COMPLIANCE for additional information.	





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In the event the customer wants to provide feedback on the accessibility of an AWS Service, feedback can be provided by reaching out to AWS Support (<https://aws.amazon.com/contact-us/>).

19. Bidder agrees that it is neither currently engaged in nor will engage in the boycott of a person based in or doing business with a strategic partner as described in 22 USC 8601 to 8606.

☒ X	I confirm the above requirement and agree with no exception.
☐	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	

20. Bidder agrees that any awarded contract will be governed by the laws of the State of Michigan.

☒ X	I confirm the above requirement and agree with no exception.
☐	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	

21. Bidder agrees to Section 43 Administrative Fee and Reporting and Section 44 Extended Purchasing Program in the reference terms provided below to allow this Contract to be extended to MiDEAL members and other States and Contractor must pay an administrative fee of 1% on all payments made to Contractor under the Contract for those transactions.

☒ X	I confirm the above requirement and agree with no exception.
☐	I have reviewed the above requirement and have noted all exception(s) below.
List all exceptions:	





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By signing below, I as **legal counsel** for the Bidder, hereby certify that I have thoroughly reviewed and understand the above statements and that I confirm that the legal implications of the proposed statements above have been carefully considered and that the Bidder is prepared to comply with the obligations and requirements as outlined.

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Solicitation Number

Attorney Signature and License Number with State
Judy Choi, Senior Corporate Counsel, Amazon Web Services, Inc.

Printed Name, Title, Company

Department of Technology, Management and
Budget—Procurement
Cloud Services

Solicitation Title
Feb. 5, 2025

Date





SOFTWARE CONTRACT TERMS AND CONDITIONS

Contractor please provide your proposed terms applicable to this purchase for the State's review. All terms must be provided either by static link or appended as part of your bid. The State will then work with selected Bidders to draft an Addendum to bidder's terms that are specific to each bidder. Terms and conditions will be evaluated and contribute to the evaluation of Contractor's bid response.
BIDDER RESPONSE: In lieu of the State's sample Software Terms and Conditions provided below, AWS proposes the terms of its standard AWS Enterprise Agreement (EA), which is attached hereto. If selected for award, AWS is willing to support additional negotiation of the EA terms and conditions upon the State's request.

The following standard State's Terms and Conditions are provided below for reference.

These Terms and Conditions, together with all Schedules (including the Statement(s) of Work), Exhibits and any other applicable attachments or addenda (Collectively this "Contract") are agreed to between the State of Michigan (the "**State**") and [INSERT COMPANY NAME] ("**Contractor**"), a [INSERT STATE & ENTITY STATUS, E.G., A MICHIGAN CORPORATION OR A TEXAS LIMITED LIABILITY COMPANY]. This Contract is effective on [MONTH, DAY, YEAR] ("**Effective Date**"), and unless terminated, will expire on [MONTH, DAY, YEAR] (the "**Term**").

This Contract may be renewed for up to [Insert # of Renewal Options] additional [Insert # of Years Per Renewal Option] year period(s). Renewal is at the sole discretion of the State and will automatically extend the Term of this Contract. The State will document its exercise of renewal options via a Change Notice.]

1. Definitions. For the purposes of this Contract, the following terms have the following meanings: "**Acceptance**" has the meaning set forth in **Section 9**.

"**Acceptance Tests**" means such tests as may be conducted in as described in **Section 9** and any applicable Statement of Work to determine whether the Software meets the requirements of this Contract and the Documentation.

"**Access**" means (1) the ability and means to enter a restricted or locked area, room, or physical container containing State Data; or (2) the ability and means to communicate with or otherwise interact with a system, to use system resources to handle information, to gain the information or knowledge of the information the system contains, or to control system components and functions (including physical or technical controls, or having the ability to modify or bypass any or all security controls).

"**Affiliate**" of a Person means any other Person that directly or indirectly, through one or more intermediaries, controls, is controlled by, or is under common control with, such Person. For purposes of this definition, the term "control" (including the terms "controlled by" and "under common control with") means the direct or indirect ownership of more than fifty percent (50%) of the voting securities of a Person.

"**Allegedly Infringing Materials**" has the meaning set forth in **Section 18**.

"**Authorized Users**" means all Persons authorized by the State to access and use the Software under this Contract, subject to the maximum number of users specified in the applicable Statement of Work.

"**Business Day**" means a day other than a Saturday, Sunday or other day on which the State is authorized or required by law to be closed for business.





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“Business Requirements Specification” means the initial specification setting forth the State’s business requirements regarding the features and functionality of the Software, as set forth in a Statement of Work.

“Change Notice” means a writing executed by the parties to the Contract memorializing a change to the Contract.

“Change Proposal” has the meaning set forth in Subsection 2.2.

“Change Request” has the meaning set forth in Subsection 2.2.

“Confidential Information” has the meaning set forth in Subsection 22.1.

“Configuration” means State-specific changes made to the Software without Source Code or structural data model changes occurring.

“Contract” has the meaning set forth in the preamble.

“Contract Change” has the meaning set forth in Subsection 2.2.

“Contract Administrator” is the individual appointed by each party to (a) administer the terms of this Contract, and (b) approve any Change Notices under this Contract. Each party’s Contract Administrator will be identified in Schedule A or subsequent Change Notices.

“Contractor” has the meaning set forth in the preamble.

“Contractor’s Bid Response” means the Contractor’s proposal submitted in response to the Solicitation.

“Contractor Hosted” means the Hosted Services and the Operating Environment are provided by Contractor or one or more of its Permitted Subcontractors.

“Contractor Personnel” means all employees of Contractor, or any subcontractors or Permitted Subcontractors involved in the performance of Services hereunder.

“Contractor Project Manager” means the individual appointed by Contractor and identified in Schedule A or subsequent Change Notices to serve as the primary contact, to monitor and coordinate the day-to-day activities of this Contract, and to perform other duties as may be further defined in this Contract, including an applicable Statement of Work.

“Customization” means State-specific changes to the Software’s underlying Source Code or structural data model changes.

“Deliverables” means the Software, Documentation, any Hardware, and all other documents and other materials that Contractor is required to or otherwise does provide to the State under this Contract and otherwise in connection with any Services, including all items specifically identified as Deliverables in a Statement of Work and all Work Product.

“Deposit Material” refers to material required to be deposited pursuant to **Section 28**.

“Digital Accessibility Standards” means the accessibility standards provided in the SOM Digital Standards, located at <https://www.michigan.gov/standards>.

“Disaster Recovery Plan” refers to the set(s) of documents, instructions, and procedures which enable the Contractor to respond to accidents, disasters, emergencies, or threats without any stoppage or hindrance in its key operations and to the actions the Contractor takes to meet the Recovery Point and Recovery Time Objectives.





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“Documentation” means all user manuals, operating manuals, technical manuals and any other instructions, specifications, documents or materials, in any form or media, that describe the functionality, installation, testing, operation, use, maintenance, support, technical or other components, features or requirements of the Deliverable.

“DTMB” means the Michigan Department of Technology, Management and Budget.

“Effective Date” has the meaning set forth in the preamble.

“Fees” means the fees set forth in the Pricing Schedule attached as **Schedule B**.

“Financial Audit Period” has the meaning set forth in Subsection 23.1.

“Hardware” means all computer hardware or other equipment provided by Contractor under this Contract, if any, including but not limited to any related accessories.

“Harmful Code” means any software, hardware or other technologies, devices or means, the purpose or effect of which is to: (a) permit unauthorized access to, or to destroy, disrupt, disable, encrypt, modify, copy, or otherwise harm or impede in any manner, any (i) computer, software, firmware, data, hardware, system or network, or (ii) any application or function of any of the foregoing or the integrity, use or operation of any data Processed thereby; or (b) prevent the State or any Authorized User from accessing or using the Solution as intended by this Contract, and includes any virus, bug, trojan horse, worm, backdoor or other malicious computer code and any time bomb or drop dead device.

“Hosted Services” means the hosting, management and operation of the: Operating Environment, Software, other services (including support and subcontracted services), and related resources for access and use by the State and its Authorized Users, including any services and facilities related to disaster recovery obligations.

“Implementation Plan” means the schedule included in a Statement of Work setting forth the sequence of events for the performance of Services under a Statement of Work, including the Milestones and Milestone Dates.

“Integration Testing” has the meaning set forth in Section 9.

“Intellectual Property Rights” means all or any of the following: (a) patents, patent disclosures, and inventions (whether patentable or not); (b) trademarks, service marks, trade dress, trade names, logos, corporate names, and domain names, together with all of the associated goodwill; (c) copyrights and copyrightable works (including computer programs), mask works and rights in data and databases; (d) trade secrets, know-how and other confidential information; and (e) all other intellectual property rights, in each case whether registered or unregistered and including all applications for, and renewals or extensions of, such rights, and all similar or equivalent rights or forms of protection provided by applicable law in any jurisdiction throughout the world.

“Key Personnel” means any Contractor Personnel identified as key personnel in the Contract.

“Loss or Losses” means all losses, including but not limited to, damages, liabilities, deficiencies, claims, actions, judgments, settlements, interest, awards, penalties, fines, costs or expenses of whatever kind, including reasonable attorneys' fees and the costs of enforcing any right to indemnification hereunder and the cost of pursuing any insurance providers.

“Maintenance Release” means any update, upgrade, release or other adaptation or modification of the Software, including any updated Documentation, that Contractor may generally provide to its licensees from time to time during the Term, which may contain, among other things, error corrections,





enhancements, improvements or other changes to the user interface, functionality, compatibility, capabilities, performance, efficiency or quality of the Software.

“Milestone” means an event or task described in the Implementation Plan under a Statement of Work that must be completed by the corresponding Milestone Date.

“Milestone Date” means the date by which a particular Milestone must be completed as set forth in the Implementation Plan under a Statement of Work.

“New Version” means any new version of the Software, including any updated Documentation, that the Contractor may from time to time introduce and market generally as a distinct licensed product, as may be indicated by Contractor’s designation of a new version number.

“Nonconformity” or “Nonconformities” means any failure or failures of a Deliverable, to conform to the requirements of this Contract.

“Offshore Resources” mean resources, including Contractor Personnel, outside of the United States or its territories.

“Open Source Components” means any software component that is subject to any open-source copyright license agreement, including any GNU General Public License or GNU Library or Lesser Public License, or other obligation, restriction or license agreement that substantially conforms to the Open Source Definition as prescribed by the Open Source Initiative or otherwise may require disclosure or licensing to any third party of any source code with which such software component is used or compiled.

“Operating Environment” means, collectively, the platform, environment and conditions on, in or under which the Software is intended to be installed and operate, as set forth in a Statement of Work, including such structural, functional and other features, conditions and components as hardware, operating software, system architecture, configuration, computing hardware, ancillary equipment, networking, software, firmware, databases, data, and electronic systems (including database management systems).

“PAT” Means a document or product accessibility template, including any Information Technology Industry Council Voluntary Product Accessibility Template or VPAT®, that specifies how information and software products, such as websites, applications, software and associated content, conform to the Digital Accessibility Standards.

“Permitted Subcontractor” means any third party hired by Contractor to perform Services for the State under this Contract or that will have Access to or have the ability to control access to State Data or both.

“Person” means an individual, corporation, partnership, joint venture, limited liability company, governmental authority, unincorporated organization, trust, association, or other entity.

“Pricing Schedule” means the schedule attached as **Schedule B**.

“Process” means to perform any operation or set of operations on any data, information, material, work, expression or other content, including to (a) collect, receive, input, upload, download, record, reproduce, store, organize, combine, log, catalog, cross-reference, manage, maintain, copy, adapt, alter, translate or make other improvements or derivative works, (b) process, retrieve, output, consult, use, disseminate, transmit, submit, post, transfer, disclose or otherwise provide or make available, or (c) block, erase or destroy. **“Processing”** and **“Processed”** have correlative meanings.

“Representatives” means a party’s employees, officers, directors, partners, shareholders, agents, attorneys, successors and permitted assigns.





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“Services” means any of the services, including but not limited to, Hosted Services, installation, configuration, implementation, and/or Support Services, that the Contractor is required to or otherwise does provide under this Contract.

“Service Level Agreement” means the schedule attached as **Schedule D**, setting forth the Support Services Contractor will provide to the State, and the parties' additional rights and obligations with respect thereto.

“Site” means any physical location(s) designated by the State in, or in accordance with, this Contract or a Statement of Work for delivery and installation of the Deliverable, if applicable.

“Software” means Contractor's software as set forth in a Statement of Work, and any Third-Party Components, Maintenance Releases or New Versions provided to the State and any Customizations or Configurations made by or for the State pursuant to this Contract, and all copies of the foregoing permitted under this Contract. If Contractor Hosted, Software includes Contractor's Operating Environment.

“Solicitation” means the State's request to solicit responses for a Solution under this Contract.

“Solution” means Deliverables and Services singularly or in any combination thereof, as applicable, set forth in a Statement of Work.

“Source Code” means the human readable source code of the Software to which it relates, in the programming language in which the Software was written, together with all related flow charts and technical documentation, including a description of the procedure for generating object code, all of a level sufficient to enable a programmer reasonably fluent in such programming language to understand, build, operate, support, maintain and develop modifications, upgrades, updates, adaptations, enhancements, new versions and other derivative works and improvements of, and to develop computer programs compatible with, the Software.

“Specifications” means, for the Software, the specifications collectively set forth in the Business Requirements Specification, Technical Specification, Documentation, Solicitation or Contractor's Bid Response, if any, for such Software, or elsewhere in a Statement of Work.

“State” means the State of Michigan.

“State Data” has the meaning set forth in **Section 21**.

“State Hosted” means the Operating Environment is not provided by Contractor or one or more of its Permitted Subcontractors.

“State Materials” means all materials and information, including but not limited to documents, data, know-how, ideas, methodologies, specifications, software, hardware, content and technology, in any form or media, directly or indirectly provided or made available to Contractor by or on behalf of the State in connection with this Contract.

“State Program Managers” are the individuals appointed by the State, or their designees, to (a) monitor and coordinate the day-to-day activities of this Contract; (b) co-sign off on Acceptance of the Deliverables; and (c) perform other duties as may be specified in a Statement of Work. Program Managers will be identified in Schedule A or subsequent Change Notices.

“State Systems” means the information technology infrastructure, including the computers, software, databases, electronic systems (including database management systems) and networks, of the State or any of its designees.





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“Statement of Work” means any statement of work entered into by the parties and incorporated into this Contract. The initial Statement of Work is attached as **Schedule A**.

“Stop Work Order” has the meaning set forth in **Section 15**.

“Support Services” means the maintenance and support services Contractor is required to or otherwise does provide to the State under the Service Level Agreement.

“System” has the meaning set forth in **Schedule I**.

“System Acceptance” has the meaning set forth in **Schedule I**.

“System Integration Testing” has the meaning set forth in **Schedule I**.

“Technical Specification” means, with respect to any Software, the document setting forth the technical specifications for such Software and included in a Statement of Work.

“Term” has the meaning set forth in the preamble.

“Testing Period” has the meaning set forth in **Section 9**.

“Third-Party Components” means all components, including Open-Source Components, that are included in or used in connection with the Software and are specifically identified by Contractor in the Contractor’s Software Bill of Materials, in an applicable Statement of Work or elsewhere in this Contract, or as otherwise required by this Contract, including without limitation as part of the State’s Security Accreditation Process defined in Schedule E – Data Security Requirements.

“Transition Period” has the meaning set forth in **Section 16**.

“Transition Responsibilities” has the meaning set forth in **Section 16**.

“Unauthorized Removal” has the meaning set forth in Subsection 2.5.

“Unauthorized Removal Credit” has the meaning set forth in Subsection 2.5.

“User Data” means all data, queries, prompts, information and other content of any type and in any format, medium or form, whether audio, visual, digital, screen, GUI or other, that is input, uploaded to, placed into or collected, stored, Processed, generated or output by any user, device, system or network by or on behalf of the State, including but not limited to any and all works, inventions, data, analyses, information that identifies State or State’s intended users’ devices or equipment, location information, or other information and materials resulting from any use of the Software by or on behalf of the State’s intended users under this Contract, even if not input by a user. User Data does not include any data in the possession of or collected by Contractor prior to or independently of the performance of the Services or any use of the Software under this Contract.

“Warranty Period” means the 90 calendar-day period commencing on the date of the State’s Acceptance of the Software or System (if Contractor is providing Hardware under this Contract) for which Support Services are provided free of charge.

“Work Product” means everything made or created by Contractor specifically and solely for the State and which is not generally available to Contractor’s other customers, that Contractor is required to, or otherwise does, provide to the State under this Contract including but not limited to Customizations, application programming interfaces, computer scripts, macros, user interfaces, reports, project management documents, forms, templates, and other State-specific documents and related materials together with all ideas, concepts, processes, and methodologies developed in connection with this Contract whether or not embodied in this Contract.





2. Duties of Contractor. Contractor will provide the Solution pursuant to Statement(s) of Work entered into under this Contract. Contractor will provide the Solution in a timely, professional manner and in accordance with the terms, conditions, and Specifications set forth in this Contract and the Statement(s) of Work.

2.1 Statement of Work Requirements. No Statement of Work will be effective unless signed by each party's Contract Administrator. The term of each Statement of Work will commence on the parties' full execution of a Statement of Work and terminate when the parties have fully performed their obligations. The terms and conditions of this Contract will apply at all times to any Statements of Work entered into by the parties and incorporated into this Contract. The State will have the right to terminate such Statement of Work as set forth in **Section 16**. Contractor acknowledges that time is of the essence with respect to Contractor's obligations under each Statement of Work and agrees that prompt and timely performance of all such obligations in accordance with this Contract and the Statements of Work (including the Implementation Plan and all Milestone Dates) is strictly required.

2.2 Change Control Process. The State may at any time request in writing (each, a "**Change Request**") changes to the Contract, including without limitation changes to the Solution or adding a new Statement of Work (each, a "**Contract Change**"). Upon the State's submission of a Change Request, the parties will evaluate and implement all Contract Changes in accordance with this Section.

(a) As soon as reasonably practicable, and in any case within 20 Business Days following receipt of a Change Request, Contractor will provide the State with a written proposal for implementing the requested Contract Change ("**Change Proposal**"), setting forth:

- (i) a written description of the proposed Contract Changes to any part of the Solution;
- (ii) an amended Implementation Plan reflecting: (A) the schedule for commencing and completing any addition or modification to the Solution; and (B) the effect of such Contract Changes, if any, on completing any other Services under a Statement of Work;
- (iii) any additional State Resources Contractor deems necessary to carry out such Contract Changes; and
- (iv) any increase or decrease in Fees resulting from the proposed Contract Changes, which increase, or decrease will reflect only the increase or decrease in time and expenses Contractor requires to carry out the Contract Change.

(b) Within 30 Business Days following the State's receipt of a Change Proposal, the State will by written notice to Contractor, approve, reject, or propose modifications to such Change Proposal. If the State proposes modifications, Contractor must modify and re-deliver the Change Proposal reflecting such modifications, or notify the State of any disagreement, in which event the parties will negotiate in good faith to resolve their disagreement. Upon the State's approval of the Change Proposal or the parties' agreement on all proposed modifications each parties' Contractor Administrator will sign a Change Notice.,

(c) However, if the parties fail to enter into a Change Notice within 15 Business Days following the State's response to a Change Proposal, the State may, in its discretion:





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- (i) require Contractor to perform or provide the Solution under the existing Statement of Work without the Contract Change;
- (ii) require Contractor to continue to negotiate a Change Notice;
- (iii) initiate a Dispute Resolution Procedure; or
- (iv) notwithstanding any provision to the contrary in a Statement of Work, terminate this Contract under **Subsection 16.1**.

(d) No Contract Change will be effective until the parties have executed a Change Notice. Notwithstanding the foregoing, no Change Notice executed after the Effective Date will be construed to amend or modify this Contract in any way, unless it specifically states its intent to do so and cites the section or sections amended. Except as the State may request in its Change Request or otherwise in writing, Contractor must continue to perform its obligations in accordance with a Statement of Work pending negotiation and execution of a Change Notice. Contractor will use its best efforts to limit any delays or Fee increases from any Contract Change to those necessary to perform the Contract Change in accordance with the applicable Change Notice. Each party is responsible for its own costs and expenses of preparing, evaluating, negotiating, and otherwise processing any Change Request, Change Proposal, and Change Notice.

(e) The performance of any functions, activities, tasks, obligations, roles and responsibilities comprising the Solution as described in this Contract are considered part of the Solution and, thus, will not be considered a Contract Change. This includes the delivery of all Deliverables in accordance with their respective Specifications, and the diagnosis and correction of Nonconformities discovered in Deliverables prior to their Acceptance by the State or, subsequent to their Acceptance by the State, as necessary for Contractor to fulfill its associated warranty requirements and its Support Services under this Contract.

(f) Contractor may, on its own initiative and at its own expense, prepare and submit its own Change Request to the State. However, the State will be under no obligation to approve or otherwise respond to a Change Request initiated by Contractor.

2.3 Contractor Personnel.

(a) Contractor is solely responsible for all Contractor Personnel and for the payment of their compensation, including, if applicable, withholding of income taxes, and the payment and withholding of social security and other payroll taxes, unemployment insurance, workers' compensation insurance payments and disability benefits.

(b) Prior to any Contractor Personnel performing any Services, Contractor will:

- (i) ensure that such Contractor Personnel have the legal right to work in the United States;
- (ii) upon request, require such Contractor Personnel to execute written agreements, in form and substance acceptable to the State, that bind such Contractor Personnel to confidentiality provisions that are at least as protective of the State's information (including all Confidential Information) as those contained in this Contract; and





(iii) upon request, or as otherwise specified in a Statement of Work, perform background checks on all Contractor Personnel prior to their assignment. The scope is at the discretion of the State and documentation must be provided as requested. Contractor is responsible for all costs associated with the requested background checks. The State, in its sole discretion, may also perform background checks. Pursuant to Michigan law, all agencies subject to IRS Pub. 1075 are required to ask the Michigan State Police to perform fingerprint background checks on all employees, including Contractor and subcontractor employees, who may have Access to any database of information maintained by the federal government that contains confidential or personal information, including, but not limited to, federal tax information. Further, pursuant to Michigan law, any agency described above is prohibited from providing Contractors or subcontractors with the result of such background check. For more information, please see Michigan Public Act 427 of 2018.

(c) Contractor and all Contractor Personnel will comply with all rules, regulations, and policies of the State that are communicated to Contractor in writing, including security procedures concerning systems and data and remote access, building security procedures, including the restriction of access by the State to certain areas of its premises or systems, and general health and safety practices and procedures.

(d) The State reserves the right to require the removal of any Contractor Personnel found, in the judgment of the State, to be unacceptable. The State's request must be written with reasonable detail outlining the reasons for the removal request. Replacement personnel for the removed person must be fully qualified for the position. If the State exercises this right, and Contractor cannot immediately replace the removed personnel, the State agrees to negotiate an equitable adjustment in schedule or other terms that may be affected by the State's required removal.

2.4 Contractor Project Manager. Throughout the Term of this Contract, Contractor must maintain a Contractor employee acceptable to the State to serve as Contractor Project Manager, who will be considered Key Personnel of Contractor.

(a) Contractor Project Manager must:

- (i) have the requisite authority, and necessary skill, experience, and qualifications, to perform in such capacity;
- (ii) be responsible for overall management and supervision of Contractor's performance under this Contract; and
- (iii) be the State's primary point of contact for communications with respect to this Contract, including with respect to giving and receiving all day-to-day approvals and consents.

(b) Contractor Project Manager must attend all regularly scheduled meetings as set forth in the Implementation Plan and will otherwise be available as set forth in a Statement of Work.

(c) Contractor will maintain the same Contractor Project Manager throughout the Term of this Contract, unless:

- (i) the State requests in writing the removal of Contractor Project Manager; or





(ii) the State consents in writing to any removal requested by Contractor in writing; or

(iii) the Contractor Project Manager ceases to be employed by Contractor, whether by resignation, involuntary termination or otherwise.

(d) Upon the occurrence of any event set forth in **Subsections 2.4(c)(i-iii)** above, Contractor will promptly replace its Contractor Project Manager. Such replacement will be subject to the State's prior written approval.

2.5 Contractor's Key Personnel.

(a) The State has the right to recommend and approve in writing the initial assignment, as well as any proposed reassignment or replacement, of any Key Personnel. Before assigning an individual to any Key Personnel position, Contractor will notify the State of the proposed assignment, introduce the individual to the State Program Managers or their designees, and provide the State with a resume and any other information about the individual reasonably requested by the State. The State reserves the right to interview the individual before granting written approval. In the event the State finds a proposed individual unacceptable, the State will provide a written explanation including reasonable detail outlining the reasons for the rejection.

(b) Contractor will not remove any Key Personnel from their assigned roles on this Contract without the prior written consent of the State. The Contractor's removal of Key Personnel without the prior written consent of the State is an unauthorized removal ("**Unauthorized Removal**"). An Unauthorized Removal does not include replacing Key Personnel for reasons beyond the reasonable control of Contractor, including illness, disability, leave of absence, personal emergency circumstances, resignation, or for cause termination of the Key Personnel's employment. Any Unauthorized Removal may be considered by the State to be a material breach of this Contract.

(c) It is further acknowledged that an Unauthorized Removal will interfere with the timely and proper completion of this Contract, to the loss and damage of the State, and that it would be impracticable and extremely difficult to determine and remedy the actual damage sustained by the State as a result of any Unauthorized Removal. Therefore, Contractor and the State agree that in the case of any Unauthorized Removal in respect of which the State does not elect to exercise its rights under **Section 16**, Contractor will issue to the State an amount equal to \$25,000 per individual (each, an "**Unauthorized Removal Credit**").

(d) Contractor acknowledges and agrees that each of the Unauthorized Removal Credits assessed under **Subsection 2.5(c)** above: (i) is a reasonable estimate of and compensation for the anticipated or actual harm to the State that may arise from the Unauthorized Removal, which would be impossible or very difficult to accurately estimate; and (ii) may, at the State's option, be credited or set off against any Fees or other charges payable to Contractor under this Contract.

2.6 Subcontractors. Contractor must obtain prior written approval of the State, which consent may be given or withheld in the State's sole discretion, before engaging any Permitted Subcontractor to provide Services to the State under this Contract. Engagement of any subcontractor or Permitted Subcontractor by Contractor does not relieve Contractor of its





representations, warranties or obligations under this Contract. Without limiting the foregoing, Contractor will:

- (a) be responsible and liable for the acts and omissions of each such subcontractor (including such Permitted Subcontractor and Permitted Subcontractor's employees who, to the extent providing the Solution, will be deemed Contractor Personnel) to the same extent as if such acts or omissions were by Contractor or its employees;
- (b) be responsible for all fees and expenses payable to, by or on behalf of each subcontractor and Permitted Subcontractor in connection with this Contract, including, if applicable, withholding of income taxes, and the payment and withholding of social security and other payroll taxes, unemployment insurance, workers' compensation insurance payments and disability benefits; and
- (c) notify the State of the location of the Permitted Subcontractor and indicate if it is located within the United States.

3. Notices. All notices and other communications required or permitted under this Contract must be in writing and will be considered given and received: (a) when verified by written receipt if sent by courier; (b) when received if sent by mail without verification of receipt; or (c) when verified by automated receipt or electronic logs if sent by facsimile or email.

If to State:	If to Contractor:
[Name]	[Name]
[Street Address]	[Street Address]
[City, State, Zip]	[City, State, Zip]
[Email]	[Email]
[Phone]	[Phone]

4. Insurance. Contractor must maintain the minimum insurances identified in the Insurance Schedule attached as **Schedule C**.

5. Terms of Use of the Software. [Bidder please select the appropriate license type(s) for the Solution.]

5.1 **If the Contractor is providing the State with a license to use its Software indefinitely, then** Perpetual License. If Contractor is providing the State with a license to use its Software indefinitely, then Contractor hereby grants to the State and its Authorized Users a non-exclusive, royalty-free, perpetual, irrevocable, right and license to use the Software and Documentation in accordance with the terms and conditions of this Contract, provided that:

- (a) The State is prohibited from reverse engineering or decompiling the Software, making derivative works, modifying, adapting or copying the Software except as is expressly permitted by this Contract or required to be permitted by law;
- (b) The State is authorized to make copies of the Software for backup, disaster recovery, and archival purposes;
- (c) The State is authorized to make copies of the Software to establish a test environment to conduct Acceptance Testing;





(d) Title to and ownership of the Software shall at all times remain with Contractor and/or its licensors, as applicable; and

(e) Except as expressly agreed in writing, the State is not permitted to sub-license the use of the Software or any accompanying Documentation.

5.1 [alternate] [If Contractor is providing the State a license limited to only the term of the contract.] Term License. Contractor hereby grants to the State and its Authorized Users a non-exclusive, royalty-free, irrevocable, right and license during the Term to use and reproduce the Software and Documentation in accordance with the terms and conditions of this Contract, provided that:

(a) The State is prohibited from reverse engineering or decompiling the Software, making derivative works, modifying, adapting or copying the Software except as is expressly permitted by this Contractor or required to be permitted by law;

(b) The State is authorized to make copies of the Software for backup, disaster recovery, and archival purposes;

(c) The State is authorized to make copies of the Software to establish a test environment to conduct Acceptance Testing; and

(d) Except as expressly agreed in writing, the State is not permitted to sub-license the use of the Software or any accompanying Documentation.

5.1 [alternate] [If the Software is offered as SaaS and Contractor is only providing the State access to use it Software during the Term of the Contract only, then] Subscription.

(a) During the Term and such additional periods, if any, the State may:

(i) access and use the Software, including in operation with other software, hardware, systems, networks and services, for the State's governmental purposes, including for Processing State Data;

(ii) generate, print, copy, upload, download, store and otherwise Process all GUI, audio, visual, digital and other output, displays and other content as may result from any access to or use of the Software;

(iii) prepare, reproduce, print, download and use a reasonable number of copies of the Specifications and Documentation for any use of the Software under this Contract; and

(iv) access and use the Software for all such non-production uses and applications as may be necessary or useful for the effective use of the Software hereunder, including for purposes of analysis, development, configuration, integration, testing, training, maintenance, support and repair, which access and use will be without charge and not included for any purpose in any calculation of the State's or its Authorized Users' use of the Software, including for purposes of assessing any Fees or other consideration payable to Contractor or determining any excess use of the Software as described in **Subsection 5.4** below.

5.2 Restrictions. The State will not: (a) rent, lease, lend, sell, sublicense, assign, distribute, publish, transfer or otherwise make the Software available to any third party, except as expressly permitted by this Contract or in any Statement of Work; or (b) use or authorize the use





of the Software or Documentation in any manner or for any purpose that is unlawful under applicable Law.

5.3 Fees. The State will pay Contractor the corresponding Fees set forth in a Statement of Work or Pricing Schedule for all Authorized Users access and use of the Software. Such Fees will be Contractor's sole and exclusive remedy for use of the Software, including any excess use.

5.4 Certification. To the extent that a License granted to the State is not unlimited, Contractor may request written certification from the State regarding use of the Software for the sole purpose of verifying compliance with this **Section**. Such written certification may occur no more than once in any 24 month period during the Term of the Contract. The State will respond to any such request within 45 calendar days of receipt. If the State's use is greater than contracted, Contractor may invoice the State for any unlicensed use (and related support) pursuant to the terms of this Contract at the rates set forth in **Schedule B**, and the unpaid license and support fees shall be payable in accordance with the terms of the Contract. Payment under this provision shall be Contractor's sole and exclusive remedy to cure these issues.

5.5 State License Grant to Contractor. The State hereby grants to Contractor a limited, non-exclusive, non-transferable license (i) to use the State's (or individual agency's, department's or division's) name, trademarks, service marks or logos, solely in accordance with the State's specifications, and (ii) to display, reproduce, distribute and transmit in digital form the State's (or individual agency's, department's or division's) name, trademarks, service marks or logos in connection with promotion of the Services as communicated to Contractor by the State. Use of the State's (or individual agency's, department's or division's) name, trademarks, service marks or logos will be specified in the applicable Statement of Work. Contractor is provided a limited license to State Materials for the sole and exclusive purpose of providing the Services.

6. Third-Party Components. At least 30 days prior to adding new third-party components, Contractor will provide the State with notification information identifying and describing the addition. Throughout the Term, on an annual basis, Contractor will provide updated information identifying and describing any third-party components included in the Software. Contractor is responsible for ensuring that all Third-Party Components are properly licensed for the State's use.

7. Intellectual Property Rights

7.1 Ownership Rights in Software

(a) For purposes of this **Section 7** only, the term "Software" does not include Customizations.

(b) Subject to the rights and licenses granted by Contractor in this Contract and the provisions of **Subsection 7.1(c)**:

(i) Contractor reserves and retains its entire right, title and interest in and to all Intellectual Property Rights arising out of or relating to the Software; and

(ii) none of the State or Authorized Users acquire any ownership of Intellectual Property Rights in or to the Software or Documentation as a result of this Contract.

(c) As between the State, on the one hand, and Contractor, on the other hand, the State has, reserves and retains, sole and exclusive ownership of all right, title and interest in and to State Materials, User Data, including all Intellectual Property Rights arising therefrom or relating thereto.





7.2 The State is and will be the sole and exclusive owner of all right, title, and interest in and to all Work Product developed exclusively for the State under this Contract, including all Intellectual Property Rights. In furtherance of the foregoing:

- (a) Contractor will create all Work Product as work made for hire as defined in Section 101 of the Copyright Act of 1976; and
- (b) to the extent any Work Product, or Intellectual Property Rights do not qualify as, or otherwise fails to be, work made for hire, Contractor hereby:
 - (i) assigns, transfers, and otherwise conveys to the State, irrevocably and in perpetuity, throughout the universe, all right, title, and interest in and to such Work Product, including all Intellectual Property Rights; and
 - (ii) irrevocably waives any and all claims Contractor may now or hereafter have in any jurisdiction to so-called "moral rights" or rights of *droit moral* with respect to the Work Product.

8. Software Implementation.

8.1 Implementation. Contractor will as applicable; deliver, install, configure, integrate, and otherwise provide and make fully operational the Software on or prior to the applicable Milestone Date in accordance with the criteria set forth in a Statement of Work and the Implementation Plan.

8.2 Site Preparation. Unless otherwise set forth in a Statement of Work, Contractor is responsible for ensuring the relevant Operating Environment is set up and in working order to allow Contractor to deliver and install the Software on or prior to the applicable Milestone Date. Contractor will provide the State with such notice as is specified in a Statement of Work, prior to delivery of the Software to give the State sufficient time to prepare for Contractor's delivery and installation of the Software. If the State is responsible for Site preparation, Contractor will provide such assistance as the State requests to complete such preparation on a timely basis.

9. Software Acceptance Testing.

9.1 Acceptance Testing.

(a) Unless otherwise specified in a Statement of Work, upon installation of the Software, or in the case of Contractor Hosted Software, when Contractor notifies the State in writing that the Solution is ready for use, Acceptance Tests will be conducted as set forth in this **Section 9** to ensure the Software conforms to the requirements of this Contract, including the applicable Specifications and Documentation.

(b) All Acceptance Tests will take place at the designated Site(s) in the Operating Environment described in a Statement of Work, commence on the Business Day following installation of the Software, or the receipt by the State of the notification referenced in **Subsection 9.1(a)**, and be conducted diligently for up to 30 Business Days, or such other period as may be set forth in a Statement of Work (the "**Testing Period**"). Acceptance Tests will be conducted by the party responsible as set forth in a Statement of Work or, if a Statement of Work does not specify, the State, provided that:

- (i) for Acceptance Tests conducted by the State, if requested by the State, Contractor will make suitable Contractor Personnel available to observe or participate in such Acceptance Tests; and





(ii) for Acceptance Tests conducted by Contractor, the State has the right to observe or participate in all or any part of such Acceptance Tests.

9.2 Contractor is solely responsible for all costs and expenses related to Contractor's performance of, participation in, and observation of Acceptance Testing.

(a) Upon delivery and installation of any application programming interfaces, Configuration or Customizations, or any other applicable Work Product, to the Software under a Statement of Work, additional Acceptance Tests will be performed on the modified Software as a whole to ensure full operability, integration, and compatibility among all elements of the Software ("**Integration Testing**"). Integration Testing is subject to all procedural and other terms and conditions set forth in this **Section**.

(b) The State may suspend Acceptance Tests and the corresponding Testing Period by written notice to Contractor if the State discovers a material Nonconformity in the tested Software or part or feature of the Software. In such event, Contractor will immediately, and in any case within 10 Business Days, correct such Nonconformity, whereupon the Acceptance Tests and Testing Period will resume for the balance of the Testing Period.

9.3 Notices of Completion, Non-Conformities, and Acceptance. Within 15 Business Days following the completion of any Acceptance Tests, including any Integration Testing, the party responsible for conducting the tests will prepare and provide to the other party written notice of the completion of the tests. Such notice must include a report describing in reasonable detail the tests conducted and the results of such tests, including any uncorrected Nonconformity in the tested Software.

(a) If such notice is provided by either party and identifies any Nonconformities, the parties' rights, remedies, and obligations will be as set forth in **Subsection 9.4** and **Subsection 9.5**.

(b) If such notice is provided by the State, is signed by the State Program Managers or their designees, and identifies no Nonconformities, such notice constitutes the State's Acceptance of such Software.

(c) If such notice is provided by Contractor and identifies no Non-Conformities, the State will have 30 Business Days to use the Software in the Operating Environment and determine, in the exercise of its sole discretion, whether it is satisfied that the Software contains no Nonconformities, on the completion of which the State will, as appropriate:

(i) notify Contractor in writing of Nonconformities the State has observed in the Software and of the State's non-acceptance thereof, whereupon the parties' rights, remedies and obligations will be as set forth in **Subsection 9.4** and **Subsection 9.5**; or

(ii) provide Contractor with a written notice of its Acceptance of such Software, which must be signed by the State Program Managers or their designees.

9.4 Failure of Acceptance Tests. If Acceptance Tests identify any Non-Conformities, Contractor, at Contractor's sole cost and expense, will remedy all such Nonconformities and re-deliver the Software, in accordance with the requirements set forth in the Contract. Redelivery will occur as promptly as commercially possible and, in any case, within 30 Business Days following, as applicable, Contractor's:





(a) completion of such Acceptance Tests, in the case of Acceptance Tests conducted by Contractor; or

(b) receipt of the State's notice under **Subsection 9. (a) or (c)(i)**, identifying any Nonconformities.

9.5 Repeated Failure of Acceptance Tests. If Acceptance Tests identify any Nonconformity in the Software after a second or subsequent delivery of the Software, or Contractor fails to re-deliver the Software on a timely basis, the State may, in its sole discretion, by written notice to Contractor:

(a) continue the process set forth in this **Section 9**;

(b) accept the Software as a nonconforming deliverable, in which case the Fees for such Software will be reduced equitably to reflect the value of the Software as received relative to the value of the Software had it conformed; or

(c) deem the failure to be a non-curable material breach of this Contract and a Statement of Work and terminate this Contract in accordance with **Section 16**.

9.6 Acceptance. Acceptance ("**Acceptance**") of the Software (subject, where applicable, to the State's right to Integration Testing) will occur on the date that is the earliest of the State's delivery of a notice accepting the Software under **Subsection 9.3(b)**, or **(c)(ii)**. Acceptance of the Software may be conditioned upon System Acceptance, if Contractor is providing Hardware, under the terms of this Contract.

10. Non-Software Acceptance.

10.1 If Contractor is providing Hardware under this Contract, Contractor will comply with the requirements for delivery, acceptance and warranty of Hardware as set forth in **Schedule H**.

10.2 System Acceptance. If Contractor is providing Hardware under this Contract, Contractor will comply with the requirements for acceptance testing of the Software and Hardware together as a System, as set forth in **Schedule I**.

10.3 All other non-Software Deliverables are subject to inspection and testing by the State within 30 calendar days of the State's receipt of them ("State Review Period"), unless otherwise provided in the Statement of Work. If the non-Software Deliverables are not fully accepted by the State, the State will notify Contractor by the end of the State Review Period that either: (a) the non-Software Deliverables are accepted but noted deficiencies must be corrected; or (b) the non-Software Deliverables are rejected. If the State finds material deficiencies, it may: (i) reject the non-Software Deliverables without performing any further inspections; (ii) demand performance at no additional cost; or (iii) terminate this Contract in accordance with **Section 16**.

10.4 Within 10 Business Days from the date of Contractor's receipt of notification of acceptance with deficiencies or rejection of any non-Software Deliverables, Contractor must cure, at no additional cost, the deficiency and deliver unequivocally acceptable non-Software Deliverables to the State. If acceptance with deficiencies or rejection of the non-Software Deliverables impacts the content or delivery of other non-completed non-Software Deliverables, the parties' respective Program Managers must determine an agreed to number of days for re-submission that minimizes the overall impact to the Contract. However, nothing herein affects, alters, or relieves Contractor of its obligations to correct deficiencies in accordance with the time response standards set forth in this Contract.





10.5 If Contractor is unable or refuses to correct the deficiency within the time response standards set forth in this Contract, the State may cancel the order in whole or in part. The State, or a third party identified by the State, may provide the non-Software Deliverables and recover the difference between the cost to cure and the Contract price plus an additional 10% administrative fee.

11. Assignment. Contractor may not assign this Contract or any of its rights or delegate any of its duties or obligations hereunder, voluntarily, or involuntarily, whether by merger (regardless of whether it is the surviving or disappearing entity), conversion, consolidation, dissolution, or operation of law to any other party without the prior written approval of the State. Upon notice to Contractor, the State, in its sole discretion, may assign in whole or in part, its rights or responsibilities under this Contract to any other governmental entity if such assignment is made reasonably necessary by operation of controlling law or regulation. If the State determines that a novation of the Contract to a third party is necessary, Contractor will agree to the novation and provide all necessary documentation and signatures.

12. Change of Control. Contractor will notify the State, within 30 calendar days of any public announcement or otherwise once legally permitted to do so, of a change in Contractor's organizational structure or ownership. For purposes of this Contract, a change in control means any of the following:

- (a) a sale of more than 50% of Contractor's stock;
- (b) a sale of substantially all of Contractor's assets;
- (c) a change in a majority of Contractor's board members;
- (d) consummation of a merger or consolidation of Contractor with any other entity;
- (e) a change in ownership through a transaction or series of transactions;
- (f) or the board (or the stockholders) approves a plan of complete liquidation.

A change of control does not include any consolidation or merger effected exclusively to change the domicile of Contractor, or any transaction or series of transactions principally for bona fide equity financing purposes. In the event of a change of control, Contractor must require the successor to assume this Contract and all of its obligations under this Contract.

13. Ordering, Invoices and Payment.

13.1 Authorizing Document. The document for the Contract will be a delivery order. No work should start until the delivery order is received by the Contractor.

13.2 Invoices must conform to the requirements communicated from time-to-time by the State. All undisputed amounts are payable within 45 days of the State's receipt. Contractor may only charge for the Solution provided as specified in Statement(s) of Work. Invoices must include an itemized statement of all charges.

13.3 The State has the right to withhold payment of any disputed amounts until the parties agree as to the validity of the disputed amount. The State will notify Contractor of any dispute within a reasonable time. Payment by the State will not constitute a waiver of any rights as to Contractor's continuing obligations, including claims for deficiencies or substandard Deliverables. Contractor's acceptance of final payment by the State constitutes a waiver of all claims by Contractor against the State for payment under this Contract, other than those claims previously filed in writing on a timely basis and still disputed.

13.4 The State will only disburse payments under this Contract through Electronic Funds Transfer (EFT). Contractor must register with the State at <http://www.michigan.gov/SIGMAVSS>





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to receive electronic fund transfer payments. If Contractor does not register, the State is not liable for failure to provide payment.

13.5 Right of Setoff. Without prejudice to any other right or remedy it may have, the State reserves the right to set off at any time any amount then due and owing to it by Contractor against any amount payable by the State to Contractor under this Contract.

13.6 Taxes. The State is exempt from federal excise tax, state, and local sales taxes, and use taxes if the Solution purchased under this Contract is for the State's exclusive use. Contractor will not include the collection of taxes for which the State is exempt in any invoices or payments related to this Contract. The State is not responsible for taxes imposed or assessed on Contractor.

13.7 Pricing/Fee Changes. Throughout the Term, all Pricing set forth in this Contract will be as set forth in **Schedule B – Pricing Schedule** and will not be increased, unless the State requires additional licenses, in which case the amount of fee per license the additional licenses will also remain fixed at the rates set forth in **Schedule B – Pricing Schedule**.

14. Liquidated Damages.

14.1 The parties understand and agree that any liquidated damages (which includes but is not limited to applicable credits) set forth in this Contract are reasonable estimates of the State's damages in accordance with applicable law.

14.2 The parties acknowledge and agree that Contractor could incur liquidated damages for more than one event.

14.3 The assessment of liquidated damages will not constitute a waiver or release of any other remedy the State may have under this Contract for Contractor's breach of this Contract, including without limitation, the State's right to terminate this Contract for cause and the State will be entitled in its discretion to recover actual damages caused by Contractor's failure to perform its obligations under this Contract. However, the State will reduce such actual damages by the amounts of liquidated damages received for the same events causing the actual damages.

14.4 Amounts due the State as liquidated damages may be set off against any Fees payable to Contractor under this Contract, or the State may bill Contractor as a separate item and Contractor will promptly make payments on such bills.

15. Stop Work Order. The State may suspend any or all activities under the Contract at any time. The State will provide Contractor a written stop work order detailing the suspension. Contractor must comply with the stop work order upon receipt. Within 90 calendar days, or any longer period agreed to by Contractor, the State will either:

- (a) issue a notice authorizing Contractor to resume work, or
- (b) terminate the Contract or delivery order. The State will not pay for activities that have been suspended, Contractor's lost profits, or any additional compensation during a stop work period.

16. Termination, Expiration, Transition. The State may terminate this Contract, the Support Services, or any Statement of Work, in accordance with the following:

16.1 Termination for Cause. In addition to any right of termination set forth elsewhere in this Contract:

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February 7, 2025

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(a) The State may terminate this Contract for cause, in whole or in part, if Contractor, as determined by the State:

- i) endangers the value, integrity, or security of State Systems, State Data, or the State's facilities or personnel;
- (ii) becomes insolvent, petitions for bankruptcy court proceedings, or has an involuntary bankruptcy proceeding filed against it by any creditor; or
- (iii) breaches any of its material duties or obligations under this Contract. Any reference to specific breaches being material breaches within this Contract will not be construed to mean that other breaches are not material.

(b) If the State terminates this Contract under this **Subsection 16.1**, the State will issue a termination notice specifying whether Contractor must:

- (i) cease performance immediately. Contractor must submit all invoices for Services accepted by the State within 30 days of the date of termination. Failure to submit an invoice within that timeframe will constitute a waiver by Contractor for any amounts due to Contractor for Services accepted by the State under this Contract, or
- (ii) continue to perform for a specified period. If it is later determined that Contractor was not in breach of this Contract, the termination will be deemed to have been a termination for convenience, effective as of the same date, and the rights and obligations of the parties will be limited to those provided in **Subsection 16.2**.

(c) The State will only pay for amounts due to Contractor for Services accepted by the State on or before the date of termination, subject to the State's right to set off any amounts owed by the Contractor for the State's reasonable costs in terminating this Contract. Contractor must promptly reimburse to the State any Fees prepaid by the State prorated to the date of such termination, including any prepaid Fees. Contractor must pay all reasonable costs incurred by the State in terminating this Contract for cause, including administrative costs, attorneys' fees, court costs, transition costs, and any costs the State incurs to procure the Services from other sources.

16.2 Termination for Convenience. The State may immediately terminate this Contract in whole or in part, without penalty and for any reason or no reason, including but not limited to, appropriation or budget shortfalls. The termination notice will specify whether Contractor must:

- (a) cease performance immediately. Contractor must submit all invoices for Services accepted by the State within 30 days of the date of termination. Failure to submit an invoice within that timeframe will constitute a waiver by Contractor for any amounts due to Contractor for Services accepted by the State under this Contract, or
- (b) continue to perform in accordance with **Subsection 16.3**. If the State terminates this Contract for convenience, the State will pay all reasonable costs, as determined by the State, for State approved Transition Responsibilities to the extent the funds are available.

16.3 Transition Responsibilities.





(a) Upon termination or expiration of this Contract for any reason, Contractor must, for a period of time specified by the State (not to exceed 180 calendar days; the “**Transition Period**”), provide all reasonable transition assistance requested by the State, to allow for the expired or terminated portion of the Contract to continue without interruption or adverse effect, and to facilitate the orderly transfer of the Services to the State or its designees. Such transition assistance may include but is not limited to:

- (i) continuing to perform the Services at the established Contract rates;
- (ii) taking all reasonable and necessary measures to transition performance of the work, including all applicable Services to the State or the State’s designee;
- (iii) taking all necessary and appropriate steps, or such other action as the State may direct, to preserve, maintain, protect, and comply with **Section 22**, including without limitation, the return or destruction of State Data at the conclusion of the Transition Period; and
- (iv) preparing an accurate accounting from which the State and Contractor may reconcile all outstanding accounts (collectively, the “**Transition Responsibilities**”). The Term of this Contract is automatically extended through the end of the Transition Period.

(b) Contractor will follow the transition plan attached as **Schedule G** as it pertains to both transition in and transition out activities.

17. Indemnification

17.1 General Indemnification. Contractor must defend, indemnify and hold the State, its departments, divisions, agencies, offices, commissions, officers, and employees harmless, without limitation, from and against any and all actions, claims, losses, liabilities, damages, costs, attorney fees, and expenses (including those required to establish the right to indemnification), arising out of or relating to:

- (a) any breach by Contractor (or any of Contractor’s employees, agents, subcontractors, or by anyone else for whose acts any of them may be liable) of any of the promises, agreements, representations, warranties, or insurance requirements contained in this Contract;
- (b) any infringement, misappropriation, or other violation of any Intellectual Property Right or other right of any third party;
- (c) any bodily injury, death, or damage to real or tangible personal property occurring wholly or in part due to action or inaction by Contractor (or any of Contractor’s employees, agents, subcontractors, or by anyone else for whose acts any of them may be liable); and
- (d) any acts or omissions of Contractor (or any of Contractor’s employees, agents, subcontractors, or by anyone else for whose acts any of them may be liable).

17.2 Indemnification Procedure. The State will notify Contractor in writing if indemnification is sought; however, failure to do so will not relieve Contractor, except to the extent that Contractor is materially prejudiced. Contractor must, to the satisfaction of the State, demonstrate its financial ability to carry out these obligations. The State is entitled to:

- (a) regular updates on proceeding status;





- (b) participate in the defense of the proceeding;
- (c) employ its own counsel; and to
- (d) retain control of the defense, at its own cost and expense, if the State deems necessary. Contractor will not, without the State's prior written consent (not to be unreasonably withheld), settle, compromise, or consent to the entry of any judgment in or otherwise seek to terminate any claim, action, or proceeding. Any litigation activity on behalf of the State or any of its subdivisions must be coordinated with the Department of Attorney General. An attorney designated to represent the State may not do so until approved by the Michigan Attorney General and appointed as a Special Assistant Attorney General.

17.3 The State is constitutionally prohibited from indemnifying Contractor or any third parties.

18. Infringement Remedies.

18.1 The remedies set forth in this Section are in addition to, and not in lieu of, all other remedies that may be available to the State under this Contract or otherwise, including the State's right to be indemnified for such actions.

18.2 If any Deliverable, or any component thereof, other than State Materials, is found to be infringing or if any use of any Software or any component thereof is enjoined, threatened to be enjoined or otherwise the subject of an infringement claim, Contractor must, at Contractor's sole cost and expense:

- (a) procure for the State the right to continue to use such Deliverable, or component thereof to the full extent contemplated by this Contract; or
- (b) modify or replace the materials that infringe or are alleged to infringe ("**Allegedly Infringing Materials**") to make the Deliverable and all of its components non-infringing while providing fully equivalent features and functionality.

18.3 If neither of the foregoing is possible notwithstanding Contractor's best efforts, then Contractor may direct the State to cease any use of any materials that have been enjoined or finally adjudicated as infringing, provided that Contractor will:

- (a) refund to the State all amounts paid by the State in respect of such Allegedly Infringing Materials and any other aspects of the Deliverable provided under a Statement of Work for the Allegedly Infringing Materials that the State cannot reasonably use as intended under this Contract; and
- (b) in any case, at its sole cost and expense, secure the right for the State to continue using the Allegedly Infringing Materials for a transition period of up to 6 months to allow the State to replace the affected features of the Deliverable without disruption.

18.4 If Contractor directs the State to cease using any Deliverable under **Subsection 18.3**, the State, at its sole discretion, will be entitled to declare such a direction from the Contractor to cease use a material breach of the Contract and may terminate this Contract under **Section 16**. Unless the claim arose against the Deliverable independently of any of the actions specified below, Contractor will have no liability for any claim of infringement arising solely from:

- (a) Contractor's compliance with any designs, specifications, or instructions of the State; or





(b) modification of the Deliverable by the State without the prior knowledge and approval of Contractor.

19. Disclaimer of Damages and Limitation of Liability.

19.1 The State's Disclaimer of Damages. THE STATE WILL NOT BE LIABLE, REGARDLESS OF THE FORM OF ACTION, WHETHER IN CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY OR BY STATUTE OR OTHERWISE, FOR ANY CLAIM RELATED TO OR ARISING UNDER THIS CONTRACT FOR CONSEQUENTIAL, INCIDENTAL, INDIRECT, OR SPECIAL DAMAGES, INCLUDING WITHOUT LIMITATION LOST PROFITS AND LOST BUSINESS OPPORTUNITIES.

19.2 The State's Limitation of Liability. IN NO EVENT WILL THE STATE'S AGGREGATE LIABILITY TO CONTRACTOR UNDER THIS CONTRACT, REGARDLESS OF THE FORM OF ACTION, WHETHER IN CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY OR BY STATUTE OR OTHERWISE, FOR ANY CLAIM RELATED TO OR ARISING UNDER THIS CONTRACT, EXCEED THE MAXIMUM AMOUNT OF FEES PAYABLE UNDER THIS CONTRACT.

20. Disclosure of Litigation, or Other Proceeding. Contractor must notify the State within 14 calendar days of receiving notice of any litigation, investigation, arbitration, or other proceeding (collectively, "**Proceeding**") involving Contractor, a Permitted Subcontractor, or an officer or director of Contractor or Permitted Subcontractor, that arises during the term of the Contract, including:

- (a) a criminal Proceeding;
- (b) a parole or probation Proceeding;
- (c) a Proceeding under the Sarbanes-Oxley Act;
- (d) a civil Proceeding involving:
 - (i) a claim that might reasonably be expected to adversely affect Contractor's viability or financial stability; or
 - (ii) a governmental or public entity's claim or written allegation of fraud; or
- (e) a Proceeding involving any license that Contractor is required to possess in order to perform under this Contract.

21. State Data.

21.1 Ownership. The State's data ("**State Data**"), which will be treated by Contractor as Confidential Information, includes:

- (a) User Data;
- (b) Work Product;
- (c) all data made available to Contractor for or during the provision of the Solution, including but not limited to all text, sound, video, image files, or software; and
- (d) any other data collected, used, Processed, stored, or generated in connection with the Solution, including but not limited to:
 - (i) personally identifiable information ("**PII**") collected, used, Processed, stored, or generated as the result of the Solution, including, without limitation, any information that identifies an individual, such as an individual's social security number or other government-issued identification number, date of birth, address, telephone number, biometric data, mother's maiden name, email

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address, credit card information, or an individual's name in combination with any other of the elements here listed; and

(ii) protected health information ("PHI") collected, used, Processed, stored, or generated as the result of the Solution, which is defined under the Health Insurance Portability and Accountability Act ("HIPAA") and its related rules and regulations.

21.2 State Data is and will remain the sole and exclusive property of the State and all right, title, and interest in the same is reserved by the State.

21.3 Contractor Use of State Data. Contractor is provided a limited license to State Data for the sole and exclusive purpose of providing the Solution, including a license to collect, process, store, generate, and display State Data only to the extent necessary in the provision of the Solution. Contractor must:

- (a) keep and maintain State Data in strict confidence, using such degree of care as is appropriate and consistent with its obligations as further described in this Contract and applicable law to avoid unauthorized access, use, disclosure, or loss;
- (b) use and disclose State Data solely and exclusively for the purpose of providing the Solution, such use and disclosure being in accordance with this Contract, any applicable Statement of Work, and applicable law;
- (c) keep and maintain State Data in the United States or its territories. For the avoidance of doubt, Offshore Resources are not permitted under this Contract; and
- (d) not use, sell, rent, transfer, mine, distribute, commercially exploit, or otherwise disclose or make available State Data for Contractor's own purposes or for the benefit of anyone other than the State without the State's prior written consent. Contractor's misuse of State Data may violate state or federal laws, including but not limited to MCL 752.795

21.4 Third-Party Requests. Contractor will immediately notify the State upon receipt of any third-party requests which in any way might reasonably require Access to State Data. Contractor will notify the State Program Managers or their designees by the fastest means available and also in writing. Contractor must provide such notification within twenty-four (24) hours from Contractor's receipt of the request. Contractor will not respond to subpoenas, service of process, FOIA requests, and other legal requests related to the State without first notifying the State. Upon request by the State, Contractor must provide to the State, its proposed response to the third-party request with adequate time for the State to review, and, as it deems necessary, to revise the response, object, or take other action.

21.5 Loss or Compromise of Data. In the event of any act, error or omission, negligence, misconduct, or breach on the part of Contractor that compromises or is suspected to compromise the security, confidentiality, integrity, or availability of State Data or the physical, technical, administrative, or organizational safeguards put in place by Contractor that relate to the protection of the security, confidentiality, or integrity of State Data, Contractor must, as applicable:

- (a) notify the State as soon as practicable but no later than 24 hours of becoming aware of such occurrence;





(b) cooperate with the State in investigating the occurrence, including making available all relevant records, logs, files, data reporting, and other materials required to comply with applicable law or as otherwise required by the State;

(c) in the case of PII or PHI, at the State's sole election:

(i) with approval and assistance from the State, notify the affected individuals who comprise the PII or PHI as soon as practicable but no later than is required to comply with applicable law, or, in the absence of any legally required notification period, within 5 calendar days of the occurrence; or

(ii) reimburse the State for any costs in notifying the affected individuals;

(d) in the case of PII, provide third-party credit and identity monitoring services to each of the affected individuals who comprise the PII for the period required to comply with applicable law, or, in the absence of any legally required monitoring services, for no less than 24 months following the date of notification to such individuals;

(e) perform or take any other actions required to comply with applicable law as a result of the occurrence;

(f) pay for any costs associated with the occurrence, including but not limited to any costs incurred by the State in investigating and resolving the occurrence, including reasonable attorney's fees associated with such investigation and resolution;

(g) without limiting Contractor's obligations of indemnification as further described in this Contract, indemnify, defend, and hold harmless the State for any and all claims, including reasonable attorneys' fees, costs, and incidental expenses, which may be suffered by, accrued against, charged to, or recoverable from the State in connection with the occurrence;

(h) be responsible for recreating lost State Data in the manner and on the schedule set by the State without charge to the State; and

(i) provide to the State a detailed plan within 10 calendar days of the occurrence describing the measures Contractor will undertake to prevent a future occurrence. Notification to affected individuals, as described above, must comply with applicable law, be written in plain language, not be tangentially used for any solicitation purposes, and contain, at a minimum: name and contact information of Contractor's representative; a description of the nature of the loss; a list of the types of data involved; the known or approximate date of the loss; how such loss may affect the affected individual; what steps Contractor has taken to protect the affected individual; what steps the affected individual can take to protect himself or herself; contact information for major credit card reporting agencies; and, information regarding the credit and identity monitoring services to be provided by Contractor. The State will have the option to review and approve any notification sent to affected individuals prior to its delivery. Notification to any other party, including but not limited to public media outlets, must be reviewed and approved by the State in writing prior to its dissemination.

21.6 The parties agree that any damages arising out of a breach of the terms set forth in this **Section** are to be considered direct damages and not consequential damages.





22. Non-Disclosure of Confidential Information. The parties acknowledge that each party may be exposed to or acquire communication or data of the other party that is confidential, privileged communication not intended to be disclosed to third parties.

22.1 Meaning of Confidential Information. For the purposes of this Contract, the term “**Confidential Information**” means all information and documentation of a party that: (a) has been marked “confidential” or with words of similar meaning, at the time of disclosure by such party; (b) if disclosed orally or not marked “confidential” or with words of similar meaning, was subsequently summarized in writing by the disclosing party and marked “confidential” or with words of similar meaning; and, (c) should reasonably be recognized as confidential information of the disclosing party. The term “Confidential Information” does not include any information or documentation that was: (a) subject to disclosure under the Michigan Freedom of Information Act (FOIA); (b) already in the possession of the receiving party without an obligation of confidentiality; (c) developed independently by the receiving party, as demonstrated by the receiving party, without violating the disclosing party’s proprietary rights; (d) obtained from a source other than the disclosing party without an obligation of confidentiality; or, (e) publicly available when received, or thereafter became publicly available (other than through any unauthorized disclosure). For purposes of this Contract, in all cases and for all matters, State Data is deemed to be Confidential Information.

22.2 Obligation of Confidentiality. The parties agree to hold all Confidential Information in strict confidence and not to copy, reproduce, sell, transfer, or otherwise dispose of, give or disclose such Confidential Information to third parties other than employees, agents, or subcontractors of a party who have a need to know in connection with this Contract or to use such Confidential Information for any purposes whatsoever other than the performance of this Contract. The parties agree to advise and require their respective employees, agents, and subcontractors of their obligations to keep all Confidential Information confidential. Disclosure to the Contractor’s subcontractor is permissible where:

- (a) the subcontractor is a Permitted Subcontractor;
- (b) the disclosure is necessary or otherwise naturally occurs in connection with work that is within the Permitted Subcontractor’s responsibilities; and
- (c) Contractor obligates the Permitted Subcontractor in a written contract to maintain the State’s Confidential Information in confidence. At the State’s request, any of the Contractor’s and Permitted Subcontractor’s Representatives may be required to execute a separate agreement to be bound by the provisions of this **Subsection 22.2.**

22.3 Cooperation to Prevent Disclosure of Confidential Information. Each party must use its best efforts to assist the other party in identifying and preventing any unauthorized use or disclosure of any Confidential Information. Without limiting the foregoing, each party must advise the other party immediately in the event either party learns or has reason to believe that any person who has had access to Confidential Information has violated or intends to violate the terms of this Contract. Each party will cooperate with the other party in seeking injunctive or other equitable relief against any such person.

22.4 Remedies for Breach of Obligation of Confidentiality. Each party acknowledges that breach of its obligation of confidentiality may give rise to irreparable injury to the other party, which damage may be inadequately compensable in the form of monetary damages. Accordingly, a party may seek and obtain injunctive relief against the breach or threatened breach of the





foregoing undertakings, in addition to any other legal remedies which may be available, to include, in the case of the State, at the sole election of the State, the immediate termination, without liability to the State, of this Contract or any Statement of Work corresponding to the breach or threatened breach.

22.5 Surrender of Confidential Information. Upon termination or expiration of this Contract or a Statement of Work, in whole or in part, each party must, within 5 Business Days from the date of termination or expiration, return to the other party any and all Confidential Information received from the other party, or created or received by a party on behalf of the other party, which are in such party's possession, custody, or control. Upon confirmation from the State, of receipt of all data, Contractor must permanently sanitize or destroy the State's Confidential Information, including State Data, from all media including backups using National Security Agency ("NSA") and/or National Institute of Standards and Technology ("NIST") (NIST Guide for Media Sanitization 800-88) data sanitization methods or as otherwise instructed by the State. If the State determines that the return of any Confidential Information is not feasible or necessary, Contractor must destroy the Confidential Information as specified above. The Contractor must certify the destruction of Confidential Information (including State Data) in writing within 5 Business Days from the date of confirmation from the State.

23. Records Maintenance, Inspection, Examination, and Audit.

23.1 Right of Audit. Pursuant to MCL 18.1470, the State or its designee may audit Contractor to verify compliance with this Contract. Contractor must retain and provide to the State or its designee and the auditor general upon request, all financial and accounting records related to this Contract through the Term of this Contract and for 4 years after the latter of termination, expiration, or final payment under this Contract or any extension ("**Financial Audit Period**"). If an audit, litigation, or other action involving the records is initiated before the end of the Financial Audit Period, Contractor must retain the records until all issues are resolved.

23.2 Right of Inspection. Within 10 calendar days of providing notice, the State and its authorized representatives or designees have the right to enter and inspect Contractor's premises or any other places where Services are being performed, and examine, copy, and audit all records related to this Contract. Contractor must cooperate and provide reasonable assistance. If financial errors are revealed, the amount in error must be reflected as a credit or debit on subsequent invoices until the amount is paid or refunded. Any remaining balance at the end of this Contract must be paid or refunded within 45 calendar days.

23.3 Application. This **Section 23** applies to Contractor, any Affiliate, and any Permitted Subcontractor that performs Services in connection with this Contract.

24. Support Services. Contractor will provide the State with the Support Services described in the Service Level Agreement attached as **Schedule D** to this Contract. Such Support Services will be provided:

(a) Free of charge during the Warranty Period.

(b) Thereafter, for so long as the State elects to receive Support, in consideration of the State's payment of Fees for such services in accordance with the rates set forth in the Pricing Schedule.

25. Data Security Requirements. Throughout the Term and at all times in connection to the Solution, Contractor will maintain and enforce an information security program including safety and physical and technical security policies and procedures with respect to its Processing of the State's Confidential





Information that comply with the requirements of the State's data security policies as set forth in **Schedule E** to this Contract.

26. Training. Contractor will provide, at no additional charge, training on the Solution provided hereunder in accordance with the times, locations and other terms set forth in a Statement of Work. Upon the State's request, Contractor will timely provide training for additional Authorized Users or other additional training on the Solution for which the State requests such training, at such reasonable times and locations and pursuant to such rates and other terms as are set forth in the Pricing Schedule.

27. Maintenance Releases; New Versions

27.1 Maintenance Releases. Provided that the State is current on its Fees, during the Term, Contractor will provide the State, at no additional charge, with all Maintenance Releases, each of which will constitute Software and be subject to the terms and conditions of this Contract.

27.2 New Versions. Provided that the State is current on its Fees, during the Term, Contractor will provide the State, at no additional charge, with all New Versions, each of which will constitute Software and be subject to the terms and conditions of this Contract.

27.3 Installation. The State has no obligation to install or use any Maintenance Release or New Versions. If the State wishes to install any Maintenance Release or New Version, the State will have the right to have such Maintenance Release or New Version installed, in the State's discretion, by Contractor or other authorized party as set forth in a Statement of Work. Contractor will provide the State, at no additional charge, adequate Documentation for installation of the Maintenance Release or New Version, which has been developed and tested by Contractor and Accepted by the State. The State's decision not to install or implement a Maintenance Release or New Version of the Software will not affect its right to receive Support Services throughout the Term of this Contract.

27.4 Supported Third-Party and Open-Source Components. Contractor will utilize only currently supported versions of all Third-Party or Open Source Components and will notify the State when not using the most recently published Third-Party and Open Source Components.

28. Source Code Escrow.

28.1 Escrow Contract. The parties may enter into a separate intellectual property escrow agreement. Such escrow agreement will govern all aspects of Source Code escrow and release. The cost of the escrow will be the sole responsibility of Contractor.

28.2 Deposit. Within 30 Business Days of the effective date of the escrow agreement, Contractor will deposit with the escrow agent, pursuant to the procedures of the escrow agreement, the Source Code for the Software, as well as the Documentation and names and contact information for each author or other creator of the Software. Promptly after release of any update, upgrade, patch, bug fix, enhancement, new version, or other revision to the Software, Contractor will deposit updated Source Code, documentation, names, and contact information with the escrow agent (all of which is collectively referred to herein as "**Deposit Material**").

28.3 Verification. At State's request and expense, the escrow agent may at any time verify the Deposit Material, including without limitation by compiling Source Code, comparing it to the Software, and reviewing the completeness and accuracy of all material. If the Deposit Material does not conform to the requirements of **Subsection 28.2** above:

- (a) Contractor will promptly deposit conforming Deposit Material; and





(b) Contractor will pay the escrow agent for subsequent verification of the new Deposit Material. Any breach of the provisions of this **Section 28** will constitute material breach of this Contract, and no further payments will be due from the State until such breach is cured, in addition to any other remedies the State may have.

28.4 Deposit Material License. Contractor hereby grants the State a license to use, reproduce, and create derivative works from the Deposit Material, provided the State may not distribute or sublicense the Deposit Material or make any use of it whatsoever except for such internal or governmental uses as necessary to maintain and support the Software. Copies of the Deposit Material created or transferred pursuant to this Contract are licensed, not sold, and the State receives no title to or ownership of any copy or of the Deposit Material itself. The Deposit Material constitutes Confidential Information of Contractor pursuant to **Section 22** (Non-disclosure of Confidential Information) of this Contract (provided no provision of **Subsection 22.4** calling for return of Confidential Information before termination of this Contract will apply to the Deposit Material).

29. Contractor Representations and Warranties.

29.1 Authority. Contractor represents and warrants to the State that:

- (a) It is duly organized, validly existing, and in good standing as a corporation or other entity as represented under this Contract under the laws and regulations of its jurisdiction of incorporation, organization, or chartering;
- (b) It has the full right, power, and authority to enter into this Contract, and to perform its contractual obligations;
- (c) The execution of this Contract by its Representative has been duly authorized by all necessary organizational action; and
- (d) When executed and delivered by Contractor, this Contract will constitute the legal, valid, and binding obligation of Contractor, enforceable against Contractor in accordance with its terms.
- (e) Contractor is neither currently engaged in nor will engage in the boycott of a person based in or doing business with a strategic partner as described in 22 USC 8601 to 8606.

29.2 Bid Response. Contractor represents and warrants to the State that:

- (a) The prices proposed by Contractor were arrived at independently, without consultation, communication, or agreement with any other Bidder for the purpose of restricting competition; the prices quoted were not knowingly disclosed by Contractor to any other Bidder to the Solicitation; and no attempt was made by Contractor to induce any other Person to submit or not submit a proposal for the purpose of restricting competition;
- (b) All written information furnished to the State by or for Contractor in connection with this Contract, including Contractor's Bid Response, is true, accurate, and complete, and contains no untrue statement of material fact or omits any material fact necessary to make the information not misleading;
- (c) Contractor is not in material default or breach of any other contract or agreement that it may have with the State or any of its departments, commissions, boards, or agencies. Contractor further represents and warrants that it has not been a party to any





contract with the State or any of its departments that was terminated by the State within the previous 5 years for the reason that Contractor failed to perform or otherwise breached an obligation of the contract; and

(d) If any of the certifications, representations, or disclosures made in Contractor's Bid Response change after contract award, the Contractor is required to report those changes immediately to the Contract Administrator.

29.3 Software Representations and Warranties. Contractor further represents and warrants to the State that:

(a) Contractor is the legal and beneficial owner of the entire right, title and interest in and to the Software, including all Intellectual Property Rights relating thereto or is the recipient of a valid license thereto, and that it has and will maintain the full power and authority to grant the Intellectual Property Rights to the Software or to use the Software in the Contract (i) without the further consent of any third party and (ii) without conditions or requirements not set forth in this Contract;

(b) Contractor has, and throughout the Term and any additional periods during which Contractor does or is required to perform the Services will have, the unconditional and irrevocable right, power and authority, including all permits and licenses required, to provide the Services and grant and perform all rights and licenses granted or required to be granted by it under this Contract;

(c) the Software, and the State's use thereof, is and throughout the license term will be free and clear of all encumbrances, liens and security interests of any kind;

(d) neither its grant of the license, nor its performance under this Contract does or to its knowledge will at any time:

(i) conflict with or violate any applicable law;

(ii) require the consent, approval or authorization of any governmental or regulatory authority or other third party; or

(iii) require the provision of any payment or other consideration to any third party;

(e) when used by the State or any Authorized User in accordance with this Contract the Solution as provided, delivered, or installed by Contractor does not or will not:

(i) infringe, misappropriate, or otherwise violate any Intellectual Property Right or other right of any third party; or

(ii) fail to comply with any applicable law;

(f) as provided by Contractor, the Solution does not and will not at any time during the Term contain any:

(i) Harmful Code; or

(ii) Third party or Open Source Components or operate in such a way that it is developed or compiled with or linked to any third-party or Open Source Components, other than Approved Third-Party Components.





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(g) all Documentation is and will be complete and accurate in all material respects when provided to the State such that at no time during the license term will the Software have any material undocumented feature; and

(h) Contractor will perform all Services in a timely, skillful, professional and workmanlike manner in accordance with commercially reasonable industry standards and practices for similar services, using personnel with the requisite skill, experience and qualifications, and will devote adequate resources to meet its obligations under this Contract.

(i) when used in the Operating Environment (or any successor thereto) in accordance with the Documentation, all Software as provided by Contractor, will be fully operable, meet all applicable specifications, and function in all respects, in conformity with this Contract and the Documentation;

(j) Contractor acknowledges that the State cannot indemnify any third parties, including but not limited to any third-party software providers that provide software that will be incorporated in or otherwise used in conjunction with the Services, and that notwithstanding anything to the contrary contained in any third-party software license agreement or end user license agreement, the State will not indemnify any third party software provider for any reason whatsoever;

(k) no Maintenance Release or New Version, when properly installed in accordance with this Contract, will have a material adverse effect on the functionality or operability of the Software.

(l) all Configurations or Customizations made during the Term will be forward-compatible with future Maintenance Releases or New Versions and be fully supported without additional costs.

(m) If Contractor Hosted:

(i) Contractor will not advertise through the Solution (whether with adware, banners, buttons or other forms of online advertising) or link to external web sites that are not approved in writing by the State;

(ii) the Solution will in all material respects conform to and perform in accordance with the Specifications and all requirements of this Contract, including the Availability and Availability Requirement provisions set forth in the Service Level Agreement;

(iii) all Specifications are, and will be continually updated and maintained so that they continue to be, current, complete and accurate and so that they do and will continue to fully describe the Solution in all material respects such that at no time during the Term or any additional periods during which Contractor does or is required to perform the Services will the Solution have any material undocumented feature;

(n) During the Term of this Contract, any audit rights contained in any third-party software license agreement or end user license agreement for third-party software incorporated in or otherwise used in conjunction with the Solution, will apply solely to Contractor or its Permitted Subcontractors. Regardless of anything to the contrary contained in any third-party software license agreement or end user license agreement,





third-party software providers will have no audit rights whatsoever against State Systems or networks.

29.4 Work Product Representations and Warranties: Contractor further represents and warrants to the State that:

(a) Contractor has all necessary rights, title, and/or licenses required to create, develop, or generate Work Product and to transfer all ownership rights in Work Product to the State as set forth in Section 7.

(b) Contractor has verified that no third-party intellectual property has been incorporated into any Work Product created, developed, or generated by any nonhuman means used by Contractor.

29.5 Disclaimer. EXCEPT FOR THE EXPRESS WARRANTIES SET FORTH IN THIS CONTRACT, CONTRACTOR HEREBY DISCLAIMS ALL WARRANTIES, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, WITH RESPECT TO THIS CONTRACT.

30. Conflicts and Ethics. Contractor will uphold high ethical standards and is prohibited from: (a) holding or acquiring an interest that would conflict with this Contract; (b) doing anything that creates an appearance of impropriety with respect to the award or performance of the Contract; (c) attempting to influence or appearing to influence any State employee by the direct or indirect offer of anything of value including an offer of employment; or (d) paying or agreeing to pay any person, other than employees and consultants working for Contractor, any consideration contingent upon the award of the Contract. Contractor must immediately notify the State of any violation or potential violation of these standards. This Section applies to Contractor, any parent, affiliate, or subsidiary organization of Contractor, and any Permitted Subcontractor that provides the Solution in connection with this Contract.

31. Compliance with Laws. Contractor, its subcontractors, including Permitted Subcontractors, and their respective Representatives must comply with all laws in connection with this Contract.

32. Nondiscrimination. Under the Elliott-Larsen Civil Rights Act, 1976 PA 453, MCL 37.2101, *et seq.*, the Persons with Disabilities Civil Rights Act, 1976 PA 220, MCL 37.1101, *et seq.*, and Executive Directive [2019-09](#), Contractor and its subcontractors agree not to discriminate against an employee or applicant for employment with respect to hire, tenure, terms, conditions, or privileges of employment, or a matter directly or indirectly related to employment, because of race, color, religion, national origin, age, sex, height, weight, marital status, partisan considerations, any mental or physical disability, or genetic information that is unrelated to the person's ability to perform the duties of a particular job or position. Breach of this covenant is a material breach of the Contract.

33. Unfair Labor Practice. Under MCL 423.324, the State may void this Contract if the name of the Contractor, or the name of a subcontractor, manufacturer, or supplier of the Contractor, subsequently appears on the Unfair Labor Practice register compiled under MCL 423.322.

34. Governing Law. This Contract is governed, construed, and enforced in accordance with Michigan law, excluding choice-of-law principles, and all claims relating to or arising out of this Contract are governed by Michigan law, excluding choice-of-law principles. Any dispute arising from this Contract must be resolved in the Michigan Court of Claims. Contractor waives any objections, such as lack of personal jurisdiction or *forum non conveniens*. Contractor must appoint an agent in Michigan to receive service of process.





35. Non-Exclusivity. Nothing contained in this Contract is intended nor is to be construed as creating any requirements contract with Contractor, nor does it provide Contractor with a right of first refusal for any future work. This Contract does not restrict the State or its agencies from acquiring similar, equal, or like Services from other sources.

36. Force Majeure

36.1 Force Majeure Events. Neither party will be liable or responsible to the other party, or be deemed to have defaulted under or breached the Contract, for any failure or delay in fulfilling or performing any term hereof, when and to the extent such failure or delay is caused by: acts of God, flood, fire or explosion, war, terrorism, invasion, riot or other civil unrest, embargoes or blockades in effect on or after the date of the Contract, national or regional emergency, or any passage of law or governmental order, rule, regulation or direction, or any action taken by a governmental or public authority, including imposing an embargo, export or import restriction, quota or other restriction or prohibition (each of the foregoing, a “**Force Majeure Event**”), in each case provided that: (a) such event is outside the reasonable control of the affected party; (b) the affected party gives prompt written notice to the other party, stating the period of time the occurrence is expected to continue; (c) the affected party uses diligent efforts to end the failure or delay and minimize the effects of such Force Majeure Event.

36.2 State Performance; Termination. In the event of a Force Majeure Event affecting Contractor’s performance under the Contract, the State may suspend its performance hereunder until such time as Contractor resumes performance. The State may terminate the Contract by written notice to Contractor if a Force Majeure Event affecting Contractor’s performance hereunder continues substantially uninterrupted for a period of 5 Business Days or more. Unless the State terminates the Contract pursuant to the preceding sentence, any date specifically designated for Contractor’s performance under the Contract will automatically be extended for a period up to the duration of the Force Majeure Event.

36.3 Exclusions; Non-suspended Obligations. Notwithstanding the foregoing or any other provisions of the Contract or this Schedule:

(a) in no event will any of the following be considered a Force Majeure Event:

(i) shutdowns, disruptions or malfunctions of the Solution or any of Contractor’s telecommunication or internet services other than as a result of general and widespread internet or telecommunications failures that are not limited to the Solution; or

(ii) the delay or failure of any Contractor Personnel to perform any obligation of Contractor hereunder unless such delay or failure to perform is itself by reason of a Force Majeure Event.

(b) no Force Majeure Event modifies or excuses Contractor’s obligations under **Section 21** (State Data), **22** (Non-Disclosure of Confidential Information), or **17** (Indemnification) of the Contract, Disaster Recovery and Backup requirements set forth in the Service Level Agreement, Availability Requirement (if Contractor Hosted) defined in the Service Level Agreement, or any data retention or security requirements under the Contract.

37. Dispute Resolution. The parties will endeavor to resolve any Contract dispute in accordance with this provision. The dispute will be referred to the parties’ respective Contract Administrators or Program Managers. Such referral must include a description of the issues and all supporting documentation. The parties must submit the dispute to a senior executive if unable to resolve the dispute within 15 Business Days. The parties will continue performing while a dispute is being resolved, unless the dispute





precludes performance. A dispute involving payment does not preclude performance. Litigation to resolve the dispute will not be instituted until after the dispute has been elevated to the parties' senior executive and either concludes that resolution is unlikely or fails to respond within 15 Business Days. The parties are not prohibited from instituting formal proceedings: (a) to avoid the expiration of statute of limitations period; (b) to preserve a superior position with respect to creditors; or (c) where a party decides that a temporary restraining order or other injunctive relief is the only adequate remedy. This Section does not limit the State's right to terminate the Contract.

38. Media Releases. News releases (including promotional literature and commercial advertisements) pertaining to this Contract or project to which it relates must not be made without the prior written approval of the State, and then only in accordance with the explicit written instructions of the State.

39. Severability. If any part of this Contract is held invalid or unenforceable, by any court of competent jurisdiction, that part will be deemed deleted from this Contract and the severed part will be replaced by agreed upon language that achieves the same or similar objectives. The remaining Contract will continue in full force and effect.

40. Waiver. Failure to enforce any provision of this Contract will not constitute a waiver.

41. Survival. Any right, obligation, or condition that, by its express terms or nature and context is intended to survive, will survive the termination or expiration of this Contract; such rights, obligations, or conditions include, but are not limited to, those related to transition responsibilities; indemnification; disclaimer of damages and limitations of liability; State Data; non-disclosure of Confidential Information; representations and warranties; insurance and bankruptcy.

42. Administrative Fee and Reporting.

Contractor must pay an administrative fee of 1% on all payments made to Contractor under the Contract including transactions with MiDEAL members, and other states (including governmental subdivisions and authorized entities). Administrative fee payments must be made online by check or credit card at: <https://www.thepayplace.com/mi/dtmb/adminfee>

Contractor must submit an itemized purchasing activity report, which includes at a minimum, the name of the purchasing entity and the total dollar volume in sales. Reports should be mailed to MiDeal@michigan.gov.

The administrative fee and purchasing activity report are due within 30 calendar days from the last day of each calendar quarter.

43. Extended Purchasing Program. This contract is extended to MiDEAL members. MiDEAL members include local units of government, school districts, universities, community colleges, and nonprofit hospitals. A current list of MiDEAL members is available at www.michigan.gov/mideal.

Upon written agreement between the State and Contractor, this contract may also be extended to: (a) other states (including governmental subdivisions and authorized entities) and (b) State of Michigan employees.

If extended, Contractor must supply all Contract Activities at the established Contract prices and terms. The State reserves the right to impose an administrative fee and negotiate additional discounts based on any increased volume generated by such extensions.

Contractor must submit invoices to, and receive payment from, extended purchasing program members on a direct and individual basis.





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44. Contract Modification. This Contract may not be amended or modified in any way, except by a properly signed **Change Notice**. Notwithstanding the foregoing, no subsequent Statement of Work or Change Notice executed after the Effective Date will be construed to amend this Contract unless it specifically states its intent to do so and cites the section or sections amended.

45. Accessibility Requirements.

45.1 All Software provided by Contractor under this Contract, including associated content and documentation, must at all times conform to the Digital Accessibility Standards. Throughout the Term of the Contract, Contractor must:

- (a) maintain compliance with the Digital Accessibility Standards;
- (b) comply with plans and timelines approved by the State to achieve conformance in the event of any deficiencies;
- (c) ensure that no Maintenance Release, New Version, update or patch, when properly installed in accordance with this Contract, will have any adverse effect on the conformance of Contractor's Software to the Digital Accessibility Standards;
- (d) promptly respond to and resolve any complaint the State receives regarding accessibility of Contractor's Software;
- (e) upon the State's written request, provide evidence of compliance with this Section by delivering to the State Contractor's most current PAT for each product provided under the Contract; and
- (f) participate in the State of Michigan Digital Standards Review described below.

45.2 State of Michigan Digital Standards Review.

Throughout the Term, Contractor must assist the State, at no additional cost, with development, completion, and on-going maintenance of an accessibility plan, which requires Contractor, upon request from the State, to submit evidence to the State to review and validate Contractor's accessibility and compliance with the Digital Accessibility Standards. Prior to the Solution going-live a State of Michigan Digital Standards Review is required, and Contractor must remediate all accessibility issues identified in such review at no additional cost.

Additional State of Michigan Digital Standards Reviews may be required thereafter on an annual basis, or as otherwise required by the State. At no additional cost, Contractor must remediate all issues identified from any such review pursuant to plans and timelines that are approved in writing by the State.

45.3 Contractor must, without limiting Contractor's obligations of indemnification as further described in this Contract, indemnify, defend, and hold harmless the State for any and all claims, including reasonable attorneys' fees, costs, and incidental expenses, which may be suffered by, accrued against, charged to, or recoverable from the State arising out of its failure to comply with the foregoing accessibility standards.

45.4 Failure to comply with the requirements in this **Section 45** shall constitute a material breach of this Contract.

46. Further Assurances. Each party will, upon the reasonable request of the other party, execute such documents and perform such acts as may be necessary to give full effect to the terms of this Contract.





47. Relationship of the Parties. The relationship between the parties is that of independent contractors. Contractor, its employees, and agents will not be considered employees of the State. No partnership or joint venture relationship is created by virtue of this Contract. Contractor, and not the State, is responsible for the payment of wages, benefits and taxes of Contractor's employees and any subcontractors. Prior performance does not modify Contractor's status as an independent contractor. Neither party has authority to contract for nor bind the other party in any manner whatsoever.

48. Headings. The headings in this Contract are for reference only and do not affect the interpretation of this Contract.

49. No Third-party Beneficiaries. This Contract is for the sole benefit of the parties and their respective successors and permitted assigns. Nothing herein, express or implied, is intended to or will confer on any other person or entity any legal or equitable right, benefit or remedy of any nature whatsoever under or by reason of this Contract.

50. Equitable Relief. Each party to this Contract acknowledges and agrees that (a) a breach or threatened breach by such party of any of its obligations under this Contract may give rise to irreparable harm to the other party for which monetary damages would not be an adequate remedy and (b) in the event of a breach or a threatened breach by such party of any such obligations, the other party hereto is, in addition to any and all other rights and remedies that may be available to such party at law, at equity or otherwise in respect of such breach, entitled to seek equitable relief, including a temporary restraining order, an injunction, specific performance and any other relief that may be available from a court of competent jurisdiction, without any requirement to post a bond or other security, and without any requirement to prove actual damages or that monetary damages will not afford an adequate remedy, until or unless required by that court. Each party to this Contract agrees that such party will not oppose or otherwise challenge the appropriateness of equitable relief or the entry by a court of competent jurisdiction of an order granting equitable relief, in either case, consistent with the terms of this Section.

51. Effect of Contractor Bankruptcy. All rights and licenses granted by Contractor under this Contract are and will be deemed to be rights and licenses to "intellectual property," and all Deliverables are and will be deemed to be "embodiments" of "intellectual property," for purposes of, and as such terms are used in and interpreted under, Section 365(n) of the United States Bankruptcy Code (the "**Code**"). If Contractor or its estate becomes subject to any bankruptcy or similar proceeding, the State retains and has the right to fully exercise all rights, licenses, elections, and protections under this Contract, the Code and all other applicable bankruptcy, insolvency, and similar laws with respect to all Deliverables. Without limiting the generality of the foregoing, Contractor acknowledges and agrees that, if Contractor or its estate will become subject to any bankruptcy or similar proceeding:

(a) all rights and licenses granted to the State under this Contract will continue subject to the terms and conditions of this Contract, and will not be affected, even by Contractor's rejection of this Contract; and

(b) the State will be entitled to a complete duplicate of (or complete access to, as appropriate) all such intellectual property and embodiments of intellectual property comprising or relating to any Deliverables, and the same, if not already in the State's possession or in escrow, if applicable, will be promptly delivered to the State, unless Contractor elects to and does in fact continue to perform all of its obligations under this Contract.

52. Schedules. All Schedules that are referenced herein and attached hereto are hereby incorporated by reference. The following Schedules are attached hereto and incorporated herein:





AWS Response to Michigan DTMB Cloud Services RFP
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Schedule A	Statement of Work
Schedule B	Pricing Schedule
Schedule C	Insurance Schedule
Schedule D	Service Level Agreement
Schedule E	Data Security Requirements
Schedule F	Disaster Recovery Plan
Schedule G	Transition Plan
Schedule J	Federal Provision Addendum

53. Counterparts. This Contract may be executed in counterparts, each of which will be deemed an original, but all of which together are deemed to be one and the same agreement and will become effective and binding upon the parties as of the Effective Date at such time as all the signatories hereto have signed a counterpart of this Contract. A signed copy of this Contract delivered by facsimile, e-mail or other means of electronic transmission (to which a signed copy is attached) is deemed to have the same legal effect as delivery of an original signed copy of this Contract.

54. Entire Agreement. These Terms and Conditions, including all Statements of Work and other Schedules and Exhibits (again collectively the “Contract”) constitutes the sole and entire agreement of the parties to this Contract with respect to the subject matter contained herein, and supersedes all prior and contemporaneous understandings and agreements, representations and warranties, both written and oral, with respect to such subject matter. In the event of any inconsistency between the statements made in the Terms and Conditions, the Schedules, Exhibits, and a Statement of Work, the following order of precedence governs: (a) first, these Terms and Conditions and (b) second, Schedule E – Data Security Requirements and (c) third, each Statement of Work; and (d) fourth, the remaining Exhibits and Schedules to this Contract. NO TERMS ON CONTRACTOR’S INVOICES, WEBSITE, BROWSE-WRAP, SHRINK-WRAP, CLICK-WRAP, CLICK-THROUGH OR OTHER NON-NEGOTIATED TERMS AND CONDITIONS PROVIDED WITH ANY OF THE SERVICES, OR DOCUMENTATION HEREUNDER, EVEN IF ATTACHED TO STATE’S DELIVERY OR PURCHASE ORDER, WILL CONSTITUTE A PART OR AMENDMENT OF THIS CONTRACT OR IS BINDING ON THE STATE OR ANY AUTHORIZED USER FOR ANY PURPOSE. ALL SUCH OTHER TERMS AND CONDITIONS HAVE NO FORCE AND EFFECT AND ARE DEEMED REJECTED BY THE STATE AND THE AUTHORIZED USER, EVEN IF ACCESS TO OR USE OF SUCH SERVICE OR DOCUMENTATION REQUIRES AFFIRMATIVE ACCEPTANCE OF SUCH TERMS AND CONDITIONS.





In lieu of the State's Software Contract Terms and Conditions, AWS proposes its AWS Enterprise Agreement:

AWS Enterprise Agreement

This AWS Enterprise Agreement (this “**Agreement**”) is entered into by the AWS Contracting Party that is specified on this cover page or added to this Agreement pursuant to Section 10.14 (collectively, “**AWS**”) and the customer (“**Customer**”) specified on this cover page.

In consideration of the mutual promises contained in this Agreement, AWS and Customer agree to all terms of this Agreement effective as of the last signature date below (the “**Effective Date**”).

<u>AWS Contracting Party:</u>	<u>Customer Name:</u>
<u>By:</u> _____	<u>By:</u> _____
<u>Name:</u> _____	<u>Name:</u> _____
<u>Title:</u> _____	<u>Title:</u> _____
<u>Signature Date:</u> _____	<u>Signature Date:</u> _____
<u>Address:</u>	<u>Address:</u>
<u>Attention:</u>	<u>Attention:</u>
<u>Fax:</u>	





1. AWS Responsibilities.

1.1 General. AWS will permit Customer to access and use the Services in accordance with this Agreement.

1.2 AWS Security. AWS will comply with the Security Standards and will implement reasonable and appropriate measures for the AWS Network designed to help Customer secure Customer Content against accidental or unlawful loss, access, or disclosure. AWS can modify the Security Standards, as long as they will continue to provide at least the same overall level of security as is described in the Security Standards on the Effective Date.

1.3 AWS Information Security Program; Audits of Technical and Organizational Measures. As of the Effective Date, (a) the AWS management system is certified under ISO 27001, ISO 27017, ISO 27018, and ISO 9001 (the "ISO Standards"), (b) Amazon Web Services, Inc. is validated as a Level 1 compliant service provider under the Payment Card Industry Data Security Standard ("PCI DSS"), and (c) AWS engages external auditors to verify its security controls under an AWS System and Organization Controls 1, Type 2 Report, and an AWS System and Organization Controls 2, Type 2 Report (the "SOC Reports" and together with the ISO Standards and PCI DSS, the "Certification Standards"). AWS will maintain an information security program designed to provide at least the same level of protection as evidenced by the then-current certification or verification of controls under the Certification Standards, or, in each case, the successor industry standard certification or report or a reasonable alternative. Upon Customer's request, and provided that the parties have an applicable NDA or other contractual terms governing confidential information, AWS will provide Customer with documentation evidencing certification or verification of controls under the Certification Standards via the AWS Site (e.g., AWS Artifact) or other means and this documentation will be treated as Confidential Information of AWS under the NDA or other contractual terms governing confidential information.

1.4 Data Privacy. AWS will not access or use Customer Content except as necessary to maintain or provide the Services or to comply with law. Customer consents to the storage of Customer Content in, and movement of Customer Content into, the AWS region(s) Customer selects. AWS will not (a) disclose Customer Content to any government or third party, or (b) move Customer Content from the AWS region(s) selected by Customer, except in each case as necessary to comply with law. AWS will give Customer reasonable Notice of any legal requirement referred to in this Section 1.4, to enable Customer to seek a protective order or other appropriate remedy, unless such Notice is prohibited by law. AWS will only use Account Information in accordance with the Privacy Notice, and Customer consents to such usage. The Privacy Notice does not apply to Customer Content.

1.5 Notice of Changes to the Services. AWS can change or discontinue a Service or a material functionality of a Service. However, AWS will provide at least 12 months' prior Notice to Customer before discontinuing a Service (or a material functionality of a Service) that it makes generally available to its customers and that Customer is using. AWS will not be obligated to provide such Notice under this Section 1.5 if the discontinuation is necessary to (a) address an emergency, or risk of harm to the Services or AWS, (b) respond to claims, litigation, or loss of license rights related to third party intellectual property rights, or (c) comply with law, but should any of the preceding occur AWS will provide as much prior Notice as is reasonably practicable under the circumstances.

1.6 Notice of Changes to the Service Level Agreements. Service Level Agreements apply to certain Services. AWS will provide at least 90 days' prior Notice to Customer before materially reducing the benefits offered to Customer under any Service Level Agreement(s). Subject to the obligations in this Section 1.6, AWS can change, discontinue, or add Service Level Agreements.

2. Customer Responsibilities.

2.1 AWS Enterprise Accounts. This Agreement covers all AWS Enterprise Accounts and no other AWS accounts. Customer will not sell, disclose, transfer or sublicense its AWS log-in credentials or private key(s) for its AWS Enterprise Accounts to any entity or person, except that Customer is permitted to disclose such credentials and its private key(s) to its End Users who are agents, subcontractors, or Affiliates performing work on behalf of Customer. Except to the extent caused by AWS's breach of this Agreement, as between the parties, Customer is responsible for all activities that occur under its AWS Enterprise Accounts.





2.2 Customer Affiliates. Any Affiliate of Customer is permitted to use the Services (a) under this Agreement as an End User if it meets the definition of End User, (b) under its own AWS Enterprise Account(s) under the same terms as this Agreement by executing a separate short-form agreement with AWS (an “Affiliate Addendum”), or (c) by joining such Affiliate’s AWS Enterprise Account(s) in an Organization for which Customer’s AWS Enterprise Account is the Management Account for purposes of AWS Organizations (or any successor Service offered by AWS). If an Affiliate of Customer joins its AWS Enterprise Account(s) as described in Section 2.2(c) then (i) each such Affiliate (a “Covered Affiliate”) will be deemed to have entered into a separate agreement with AWS under the same terms as this Agreement (other than Sections 2.2(b), 2.2(c), and 7.1(c)), and (ii) Customer represents and warrants that it has the full power and authority to legally bind each Covered Affiliate to the terms of such separate agreement. If any Covered Affiliate ceases to be an Affiliate of Customer, such separate agreement will terminate and any continued use of such Covered Affiliate’s AWS accounts will be governed by the AWS Customer Agreement.

2.3 Customer’s Security and Redundancy. Customer is responsible for properly configuring and using the Services in a manner that provides security and redundancy of its AWS Enterprise Accounts and Customer Content, including the use of appropriate access controls to prevent unauthorized access to its AWS Enterprise Accounts and Customer Content, encryption technology to prevent unauthorized access to Customer Content, and an appropriate level of backup to prevent loss of Customer Content.

2.4 Customer Content. Customer is responsible for Customer Content and agrees that Customer Content will not violate any of the Policies. Customer is responsible for its End Users’ use of Customer Content and the Services, and for their compliance with Customer’s obligations under this Agreement.

3. Fees and Payment.

3.1 Service Fees. Unless otherwise stated on the AWS Site, AWS will invoice Customer at the end of each month for all applicable fees and charges accrued for use of the Services each month. Except for any Disputed Amounts, Customer will pay AWS all invoiced amounts within 30 days of the date of the invoice without offset or withholding. For any Disputed Amounts, Customer will provide Notice to AWS, including the basis for the dispute and any available supporting documentation, and the parties will meet (including by teleconference) within 30 days of the date of the Notice to address the dispute. This 30-day period can be extended if mutually agreed by the parties. AWS can increase or add new fees and charges for any existing Service with at least 60 days’ prior Notice. Fees and charges for new features of an existing Service will be effective when AWS posts updated fees and charges on the AWS Site, unless expressly stated otherwise in a Notice. AWS can charge Customer interest at the rate of 1.5% per month (or the highest rate permitted by law, whichever is less) on all late payments.

3.2 Taxes. All fees payable by Customer are exclusive of Indirect Taxes, except where applicable law requires otherwise. AWS can charge, and Customer will pay, applicable Indirect Taxes that AWS is legally obligated or authorized to collect from Customer. Customer will provide such information to AWS as is reasonably required to determine whether AWS is obligated to collect Indirect Taxes from Customer. AWS will not collect, and Customer will not pay, any Indirect Tax for which Customer furnishes AWS a properly completed exemption certificate or a direct payment permit certificate for which AWS can claim an available exemption from such Indirect Tax. All payments made by Customer to AWS under this Agreement will be made free and clear of any deduction or withholding, as required by law. If any such deduction or withholding (including cross-border withholding taxes) is required on any payment, Customer will pay such additional amounts as are necessary so that the net amount received by AWS is equal to the amount then due and payable under this Agreement. AWS will provide Customer with such tax forms as are reasonably requested in order to reduce or eliminate the amount of any withholding or deduction for taxes in respect of payments made under this Agreement.

4. Temporary Limitation of Access and Use Rights. If AWS reasonably determines that Customer’s or an End User’s use of the Services poses a security or liability risk, or a risk of harm, to the Services, AWS, its Affiliates, or any third party, AWS can temporarily limit Customer’s or any End User’s right to access or use the Services with as much Notice to Customer as is reasonably practicable under the circumstances. AWS will only limit Customer’s





right to access or use the instances, data, or portions of the Services that caused the risk, and will restore Customer's access and use rights promptly after the issue giving rise to the limitation has been resolved.

5. Term; Termination.

5.1 Term. The term of this Agreement will commence on the Effective Date and will remain in effect until terminated pursuant to Section 5.2. Any Notice of termination of this Agreement will include a Termination Date.

5.2 Termination.

(a) Termination for Convenience. Customer can terminate this Agreement for any reason, at any time, by providing Notice to AWS. AWS can terminate this Agreement for any reason by providing Customer at least two years' Notice.

(b) Termination for Cause. Either Customer or AWS can terminate this Agreement for cause if the other is in material breach of this Agreement and the material breach remains uncured for a period of 30 days from receipt of Notice by the breaching party.

5.3 Effect of Termination.

(a) Generally. Upon the Termination Date (i) except as provided in Sections 5.3(a)(iv) and 5.3(b), all of Customer's rights under this Agreement immediately terminate, (ii) Customer remains responsible for all fees and charges Customer has incurred up to and including the Termination Date, (iii) Customer will immediately return or, if instructed by AWS, destroy all AWS Content in Customer's possession (except for AWS Content that is publicly available on the AWS Site), and (iv) Sections 2, 3, 4, 5.3, 6.1, 6.3, 6.4, 7, 8.3, 9, and 11 will continue to apply in accordance with their terms.

(b) Post-Termination Retrieval of Customer Content. During the 90 days following the Termination Date, AWS will not take action as a result of the termination to remove Customer Content from any open AWS Enterprise Account. In addition, during such period, AWS will allow Customer to retrieve Customer Content from the Services, unless (i) prohibited by law, or (ii) Customer has not paid all amounts due under this Agreement, other than Disputed Amounts. The terms of this Agreement will apply to any use of the Services during this 90-day period and Customer will pay the applicable fees in accordance with Section 3. Customer will close all AWS Enterprise Accounts within this 90-day period. If Customer does not do so, any use of the Services after this 90-day period will be governed by the AWS Customer Agreement.

6. Proprietary Rights.

6.1 Customer Content. As between Customer and AWS, Customer or its licensors own all right, title, and interest in and to Customer Content. Except as provided in this Agreement, AWS does not obtain any rights under this Agreement from Customer or its licensors to Customer Content.

6.2 Intellectual Property License. The Intellectual Property License applies to the use of AWS Content and the Services.

6.3 Restrictions. Customer and its End Users will not use AWS Content or the Services in any manner or for any purpose other than as permitted by this Agreement. Neither Customer nor its End Users will, or will attempt to, (a) reverse engineer, disassemble, or decompile AWS Content or the Services or apply any other process or procedure to derive the source code of any software included in AWS Content or the Services, (b) access or use AWS Content or the Services in a way intended to avoid incurring fees or exceeding usage limits or quotas, except in connection with good faith cost and resource optimization, or (c) resell or sublicense AWS Content or the Services. Customer's use of the AWS Marks will comply with the Trademark Use Guidelines.

6.4 Suggestions. Customer is not required to provide Suggestions to AWS or its Affiliates. If Customer elects to provide any Suggestions to AWS or its Affiliates, AWS and its Affiliates can use the Suggestions without restriction.





7. Third Party Claims.

7.1 Policies and Harm to Third Parties. Customer represents and warrants that (i) Customer's and its End Users' access and use of the Services and AWS Content will not violate the Policies, and (ii) Customer's access and use of the Services and AWS Content will not cause harm to any third party, including End Users.

7.2 Intellectual Property.

(a) AWS will defend Customer and its respective employees, officers, and directors against any third party claim alleging that any portion of the Services infringes or misappropriates that third party's intellectual property rights, and will pay the amount of any adverse final judgment or settlement.

(b) Customer represent and warrant that Customer Content will not infringe or misappropriate any third party's intellectual property rights.

(c) Neither AWS nor Customer will have obligations or liability under this Section 7.2 for infringement by any combination of any portion of the Services or Customer Content, as applicable, with any other product, service, software, data, content, or method (where the infringement would not have arisen but for such combination); AWS will not have obligations or liability arising from Customer's or any End User's use of the Services after AWS has notified Customer to discontinue such use. The remedies in this Section 7.2 are the sole and exclusive remedies under this Agreement for any third party claims alleging that any portion of the Services or Customer Content infringes or misappropriates third party intellectual property rights.

(d) For any claim covered by Section 7.2(a), AWS can, at its election, either (i) procure the rights to use the allegedly infringing portion of the Services, (ii) replace the allegedly infringing portion of the Services with a non-infringing alternative, (iii) modify the allegedly infringing portion of the Services to make it non-infringing, or (iv) cease providing the allegedly infringing portion of the Services.

7.1 Process. The obligations under this Section 7 will apply only if the party seeking defense or payment (a) gives the defending party prompt Notice of the claim, (b) permits the defending party to control the defense and settlement of the claim, and (c) reasonably cooperates with the defending party (at the defending party's expense) in the defense and settlement of the claim. The defending party will not agree to any settlement of any such claim that involves any commitment, other than the payment of money, without the written consent of the other party.

8. Warranties and Warranty Disclaimers.

8.1 AWS Warranties. AWS represents and warrants to Customer that the Services will perform substantially in accordance with the Documentation.

8.2 Mutual Warranties. Customer and AWS each represents and warrants to the other that (a) it has full power and authority to enter into, and perform under, this Agreement, (b) the execution and delivery of this Agreement has been duly authorized, (c) it will comply with all applicable laws in the performance of this Agreement (and, in the case of Customer, the use of the Services and AWS Content), and (d) its performance hereunder does not breach any other agreement to which it is bound.

8.3 Warranty Disclaimers. EXCEPT AS EXPRESSLY SET FORTH IN SECTION 8.1 AND SECTION 8.2, AND EXCEPT TO THE EXTENT PROHIBITED BY LAW, AWS, ITS AFFILIATES, AND ITS LICENSORS DO NOT MAKE ANY REPRESENTATIONS OR WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, REGARDING THE SERVICES OR AWS CONTENT, AND DISCLAIM ALL OTHER WARRANTIES, INCLUDING ANY IMPLIED OR EXPRESS WARRANTIES (A) OF MERCHANTABILITY, SATISFACTORY QUALITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, OR QUIET ENJOYMENT, (B) ARISING OUT OF ANY COURSE OF DEALING OR USAGE OF TRADE, (C) THAT THE SERVICES OR AWS CONTENT WILL BE UNINTERRUPTED, ERROR FREE, OR FREE OF HARMFUL COMPONENTS, AND (D) THAT ANY CUSTOMER CONTENT WILL BE SECURE OR NOT LOST OR DAMAGED.





9. Limitations of Liability.

9.1 Liability Disclaimers. EXCEPT FOR OBLIGATIONS UNDER SECTION 7, NEITHER AWS NOR CUSTOMER, NOR ANY OF THEIR AFFILIATES OR LICENSORS, WILL HAVE LIABILITY TO THE OTHER UNDER ANY CAUSE OF ACTION OR THEORY OF LIABILITY, EVEN IF A PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH LIABILITY, FOR (A) INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR EXEMPLARY DAMAGES, (B) THE VALUE OF CUSTOMER CONTENT, (C) LOSS OF PROFITS, REVENUES, CUSTOMERS, OPPORTUNITIES, OR GOODWILL, OR (D) UNAVAILABILITY OF THE SERVICES OR AWS CONTENT (THIS DOES NOT LIMIT ANY SERVICE CREDITS UNDER SERVICE LEVEL AGREEMENTS).

9.2 Damages Cap. EXCEPT FOR OBLIGATIONS UNDER SECTION 7, THE AGGREGATE LIABILITY UNDER THIS AGREEMENT OF EITHER AWS OR CUSTOMER, AND ANY OF THEIR RESPECTIVE AFFILIATES OR LICENSORS, WILL NOT EXCEED THE AMOUNTS PAID BY CUSTOMER TO AWS UNDER THIS AGREEMENT FOR THE SERVICES THAT GAVE RISE TO THE LIABILITY DURING THE 12 MONTHS BEFORE THE LIABILITY AROSE; EXCEPT THAT NOTHING IN THIS SECTION 9 WILL LIMIT CUSTOMER'S OBLIGATION TO PAY AWS FOR CUSTOMER'S USE OF THE SERVICES PURSUANT TO SECTION 3, OR ANY OTHER PAYMENT OBLIGATIONS UNDER THIS AGREEMENT.

10. Miscellaneous.

10.1 Assignment. AWS or Customer can assign or transfer this Agreement in full, or in part in relation to specific AWS Enterprise Accounts, in each case, without the approval of the non-assigning party (a) due to a merger, acquisition, or sale of all or substantially all of its assets, or (b) to any Affiliate. Any other assignment or transfer of this Agreement requires approval of the non-assigning party. Effective upon such assignment or transfer, and subject to the assignee/transferee's approval, the assignee/transferee is deemed substituted for the assignor/transferor as a party to this Agreement, and the assignor/transferor is fully released from all of its obligations and duties under this Agreement. For any assignment or transfer permitted by this Section 10.1, the parties will execute such further documents as may be necessary to effect such assignment or transfer. Subject to the foregoing, this Agreement will be binding upon, and inure to the benefit of, the parties and their respective permitted successors and assigns.

10.2 Counterparts; Facsimile. This Agreement can be executed by electronic signature or facsimile, and in counterparts, each of which will be deemed an original, but all of which together will constitute one and the same agreement.

10.3 Entire Agreement. This Agreement incorporates the Policies and the AWS Contracting Party Site and is the entire agreement between Customer and AWS regarding the subject matter of this Agreement. This Agreement supersedes all prior or contemporaneous representations, understandings, agreements, or communications between Customer and AWS, whether written or oral, regarding the subject matter of this Agreement (and for all AWS Enterprise Accounts this Agreement supersedes any acceptance of the AWS Customer Agreement by Customer). If any of Customer's AWS accounts do not meet the definition of an "AWS Enterprise Account," then those AWS accounts will be governed by the AWS Customer Agreement. None of the parties will be bound by any term that is not part of this Agreement, including terms in a request for bids or introduced through invoices or responses to invoices. If the terms of this document are inconsistent with the terms contained in any Policy or the AWS Contracting Party Site, the terms contained in this document will control, except that (a) the Service Terms will control over this document, and (b) the AWS Contracting Party Site will control over this document for determining the AWS Contracting Party associated with each AWS Enterprise Account. This document will not be modified unless in writing and signed by the parties to this Agreement.

10.4 Force Majeure. Except for payment obligations, neither AWS nor Customer will be liable for any delay or failure to perform any obligation under this Agreement where the delay or failure results from any cause beyond its reasonable control, including acts of God, labor disputes or other industrial disturbances, electrical or power outages, utilities or telecommunications failures, earthquakes, storms or other elements of nature, blockages, embargoes, riots, acts or orders of government, acts of terrorism, or war.





10.5 Governing Law; Venue. The laws of the State of Michigan, without reference to conflict of law rules, govern this Agreement and any dispute of any sort that might arise between the parties. Any dispute relating in any way to this Agreement will only be adjudicated in a state or federal court located in the State of Michigan. Each party consents to exclusive jurisdiction and venue in these courts. Notwithstanding the foregoing, any party can seek injunctive relief in any state, federal, or national court of competent jurisdiction for any actual or alleged infringement of such party's, its Affiliates' or any third party's intellectual property rights or other proprietary rights. The United Nations Convention for the International Sale of Goods does not apply to this Agreement.

10.6 Trade Compliance. In connection with this Agreement, each party will comply with all applicable import, re-import, sanctions, anti-boycott, export, and re-export control laws and regulations, such as the Export Administration Regulations, the International Traffic in Arms Regulations, and economic sanctions programs implemented by the Office of Foreign Assets Control.

10.7 Independent Contractors. AWS and Customer are independent contractors, and this Agreement will not be construed to create a partnership, joint venture, agency, or employment relationship. Neither AWS nor Customer, nor any of their respective Affiliates, is an agent of the other for any purpose or has the authority to bind the other.

10.8 Language. All communications and Notices made or given pursuant to this Agreement will be in the English language. If AWS provides a translation of the English language version of this Agreement, the English language version of the Agreement will control if there is any conflict.

10.9 Nondisclosure; Publicity. If the parties have an NDA, then the NDA is incorporated by reference into this Agreement, except that the security provisions in Section 1 of this Agreement, not the NDA, apply to Customer Content. Neither AWS nor Customer will issue any press release or make any other public communication about this Agreement or Customer's use of the Services without the prior written consent of the other party. AWS and Customer agree that the contents of this Agreement are confidential and not publicly known and will not be disclosed by them or their respective Affiliates. Notwithstanding the terms of the NDA, Customer or AWS may disclose the terms of this Agreement to Customer's Affiliates that have requested an Affiliate Addendum or Customer's Covered Affiliates.

10.10 Notice.

(a) General. Except as otherwise set forth in Section 10.10(b), to give Notice under this Agreement, the notifying party will contact the other party by personal delivery, overnight courier or registered or certified mail. Notices to Customer will be addressed to the address listed on the cover page of this Agreement and Notices to AWS will be addressed to the address of the relevant AWS Contracting Parties listed on the AWS Contracting Party Site, or such other address a party subsequently provides in writing to the other party. Notices provided by personal delivery will be effective immediately. Notices provided by overnight courier will be effective one business day after they are sent. Notices provided by registered or certified mail will be effective three business days after they are sent.

(b) Electronic Notice. AWS can provide Notice to Customer (i) under Sections 1.5, 1.6, or 3.1 by (A) sending a message to the email address then associated with at least one of Customer's AWS Enterprise Accounts, or (B) posting a notice on the AWS Site, and (ii) under Section 4 or Attachment A by sending a message to the email address then associated with Customer's applicable AWS Enterprise Account. Any Notices provided by posting on the AWS Site will be effective upon posting, and Notices provided by email will be effective when AWS sends the email communication.

10.11 No Third Party Beneficiaries. Except as set forth in Section 7, this Agreement does not create any third party beneficiary rights in any individual or entity that is not a party to this Agreement.

10.12 No Waivers. The failure by a party to enforce any provision of this Agreement will not constitute a present or future waiver of such provision nor limit such party's right to enforce such provision at a later time. All waivers by a party will be provided in a Notice to be effective.





10.13 Severability. If any portion of this Agreement is held to be invalid or unenforceable, then (a) the remaining portions of this Agreement will remain in full force and effect and (b) a term will be implied that gives effect to the intent of the portion of this Agreement that was held invalid or unenforceable. If it is not possible to imply that term, the invalid or unenforceable portion will be severed from this Agreement and the rest of the Agreement will remain in full force and effect.

10.14 Account Servicing; Addition of AWS Contracting Parties. The AWS Contracting Party for each AWS Enterprise Account is solely responsible for providing the Services and for all of AWS's obligations under this Agreement for each such AWS Enterprise Account. If the geographic location associated with an AWS Enterprise Account is set or changed to a location that corresponds to an entity on the AWS Contracting Party Site that is not yet a party to this Agreement, then unless AWS notifies Customer that such entity does not consent to the terms of this Agreement, such entity will be added to this Agreement as an AWS Contracting Party as of the date of the setting or change, without any further action required by the parties.

11. Definitions. As used in this Agreement, the terms below have the following definitions. Capitalized terms not defined below will have the meaning provided in the Service Terms.

"Acceptable Use Policy" means the then-current policy located at <https://aws.amazon.com/aup> (and any successor locations designated by AWS).

"Account Information" means information about Customer that Customer provides to AWS in the creation or administration of an AWS Enterprise Account. For example, Account Information includes names, usernames, phone numbers, email addresses, and billing information associated with an AWS Enterprise Account.

"Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with AWS or Customer, as applicable.

"AWS Content" means APIs, WSDLs, sample code, software libraries, command line tools, proofs of concept, templates, advice, information, programs (including credit programs), and any other Content made available by AWS and its Affiliates related to use of the Services or on the AWS Site and other related technology (including any of the foregoing that are provided by any AWS personnel). AWS Content does not include the Services or Third Party Content.

"AWS Contracting Party" means each AWS entity specified on the cover page of this Agreement, and each entity identified on the AWS Contracting Party Site that is or becomes a party to this Agreement pursuant to Section 10.14 for one or more AWS Enterprise Accounts. The AWS Contracting Party for each AWS Enterprise Account is determined based on the geographic location associated with such AWS Enterprise Account.

"AWS Contracting Party Site" means the then-current website located at <https://aws.amazon.com/legal/aws-contracting-party> (and any successor locations designated by AWS).

"AWS Customer Agreement" means AWS's then-current standard user agreement located at <https://aws.amazon.com/agreement> (and any successor locations designated by AWS).

"AWS Enterprise Account" means any AWS account that (a) is listed on Attachment A, as that list may be updated from time to time as described in Attachment A, (b) is opened by Customer using a Customer-issued email address (with an email domain name that is owned by Customer), (c) includes Customer's full legal name in the "Company Name" field associated with the AWS account, and (d) is associated with a geographic location that corresponds to an AWS Contracting Party.

"AWS Marks" means any trademarks, service marks, service or trade names, logos, and other designations of AWS and its Affiliates that AWS makes available to Customer under this Agreement.

"AWS Network" means the servers, networking equipment, storage media, and host software systems (e.g., virtual firewalls) that are within AWS's control and are used to provide the Services.

"AWS Site" means the then-current website located at <https://aws.amazon.com> (and any successor locations designated by AWS).





“Content” means software (including machine images), data, text, audio, video, or images.

“Customer Content” means Content that Customer or any End User transfers to AWS for processing, storage, or hosting by the Services in connection with an AWS Enterprise Account and any computational results that Customer or any End User derive from the foregoing through its use of the Services. For example, Customer Content includes Content that Customer or any End User stores in Amazon Simple Storage Service. Customer Content does not include Account Information.

“Disputed Amounts” means amounts disputed by Customer in good faith as billing errors.

“Documentation” means the then-current documentation for the Services located at <https://aws.amazon.com/documentation> (and any successor locations designated by AWS).

“End User” means any individual or entity that directly or indirectly through another user (a) accesses or uses Customer Content, or (b) accesses or uses the Services under an AWS Enterprise Account. The term “End User” does not include individuals or entities when they are accessing or using the Services or any Content under their own AWS account, rather than under an AWS Enterprise Account.

“Indirect Taxes” means applicable taxes and duties, including VAT, GST, excise taxes, sales and transactions taxes, and gross receipts tax.

“Intellectual Property License” means the then-current separate license terms that apply to Customer’s access to and use of AWS Content and the Services located at <https://aws.amazon.com/legal/aws-ip-license-terms> (and any successor locations designated by AWS).

“NDA” means the most recent Mutual Nondisclosure Agreement between the parties or their respective Affiliates applicable to the relationship contemplated by this Agreement, if any.

“Notice” means any notice provided in accordance with Section 10.10.

“Policies” means the Acceptable Use Policy, Privacy Notice, and the Service Terms, as they may be updated by AWS from time to time.

“Privacy Notice” means the then-current privacy notice located at <https://aws.amazon.com/privacy> (and any successor locations designated by AWS).

“Security Standards” means the security standards attached to this Agreement as Attachment B.

“Service” means each of the services made available by AWS or its Affiliates for which Customer registers via the AWS Site (or by such other means made available by AWS), including those web services described in the Service Terms. Services do not include Third Party Content.

“Service Level Agreement” means the then-current service level agreement that AWS offers for a particular Service and posts on the AWS Site at <https://aws.amazon.com/legal/service-level-agreements> (and any successor locations designated by AWS).

“Service Terms” means the then-current terms for particular Services located at <https://aws.amazon.com/serviceterms> (and any successor locations designated by AWS).

“Suggestions” means all suggested improvements to the Services or AWS Content that Customer provides to AWS.

“Term” means the term of this Agreement described in Section 5.1.

“Termination Date” means the effective date of termination provided in a Notice in accordance with Section 5.

“Third Party Content” means Content of a third party made available on the AWS Marketplace or on developer forums, sample code repositories, public data repositories, community-focused areas of the AWS Site, or any other part of the AWS Site that allows third parties to make available software, products, or data.

“Trademark Use Guidelines” means the then-current terms located at <http://aws.amazon.com/trademark-guidelines/> (and any successor locations designated by AWS).





Attachment A

AWS Account ID(s):

The list above includes any Management Account or Member Accounts joined to such AWS accounts via AWS Organizations, as described in the Service Terms.

Customer may add AWS accounts to the list above or remove AWS accounts from the list above by notifying AWS via email to enterprise-accounts@amazon.com, that includes (1) Customer’s full name, (2) the Enterprise Agreement number (which begins with “CC” and is found on the upper right corner of each page of this Agreement), and (3) the AWS Account ID of each added or removed AWS account. Upon Notice, AWS may replace the notification process or make available another means of adding and removing AWS accounts to the list above.





Attachment B
Security Standards

Capitalized terms not otherwise defined in this document have the meanings assigned to them in the applicable AWS Enterprise Agreement.

1. Information Security Program. AWS will maintain an information security program designed to (a) enable Customer to secure Customer Content against accidental or unlawful loss, access, or disclosure, (b) identify reasonably foreseeable risks to the security and availability of the AWS Network, and (c) minimize physical and logical security risks to the AWS Network, including through regular risk assessment and testing. AWS will designate one or more employees to coordinate and be accountable for the information security program. AWS's information security program will include the following measures:

1.1 Logical Security.

1.1.1 Access Controls. AWS will make the AWS Network accessible only to authorized personnel, and only as necessary to maintain and provide the Services. AWS will maintain access controls and policies to manage authorizations for access to the AWS Network from each network connection and user, including through the use of firewalls or functionally equivalent technology and authentication controls. AWS will maintain access controls designed to (i) restrict unauthorized access to data, and (ii) segregate each customer's data from other customers' data.

1.1.2 Restricted User Access. AWS will (i) provision and restrict user access to the AWS Network in accordance with least privilege principles based on personnel job functions, (ii) require review and approval prior to provisioning access to the AWS Network above least privileged principles, including administrator accounts, (iii) require at least quarterly review of AWS Network access privileges and, where necessary, revoke AWS Network access privileges in a timely manner, and (iv) require two-factor authentication for access to the AWS Network from remote locations.

1.1.3 Vulnerability Assessments. AWS will perform regular external vulnerability assessments and penetration testing of the AWS Network, and will investigate identified issues and track them to resolution in a timely manner.

1.1.4 Application Security. Before publicly launching new Services or significant new features of Services, AWS will perform application security reviews designed to identify, mitigate, and remediate security risks.

1.1.5 Change Management. AWS will maintain controls designed to log, authorize, test, approve, and document changes to existing AWS Network resources, and will document change details within its change management or deployment tools. AWS will test changes according to its change management standards prior to migration to production. AWS will maintain processes designed to detect unauthorized changes to the AWS Network and track identified issues to a resolution.

1.1.6 Data Integrity. AWS will maintain controls designed to provide data integrity during transmission, storage, and processing within the AWS Network. AWS will provide Customer the ability to delete Customer Content from the AWS Network.

1.1.7 Business Continuity and Disaster Recovery. AWS will maintain a formal risk management program designed to support the continuity of its critical business functions ("Business Continuity Program"). The Business Continuity Program includes processes and procedures for identification of, response to, and recovery from, events that could prevent or materially impair AWS's provision of the Services (a "BCP Event"). The Business Continuity Program includes a three-phased approach that AWS will follow to manage BCP Events:

(i) Activation and Notification Phase. As AWS identifies issues likely to result in a BCP Event, AWS will escalate, validate and investigate those issues. During this phase, AWS will analyze the root cause of the BCP Event.





(ii) **Recovery Phase.** AWS assigns responsibility to the appropriate teams to take steps to restore normal system functionality or stabilize the affected Services.

(iii) **Reconstitution Phase.** AWS leadership reviews actions taken and confirms that the recovery effort is complete and the affected portions of the Services and AWS Network have been restored. Following such confirmation, AWS conducts a post-mortem analysis of the BCP Event.

1.1.8 Incident Management. AWS will maintain corrective action plans and incident response plans to respond to potential security threats to the AWS Network. AWS incident response plans will have defined processes to detect, mitigate, investigate, and report security incidents. The AWS incident response plans include incident verification, attack analysis, containment, data collection, and problem remediation. AWS will maintain an AWS Security Bulletin (as of the Effective Date, <http://aws.amazon.com/security/security-bulletins/>) which publishes and communicates security related information that may affect the Services and provides guidance to mitigate the risks identified.

1.1.9 Storage Media Decommissioning. AWS will maintain a media decommissioning process that is conducted prior to final disposal of storage media used to store Customer Content. Prior to final disposal, storage media that was used to store Customer Content will be degaussed, erased, purged, physically destroyed, or otherwise sanitized in accordance with industry standard practices designed to ensure that the Customer Content cannot be retrieved from the applicable type of storage media.

1.2 Physical Security.

1.2.1 Access Controls. AWS will (i) implement and maintain physical safeguards designed to prevent unauthorized physical access, damage, or interference to the AWS Network, (ii) use appropriate control devices to restrict physical access to the AWS Network to only authorized personnel who have a legitimate business need for such access, (iii) monitor physical access to the AWS Network using intrusion detection systems designed to monitor, detect, and alert appropriate personnel of security incidents, (iv) log and regularly audit physical access to the AWS Network, and (v) perform periodic reviews to validate adherence with these standards.

1.2.2 Availability. AWS will (i) implement redundant systems for the AWS Network designed to minimize the effect of a malfunction on the AWS Network, (ii) design the AWS Network to anticipate and tolerate hardware failures, and (iii) implement automated processes designed to move customer data traffic away from the affected area in the case of hardware failure.

1.3 AWS Employees.

1.3.1 Employee Security Training. AWS will implement and maintain employee security training programs regarding AWS information security requirements. The security awareness training programs will be reviewed and updated at least annually.

1.3.2 Background Checks. Where permitted by law, and to the extent available from applicable governmental authorities, AWS will require that each employee undergo a background investigation that is reasonable and appropriate for that employee's position and level of access to the AWS Network.

2. Continued Evaluation. AWS will conduct periodic reviews of the information security program for the AWS Network. AWS will update or alter its information security program as necessary to respond to new security risks and to take advantage of new technologies.

3. Security Event Notification. If AWS knows of a breach of the security measures described in these Security Standards that resulted in either (a) any unlawful access to any Customer Content stored on AWS's equipment or in AWS's facilities, or (b) any unauthorized access to such equipment or facilities, where in either case such access results in loss, disclosure, or alteration of Customer Content (each a "**Security Event**"), AWS will promptly (i) notify Customer of the Security Event, and (ii) take reasonable steps to mitigate the effects and to minimize any damage resulting from the Security Event.





SCHEDULE A – STATEMENT OF WORK

BIDDER INSTRUCTIONS:

This schedule identifies the anticipated requirements of any Contract resulting from this Solicitation. The term “Contractor” in this document refers to a bidder responding to this Solicitation.

Bidder must respond to each requirement or question marked “BIDDER RESPONSE” below and explain how it will fulfill each requirement. Attach any supplemental information and appropriately reference within your response.

1. DEFINITIONS

The following terms have the meanings set forth below. All initial capitalized terms that are not defined in this Schedule shall have the respective meanings given to them in Section 1 of the Contract Terms and Conditions.

Term	Definition
Artificial Intelligence (AI)	Refers to systems that display intelligent behavior by analyzing their environment and taking actions – with some degree of autonomy – to achieve specific goals.
Cloud Services:	The capability must be a first-party offering. The capability is offered directly by the provider being evaluated. That means that it is marketed, sold, serviced, and supported by that provider, and is within the audit/compliance scope for that provider’s offering. The capability must be cloud based. They are delivered to the State as a whole; they are not one-offs. They are software-defined; they must be capable of delivery of services without on-site hosted hardware appliances or virtual appliances that the State must configure. The capability will be fully in production and available to all customers. The capability will be generally available and cannot be restricted to certain customers. Managed services, delivered by provider or third-party personnel, are not Cloud Services. See SCHEDULE A – TABLE 1 - Business Specification Worksheet for more details, including more specific requirements for integration.
Direct Cloud Service Provider	The provider of network services, infrastructure, and/or business applications in the cloud. Specifically having the ability to provide all





	three service models of IaaS, PaaS, and SaaS services. While using a Public Cloud deployment model. The Provider must use a cloud computing model, which is a model for enabling ubiquitous, convenient, on-demand network access to a shared pool of configurable computing resources (e.g., networks, servers, storage, applications, and services) that can be rapidly provisioned and released with minimal management effort or service provider interaction. This cloud model is composed of five essential characteristics, three service models, and one deployment model. Essential Characteristics: On-demand self-service. The State can unilaterally provision and deprovision computing capabilities, such as server time and network storage, as needed automatically without requiring human interaction from any cloud service provider. Broad network access. Capabilities are available over the network and accessed through standard mechanisms that promote use by heterogeneous thin or thick client platforms (e.g., mobile phones, tablets, laptops, and workstations). Resource pooling. The provider’s computing resources are pooled to serve multiple consumers using a multi-tenant model, with different physical and virtual resources dynamically assigned and reassigned according to consumer demand. There is a sense of location independence in that the customer generally has no control or knowledge over the exact location of the provided resources but must be able to specify location at a higher level of abstraction (e.g., country, state, or datacenter). Examples of resources include storage, processing, memory, and network bandwidth. Rapid elasticity. Capabilities can be elastically provisioned and released, in some cases automatically, to scale rapidly outward and inward commensurate with demand. To the consumer, the capabilities available for provisioning often appear to be unlimited and can be appropriated in any quantity at any time. Measured service. Cloud systems automatically control and optimize resource use by leveraging a metering capability at some level of abstraction appropriate to the type of service (e.g., storage, processing, bandwidth, and active user accounts). Resource usage can be monitored, controlled, and reported, providing transparency for both the provider and consumer of the utilized service. Deployment Model: Public cloud. The cloud infrastructure is provisioned for open use by the general public. It may be owned, managed, and operated by a business, academic, or government organization, or some combination of them. It exists on the premises of the cloud provider
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Integrated IaaS / Infrastructure as a Service (IaaS)	The capability provided to the consumer is to provision processing, storage, networks, and other fundamental computing resources where the consumer is able to deploy and run arbitrary software, which can include operating systems and applications. The consumer does not manage or control the underlying cloud infrastructure but has control over operating systems, storage, and deployed applications; and possibly limited control of select networking components (e.g., host firewalls). (See "SCHEDULE A – TABLE 1 - Business Specification Worksheet" for details of what each of these services entails.)
Marketplace	A cloud marketplace is an online storefront where customers can purchase software and services that easily integrate with or are built on the cloud provider's offerings. It also offers cloud-native applications that customers can purchase and manage on the platform. Third Party offerings will require a separate license agreement executed between the State and the Third Party provider.
Integrated PaaS / Platform as a Service	The capability provided to the consumer is to deploy onto the cloud infrastructure consumer-created or acquired applications created using programming languages, libraries, services, and tools supported by the provider. ³ The consumer does not manage or control the underlying cloud infrastructure including network, servers, operating systems, or storage, but has control over the deployed applications and possibly configuration settings for the application-hosting environment. (See "SCHEDULE A – TABLE 1 - Business Specification Worksheet" for details of what each of these services entails.)
Software as a Service (SaaS)	The capability provided to the consumer is to use the provider's applications running on a cloud infrastructure ¹ . The applications are accessible from various client devices through either a thin client interface, such as a web browser (e.g., web-based email), or a program interface. The consumer does not manage or control the underlying cloud infrastructure including network, servers, operating systems, storage, or even individual application capabilities, with the possible exception of limited user-specific application configuration settings. (See "SCHEDULE A – TABLE 1 - Business Specification Worksheet" for details of what each of these services entails.)

2. BACKGROUND

The State of Michigan issued a solicitation for Statewide Integrated IaaS on 11/20/2020 RFP# 171 – 210000000312, and Contracts were established with Amazon Web Services and Google LLC in December of 2022. The State intends to refresh this program as well as expand the scope of the program to include offerings beyond IaaS and as described below. Existing and new Contractors may provide a response to be considered for Contract award under this program. If existing contractors choose not to reply to this solicitation, their Contracts will be limited to infrastructure only.



AWS Response to Michigan DTMB Cloud Services RFP
RFP No. 250000000414

3. PURPOSE

The State is seeking to establish a contract that will allow the State to consume on-demand, scalable computing resource Cloud Services from one or more Direct Cloud Service Providers. In the effort to avoid multiple cloud service hosting contracts with varying terms, the State of Michigan's Department of Technology, Management and Budget (DTMB) desires to setup a program with universal terms for all native cloud service products. This will provide a level playing field to all vendors across the entire State of Michigan IT Public Cloud space.

DTMB hosts and supports most of its computer applications on its own servers. The State is looking for the ability to transition hosting to the cloud when appropriate. DTMB is creating a State Digital Service (SDS) with product ownership of digital, technology and Cloud Services for the State of Michigan. The State Digital Service will be responsible for Cloud Services provided to State agencies. Once contracts have been awarded, the State will select the best Cloud Service Provider through a second-tier process for each instance based on the following criteria:

- Feature
- Integrations
- Development knowledge and ease of use
- Service Level
- Risk Profile
- Cost

While not required, the State, at its sole discretion, may decide to "refresh" this program (in whole or in part) at any point to allow for new vendors, products/services, update pricing, etc. At any point and at its sole discretion, the State may limit the number of vendors.

Term of the Agreement: 5 Base Years with 5, 1-Year Options

4. RESERVED

5. ADA COMPLIANCE

The State is required to comply with the Americans with Disabilities Act of 1990 (ADA) and has adopted standards and procedures regarding accessibility requirements for websites and software applications. All websites, applications, software, and associated content and documentation provided by the Contractor as part of the Solution must comply with the Digital Accessibility Standards.

Bidder must provide a description of conformance with World Wide Web Consortium (W3C) Web Content Accessibility Guidelines (WCAG) 2.1 Level AA specifications by providing a completed PAT for the Solution. If the Solution is comprised of multiple products, a PAT must be provided for each product. In addition to PATs, Bidders may include a verification of conformance certified by an industry-recognized third-party. If the Bidder is including any third-party products in the Solution, Bidder must obtain and provide the third-party PATs as well.

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February 7, 2025

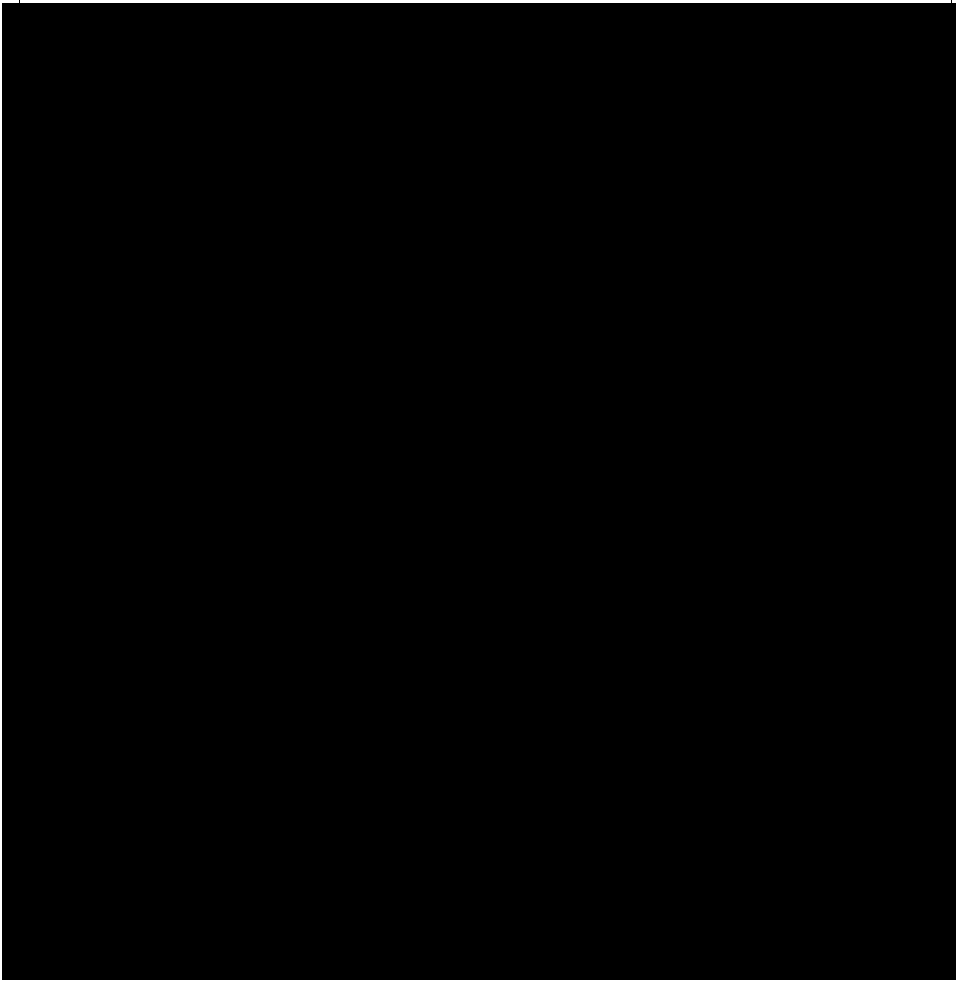
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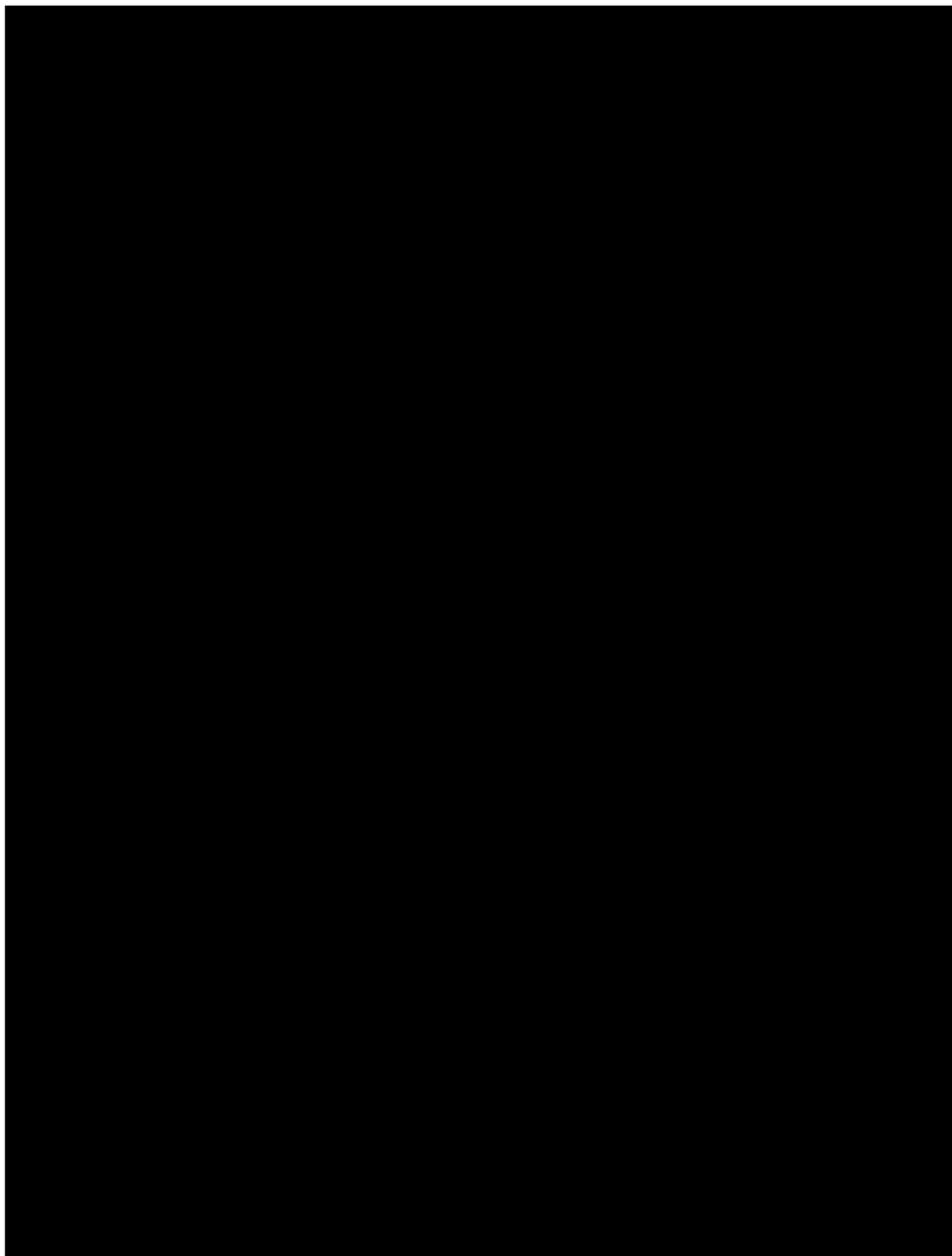
Each PAT must state exactly how the product meets the specifications. All “Not Applicable” (N/A) responses must be fully explained. Contractor must address each standard individually and with specificity; and clarify whether conformance is achieved throughout the entire product (for example – user functionality, administrator functionality, and reporting), or only in limited areas. A description of the evaluation methods used to support WCAG 2.1 Level AA conformance claims, including, if applicable, any third-party testing, must be provided. For each product that does not fully conform to WCAG 2.1 Level AA, Bidder must provide detailed information regarding the plan to achieve conformance, including timelines. Bidder must provide details of how they will meet these requirements.

BIDDER RESPONSE:





AWS Response to Michigan DTMB Cloud Services RFP
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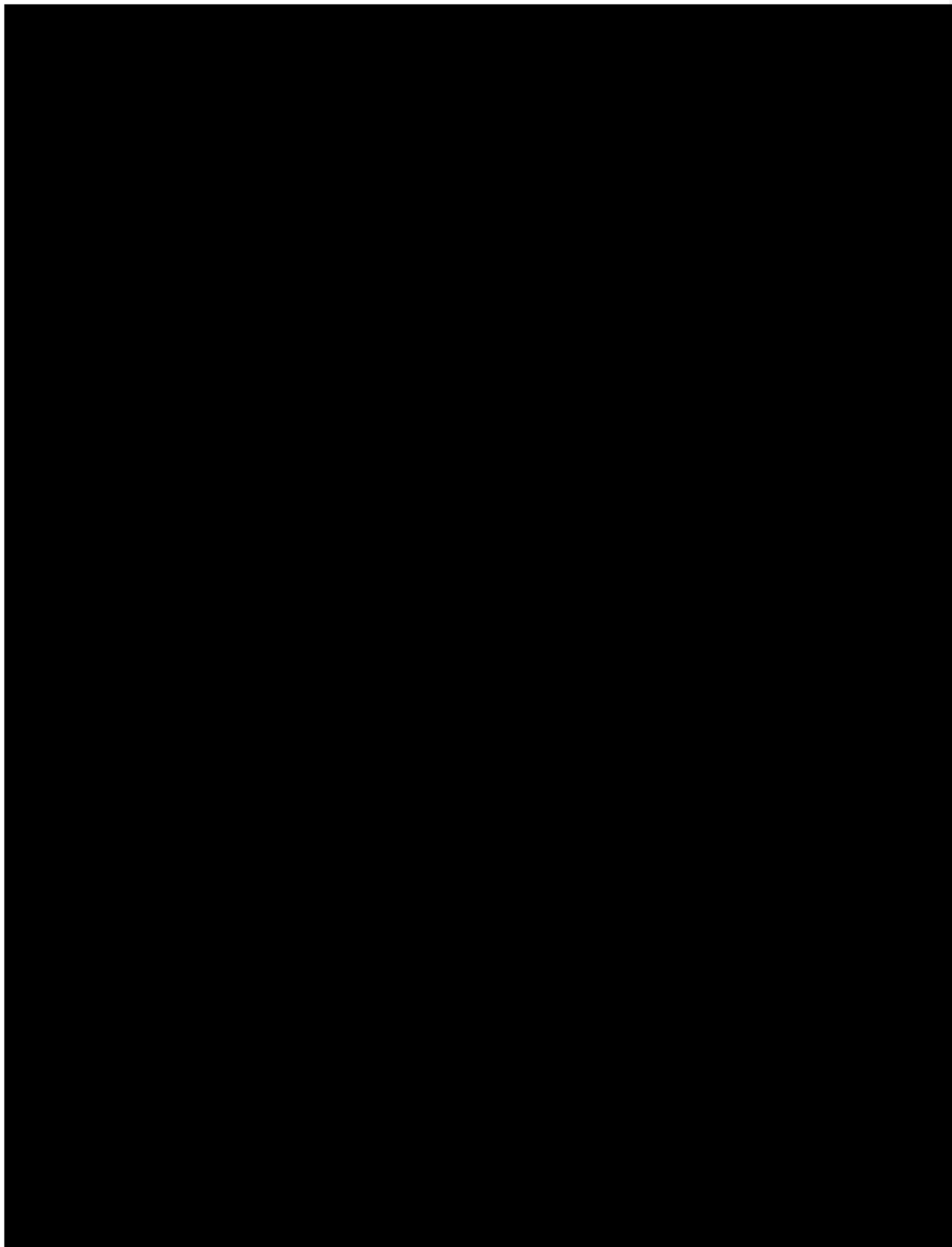
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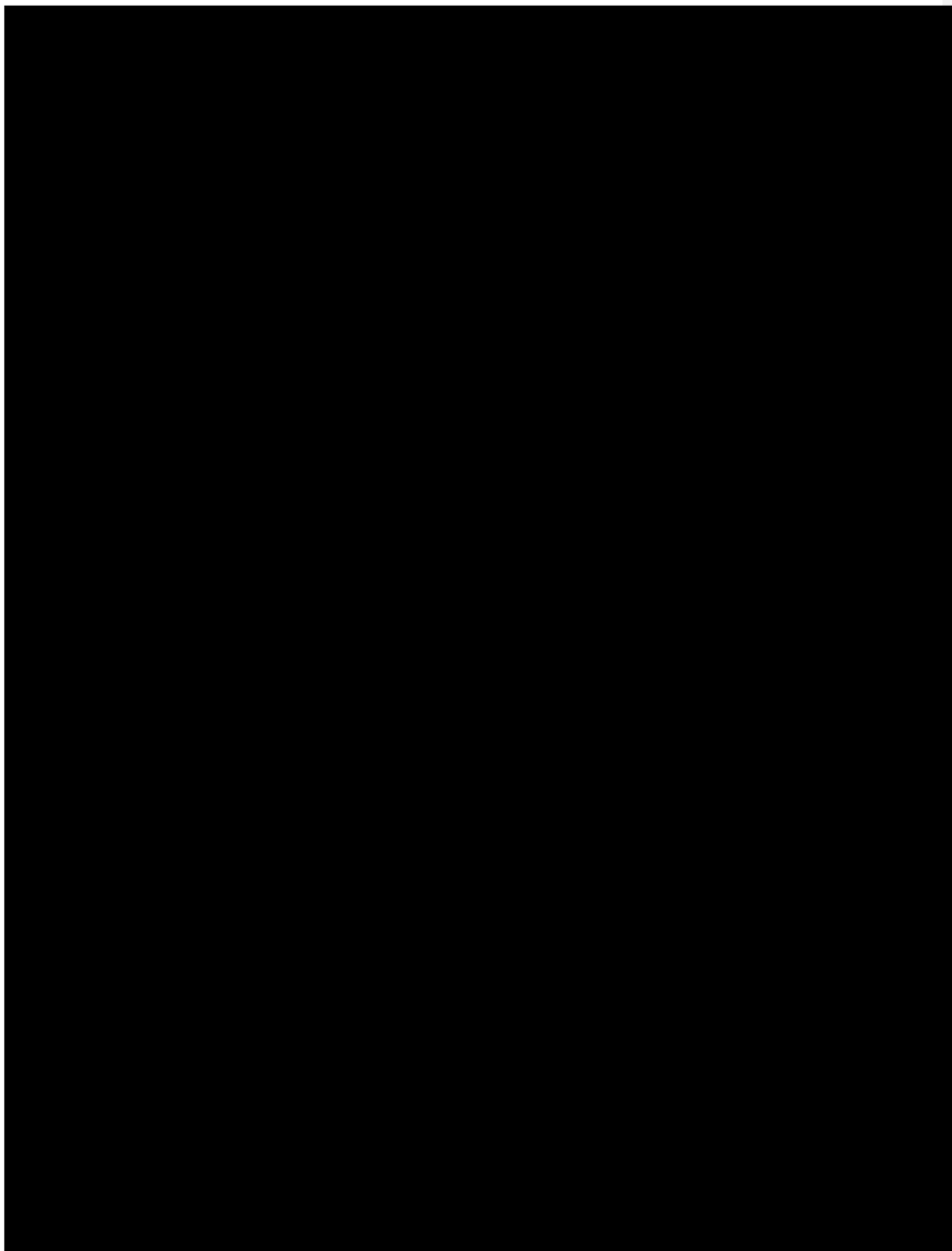
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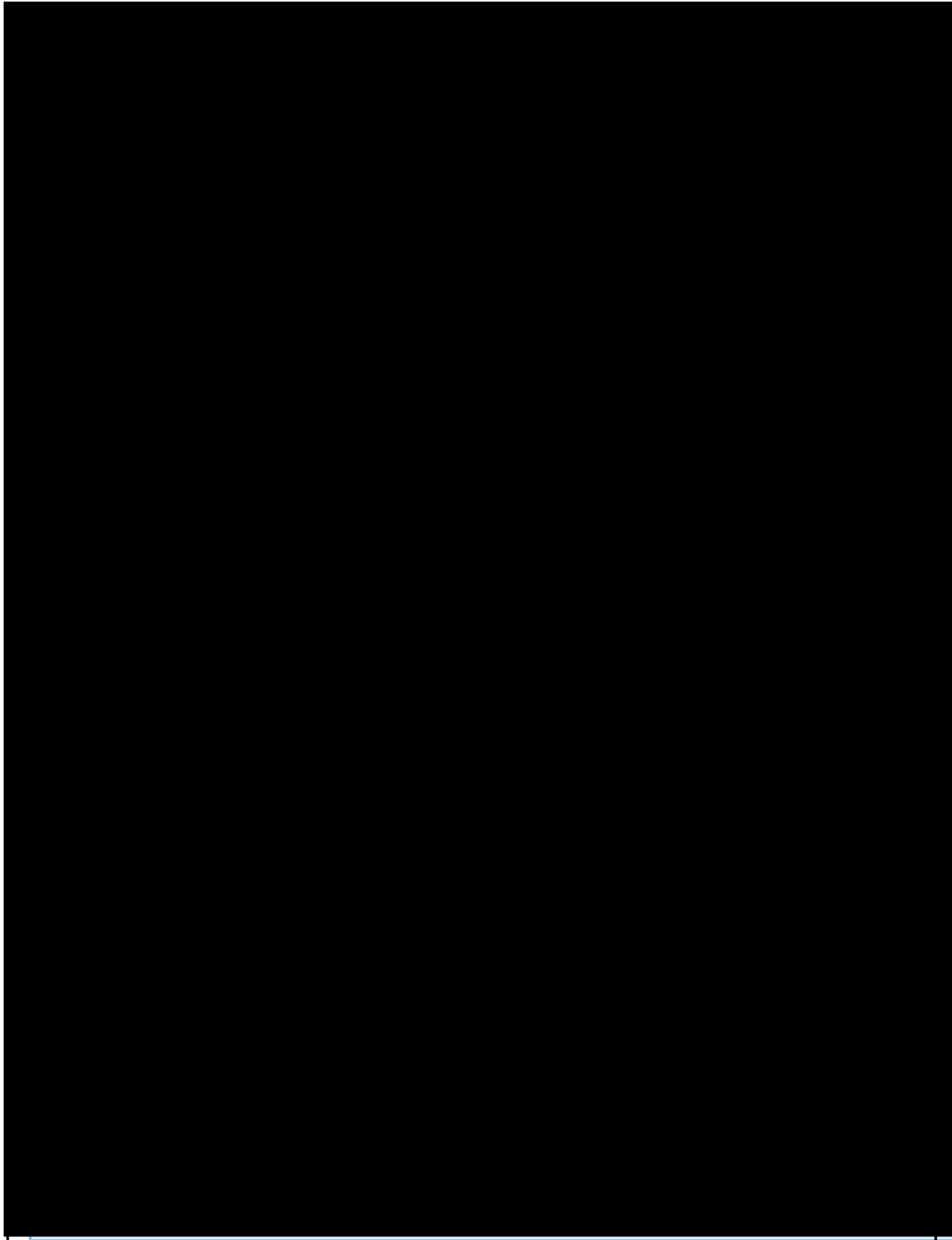
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6. RESERVED

7. ACCESS CONTROL AND AUTHENTICATION

The Contractor’s solution must implement identity federation with the State’s IT Identity and Access Management (IAM) environment as described in the State of Michigan Administrative Guide [\(1340.00.020.08 Enterprise Identity and Access Management Services Standard \(michigan.gov\)\)](#).

To support federation with the SOM MILogin solution, the Contractor’s solution must support SAML, OpenID or OAuth federated identity protocols.

Solutions running within the States internally managed IT environment may be suitable for integration with the State’s Active Directory services as identified in the 1340.00.020.08 standard.

Bidder must explain how they will meet the requirements for Access Control and Authentication.

BIDDER RESPONSE:

We will implement identity federation with the State’s IAM environment as described in the State of Michigan Administrative Guide. AWS supports commonly used open identity standards, including [Security Assertion Markup Language 2.0 \(SAML 2.0\)](#), Open ID Connect (OIDC), and OAuth 2.0. Therefore, the AWS environment is able to integrate with the State’s SOM MILogin solution. AWS offers distinct solutions for federating your employees, contractors, and business partners to AWS accounts and business applications, and for adding federation support to your citizen-facing web and mobile applications.

You can use two AWS services to federate your workforce into AWS accounts and business applications: [AWS Single Sign-On \(AWS SSO\)](#) and [AWS Identity and Access Management \(IAM\)](#). AWS SSO is a great choice to help you define federated access permissions for your users based on their group memberships in a single centralized directory. If you use multiple directories, or want to manage the permissions based on user attributes, consider IAM as your design alternative.

The IAM service can support integration with third-party Security Assertion Markup Language (SAML) solution providers, including that of MICAM, your IBM-based solution. Customers can configure MICAM to pass “session tags,” which are key-value pair attributes that you pass when you assume a role or federated user with the AWS CLI or AWS API. For more information, see the [Integrating Third-Party Solutions with AWS](#) webpage.

Using Federation to Enable SSO to your AWS Accounts

AWS SSO makes it easy to centrally manage federated access to multiple AWS accounts and internal or citizen-facing applications and provide users with single sign-on access to all of their assigned accounts and applications from one place. AWS SSO builds on IAM roles and policies to help you manage access centrally across all AWS accounts within [AWS Organizations](#). The AWS SSO application configuration wizard helps you extend AWS SSO access to any application that supports SAML 2.0. You can use AWS SSO for identities in AWS SSO’s user directory, your existing corporate directory, or external identity provider (IdP).

With AWS SSO, you can assign permissions based on the group membership in your IdP’s directory, and then control the access for your users by simply modifying users and groups in the IdP. AWS SSO also supports the System for Cross-domain Identity Management (SCIM) standard for enabling automatic provisioning of users and groups from your IdP to AWS. AWS SSO makes it easy for you to implement attribute-based access control (ABAC) by defining fine-grained permissions based on user attributes defined in your SAML 2.0 IdP. AWS SSO allows you to select your ABAC attributes from the user information synchronized from the IdP via SCIM or pass multiple attributes, such as cost center,

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title, or locale, as a part of a SAML 2.0 assertion. You can define permissions once for your entire AWS organization, and then grant, revoke, or modify AWS access by simply changing the attributes in your IdP. With AWS SSO, you can also assign permissions based on the group membership in your IdP's directory, and then control the access for your users by simply modifying users and groups in the IdP.

AWS SSO can serve as an IdP to verify and authenticate users to AWS SSO integrated applications and SAML 2.0 compatible cloud-based applications, such as Salesforce, Box, and Microsoft 365, with a directory of your choice. You can also use AWS SSO to authenticate users to the AWS Management Console and AWS CLI. **For your identity source, you can choose Microsoft Active Directory or AWS SSO's user directory.**

Using IAM to Manage Federated Fine-Grained Access to AWS Accounts

IAM enables you to manage access to AWS Cloud services and resources securely. Using IAM, you can create and manage AWS users and groups, and use permissions to allow and deny their access to AWS resources through identify verification. IAM also enables you to add specific conditions, such as the time of day, to control how a user can use AWS. You can identify the user's originating IP address, whether they are using Security Sockets Layer (SSL), or whether they have authenticated with a multi-factor authentication device.

You can enable federated access to AWS accounts using IAM. IAM helps you define permissions once, and then grant, revoke, or modify AWS access by simply changing the attributes in the IdP. You can apply the same federated access policy to multiple AWS accounts by implementing reusable custom managed IAM policies.

To learn more about service quotas and other design considerations in AWS SSO, see the [AWS SSO User Guide](#). For IAM design considerations, see the [IAM User Guide](#).

8. REQUIRED FUNCTIONALITY RELATING TO DATA RETENTION, DISPOSAL, AND RETRIEVAL

The State has legal obligations to retain, dispose, and retrieve State Data along with obligations to manage and secure State Data. To meet these obligations, the Solution must allow the State to:

- 1) retain all data for the entire length of the Contract.
- 2) delete its data or request the deletion of its data, even data that may be stored offline or in backups.
- 3) transfer its data back to the State or to a new vendor or new solution.
- 4) transfer its data to the Archives of Michigan as may be required by a retention and disposal schedule.
- 5) retrieve data, even data that may be stored offline or in backups.

Except as otherwise stated in the Contract, Contractor will not dispose of, delete, or destroy State Data without the prior written approval of the State.

Bidder must review and explain how the data retention, disposal, and retrieval requirements will be met by the solution and describe its data management capabilities (storage limitations, duration, etc.). If the Solution does not allow the State to perform these activities itself, the bidder must explain how it will support the State's compliance with these requirements.

BIDDER RESPONSE:

Retain all data for the entire length of the Contract:

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AWS allows you to determine where your data will be stored, including the geographic region and storage type. Using Amazon S3 and other storage services, you can replicate and backup your data across multiple AWS regions to meet data retention requirements for the length of the contract.

Delete data or request deletion of data, including data stored offline or in backups:

Through Amazon S3 and our other storage services, you have full control over their data stored in AWS services and can delete or request deletion of their data as needed, including any offline backups or replicated data across AWS Regions. AWS provides methods to permanently delete data from its services through APIs, console, and CLI tools. Specific methods depend on the AWS services being used.

Transfer data back to the State or a new vendor/solution:

AWS allows exporting of customer data out of its services through various data transfer methods like AWS Snowball, Direct Connect, VPN, or public internet. You can use AWS backup/snapshot services to create full backups of their data that can be exported out.

Transfer data to the Archives of Michigan per retention schedules:

Similar to transferring data to the Archives of Michigan, AWS provides secure data transfer mechanisms to allow customers to move/copy their data to the State's archival storage solutions as required.

Retrieve data stored offline or in backups:

AWS backup and snapshot services allow customers to retrieve data from their backup storage when needed. For data stored with long-term archival services like Glacier, AWS provides secure methods to retrieve archived data on-demand.

9. END USER AND IT OPERATING ENVIRONMENT

The SOM IT environment includes FedRAMP authorized major cloud providers and on-premises market leading virtualization environments, with supporting platforms that includes enterprise storage, monitoring, and management running in house and in cloud hosting provides.

Contractor must accommodate the latest browser versions (including mobile browsers) as well as some pre-existing browsers. To ensure that users are able to access online services, Contractor must ensure applications and websites display and function accurately in, at minimum, the two most recent major versions of the following browsers, without reliance on special plugins or extensions:

- Google Chrome
- Microsoft Edge
- Firefox
- Safari

Contractor must support the current and future State standard environment at no additional cost to the State.

Bidder must describe the optimal IT environment, supported browsers, and user interfaces.

BIDDER RESPONSE:

The AWS Management Console currently supports the following browsers:

- **Google Chrome**—Latest three major versions
- **Mozilla Firefox**—Latest three major versions

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- **Microsoft Edge**—Latest three major versions
- **Microsoft Internet Explorer**—IE11 only, not previous versions
- **Apple Safari for macOS**—Latest three major versions

While AWS cannot guarantee continued support for all browser versions throughout the life of the contract, we aim to support all the browsers and versions that align with our customers' needs. The State can access up-to-date information regarding browsers on our website:

<https://aws.amazon.com/premiumsupport/knowledge-center/browsers-management-console/>

For users accessing the AWS Management Console on their mobile devices, AWS provides the AWS Console Mobile Application. The AWS Console Mobile Application lets you view and manage a select set of resources to support incident response on-the-go. The AWS Console Mobile Application is available in the iOS App Store, Google Play App Store, and Amazon Appstore.

AWS does not currently support access to the AWS Management Console via mobile browsers. To provide high levels functionality to our mobile users, we offer the [AWS Console Mobile Application](#).

Bidder must describe any State system access requirements that are necessary for the Bidder to perform its obligations on a timely basis, including but not limited to, physical or remote access to State networks, servers, or individual workstations.

BIDDER RESPONSE:

AWS does not have any state system access requirements to perform our obligations under this contract. AWS does not require access to and will not access the State's system. If the State requests certain technical services from AWS, we may require some level of access based on the service requested, such as granting AWS firewall access to the State IdP system for setup of AWS SSO or agent access for the State's servers that are involved in migration or right-sizing efforts.

Per the AWS Shared Responsibility Model, you—the customer—maintain full control of your content and responsibility for configuring access to AWS Cloud services and resources. We provide an advanced set of access, encryption, and logging features to help you do this effectively (e.g., IAM, AWS Organizations, and AWS CloudTrail). We provide APIs for you to configure access control permissions for any of the services you develop or deploy in an AWS environment. We do not access or use your content for any purpose without your consent. We never use your content or derive information from it for marketing or advertising.

AWS provides tools (e.g., AWS Migration Hub) and services (e.g., IAM) that enable you to manage access to AWS services and resources securely. For example, using IAM, you can create and manage AWS users and groups, and use permissions to allow and deny their access to AWS resources.

Bidder must describe if it can comply with the current environment and how it intends to comply with any future changes to the IT environment. And if not, describe what IT and end user operating environment its Solution supports.

BIDDER RESPONSE:

AWS does not require direct access to and will not access customer networks, servers, or workstations to perform its core cloud services. We have no current compliance issues with your current IT environment and can continue to comply with your requirements as we transition to this new contract. Our cloud solutions are designed to integrate with existing on-premises and cloud infrastructure. We have extensive experience working with government agencies and enterprises to migrate workloads and data to the cloud while maintaining compliance with security and regulatory requirements.

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Our cloud platform provides robust security capabilities that meet or exceed industry standards like FedRAMP, NIST 800-53, and IRS 1075. We offer granular identity and access management controls, data encryption at rest and in transit, network security capabilities like firewalls and private connectivity options, and comprehensive logging and monitoring. These allow customers to configure security postures aligned with their policies and compliance needs. As the State's requirements evolve, we can quickly adapt and implement new security controls or compliance certifications.

For the end user experience, we support the latest browser versions across desktop and mobile platforms. Our solutions are built with responsive design principles for optimal usability on different devices. If proprietary software is required, we provide clear documentation on supported operating systems and hardware specifications. We are committed to maintaining backwards compatibility and providing timely updates to ensure users can access services seamlessly as the State upgrades its IT infrastructure over time.

Bidder must describe how it communicates changes to its software and architecture.

BIDDER RESPONSE:

The majority of AWS services and features originate with customer requests and are designed to meet specific needs and requirements that customers share with us. AWS posts release announcements on the [What's New with AWS?](#) webpage. Customers can expect to see a brief overview of all new services, features, architecture, software, and Region expansion announcements as they are released. The State can check the latest announcements from AWS on the webpage and subscribe to the RSS feed to be notified of any changes to AWS Cloud services.

If the State procures AWS Enterprise Support, your designated Technical Account Manager (TAM) can also provide additional details and updates on the services you use. The State can always reach out to the Account Team's Solution Architect (SA) for guidance and input on our portfolio of cloud services.

AWS also hosts an annual conference called AWS re:Invent, a learning conference for the global cloud computing community. AWS Summit in DC is a public sector focused event for the public sector cloud computing community. These events feature keynote announcements, launches, sessions, and more. They are ideal for developers, engineers, system administrators, system architects, and technical decision makers.

Bidder must describe how customers collaborate with your organization in the decision-making process for upgrades, maintenance, and change control.

BIDDER RESPONSE:

"Working backwards" is a fundamental part of the AWS innovation process. We start with a data-driven analysis of the customer and their mission in an effort to understand a customer need and then consider their desired benefits—in addition to what a successful experience or customer outcome might look like. Meeting the customer's need defines and guides our efforts in building a solution.

In our effort to innovate on behalf of our customers, AWS regularly assesses the value of the services, products, and solutions we make available to our global customer base. Based on our internal analysis and inputs received from customers, we develop and manage plans for creating new services, features, or other enhancements. Separate from that process, our team continuously upgrades, maintains, and enhances the AWS infrastructure to ensure that it is operating effectively and cost-efficiently.





When the State makes a feature request, its dedicated Account Manager and Solutions Architect (SA) would determine if the need could be satisfied with any existing service through consultation. If not, this team would champion the feature request with the AWS development teams. As mentioned above, approximately 90% of the items on the AWS roadmap originate with customer requests and are designed to meet specific needs and requirements that customers share with us.

Outside of feature requests, another way to collaborate with AWS in the decision-making process for upgrades, maintenance, and technical change control is through the mechanisms provided by AWS Enterprise Support. AWS Enterprise Support provides you with concierge-like service, where the main focus is to help you achieve your desired outcomes and find success in the cloud.

With AWS Enterprise Support, you reap the following benefits:

- 24x7 technical support from high-quality engineers
- Tools and technology to automatically manage health of your environment
- Consultative architectural guidance delivered in the context of your applications and use-cases
- A designated TAM who coordinates access between the customer and AWS subject matter experts and takes action to inform you of both proactive and preventative programs that can optimize your workloads running on AWS

For AWS customers with AWS Enterprise Support, the TAM will be the primary way to collaborate with AWS in the decision-making process for upgrades, maintenance, and technical change control. A TAM is a designated technical point of contact who helps you onboard to AWS, advocates for your account needs, and provides guidance to help you plan and build solutions on AWS while using our defined best practices. In addition to coordinating with AWS subject matter experts, the TAM can assist with case management, present insights and recommendations based on your AWS spend, identify ways you can optimize your workloads, conduct event management, and perform other actions to proactively keep your AWS environment healthy.

10. SOFTWARE

Software requirements are identified in Schedule A – Table 1 Business Specification Worksheet.

Contractor must provide a Software Bill of Materials (SBOM) containing details and supply chain relationships of various components used in the Solution. The SBOM will contain all open source and third-party components, libraries, and dependencies included with or used in connection with the Solution. This information must be provided to the State in a mutually agreed format on a quarterly basis and for new components at least 30 days prior to being added to the Solution.

Look and Feel Standards

All software items provided by the Contractor must adhere to the State of Michigan Application/Site standards which can be found at <https://www.michigan.gov/standards>.

Mobile Responsiveness

If the software will be used on a mobile device as define in Schedule A – Table 1, Business Specification Worksheet, the Software must utilize responsive design practices to ensure the application is accessible via a mobile device.

SOM IT Environment Access

Contractor must access State environments using one or more of the following methods:

Commented [A10]: AWS is offering IaaS and PaaS directly, and marketplace access to SaaS and other Software. Specific SBOMs and pricing for the software procured through Marketplace should be delivered by the software providers rather than AWS. This includes their ability to meet Michigan look and feel standards, mobile responsiveness requirements, and SOM IT Environment Access capabilities.

AWS has responded to these requirements where relevant to the IaaS and PaaS services we offer, including in Schedule A – Table 1, Business Specifications Worksheet.



- ~~State provided VDI (Virtual Desktop Infrastructure) where compliant.~~
- ~~State provided and managed workstation device.~~
- ~~Contractor owned and managed workstation maintained to all State policies and standards.~~
- ~~Contractor required interface with State Systems which must be maintained in compliance with State policies and standards as set forth in Schedule E – Data Security Requirements.~~
- Contractor will not access State environments or State Systems from locations outside the United States or the jurisdiction territories of the United States.

Bidder must provide a detailed description of the Solution to be provided under the resulting Contract including, but not limited to, a detailed description of the proposed Software (name, type, version, release number, licensing structure [Perpetual vs Subscription], etc.), its functionality including the information architecture and functional design of the system, such as functionality maps, architectural maps, training materials, visual aids including screen shots, actions performed by the system, and any behind the scenes processing, optional add-on modules and plugins. The level of detail provided will be such so that anyone is able to read it and understand how the software works. Additionally, clearly define the Bidder's services and the Solution's ability to be rapidly configured or scaled as the State's business or technical demands change.

BIDDER RESPONSE:

AWS is offering IaaS and PaaS directly, and marketplace access to SaaS and other Software. Specific SBOMs and pricing for the software procured through Marketplace should be delivered by the software providers rather than AWS. This includes their ability to meet Michigan look and feel standards, mobile responsiveness requirements, and SOM IT Environment Access capabilities. AWS has responded to these requirements where relevant to the IaaS and PaaS services we offer, including in Schedule A – Table 1, Business Specifications Worksheet. AWS does not require direct access to and will not access customer networks, servers, or workstations to deliver our core cloud services.

AWS is a direct cloud service provider (CSP) listed as Federal Risk and Authorization Management Program (FedRAMP) Authorized in the General Services Administration (GSA) FedRAMP Marketplace at Moderate and High Impact Levels for our AWS US East-West and AWS GovCloud (US) Regions. Our service model in the FedRAMP Marketplace for both Regions includes infrastructure as a Service (IaaS) and Platform as a Service (PaaS).

AWS US East/West is a multi-tenant public cloud for Federal, State and Local Government customers, as well as commercial customers, designed to meet a wide range of regulatory requirements, to include government compliance and security requirements. AWS leverages the Infrastructure-as-a-Service (IaaS) cloud computing model, which enables convenient, on-demand Internet access to a shared pool of configurable computing resources such as servers, storage, network infrastructure, and various other web services. Customers can rapidly provision or release computing resources on demand.

AWS GovCloud (US) is an isolated AWS Region designed to allow US government agencies and customers supporting the US government to move more sensitive workloads into the cloud. In addition to complying with FedRAMP requirements, the AWS GovCloud (US) framework adheres to U.S. International Traffic in Arms Regulations (ITAR) regulations. Additional information is available at <http://aws.amazon.com/govcloud-us/>.





AWS offers more than 200 cloud services across our global infrastructure. A full list of the services available in US East/West and AWS GovCloud is available here: <https://aws.amazon.com/about-aws/global-infrastructure/regional-product-services/>

Complementing these offerings, **AWS Marketplace** is a curated digital catalog that simplifies the procurement and deployment of third-party software solutions. State customers can quickly find, test, and deploy pre-configured software solutions that have been vetted for security and compliance. The Marketplace includes numerous solutions specifically designed to meet public sector requirements, including those that align with State of Michigan's digital standards. This streamlined procurement process enables agencies to rapidly implement solutions that allow the State to comply with its security and regulatory requirements. AWS Marketplace includes more than 20,000 products across 70 categories from more than 5,000 sellers. A full list of products offered through AWS Marketplace can be found here: <https://aws.amazon.com/marketplace/>

Bidder must identify any unique software requirements to full fill the terms of the Contract.

BIDDER RESPONSE:

AWS is a cloud services provider, and most of its services are accessed through web browsers or APIs. Here are tools that can enhance your AWS experience:

- Web browser: A modern, up-to-date web browser is essential for accessing the AWS Management Console.
- Software Development Kit (SDK): If you're developing applications that interact with AWS services, you will need the appropriate AWS SDK for your programming language (e.g., AWS SDK for Java, Python, .NET, JavaScript, etc.).
- Infrastructure as Code: For infrastructure as code, you will need an Infrastructure-as-Code tool like Terraform, Ansible, or AWS CloudFormation to deploy AWS infrastructure resources.
- Virtual Private Network (VPN) client: If you're setting up a VPN connection to your AWS resources, you will need a compatible VPN client.
- Remote Desktop Protocol (RDP) client: For Windows instances, an RDP client is needed for remote access.
- SSH client: For Linux instances, an SSH client is required for remote access.

Bidder must describe any State system access requirements that are necessary for the Bidder to perform its obligations on a timely basis, including but not limited to, physical or remote access to State networks, servers, or individual workstations.

BIDDER RESPONSE:

AWS does not require direct access to and will not access customer networks, servers, or workstations to perform its core cloud services. However, there are some considerations that can enhance your AWS experience:

Network Connectivity:

- Internet connectivity is essential for accessing AWS services.
- For enhanced security and performance, you might use AWS Direct Connect, which provides dedicated network connections to AWS.

API and CLI Access/Specific Service Requirements:

- API and CLI Access may require configuring firewalls to allow access to AWS IP ranges and service endpoints.
- Some AWS services might have specific network or access requirements. For example:
- Amazon WorkSpaces might need specific ports open for remote desktop access.

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- AWS Outposts might require on-premises access for installation and maintenance.

VPN or Direct Connect:

- For hybrid cloud setups, customers may need to establish VPN connections or use Direct Connect to link your on-premises network with AWS.

Data Transfer:

For large-scale data transfer, AWS may provide hardware appliances (like AWS Snowball) that require physical access to your data center.

Bidder must describe any custom software required to support internal SOM systems.

BIDDER RESPONSE:

AWS does not require custom software to support internal customer SOM systems. AWS is designed for accessibility and use without the need for specialized, proprietary software on the customer's end.

Bidder must identify any third-party components, including open source components included with or used in connection with the proposed Solution.

BIDDER RESPONSE:

AWS utilizes a number of third-party and open-source components in its services and tools; however, these components are generally integrated into the AWS services themselves and do not require direct action from customers. Given the scale and complexity of the services we are offering in this request (more than 200 services across 6 Regions), we provide a list of third-party and open-source components below:

- Ansible: Supported for configuration management
- Apache Flink: Used in Amazon Kinesis Data Analytics
- Apache Kafka: Basis for Amazon MSK
- Apache Spark: Big data processing in EMR and Glue
- Chef: Supported in AWS OpsWorks
- Docker: Container technology used in ECS and other services
- Git: Used in CodeCommit and other developer tools
- Grafana: Supported for visualization in some monitoring services
- Hadoop: Core of Amazon EMR
- Jenkins: Integrated with various AWS CI/CD services
- KVM: Kernel-based Virtual Machine for some newer instance types
- Kubernetes: Used in Amazon EKS
- Linux: Various distributions used in EC2 and other services
- Memcached: Used in Amazon ElastiCache
- MySQL: Used in Amazon RDS
- Nginx: Used in some AWS networking components
- OpenSearch (formerly Elasticsearch): Base for Amazon OpenSearch Service





- OpenSSL: Used for cryptographic functions
- PostgreSQL: Used in Amazon RDS and Aurora PostgreSQL
- Prometheus: Supported for monitoring in some AWS services
- Puppet: Supported for configuration management
- PyTorch: Supported in SageMaker and other ML services
- Redis: Used in Amazon ElastiCache
- TensorFlow: Supported in SageMaker and other ML services
- Terraform: Supported for infrastructure as code (though not directly operated by AWS)

Bidder must identify and describe the use of AI leveraging State Data to develop the solution

BIDDER RESPONSE:

AWS understands the importance of data privacy and protection. AWS offers AI services opt-out policies that allow customer to control data collection for AWS AI services for all the accounts in an organization (https://docs.aws.amazon.com/organizations/latest/userguide/orgs_manage_policies_ai-opt-out.html). AWS AI services might use and store customer content for service improvement, i.e., the use and storage of content that is not personal data to develop and improve AWS and affiliate machine-learning and artificial intelligence technologies. For this purpose, AWS may store content in an AWS Region outside of the AWS Region where you are using the service. However, as an AWS customer, you can opt out of having your content used for service improvements at any time by creating an opt-out policies for an individual AI service, or for all services supported by AI services opt-out policies.

Bidder must identify and describe any AI capable offerings to the State proposed under the response.

BIDDER RESPONSE:

We offer several AI and generative AI capabilities to enhance the State of Michigan's cloud solutions. A core offering is Amazon Bedrock, our fully managed service that provides an easy way to build and scale generative AI applications using foundation models (FMs). Amazon Bedrock offers access to a wide range of powerful FMs from leading AI companies like Anthropic, Cohere, and Stability AI, as well as Amazon's own FMs. This allows flexibility to use different FMs best suited for the State's use cases and upgrade to the latest model versions seamlessly.

Amazon SageMaker is our machine learning platform. Amazon SageMaker provides tools like SageMaker JumpStart, which offers pre-trained FMs and solutions to accelerate generative AI development. Amazon Q is a generative AI assistant tailored for AWS that can assist with exploring services, learning technologies, and architecting solutions. The State can also evaluate AI/ML services like Amazon Lex for conversational interfaces, Amazon Comprehend for natural language processing, and Amazon Rekognition for image/video analysis as potential enhancements.

A key benefit of the AWS generative AI stack is the ability to safely customize and extend the FMs in a secure, private environment using your data.

Bidder must provide a list of all mobile devices that are compatible with the Solution.

BIDDER RESPONSE:

For users accessing the AWS Management Console on their mobile devices, AWS provides the AWS Console Mobile Application. The AWS Console Mobile Application lets you view and manage a select set of resources to support incident response on-the-go. The AWS Console Mobile Application is available in the iOS App Store, Google Play App Store, and Amazon Appstore—and available to mobile





devices that use these stores. The Console Mobile Application requires an existing AWS account. Upon sign-in with a Root User, IAM User or Federated Role the Console Mobile Application will remember your credentials and securely store them in your mobile device's password manager so you can easily switch between identities from the identities screen of the Console Mobile App.

Bidder must provide list of features that can be performed via a mobile device.

BIDDER RESPONSE:

The Console Mobile Application allows you to configure and receive push notifications for AWS services, monitor resources through a dedicated dashboard, and view configuration details, metrics, and alarms for select AWS services. The Dashboard provides permitted users with an overview of the account status, with real-time data on Amazon CloudWatch, AWS Health Dashboard, AWS Billing and Cost Management, and Recently Visited Services. You can view ongoing issues and follow through to the relevant CloudWatch alarm or CloudWatch Dashboard screen for a detailed view with graphs and configuration options. You can use Amazon Q (available in preview), the generative AI assistant to ask questions about AWS services, and receive concise, reliable answers. In addition, you can check on the status of specific AWS services, view detailed resource screens, and perform select actions.

The Console Mobile Application for iOS supports Amazon API Gateway, AWS Billing and Cost Management, AWS Cost Explorer, AWS CloudFormation, AWS CloudShell, AWS CloudTrail, Amazon CloudWatch, Amazon DynamoDB, AWS Elastic Beanstalk, Amazon Elastic Compute Cloud (Amazon EC2), Amazon Elastic Container Service (Amazon ECS), Elastic Load Balancing, AWS Identity and Access Management, AWS Lambda, AWS OpsWorks, AWS Health Dashboard, Amazon Relational Database Service (Amazon RDS), Amazon Route 53, Amazon Simple Queue Service features, Amazon Simple Storage Service (Amazon S3), Amazon Virtual Private Cloud (Amazon VPC), AWS User Notifications, and Amazon Q.

The Console Mobile Application for Android supports Amazon API Gateway, AWS Billing and Cost Management, AWS Cost Explorer, AWS CloudFormation, AWS CloudShell, AWS CloudTrail, Amazon CloudWatch, Amazon DynamoDB, AWS Elastic Beanstalk, Amazon Elastic Compute Cloud (Amazon EC2), Amazon Elastic Container Service (Amazon ECS), Elastic Load Balancing, AWS Identity and Access Management, AWS Lambda, AWS OpsWorks, AWS Health Dashboard, Amazon Relational Database Service (Amazon RDS), Amazon Route 53, Amazon Simple Queue Service features, Amazon Simple Storage Service (Amazon S3), Amazon Virtual Private Cloud (Amazon VPC), AWS User Notifications, and Amazon Q.

The Console Mobile Application supports US East (N. Virginia), US East (Ohio), US West (N. California), US West (Oregon), and a variety of non-US Regions.

11. RESERVED

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14. TRAINING SERVICES

The Contractor must provide administration and end-user training for implementation, go-live support, and operational handoff.

The Bidder must provide available training options and include details such as: typical class size, materials to be provided, class duration, on-site or web based. The Bidder must provide a training





plan for go-live support and transition to self-support, including options and details such as the number of dedicated personnel, staff location, hours available and duration of go-live support.

BIDDER RESPONSE:

To satisfy the State's training requirements, AWS offers a combination of tutorials, training courses, self-service guides, and AWS Enterprise Support features. The below sections describe training offerings available beyond the day-to-day education and support available through your designated AWS Account Manager and SA team.

Implementation Training

With AWS Enterprise Support, we assign a designated TAM to your organization. The TAM will help you onboard to AWS and proactively optimize your usage of AWS offerings to meet your objectives. Outside of AWS Enterprise Support, customers can consult the [Getting Started Resource Center](#) to view an introduction video, step-by-step tutorials, and comprehensive resources that describe six key categories of AWS Cloud services.

AWS also provides customers with free access to the [AWS Fundamentals Course](#)—a course designed to teach you the core concepts you need to work effectively within AWS.

Training to Transition to Self-Sufficiency

AWS Training and Certification builds your competence, confidence, and credibility through practical cloud skills that help you innovate and build your future. You can choose to learn online at your own pace or learn from an accredited AWS instructor.

We offer AWS Digital Training, in-depth AWS Classroom Training delivered virtually and in person, and private virtual or on-site training so you can learn where and when it is most convenient for you. We detail multiple offerings that the State can consider according to your unique needs.

- [Free Digital Training](#)—On-demand digital courses that help you learn new cloud skills and services when and where it's convenient for you.
- [Ramp-Up Guides](#)—A variety of free, available resources to help build your skills and knowledge of the AWS Cloud. Each guide features carefully selected digital training, classroom courses, videos, whitepapers, certifications, and more to remove the guesswork of learning AWS.
- [Classroom Training](#)—Live classes delivered virtually or in person by accredited AWS instructors who teach you in-demand cloud skills and best practices using a mix of presentations, discussion, and hands-on labs. *More information about available courses and pricing is provided in Schedule B – Pricing Catalog.*
- [Private Onsite Training](#)—Virtual or in-person classes with accredited AWS instructors who teach in-depth AWS Cloud skills in a private environment that brings the classroom to you.

Your designated AWS Account Team can help to identify the best training programs to meet the State's unique needs. Training events can be in-person or virtual, with half-day or full-day agenda options and typically have 15-75 attendees. While there are several free online training options, AWS does charge our customers for private training based on the level of effort required to conduct tailored training courses by an expert instructor. Your Account Manager can help connect you to the appropriate AWS teams for planning and budgeting discussions. Any request for training should include a four- to six-week lead time to schedule with the AWS Training and Certification team.

Go-Live Support

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As a part of AWS Enterprise Support, customers receive AWS Countdown in addition to the support their designated TAM will provide. AWS Countdown, formerly known as AWS Infrastructure Event Management (IEM), helps you throughout the project lifecycle to assess cloud operational readiness, identify and mitigate risks, and plan capacity, using proven playbooks developed by AWS experts.

AWS Countdown offers architecture and scaling guidance and operational support during the preparation and execution of planned events, such as migrations, elections, or AWS cloud service cutovers. For these events, AWS Countdown will help you assess operational readiness, identify and mitigate risks, and execute your event confidently with AWS experts by your side.

AWS experts lead a highly focused engagement to provide you with architectural and operational guidance for your planned event using a prescriptive, phased approach:

- We work with you to understand your success criteria and desired business outcome.
- We assess the readiness of your AWS environment, help identify and mitigate risks, and document your plan.
- You confidently execute your event with AWS experts by your side.
- We help analyze results post-event and scale services to normal operating levels, so you can focus on planning your next event.

Moving from initiation to launch of the event typically takes 6-8 weeks. Event launch to the end of the post-event review typically takes 1-2 weeks. Typically, with the premium tier, you will be assigned multiple domain experts with deep technical expertise relevant to your use case, a technical team of designated specialist engineers to guide you and troubleshoot, and additional staffing for critical events. The exact number of dedicated personnel, the staff location, or the number of hours needed to execute the event is dependent on the event itself, and can range from one specialist to help guide your team during the event to more full coverage with many specialists and engineers for critical events.

Bidder must provide details on, and examples of, clearly written instructions and documentation to enable State administrators and end-users to successfully operate the Solution without needing to bring in additional Bidder support.

BIDDER RESPONSE:

AWS offers self-service cloud products and solutions for our customers to build and operate their own tailored solutions.

AWS publicly posts documentation such as [Developer Guides](#), API References, User Guides, [Reference Architectures](#), [whitepapers](#), tutorials, webinars, overview videos, [AWS Software Development Kits \(AWS SDKs\)](#), [blog posts](#), and other resources to help our customers successfully operate AWS Cloud services and solutions.

Per RFP guidance, we have submitted appendices to provide examples of training instructions and documentation. Below, we reference the appendix documents, but please note that we have only included excerpts of the first two files via embedded PDFs due to file size limitations. Simply double-click the image in each of the first two appendices to view the documentation. For ease of review, we have also provided links to where the complete PDF files/blog posts are available directly on our website.

1. **Appendix A. AWS Identity and Access Management User Guide**[Error! Reference source not found. \[AWS Identity and Access Management User Guide\]\(#\)](#)
2. **Appendix B. AWS Cloud Adoption Framework Whitepaper** [AWS Cloud Adoption Framework Whitepaper](#)

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3. **Appendix C. AWS Security Blog: Three Common Cloud Encryption Questions** [AWS Blog, "Three Common Cloud Encryption Questions and Their Answers on AWS"](#)

We also make the [AWS Solutions Library](#) available to customers. The AWS Solutions Library offers a collection of cloud-based solutions for dozens of technical and business problems, vetted for you by AWS. You can use patterns from AWS Solutions Constructs if you want to build your own well-architected application, explore our collection of AWS Solutions Reference Architectures as a reference for your project, and browse the portfolio of AWS Solutions Implementations for applications that you can automatically deploy directly into your AWS account.

We also offer [AWS Quick Starts](#), which are templates built by AWS SAs and partners to help you deploy popular technologies on AWS, based on AWS best practices for security and high availability. These accelerators reduce hundreds of manual procedures into just a few steps, so you can build your production environment quickly and start using it immediately.

Each Quick Start includes AWS CloudFormation templates that automate the deployment and a guide that discusses the architecture and provides step-by-step deployment instructions. AWS CloudFormation allows our customers to put their resources into templates that can be used to build and deploy our services. Our customers can easily share these templates internally to scale out services, or even take advantage of automation opportunities.

15. TRANSITION RESPONSIBILITIES

Bidder must provide a detailed transition-in and transition-out plan in Schedule G – Transition In and Out Plan, including any roles or responsibilities expected of the State. The plan must demonstrate the steps to migrate between Bidder's Solution and third-party Solutions.

BIDDER RESPONSE: Please refer to **Schedule G – Transition In and Out** for our proposed Transition In and Out Plan.

16. DOCUMENTATION

Contractor must provide all user manuals, operating manuals, technical manuals and any other instructions, specifications, documents or materials, in any form or media, that describe the functionality, installation, testing, operation, use, maintenance, support, technical or other components, features or requirements of the Software.

Contractor must develop and submit for State approval complete, accurate, and timely Solution documentation to support all users, and will update any discrepancies, or errors through the life of the contract.

The Contractor's user documentation must provide detailed information about all software features and functionality, enabling the State to resolve common questions and issues prior to initiating formal support requests.

Bidder must provide details on, and examples of, documentation to meet the requirements set forth in this section.

BIDDER RESPONSE:

AWS provides Developer Guides, User Guides, API References, AWS CLI References, whitepapers, Reference Architectures, tutorials, and more for all AWS Cloud services. You can find these resources on the [AWS Documentation](#) page on our public website.

Per RFP guidance, we have submitted appendices to provide examples of available solution documentation. In **Appendix A**, we provide an excerpt of the [AWS Identity and Access Management User Guide](#) via an embedded PDF. Simply double-click the image in **Appendix A** to view the

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documentation. Additional documentation is available for review on the [IAM Documentation site](#). We have only included an excerpt of the file due to file size limitations.

In addition to the guides and documentation, the homepage for each AWS Cloud service on the AWS website will also contain feature descriptions, FAQs, and other resources to help our customers understand the service. Examples include [Amazon Simple Storage Service \(Amazon S3\)](#), [Amazon Athena](#), or [Amazon Elastic Compute Cloud \(Amazon EC2\)](#).

[AWS Management and Governance](#) services offer a single control plane, which provides customers with cloud services to manage and govern their resources on AWS. For instance, the following two services facilitate clear documentation of your own purchases on AWS and service configuration across the State's use of AWS:

- **AWS Config** is a service designed to enable you to assess, audit, and evaluate the configurations of your AWS resources. AWS Config continuously monitors and records your AWS resource configurations and allows you to automate the evaluation of recorded configurations against desired configurations. With AWS Config, you can review changes in configurations and relationships between AWS resources, dive into detailed resource configuration histories, and determine your overall compliance against the configurations specified in your internal guidelines. This enables you to simplify compliance auditing, security analysis, change management, and operational troubleshooting.
- **AWS Organizations** helps you centrally manage and govern your environment as you grow and scale your AWS resources. Using AWS Organizations, you can programmatically create new AWS accounts and allocate resources, group accounts to organize your workflows, apply policies to accounts or groups for governance, and simplify billing by using a single payment method for all of your accounts. In addition, AWS Organizations is integrated with other AWS services so you can define central configurations, security mechanisms, audit requirements, and resource sharing across accounts in your organization.

We also make the [AWS Solutions Library](#) available to customers. The AWS Solutions Library offers a collection of cloud-based solutions for dozens of technical and business problems, vetted for you by AWS. You can use patterns from AWS Solutions Constructs if you want to build your own well-architected application, explore our collection of AWS Solutions Reference Architectures as a reference for your project, and browse the portfolio of AWS Solutions Implementations for applications that you can automatically deploy directly into your AWS account.

AWS Service Catalog enables IT administrators to create, manage, and distribute portfolios of approved products to end users, who can then access the products they need in a personalized portal. Typical products include servers, databases, websites, or applications that are deployed using AWS resources (for example, an Amazon EC2 instance or an Amazon Relational Database Service [Amazon RDS] database). You can control which users have access to specific products to enforce compliance with organizational business standards, manage product lifecycles, and help users find and launch products with confidence.

AWS is constantly adding new capabilities so you can leverage the latest technologies to experiment and innovate more quickly. AWS posts announcements on the [What's New with AWS?](#) webpage to show the most recent changes made at AWS. We provide a brief overview of all AWS Cloud service, feature, and Region expansion announcements as they are released. The State can check the latest announcements from AWS on the webpage and subscribe to the RSS feed to be notified of any changes to AWS Cloud services. You can also subscribe via RSS Feed to receive push notifications regarding announcements for service expansions, features, upgrades, and availability.

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17. RESERVED

18. CONTRACTOR PERSONNEL

Note from AWS: These individuals are identified as Contractor Personnel at the time of proposal submission. This designation may be updated, which will be communicated to the State

Contractor Contract Administrator. Contractor resource who is responsible to(a) administer the terms of this Contract, and (b) approve and execute any Change Notices under this Contract.

Contractor
Name: John Malloy Address: 222 West Adams Street Suite 1400 Chicago, Illinois 60606 Phone: (206) 266-1000 Email: jmall@amazon.com

19. CONTRACTOR NAMED PERSONNEL

Contractor Security Officer. Contractor resource who is responsible to respond to State inquiries regarding the security of the Contractor's Solution. This person must have sufficient knowledge of the security of the Contractor Solution and the authority to act on behalf of Contractor in matters pertaining thereto. Contractor must inform the State of any change to this resource.

Contractor
Name: James Perry Address: Amazon Tower 1 101 Platform Way N. Nashville, TN 37203 Phone: (206) 266-1000 Email: awsjames@amazon.com

Contractor Program Manager. Contractor resource who is responsible to serve as the primary contact with regard to services who will have the authority to act on behalf of the Contractor in matters pertaining to receipt and processing of Support Requests and the Support Services.

Contractor
Name: Alicia Blackburn Address: 1435 Vine Street Cincinnati, OH 45202 Phone: (206) 266-1000 Email: ablakbrn@amazon.com

20. CONTRACTOR PERSONNEL REQUIREMENTS

Background Checks. Contractor must present certifications or attestations evidencing satisfactory background checks and drug test results, as required by law, for all staff identified for assignment to this project to the State of Michigan Program Manager designated for this Contract and assigned to this Contract. In addition, proposed Contractor personnel may will be required to complete a Michigan State Police background check and/or submit an RI-8 Fingerprint Card for the National Crime Information Center (NCIC), if required by law and the project.

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Commented [A12]: Revised as the solution the Contractor provides may not necessitate fingerprinting. For example, due to enhancements in AWS technology, law enforcement agencies can deploy Criminal Justice Information (CJI) on AWS in compliance with Criminal Justice Information Systems (CJIS) requirements without necessitating the need for fingerprint based background checks as AWS will not have physical or logical access to CJI data.

Fingerprints (which are highly sensitive personally identifiable information [PII]) should only be provided when required by law rather than mere request.





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Annually, Contractor must perform an ICHAT for all staff identified for assignment to this project. Annual background check results will be reported to the State of Michigan Program Manager designated for this Contract.

Contractor, while employed with DTMB, will disclose to the State of Michigan Program Manager for this Contract, in writing at or before the beginning of the next scheduled duty shift:

- A felony or misdemeanor court conviction, whether by guilty plea, no contest plea or trial;
- A felony arraignment;
- Restriction, suspension, or loss of driving privileges for any reason, if the employee's current position requires possession of a valid driver's license.

Contractor will pay for all costs associated with ensuring its staff meet all requirements.

Contractor must notify the State Program Manager(s) prior to removing or replacing any Contractor Personnel with access to State Data under this Contract. Contractor must also provide written certification to the State Program Manager(s) that Contractor Personnel's access to State Data has been terminated. Contractor must notify the State in advance of allocating Contractor Personnel to multiple State Contracts or Projects. Contractor must provide detail of how a given Contractor Personnel meets the resource experience requirements in advance of replacing a Contractor Personnel. Contractor must provide monthly summary of Contractor Personnel allocation for all Contractor Personnel who have access to State Data.

Contractor must seek approval from the State prior to removing or replacing any Contractor Personnel with access to State Data.

Disclosure of Offshore Resources and Subcontractors.

Bidder must confirm that they will disclose all offshore resources and subcontractors and describe State Data Access of each. Please explain.

BIDDER RESPONSE:

AWS will comply with this requirement and will disclose all offshore resources and subcontractors and describe the State Data Access of each. The AWS contractor personnel resources we are proposing (and whose resumes are included) are based in the United States. However, AWS is a global company and therefore has resources employed globally.

The exact offshore resources used depends on how the State chooses to use our services. While we have employees globally who help support our network and services (such as maintaining global networks and developing services), including those you may choose to use, you can choose to store your data solely within the United States—with US resources only. In addition, as described throughout our proposal, we give you the means to monitor, control, and prevent unauthorized access to your data through a variety of AWS services.

21. STATE RESOURCES

The State will provide the following resources as part of the implementation and ongoing support of the Solution.

State Contract Administrator. The State Contract Administrator is the individual appointed by the State to (a) administer the terms of this Contract, and (b) approve and execute any Change Notices under this Contract.

Commented [A13]: Commercial cloud services are provided at scale to serve customers globally. Employees are not hired to support a particular contract as that does not align to a supplier of commercial services.

In addition, for large companies it is probable that personnel will be subject to internal transfers or switch roles generally. Also, any removal would not interfere with the timely and proper completion of the contract, as the replacement for that key personnel would be able to perform the same duties and would have similar qualifications as the person(s) they replaced.

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State Contract Administrator
Name:
Address:
Phone:
Email:

Program Manager. The DTMB Program Manager (or designee) will approve all Deliverables and day to day activities.

DTMB Program Manager
Name:
Address:
Phone:
Email:

22. MEETINGS

At start of the engagement, the Contractor Project Manager must facilitate a project kick off meeting with the support from the State’s Project Manager and the identified State resources to review the approach to accomplishing the project, schedule tasks and identify related timing, and identify any risks or issues related to the planned approach. Contractor will facilitate monthly meetings (or more or less frequently if determined necessary by the parties) to ensure ongoing support success.

Bidder must describe how they will meet the meeting requirements set forth above and note any exceptions for successful implementation and ongoing support of the Solution. If Bidder has an alternative planned approach for project meetings provide details, including purpose, roles and responsibilities, and proposed frequency. BIDDER RESPONSE: Your assigned account manager, technical resources, and any support resources will work with the State directly to establish this cadence as determined necessary by both parties. We do not have exceptions to this requirement as we interpret it.
23. PROJECT CONTROL & REPORTS Bidder must describe specific reports the Contractor will provide after contract execution and during the lifecycle of the contract, including all required scheduled reporting and details around the how and when metrics are captured/validated. BIDDER RESPONSE: Your assigned account manager, technical resources, and any support resources will work with the State directly to continue delivering and update existing reporting after contract execution as determined necessary by both parties.

24. RESERVED

25. RESERVED

26. ADDITIONAL INFORMATION

The State reserves the right to purchase any additional services or products from the Contractor during the duration of the Contract.





SCHEDULE A – ATTACHMENT 1 – BUSINESS SPECIFICATION WORKSHEET

Instructions for Completing the Business Specifications Worksheet

Contractors must respond to each business Specification on how they will meet the requirements in the document provided. Contractor must not alter the document.

The Business Specifications Worksheet contains columns and is defined as follows:

Column A: Business Specification number.

Column B: Business Specification description.

Column C: Bidder must indicate how it will comply with the Business Specification. Contractor must enter “X” to one of the following:

- **Current Capability** – This capability is available in the proposed Solution with no additional configuration or cost
- **Not Available** – This capability is not currently available.

Column D: The Bidder must also fully disclose how they will meet the requirements in their proposal response. This column is for Bidder to describe how they will deliver the business Specification. Description must be no more than 250 words for each Business Specification.





A	B	C		D
Business Specification Number	Business Specification	Current Capability	Not Available	Contractor to explain how they will deliver the Business Specification.
Base Level Criteria				
1.0	Unified self-service experience: All components of the offered services exist within the same portal and service catalog, in a fully integrated fashion — not merely as part of an “umbrella” portal that contains subportals for the offerings. The (Command Line Interface (CLI) and API (Application Programming Interface) will be consistent across these components. Any Integrated Development Environment (IDE) integration should be similarly consistent. They look and feel like a seamless whole. This provides a better user experience than nonintegrated offerings. It is permissible to have an additional, specialized portal experience for a capability, with greater depth of functionality than is exposed through the integrated offering’s portal.	X		
2.0	Unified identity and access management: The same identity is used to access all components of the offered services, with unified authentication and authorization	X		

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	(including Role Based Access Control (RBAC)) for the portal, CLI and API. The use of a single IAM system prevents the need for either the Contractor or the State to federate identity across components of the offered services. This ensures that identity can be managed across the solution as a unified whole, thus simplifying user management as well as security.			
3.0	Single integrated low-latency network context: The cloud service components will exist within the same network, with low local-area network (LAN) latency. The components will be able to communicate within the boundaries of a secure, microsegmented, State-controlled, software-defined virtual network. This will allow the State to design unified network topologies and apply consistent network security across the components. However, services do not need to support private networks unless otherwise noted.	X		





4.0	Unified security: The State will be able to apply security controls across all components of the Cloud Services. The security context will be unified so that there is visibility and control across the entire environment.	X		
5.0	Enterprise-class support: The Contractor will offer a support option that includes 24/7 coverage, live support via phone and instant messaging, incident response times of 15	X		





	minutes or less, and a dedicated technical account manager. The State will be able to submit, review, and update billing and technical support tickets through the portal.			
6.0	RBAC: The Contractor will have an Identity Access Management (IAM) service. The State will be able to have multiple users and API keys. The Contractor will have a self-service capability that allows the State to assign granular permissions to these identities.	X		





Resilience		X		
7.0	Data centers: The Contractor will must have three regions within the United States, separated by a minimum of 200 km (125 miles apart) and on different power grids.	X		
8.0	Regional service consistency: Contractor will publish the following: A classification of all regions into tiers, with a maximum of five tiers.	X		





	An explanation, for each tier, of the traits that can be expected in this tier, including any architectural differences between the tiers.			
9.0	Data center proximity: The Contractor will must have at least two data centers that are logically and physically distinct. The network performance between these data centers will be sufficient to accomplish synchronous replication. Furthermore, the Contractor’s virtual networks will be able to span these data centers so that the State can build highly available architectures.	X		





10.0	Continuously available critical services: The control plane (the software that controls the services and provides internal and external APIs), IAM service and KMS are critical services. They will be architected for resilience and continuous availability, and distributed across regions. No customer may have a critical service dependency on a single logical or physical data center, even if the service can fail over to another data center. The Contractor will be able to conduct maintenance activities without making any critical service temporarily unavailable to any customer. This includes continuous availability for all self-service interfaces.	X		





11.0	Monitoring service: The Contractor will offer a serverless monitoring service that, at minimum, contains the following capabilities: • Collectors: There will be a collector capable of ingesting metrics, events or other monitoring data from other services. Ingestion is required in near real time. Granularity of at least one minute is required for metrics. Use of a Contractor-supplied agent on compute instances is permissible. The State will be able to script a collector for custom metrics. • Alarms: When a monitoring event occurs (for instance, a metric is outside its acceptable range, or a service event is received), the monitoring service will execute any alarms within one minute of the monitoring service receiving and confirming the triggering event. Alternatively, the monitoring service will execute any alarms within five minutes of the triggering event itself. The State will be able to configure multiple alarms (i.e., actions to take per triggering event). Action types will include generating an alert. • Export: The State will be able to make an API query for the latest metric of each type. All collected data will be exportable, both to another service within one minute of collection, as well as for download in bulk.	X		
12.0	Instance maintenance/failure notifications: The Contractor will be able to notify the State of potentially instance-impacting actions that the Contractor will perform, such as live migrations, instance restarts or memory-preserving maintenance. At a minimum, an option for email notification will exist. The State will be able to opt in or out of this communication, including an option to only receive	X		

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	communications relevant to the State’s environment (such as those related to data centers or instances in use).			
Security				
13.0	Published audits: The Contractor will complete biannual Service Organization Control (SOC) 1, SOC 2 and SOC 3 audits, as well as maintain FedRAMP Authorization and ISO/IEC 27001 certification for all data centers that host State of Michigan data. The reports must be provided to the State, via Contractor’s administrative portal and the State will not be required to execute a separate Non-Disclosure Agreement (NDA) if the parties agree to relevant confidentiality provisions in any Contract that may result from this Bid. At least one of these reports will document the measures the Contractor takes to protect State data from access by personnel. These measures will, at the State’s request, include background checks, logging of administrative access to the Contractor’s infrastructure and services by the Contractor’s personnel.	X		





14.0	Data sanitization: The Contractor will have documented evidence that it adheres to the National Institute of Standards and Technology Special Publication (NIST SP) 800-88 using the purge processes for data sanitization and disposal. These processes apply when the Contractor retires or otherwise disposes of physical storage devices (such as disks, tapes, SSD's. and arrays). The Contractor's policy will apply not just to all storage services, but also to all services that store State Data (such as database services). In addition, Contractor will have cryptographic erase with key escrow.	X		
15.0	Initial administrative access credentials: The default administrative access credentials for every newly deployed compute instance will be automatically generated and able to be reset or chosen at the point of provisioning by the	X		





	State. Automatically generated credentials will be retrievable in a secure fashion appropriate to the self-service provisioning mechanism. Email is unacceptable.			
16.0	Trusted boot: The Contractor will ensure firmware security on its servers. The Contractor will use a hardware-based root of trust (for example, a security co-processor or trusted platform module [TPM]), secure boot (per the Unified Extensible Firmware Interface [UEFI] specification, or another means of preventing firmware updates from the main system processors), and measured boot. To accomplish the measured boot, the Contractor will securely store checksums for each system — thus enabling attestation to whether the system has changed since the last boot — and verify checksums prior to each boot.	X		





17.0	Identity federation and SSO: The Contractor will support federated identity between The State’s directory and its native IAM. The Contractor will allow single sign-on (SSO) login access to the portal, CLI and API through Security Assertion Markup Language (SAML) assertions or via a third-party SSO service that supports OpenID Connect.	X		
18.0	MFA administrative access control: There will be the option to secure both portal and API access via multifactor authentication (MFA), via the Contractor’s native IAM. This may use either hardware- or software-based secure tokens,	X		





	and HOTP or TOTP (hashed message authentication code [HMAC]-based or time-based one-time passwords). At least one Multi-Factor Authentication method available and configurable as required will support compliance with all NIST 800-63 AAL3 requirements. To secure API access via MFA, it is permissible for the user to use an MFA-enabled authentication method to retrieve a secure token that can then be used for API calls.			
19.0	Granular RBAC policies: All services will support RBAC via the Contractor’s IAM service. Policies will be definable at the following levels of granularity: Platform-level: A role can have a permission-set that applies broadly across the whole platform. For instance, users might be either full users (“read/write” everything) or read-only users (typically used for management and billing admins). Service-level: A role can have a permission set that applies broadly across one service within the platform. For instance, the compute, storage and database services might each offer administrator, developer and billing-admin permission sets.	X		





	API-level: A role can be given access to a specific API call (or equivalently narrow portal functionality). This may be at an even more granular level — for instance, particular restrictions on use of that API call, such as the ability to call it only with certain parameters.			
20.0	RBAC policies for resource groups: The State will be able to create an RBAC policy that applies to a resource group. Groups consist of multiple elements that have been grouped together and collectively given an associated keyword, like “mobile.” Groups are typically used to associate elements with a particular business project (such as grouping all infrastructure associated with a particular application). A partition may be used as a resource group if an account can have multiple partitions.	X		
21.0	DDoS mitigation: The Contractor will automatically detect and mitigate volumetric distributed denial of service (DDoS) attacks at OSI Model Layer 4 and below, for the State. The mitigation service will be free. The service may operate without the State’s control, visibility or actionable reporting, but reporting of incidents to the State is required.	X		

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Operations and Governance				
22.0	Basic cost management: The Contractor will offer, at no cost, basic cloud service expense management. This will include the following capabilities, with billing data visibly updated at least every 24 hours: Tagged bills: The State will be able to access billing data for the previous and current month at any time. Exports of billing data will be in a programmatically readable format such as CSV, and include the State's resource groups or tags for each line item. Budgets: The State will be able to set a per-partition monthly budget, and generate an alert when the budget is projected to be exceeded as well as when the budget is actually exceeded.	X		
23.0	Cost forecasting: The State will be able to forecast what they are likely to spend. The Contractor will offer a web-based calculator or downloadable Excel-compatible spreadsheet that predicts the monthly cost of a solution based on a State-defined model. This model will be able to include, at minimum, core infrastructure assets, KMS and monitoring. Finally, the Contractor will provide a pricing API,	X		

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	so the State can programmatically obtain current costs for all services.			
Vendor Management and Audit				
24.0	Service health dashboard: The Contractor will offer a public dashboard that displays the health of each of its services, on a regional basis, updated at least every five minutes. Current health will also be programmatically quarriable. During an incident, the dashboard will also display information about the incident. The Contractor will make a root cause analysis (RCA) available for all major outages.	X		
25.0	Event management: The Contractor will offer at least one support plan that includes event management, for use with important events such as a planned application release or high-volume usage period (e.g., the holiday shopping period). This will include pre-event planning, guaranteed fast support response during the event, and post-event review. In addition, the Contractor will offer a support plan in which the State and Contractor agree to and practice a	X		

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	communication and response plan for crisis scenarios. This plan will include time-critical actions to be performed by the Contractor in the case of State unavailability.			
26.0	Support ticket API: The Contractor will have a State-facing API for the case management system that is used for billing and technical support requests. At minimum, there will be APIs to open a ticket, update a ticket, close a ticket, view (obtain fields of) a ticket, and list all open tickets.	X		





27.0	Release notes: The State will be able to track new services and features. The Contractor will publicly publish online release notes that list all new and updated capabilities. Each item will be dated and tagged with the affected services. The State will be able to easily see a chronological list of changes to each service. Release notes will be available for a minimum of three years.	X		
28.0	Decommissioning Account: The Contractor will allow the State to close an account in its entirety. Doing so will immediately stop all cost-accruing services and stop billing, with no need for the State to stop anything below the account level. The State will have the ability to require interaction with support or account management to initiate or confirm account closure.	X		





29.0	Decommissioning Order: The Contractor will allow the State to close an order in part or in its entirety. Doing so will immediately stop all cost-accruing services and stop billing.	X		
30.0	Service change notification: The Contractor will implement a minimum of one year of notice for any “breaking changes.” This will include service discontinuations, changes that break backward compatibility or remove features in active use, and API changes that require the State to update its code. The terms of service will guarantee this notification.	X		





31.0	Published compliance assistance: The Contractor will offer published guidance that supports the State in meeting common compliance needs. The Contractor will publicly publish a consolidated list of all compliance programs that its services can support, along with detailed supporting documentation for obtaining compliance in each program.	X		
Technical Requirements				
1.0	All State Data for IT Environment Services including backups and Disaster Recovery will reside within the United States of America.	X		





2.0	1. If the State requires FTI (Federal Tax Information) data to be received, transmitted, stored, or processed by the CSP, the Cloud Service Provider will sign form Pub 1075, Exhibit 7 with the State. 2. If the State requires STI (State Tax Information) data to be received, transmitted, stored, or processed by the CSP, the Cloud Service Provider will sign Michigan form "SAFEGUARD REQUIREMENTS OF CONFIDENTIAL TAX DATA" with the State. See "SCHEDULE E, Attachment 1 – Tax Regulation"		X	
3.0	If the State requires CJIS (Criminal Justice Information System) data to be received, transmitted, stored, or processed by the CSP, the Cloud Service Provider will sign a Security Addendum with Michigan State Police (MSP). See "SCHEDULE E, Attachment 2 - FEDERAL BUREAU OF INVESTIGATION CRIMINAL JUSTICE INFORMATION SERVICES SECURITY ADDENDUM"		X	

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4.0	If the State requires Centers for Medicare & Medicaid Services (CMS) data to be received, transmitted, stored, or processed by the CSP, the Cloud Service Provider will sign a Security Agreement with the State per CMS MARS-E requirements.	X		
5.0	If the State desires to host data within the CSP which is subject to other similar security standards, the Cloud Service Provider will sign a security agreement according to such standards.	X		
6.0	Contractor will provide a link to rate calculator that will show all services to the State and their current rate and will include any fixed or periodic subscription costs, and for consumption-based costs, the billing unit, the cost per billing unit, any information on minimum orderable quantities, minimum billable time segments, or tiered pricing, along with the following information for each service:	X		





Service type	Information required			
Compute	Cloud region; processor family and type; processor speed; processor and core counts; total or per core memory quantity in GB; supported and excluded operating system families and versions			
Storage	Cloud region; storage type; connection type; read and write speeds; high availability/redundancy service level; data backup and recovery service level, ingress, egress, and bulk data migration support			
Network	Sustained and, if applicable, burst circuit speeds for both upload and download; physical and virtual dedicated connections. included and excluded network features such as routing, vLANS, firewalls, inspection and associated costs			
Relational database services	Cloud region; database family and type; processor or core count; memory quantity in GB; high availability/redundancy service level; data backup and recovery service level			
Containers	Cloud region; clusters, Instance Series; supported an excluded operating system families and version; managed OS Disks in GB;			
Data warehouse services	Cloud region; database family and type; processor or core count; memory quantity in GB; high availability/redundancy service level; data backup and recovery service level			





	Functions as a service Cloud region; memory quantity in GB; connection speed; high availability/redundancy service level; included and excluded web service features such as libraries and frameworks, WAF, SSL, traffic inspection, and associated costs <i>Please note: It is the responsibility of the Contractor to continually provide accurate, up-to-date, and understandable service and rate information. If the State cannot understand the costs for offered Cloud Services, accurately and fairly compare them to those of other Contractors, and avoid unanticipated limitations or unexpected costs, we are under no obligation to accept them or select them when deploying solutions.</i> Rate sheets will be provided in a format that facilitates easy ingestion into the State’s rate engine.			
7.0	Contractor provides a reporting console which will allow the State to view current and projected usage/ consumption.	X		





8.0	Direct Cloud Service Providers contracted services will be listed as 'FedRAMP Authorized' in the General Services Administration (GSA) FedRAMP Marketplace at Impact Level 'Low', 'Moderate', or 'High' and a Service Model that includes 'IaaS' and 'PaaS'. The authorization will be continuously maintained by the Contractor throughout participation in the program. Changes to FedRAMP status will be communicated to DTMB by Contractors within seven days, and will result in a reevaluation by the State of their qualifying status. Until their compliance status is validated by the State, no new services will be initiated with the Contractor.	X		
9.0	The Contractor will furnish, in a format that facilitates easy ingestion into the Common Controls Framework (CCF), the set of controls from the catalog in NIST SP 800-53 r4 and r5 within one year of release, Security and Privacy Controls for Federal Information Systems and Organizations, that have been attested by a third-party assessment organization (3PAO) as either provided or inheritable from the provided Cloud Services. Changes to this control set will be made available via self-service portal so that the CCF can be updated to reflect the change and the State can communicate them to its customers at will. Compliance controls required outside the FedRAMP framework (such as from Pub 1075, MARS-E, etc) will also be validated by a qualified independent third-party audit organization and provide in a similar format to 800-53 controls.	X		

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10.0	Unified billing and support: The Cloud Services capabilities are part of a single commercial offering construct, under a single brand. The State will be able to buy all of the procured cloud service components on a single contract, with the exception of specific Software as a Service, offerings	X		
Resilience				
11.0	Metrics for core services: The Contractor's core services will have the following built-in monitoring metrics: • Compute metrics: Health (up/down) status, CPU and memory utilization, disk and network I/O. • Block storage service metrics: Bytes read and written, and I/O operations. • Load balancer (LB) service metrics: Request count, request latency, and a measure of successful and failed back-end requests. The latter should preferably offer a count of response codes received from the back-end by category (2xx, 3xx, 4xx, 5xx). • Relational DBaaS metrics: Database connections and latency. If the database service is not seamlessly scalable, the monitoring tool will also report I/O operations, CPU utilization and memory utilization.	X		

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12.0	Compute instance anti-affinity: Anti-affinity rules help the State achieve greater application availability by reducing the possibility that a single physical failure event will impact multiple instances. The Contractor’s multitenant VM compute instance offering will support: • Automatic anti-affinity: When the State provisions a new VM, the default placement algorithm will automatically attempt to place the VM on a physical host that isn’t used by any of the State’s other VMs. With this approach, the State’s VMs are distributed among as many different physical hosts as possible (but are not guaranteed to be on different physical hosts). • Explicit host anti-affinity: The State will be able to explicitly set anti-affinity rules for individual VMs that need to be placed on different physical hosts from one another. The physical hosts will be within the same logical data center. • Explicit power anti-affinity: The State will be able to explicitly specify that compute instance “A” be in a different section of the same logical data center than instance “B,” such that the two instances do not share fully identical power dependencies. The Contractor may offer this for groups of instances rather than individual instances.	X	





13.0	VM-preserving host maintenance: The Contractor will be able to perform maintenance on a compute host with minimal disruption to running VMs on that host. Such maintenance includes performing a kernel upgrade or a hypervisor upgrade. Minimizing VM disruption may be accomplished by a variety of means, such as live migration to another host or memory-preserving maintenance.	X		





14.0	VM-preserving data center maintenance: If the Contractor needs to perform maintenance that impacts the physical compute host, it will do so without disruptively impacting running VMs on that host. Such maintenance includes replacing and upgrading hardware, and performing power maintenance that eliminates power to the host. Live migration would be the standard way to avoid VM disruption. The State does not need to have any control over this capability.	X		
15.0	VM host failure recovery: The VM service will be architected to automatically restart VMs on a healthy host if the original physical host fails. This capability is often referred to as "VM restart." The service may automatically attempt to reboot the original physical host and restart VMs on it. However, if that fails, the service will be able to automatically restart the VMs on a healthy host. The failure detection will occur within one minute, and if the host cannot be immediately recovered, the process of automatically restarting the VM on another host will begin within five minutes.	X		
Security				
16.0	Key management service: The Contractor will offer a KMS that allows the State to create, control, and audit cryptographic key usage. It will facilitate life cycle management of keys (key expiration and rotation). The service will enable the State to comply with the National Institute of Standards and Technology (NIST) Federal	X		

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	Information Processing Standard (FIPS) 140-2 and applicable NIST key management publications. The cryptographic component will be FIPS 140-2 validated (independently audited), at a minimum of Level 1. The KMS will support BYOK and may support HYOK; the State will be able to import their own master keys into the KMS, including keys they have generated on-premises.			
17.0	Certificate management service: The Contractor will offer a service that manages obtaining, renewing and deploying FIPS compliant SSL/TLS certificates. This will support certificates from a certificate authority (CA) and not just self-signed certificates. This will be integrated with all load-balancing services that terminate SSL/TLS if required when configured by the State, as well as the CDN (if it supports SSL/TLS).	X		





18.0	Stateful network firewall: The State will be able to filter ingress and egress traffic — including both north-south and east-west traffic — via firewall rules. The State will be able to create multiple rules associated with each subnet and vNIC. The State will also be able to group compute instances and associate multiple rules with the group rules Traffic filtering tools will be stateful. All rule updates will apply immediately, without reprovisioning or restarting any services. It is permissible to provide these capabilities as part of different services.	X		
19.0	Network forensics: The Contractor will enable the State to log metadata about network traffic that is permitted and denied by firewall rules and other network policies. The data will be available at an interval of 10 minutes or less, and the State will be able to export the data for external	X		





	analysis. The State will be able to generate alerts based on logged events.			
Operations and Governance				
20.0	Completeness of self-service interfaces: The Contractor will support all capabilities in the API, CLI and portal, to the extent that each capability makes sense in all three modalities. The Contractor will publicly publish a policy that indicates that new capabilities that are initially released only as APIs will be represented in the portal and CLI within 180 days of GA release. In addition, the Contractor will support SDKs that wrap its APIs in at least three different programming languages, with documentation and sample code. The Contractor will offer free plug-ins/extensions for integrated development environments (IDEs); these will, at minimum, support deploying applications into VMs. The CLI will be available for Linux, macOS, and Windows.	X		





21.0	Metadata tagging of resources: The State will be able to set metadata tags on all core infrastructure assets. A tag consists of a State-defined key and a value. The State will be able to attach at least seven tags per asset, with no limit on the total number of tags per partition. All tags will be searchable and filterable within all service interfaces. Tags will be visible and exportable within billing interfaces.	X		
22.0	Centralized policy management: The Contractor will offer a centralized capability for managing multiple partitions. The State will be able to organize partitions into a multilevel branching hierarchy at least three levels deep below the root of the master account, apply policies at the upper levels, and have those policies cascade down automatically. The State will be able to apply policies that restrict a partition's access to particular services. This will include the ability to enforce configuration rules for cloud resources. The Contractor will allow policies and standards to be set and enforced on a per-partition basis, including per-partitions exceptions to policies inherited from higher up in	X		

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	the hierarchy. This may be implemented as a centralized service that serves as an umbrella over multiple services that handle different types of policies, or incorporated across the Contractor's IAM capabilities.			
23.0	Distributed logging service: The Contractor will offer a highly scalable logging service that aggregates the State's application and system logs into a consistently time-ordered stream. The State will be able to centrally view, search, filter and archive the logs, as well as generate alerts based on pattern-matching against log entries. Log ingestion may use mechanisms like Fluentd, a protocol such as syslog, or a compute instance agent. The State will be able to stream log events in real time to other data-ingestion services or State industry standard Security tools for processing. The Contractor will also provide other security information and event management (SIEM) capabilities including support for State use of Contractor tools. It will integrate with other SIEM products.	X		





24.0	Audit logs: The Contractor will offer a central service that aggregates logs of portal, CLI and API actions that result in provisioning or deprovisioning resources, access control changes, or changes to service configurations. At minimum, this will support all compute services, all storage services and other services that store data (such as database services), all networking, and all security services. The State will also be able to log all IAM actions in detail, and all logged actions will be associated with a responsible identity. The State will be able to export these logs for retention.	X		





25.0	Provisioning templates: The Contractor will offer an orchestration template service that provisions multiple resources and services, including a combination of compute instances, block storage volumes, networking elements, software infrastructure services, monitoring configurations and security configurations. The State will be able to define dependencies including authorization (so provisioning occurs in the correct order), provide parameters at provisioning time and use conditionals within the template. The Contractor will enable provisioning a template across multiple logical data centers and regions. The service will offer a template catalog, and access will be governed via RBAC.	X		
26.0	Directory service: The Contractor will offer a serverless, resilient Active Directory (AD)-compatible service. This is not directory federation. The service will support, at minimum, domain-joining for Windows and Linux compute instances, user identity and group memberships, group policy, and SSO. The service operation will allow the State to maintain	X		

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	compliance with NIST SP 800-53 moderate controls and other applicable federal security standards.			
Vendor Management and Audit				
27.0	Training and certification: The Contractor will offer distinct multilevel training and certification paths for solution architects, operators and developers. The State will have access to free online training for the first-level certification of each path, as well as an introduction to the platform that is suitable for users within the business who need to be acquainted with fundamental platform concepts. Free training may be either first-party or through a Contractor authorized third party. Certifications will require a proctored exam, whether taken in-person or online. Training services will maintain compliance with applicable contractual privacy and security controls.	X		





28.0	Reference architectures: The Contractor will provide publicly published guidance for what constitutes best practices for application architecture on its platform, including guidance for availability, performance and security. In addition, the Contractor will publish a library of reference architectures for at least 20 common application stacks and architectural patterns. The library will also include at least 50 “quick start” provisioning templates, each of which is accompanied by documentation that explains the solution’s implementation and operation.	X		
29.0	Marketplace offering: The Contractor will offer a marketplace that contains prebuilt templates and images that are offered by Independent Software Vendor (ISVs) and can be deployed by the State. The Contractor bills the State for marketplace-related consumption as part of the State’s regular cloud bill, and compensates the ISV. The marketplace will be divided into categories, filterable and searchable. Marketplace offerings published by the contractor will follow the terms and conditions set forth in this contract. Any ISV offerings if terms and conditions are not covered under the terms of this contract can still be	X		

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	purchased with approval of a secondary contract with the ISV itself.			
Compute				
30.0	Rapid provisioning of VMs: Near-instant provisioning is important not only for productivity, but also for on-demand scaling and disaster recovery. Provisioning of multiple VMs will be simultaneous, not sequential — the Contractor’s self-service interfaces and control plane will be able to provision a large number of instances for multiple customers at the same time, without dependencies between those provisioning jobs. The interval between the provisioning action and the point where the State can log in to the VM will be within a certain threshold, 99% of the time. These provisioning thresholds are as follows, for VMs and storage: • Less than one minute for a single Linux VM • Less than three minutes for a single Windows Server VM • Less than ten minutes in total for 20 Linux VMs • Less than thirty minutes for a 20 Windows Server VMs		X	





31.0	Large-scale provisioning of VMs: The ability to provision a large number of VMs, very rapidly, is critical for disaster recovery, batch computing and scaling on demand. The State also need the assurance that its Contractor has sufficient scale and spare capacity to handle these common use cases. To meet this criterion, the Contractor will support: • Image diversity: Performing disaster recovery, the State will be able to achieve a provisioning time of less than 15 minutes, with an individual VM provisioning failure rate of less than 0.5%, for 1,000 VMs of different sizes, using a diverse set of images. The minimum diversity requirement is 5% Linux images and 5% Windows. Contractor will support at least four VM sizes using the following distribution of minimum sizes (vCPU x approximate GB RAM): 50% 1 x 4 VMs, 25% 2 x 8 VMs, 20% 4 x 16 VMs, and 5% 8 x 32 VMs. • Adequate capacity: The Contractor will have at least one logical data center, in each region, where any customer is able to on-demand provision 1,000 VMs. The State will not need to give prior notice or have a capacity reservation. • Reservations: The State will have a means to guarantee that a certain amount of capacity will be available in a particular logical data center, without needing to preprovision that capacity or otherwise pay the fee for a running VM. If a reservation fee is required for this purpose, such fee will be included in pricing schedules, with the minimum term length to be no longer than one year. The maximum size of a reservation will be no less than 1,000 VMs (in aggregate, at least 1,000 vCPUs and 4,000GB of RAM).	X		
32.0	State-controlled oversubscription: The Contractor will offer at least one VM instance type or tier of service where the State can decide to oversubscribe compute resources. Oversubscribed instances will be priced below standard instances. A standard VM instance cannot be	X		

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	oversubscribed. The Contractor will not sell more virtual compute cores or RAM than physically exists on the host.			
33.0	Large VM sizes: The State will be able to provision VM with at least 64 vCPUs as well as ~512GB of RAM. This VM configuration will exist within the general-purpose compute service, without the requirement to obtain this VM through a specialized service such as a batch computing or analytics service.	X		





34.0	Customizable container orchestration service: The State may want to run containers on a cluster that it controls, but with reduced management effort. The Contractor will offer a container orchestration service, such as a Kubernetes-based service, with the following capabilities: • The service launches containers that are automatically scheduled and placed into a pool of infrastructure — compute instances used as container hosts — based on resource needs (such as CPU, memory or availability). • The service will have the capability to be scalable (multinode cluster) and highly available. • The State will be able to customize the OS image that is used on the container hosts (for instance, the Kubernetes worker nodes). The service will support Linux or Windows, but may support only a single OS. • There will be an automatic upgrade capability for the orchestrator, but it is acceptable to require the State to update the compute nodes. • Container hosts will be able to attach volumes from the Contractor's block storage service or file storage service. Container hosts will be able to use the Contractor's virtual networking capabilities, including IP address management, routing, security tools, and firewalls. Private networks will be supported.	X		
35.0	Private image catalog: The Contractor will allow the State to maintain a private image catalog of instances that is not accessible to other cloud customers. The State will be able to provision a compute instance from this catalog. An image can be added to the catalog via customizing and saving the image of an existing compute instance, or importing an image in Open Virtualization Format (OVF or OVA), Virtual Machine Disk (VMDK) or Virtual Hard Disk (VHD) format. The State will be able to use their own custom Linux kernel	X		

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	in the image, and the process and dependencies for doing so will be publicly published.			
36.0	Two-generation OS support: In its catalog of OS images, the Contractor will offer current and “n - 1” long-term support (LTS) versions of the following server operating systems: • At least one enterprise Linux distribution (including Red Hat Enterprise Linux Server) • At least one commonly used free Linux distribution (such as CentOS, Debian or Ubuntu) At least one commonly used container-oriented Linux distribution (such as Red Hat Enterprise Linux Atomic Host)	X		





37.0	Instance metadata service: The Contractor will offer a local instance metadata key-value store that is API-queryable from within a compute instance. The metadata store contains information about the compute instance, set by the Contractor. At minimum, this will include the instance ID and at least one hostname, location (such as a region or AZ identifier) and network interfaces. The State will also be able to launch a compute instance with arbitrary State-supplied metadata that will be saved in the metadata store.	X		
38.0	Post-provisioning hooks: The State needs a way to run commands after a newly provisioned compute instance has completed booting. The Contractor will support cloud-init on Linux compute instances, including being able to pass parameters to cloud-init. The Contractor will also support an equivalent capability on Windows compute instances.	X		





39.0	Horizontal autoscaling: Autoscaling is the ability to automatically adjust compute instance capacity, based on specified conditions. This service will have the following capabilities: • It will automatically autoscale — provision and deprovision — VMs as necessary. The State will not need to preprovision a compute pool. It will automatically reconfigure the Contractor’s load-balancing service when VMs are added or subtracted.	X		
Storage				
40.0	Data migration appliance: The State need a means to cost-effectively, simply and securely migrate data into the	X		





	Contractor, without encountering network bandwidth or latency challenges. Therefore, the Contractor will offer a service that allows the State to load its data onto a Contractor-owned physical appliance and ship it to the Contractor via traditional express-mailing techniques (e.g., FedEx or United Parcel Service [UPS]). There will be a shipment-receipt endpoint in each of the regions. When the appliance is received, the State will be able to import the data into one or more services that store data. At minimum, the Contractor's object storage service will be supported. The appliance will have the following traits: • Shippable: The appliance will be suitable for shipping, or will be enclosed in a ruggedized case when shipped. Either the appliance or its case will be tamper-resistant or tamper-evident. • Encrypted: All data stored on the appliance will be automatically encrypted. • Large capacity: At least one model of the appliance will have a capacity of 50TB or more. The appliance will have at least one 10 Gbps network interface for the purposes of data transfer. • Eradicated after use: Data on the appliance will be eradicated in accordance with NIST 800-88 media sanitization guidelines, using the purge process, before the appliance is shipped to another customer. Data export appliance: The State need to have a means to cost-effectively, simply and securely retrieve their data from the Contractor, without network constraints. The provider will offer a service by which the State can load cloud data onto a Contractor-owned physical appliance, ship it to the location of their choice via express mail and retrieve the data. The appliance will be shippable, encrypted, large-capacity and eradicated after use. Data transport will comply with all State controls for shipping applicable data.			
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Block Storage Service Criteria				
41.0	Block storage service: The Contractor will offer a scalable and elastic instance-independent block storage service. At minimum, it will have the following capabilities: - A volume will be mountable on any type of compute instance. A nonboot volume will be reassignable to any other compute instance without requiring that either instance be reprovisioned. - The service will support all-solid-state-drive (SSD) storage volume sizes of at least 1TB. The storage will be highly durable by default. All data within the block storage service will be synchronously replicated, so that a minimum of two copies of each volume are stored within a logical data center. The two copies will be stored on different devices. Lower-durability storage may be offered as an option.	X		
42.0	Flexible block storage volumes: The State will be able to modify attributes of an existing block storage volume, without having to provision a new volume or copy the data. This will include increasing its size and changing its performance tier.	X		

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43.0	Block storage performance target: The State will be able to choose and achieve an expected I/O performance target for a block storage volume. The Contractor may define targets either in terms of IOPS or throughput. The Contractor will offer either a direct correlation between volume size and an explicit performance target, multiple tiers of block storage with explicit performance targets, or the ability to choose a specific performance target. These targets will be independent of compute instance type, although there may be limits to the options based on instance size and type.	X		





44.0	Encrypted block storage: The block storage service will either encrypt all volumes, or offer the State the option of encrypting specified volumes. An encrypted volume’s data is both encrypted at rest, and encrypted in transit between the block storage service and compute instances. Snapshots of encrypted volumes will also be encrypted. All encryption will meet federal FIPS 140-2 standards.	X		
45.0	Block storage snapshots: The block storage service will support crash-consistent snapshots (point-in-time incremental backups) of any storage volume, regardless of whether the volume is attached to a running compute	X		





	instance. A snapshot can be used to create a new volume with that data.			
46.0	Block storage data eradication: All eradication methods must be compliance with NIST 800-88 requirements. The block storage service will automatically use one of the following two forms of data eradication: Immediate eradication: This method immediately overwrites the data associated with a storage volume, when the storage volume is deprovisioned or otherwise released by the State. This allows the State to be assured that the data has been eradicated from the physical disks. The State will be offered a choice to opt into or out of this eradication.	X		





	• Eventual overwrite: This method guarantees that data deleted by the State cannot be accessed, and that deleted data is eventually overwritten. This means that nobody has access to read a deleted block again until that block is overwritten. Furthermore, if the State deprovisions or otherwise releases a storage volume, those blocks will be overwritten before that storage is made available again (whether to the State or to another customer).			
Object Storage Service Criteria				
47.0	Object storage service: The Contractor will offer an object storage service that supports an object size of at least 1TB and has the following capabilities: • Objects will be organized into “buckets,” though the object hierarchy may be otherwise flat. The State will be able to assign multiple custom metadata tags to an object. • When an object is stored (PUT), the service will not inform the State the PUT operation has been successful until at least two copies of the object have been successfully written. Both copies may be in the same data center. In regions with AZs, the State will be able to choose a tier of object storage where the object is stored in at least two AZs within the region. In regions without AZs, the State will be able to choose a tier of object storage where the object is stored in at least two logical data centers in the same country. • The State will be able to provide a hash-based integrity check (using a common algorithm such as MD5) for the object in the header of a PUT request. The service will compute this on the uploaded object, and if the hashes	X		

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	do not match, it will discard the object and return an error. When an object is retrieved (GET), the State will be able to do so via HTTPS. The service will send, in a header, an MD5 hash (or equivalent) for the object, so the State can verify the object's integrity.			
48.0	Object permissions: The object storage service will support an RBAC scheme for object or bucket access, including GET, PUT and LIST permission. These RBAC policies may be applied at either the bucket or individual object level. The policies will support granting access to an individual user, granting access to groups of users (based on an attribute such as a role) and granting access to users in a third-party organization. This RBAC will be integrated with the IAM service used by the State.	X		
49.0	Durable object storage: To achieve greater durability, the State will be able to choose a tier of object storage that	X		





	automatically replicates the object to three or more locations, in at least two logical data centers. Data integrity will be periodically verified through the use of checksums or the like. Furthermore, the Contractor will implement erasure coding or a similar scheme that tolerates multiple concurrent failures. Erasure coding is a method of data protection by which data is fragmented, expanded and encoded with redundant data pieces, and then stored across a set of different locations.			
50.0	Encrypted object storage: The object storage service will either offer service-side encryption (SSE) of all objects at rest, or allow the State to opt into SSE of specific objects (or buckets of objects) at rest. The SSE capability will support BYOK, and may support HYOK.	X		





51.0	Cross-region object replication: The State will be able to select a tier or opt-in capability of object storage that automatically replicates an object into another region of their choice. Such replication will be near-real-time but may be asynchronous. If the Contractor offers encrypted object storage, this capability will be able to replicate encrypted objects.	X		





52.0	Resilient object transmission: The object storage service will provide a capability for resumable object uploads, so that a network failure does not require reuploading the entire object. This capability may be API-only. For example, this may be accomplished via an API that allows uploading multiple parts of an object and reassembling them into a single object. Furthermore, the API will support downloading a specified portion of an object.	X		
53.0	Log object operations: The Contractor will enable the State to log object storage access requests; this logging may be best-effort, without guarantees for timeliness or completeness of logs. In addition, the Contractor will enable the State to log and audit operations on objects. This will include, at minimum, any operation that creates, deletes, or alters an object or bucket. Audit and access operations may be separate logs.	X		





File Storage Service Criteria				
54.0	File storage service: The Contractor will offer a file storage service that allows the State to obtain network file shares. The service will have the following capabilities: • A file system within the service will be mountable on any type of compute instance, including compute instances in a different region. • The service will support either NFSv3 or SMB 3.0 (or higher). The service may also support older NFS or SMB versions. For NFSv3, the Contractor will support a means of restricting what hosts can access the file share. For SMB 3.0 or higher, the Contractor will support built-in authentication, ACLs or directory service integration. • The storage will be highly durable by default. All data within the file storage service will be synchronously replicated, so that a minimum of two copies of each file are stored within a logical data center. The two copies will be stored on different devices. Lower-durability storage may be offered as an option. • The storage and communications will meet federal encryption requirements.	X		





Network				
55.0	Virtual networking: The Contractor will offer software-defined LAN and WAN services, allowing the State full flexibility to configure a multi-segment hierarchical network topology that is independent of compute instances. At minimum, the following capabilities will be supported: • Routing: The State will be able to define a gateway and custom routing for each virtual network. The State will be able to have at least 20 virtual networks per region. • Subnets: The State will be able to define subnets within a virtual network. The State will be able to have a minimum of 25 subnets per virtual network. Private networks: The State will be able to define virtual networks that are fully isolated and not externally routable, with their choice of RFC 1918 private IP address blocks. Traffic routed between the State's private networks within the same logical data center will have the capability to remain within private IP space. The traffic will not cross the public internet.	X		
56.0	Private networks between regions: All traffic between the Contractor's general-purpose data centers will remain on	X		

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	the Contractor’s private WAN (though this does not require private fiber). It cannot use the internet, even if the traffic is tunneled. Furthermore, traffic routed between any of the State’s private networks, including those in different logical data centers or different regions, will have the capability to remain within private IP space.			
57.0	Private networks for compute instances: The Contractor will support the following capabilities, to the extent that the OS of the compute instances permit: • All compute instances will be able to have only private IP addresses. • All compute instances will be able to have at least two IP addresses, and simultaneously have public and private IPs. The State will be able to independently route each IP. All VM instances will be able to have multiple virtual network interface cards (vNICs), each with its own Media Access Control (MAC) address.	X		





58.0	Private networks for data-handling services: The State will be able to keep traffic between their compute instances and data services within a private network. The following services will support private networks, if the Contractor has such a service: the key management service, the object storage service, at least one relational DBaaS, and the data warehouse service.	X		





59.0	Private networks between organizations: The State will be able to route traffic between two private networks within two different partitions. The State will also be able to route traffic between two private networks that belong to different cooperating organizations (including accounts held by completely separate entities). Traffic routed between private virtual networks will have the capability to remain within private IP space.	X		
60.0	Private State connectivity: The State will be able to connect their private WAN with their cloud virtual networks, as follows: The State will be able to obtain private WAN connectivity into the cloud Contractor via a carrier or colocation facility. (WAN connectivity can take a number of forms, such as Ethernet, Multiprotocol Label Switching [MPLS], virtual private LAN service [VPLS] or a direct cross-connect.) Contractors will offer at least two connectivity facility options per general-purpose region. The State will be able to have at least two private connections per region, and per virtual network. Service capabilities, such as routing features, will support both multisite customers with multiple regional gateways, as well as customers that want redundant multicarrier connectivity into a single logical data center.	X		

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61.0	Site-to-site VPN gateway: The Contractor will offer a site-to-site VPN service that connects the State’s virtual networks to their premises over the public internet, via an IPsec or SSL/TLS VPN tunnel. A virtual network will be able to have at least two VPN connections. VPN connections will support redundant Contractor termination points.	X		





62.0	Transit hub: The State will be able to route a virtual network's traffic through a centralized private network connection point for use with centralized gateways or security appliances that require a hub-and-spoke topology. The Contractor will offer a transit routing service capability that allows the State to redirect virtual network traffic through a security function, such as a State VM running a virtual security appliance, in support of such requirements. The transit routing service will support the capability to assign different routing tables per virtual network.	X		
63.0	Reliable WAN performance: The Contractor's WAN will deliver consistently acceptable performance between regions. The Contractor will deliver a minimum of 50 Mbps of throughput, along with an average TCP RTT time below an acceptable threshold, between compute instances, located in different regions. The maximum acceptable TCP RTT times between any region is 75 ms.	X		



64.0	Web load balancing: The Contractor will offer load balancer (LB) services that distribute HTTP and HTTPS traffic to compute instances and have the following capabilities: • Basic load distribution: The default algorithm used for load distribution will be published. The service will be aware of instance health to avoid sending requests to nonresponsive compute instances. • Session persistence: The LB will support connection multiplexing and keep-alive to compute instances. The LB will also support sticky sessions, so a user can be consistently routed to the same compute instance. This may be accomplished through algorithmic means (for instance, hashing connection information) or through session cookies. SSL offload: The LB will have the capability to terminate SSL connections, so that the State VMs do not have to perform SSL encryption/decryption.	X		
65.0	Layer 7 load balancing: The Contractor will offer a Layer 7 LB service that distributes HTTP and HTTPS traffic to compute instances and has the following capabilities: • Basic load balancing: The LB supports public and private networks, basic load distribution, session	X		

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	affinity and SSL offload. (See the “Web load balancing” criterion.) • URI-based routing: The LB can route requests based on State-defined unified resource identifier (URI) patterns. • X-Forwarded-For: The load balancer will support the configuration and use of X-Forwarded-For by the State if needed. HTTP/2: The LB can deliver content via HTTP/2 to clients that support HTTP/2, while supporting a HTTP/1.1 back end.			
66.0	Static IP addresses: If a compute instance is dynamically assigned an IP address, that address will remain the same across the lifetime of the instance (unless the State wants to change it). Furthermore, the State will be able to obtain an indefinitely persistent private or public IP address that can be assigned to a compute instance or LB, and that is reassignable on demand. The Contractor must be able to support portable virtual NICs, where the State can opt to move a vNIC from one instance to another, which reassigns the MAC address and associated IP addresses.	X		





67.0	DNS service: The Contractor will offer DNS as a service. The State will have the option of designating this DNS service as an authoritative (i.e., primary or secondary) DNS for a zone. Furthermore, if the State uses the Contractor’s IP addresses, the State will be able to create reverse DNS (PTR) records for those IP addresses when they are assigned to compute instances.	X		
Software Infrastructure Services				
68.0	Relational DBaaS: The Contractor will offer a serverless relational database as a service (rDBaaS). Minor version updates and major version upgrades may have different levels of automation and necessary downtime. The State will be able to configure and schedule automated backups with a retention policy, as well as export a database dump. At a minimum, the service will support one common open-source database and one common proprietary database.	X		





69.0	Relational DBaaS read replicas: At least one of the Contractor’s serverless rDBaaS offerings will scale beyond a single instance. The Contractor will either provide automatically scaled capacity or the State will be able to opt into database read replicas.	X		





70.0	Relational DBaaS synchronous replication: To achieve higher availability, at least one of the Contractor’s serverless rDBaaS offerings will offer synchronous replication of a State’s database into another logical data center. This may be an active-active or automatic failover architecture, but the application will see only a single endpoint.	X		
71.0	Data warehouse service: The Contractor will offer a serverless data warehouse service. It will be ANSI SQL-compatible, and there will be ODBC and JDBC drivers. There will be documented integrations with common business intelligence (BI) tools, such as MicroStrategy and Tableau Software.	X		





72.0	Functions as a service: The Contractor will offer a service for the execution of event-triggered functions. This seamlessly scalable and resilient serverless offering executes State-provided code on demand with support for at least three programming languages. It charges only for the resources used, has a limited execution time, scales rapidly, handles concurrency and availability across networks, and provides an error-handling mechanism. The Contractor’s monitoring or notification service (i.e., a service that invokes or handles alert-generation mechanisms) will be able to invoke a function, so that functions can be used for operational needs.	X		
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AWS Response to Michigan DTMB Cloud Services RFP
RFP No. 250000000414

SCHEDULE B – PRICING [Submitted as a Separate Attachment]





AWS Response to Michigan DTMB Cloud Services RFP
RFP No. 250000000414

SCHEDULE B – PRICING [Submitted as a Separate Attachment]





AWS Response to Michigan DTMB Cloud Services RFP
RFP No. 250000000414

SCHEDULE B – PRICING [Submitted as a Separate Attachment]





AWS Response to Michigan DTMB Cloud Services RFP
RFP No. 250000000414

SCHEDULE B – PRICING [Submitted as a Separate Attachment]





AWS Response to Michigan DTMB Cloud Services RFP
RFP No. 250000000414

SCHEDULE B – PRICING [Submitted as a Separate Attachment]





AWS Response to Michigan DTMB Cloud Services RFP
RFP No. 250000000414

SCHEDULE B – PRICING [Submitted as a Separate Attachment]





AWS Response to Michigan DTMB Cloud Services RFP
RFP No. 250000000414

SCHEDULE B – PRICING [Submitted as a Separate Attachment]





AWS Response to Michigan DTMB Cloud Services RFP
RFP No. 250000000414

Amazon Web Services, Inc.

SCHEDULE C – INSURANCE REQUIREMENTS

Request For Proposal No. 250000000414

Cloud Services RFP

BIDDER INSTRUCTIONS

Do you accept these Insurance provisions as presented?

BIDDER RESPONSE: No; please see the redlines and explanations below.

If Bidder takes exceptions to these provisions, bidder must redline these terms as part of its proposal response. Exceptions to the terms may be grounds for disqualification at the State's discretion. General statements, such as that the Bidder reserves the right to negotiate the terms and conditions, may be deemed non-responsive.

1. General Requirements. Contractor, at its sole expense, must maintain the insurance coverage as specified herein for the duration of the Term. Minimum limits may be satisfied by any combination of primary liability, umbrella or excess liability, and self-insurance coverage. To the extent damages are covered by any required insurance, Contractor waives all rights against the State for such damages. Failure to maintain required insurance does not limit this waiver.

2. Qualification of Insurers. Except for self-insured coverage, all policies must be written by an insurer with an A.M. Best rating of A- VII or higher unless otherwise approved by DTMB Enterprise Risk Management.

3. Primary and Non-Contributory Coverage. With respect to the Commercial General Liability Insurance and Automobile Liability Insurance (if required) All policies, if for which the State of Michigan is required to be named as an additional insured, it must be on a primary and non-contributory basis.

4. Claims-Made Coverage. If any required policies provide claims-made coverage, Contractor must:

- a. Maintain coverage and provide evidence of coverage for at least 3 years after the later of the expiration or termination of the Contract or the completion of all its duties under the Contract;
- b. Purchase extended reporting coverage for a minimum of 3 years after completion of work if coverage is cancelled or not renewed, and not replaced with another claims-made policy form with a retroactive date prior to the Effective Date of this Contract;

5. Proof of Insurance.

- a. Insurance certificates showing evidence of coverage as required herein must be submitted. Contractor must: (i) provide a memorandum of insurance for commercial policies to DTMB-RiskManagement@michigan.gov within 10 days of the contract execution date.
- b. Renewal insurance certificates must be provided on annual basis or as otherwise commensurate with the effective dates of coverage for any insurance required herein.
- c. Insurance certificates must be in the form of a standard ACORD Insurance Certificate unless otherwise approved by DTMB Enterprise Risk Management.
- d. All insurance certificates must clearly identify the Contract Number (e.g., notated under the Description of Operations on an ACORD form).

Commented [A16]: Amazon's policies are written on an Per Occurrence/General Aggregate basis. None of the policies AWS agrees to evidence under this RFP are written on claims made.

Commented [A17]: As a large commercial entity, we have a memorandum of insurance which is available for customers to review at <http://www.amazon.com/moi>

Due to the evolving nature of our business, AWS needs the ability to change coverage or self-insure as is commercially practical under the circumstances. So long as the limits above are maintained then the State is protected.

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~~e. The State may require additional proofs of insurance or solvency, including but not limited to policy declarations, policy endorsements, policy schedules, self-insured certification/authorization, and balance sheets.~~

~~f. In the event any required coverage is cancelled or not renewed, Contractor must provide written notice to DTMB Enterprise Risk Management no later than 5 Business Days following such cancellation or nonrenewal.~~

6. Subcontractors. Contractor is responsible for ensuring its subcontractors carry and maintain insurance coverage.

7. Limits of Coverage & Specific Endorsements.

Required Limits	Additional Requirements
Commercial General Liability Insurance	
Minimum Limits: \$1,000,000 Each Occurrence \$1,000,000 Personal & Advertising Injury \$2,000,000 Products/Completed Operations \$2,000,000 General Aggregate	Contractor must have their policy endorsed to add "the State of Michigan, its departments, divisions, agencies, offices, commissions, officers, employees, and agents" as additional insureds using endorsement CG 20 10 11 85, or both CG 20 10 12 19 and CG 20 37 12 19.
Automobile Liability Insurance	
If a motor vehicle is used in relation to the Contractor's performance, the Contractor must have vehicle liability insurance on the motor vehicle for bodily injury and property damage as required by law.	
Workers' Compensation Insurance	
Minimum Limits: Coverage according to <u>statutory limits as required by applicable US laws governing work activities.</u>	Waiver of subrogation, except where waiver is prohibited by law.
Employers Liability Insurance	
Minimum Limits: \$500,000 Each Accident \$500,000 Each Employee by Disease \$500,000 Aggregate Disease	
Privacy and Security Liability (Cyber Liability) Insurance	
Minimum Limits: \$10,000,000 Each Occurrence \$10,000,000 Annual Aggregate	Contractor must have their policy cover information security and privacy liability, privacy notification costs, regulatory defense and penalties, and website media content liability.
Professional Liability (Errors and Omissions) Insurance	

Commented [A18]: Amazon does not endorse individual entities onto our insurance policies via their own additional insured endorsements.





AWS Response to Michigan DTMB Cloud Services RFP
RFP No. 250000000414

Required Limits	Additional Requirements
Minimum Limits: \$5,000,000 Each Occurrence \$5,000,000 Annual Aggregate	

Commented [A19]: Amazon self-insures cyber and professional liability

8. Non-Waiver. This Schedule C is not intended to and is not to be construed in any manner as waiving, restricting or limiting the liability of either party for any obligations under this Contract, including any provisions hereof requiring Contractor to indemnify, defend and hold harmless the State.





SCHEDULE D – SERVICE LEVEL AGREEMENT (CONTRACTOR HOSTED)

BIDDER INSTRUCTIONS Bidder is to provide link to their Service Level Agreement. BIDDER RESPONSE: AWS Service Level Agreements (SLAs) can be found at this link https://aws.amazon.com/legal/service-level-agreements/ or any future locations specified by AWS. AWS provides standardized commercial SLAs for each of our multiple services, with over 300 separate SLAs currently published on the AWS website. Due to the rapidly evolving nature of AWS Cloud service offerings, providing SLAs online offers AWS customers an up-to-date measure of our service performance that can be accessed at any time. We are transparent with our customers over the availability of our services, and commit to offer SLAs and publish service level objectives (SLOs) for all paid, generally available services. In each service-specific SLA, we detail our general service commitment, including our monthly uptime percentage, service credits, and terms. The AWS Cloud model provides our cloud infrastructure and its components as URL entry points for each service, known as endpoints. You can specify certain endpoints to run your services globally, or in particular AWS Regions. Endpoints are designed to operate securely for at least 24 hours if isolated from network functions to maintain a level of service. This can help you maintain high levels of availability, performance, elasticity, scale, and geographic distribution, to meet any service level requirements. We use commercially reasonable efforts to make services available with the monthly uptime percentage for each AWS Region, during any monthly billing cycle, for the service commitment included in the SLA. If the service does not meet the service commitment, you will be eligible to receive a service credit as described in the service-specific SLA.





SCHEDULE D – ATTACHMENT 1 – CONTACT LIST

BIDDER INSTRUCTIONS
Bidder must provide a current list of Contractor contacts and telephone numbers to enable the State to escalate its Support Requests, including: (a) the first person to contact; and (b) the persons in successively more qualified or experienced positions to provide the support sought.

BIDDER RESPONSE:
For escalated support, the State’s request will be routed to a specialized pool of resources and assigned to the appropriate resource based on the technical case. This pool of resources will be vetted to ensure compliance with the State’s requirements and will possess the necessary AWS Cloud technical expertise and certifications. For any escalated issues, your Program Manager serves as the State’s primary point of contact. Should the request require deeper technical expertise, our Solutions Architect can provide additional support and guidance. [Table 4](#) includes the requested contacts.

Table 4. AWS Contacts for Escalated Support Requests

Name	Role	Telephone Number
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These individuals are identified as the AWS contacts for escalated support requests at the time of proposal submission. The individuals designated for support may be updated, which will be which will be communicated with the State.

In addition to the resources listed in [Table 4](#), should the State elect to purchase AWS Enterprise Support, the State will get a dedicated Technical Account Manager (TAM) and support team that provides a comprehensive suite of resources, including proactive planning, advisory services, automation tools, communication channels, and 24/7 expert support. Our Support engineering team is trained in all technical domains covered by AWS, and is available to provide you with general guidance, troubleshooting, and operational support. The State can work closely with the TAM to receive an ongoing series of engagements tailored to your needs throughout your cloud journey.





SCHEDULE E – DATA SECURITY REQUIREMENTS

BIDDER INSTRUCTIONS

Do you accept these Data Security Requirements as presented?

BIDDER RESPONSE: No; please see redlines and explanations below.

If Bidder takes exceptions to these provisions, bidder must redline these terms as part of its proposal response. Exceptions to the terms may be grounds for disqualification at the State's discretion.

General statements, such as that the Bidder reserves the right to negotiate the terms and conditions, may be deemed non-responsive.

1. Definitions. For purposes of this Schedule, the following terms have the meanings set forth below. All initial capitalized terms in this Schedule that are not defined in this **Schedule** shall have the respective meanings given to them in the Contract.

"Contractor Security Officer" has the meaning set forth in Section 2 of this Schedule.

"Contractor Network" means Contractor's data center facilities, servers, networking equipment, storage media, and host software systems (e.g., virtual firewalls) that are within Contractor's control and are used to provide the Services.

"FedRAMP" means the Federal Risk and Authorization Management Program, which is a federally approved risk management program that provides a standardized approach for assessing and monitoring the security of cloud products and services.

"FISMA" means The Federal Information Security Modernization Act of 2014 (Pub.L. No. 113-283 (Dec. 18, 2014)).

"Hosting Provider" means any Permitted Subcontractor that is providing any or all of the Hosted Services and/or Operating Environment under this Contract.

"NIST" means the National Institute of Standards and Technology.

"PCI" means the Payment Card Industry.

"PSP" or "PSPs" means the State's IT Policies, Standards and Procedures.

"SSAE" means Statement on Standards for Attestation Engagements.

"Security Accreditation Process" has the meaning set forth in **Section 6** of this Schedule

"Service" means each of the services made available by Contractor or its Affiliates for which Customer registers via the Contractor Site (or by such other means made available by Contractor), including those web services described in the Service Terms. Services do not include Third-Party Content

2. Security Officer. If the State has requests or concerns regarding security issues related to the Services, the State may contact its account manager designated by Contractor who can put the customer in contact with the then-current Contractor personnel assigned by Contractor to handle such matters, or, if the State has signed up for Enterprise Support, the State may contact the Contractor Support center through the Contractor website (currently <https://aws.amazon.com/premiumsupport/>) or by using the contact details specified in the Enterprise Support Agreement entered into with Contractor. if applicable, Contractor will appoint a Contractor employee to respond to the State's inquiries regarding

Commented [A20]: AWS has made modifications to this Schedule E in order to align with the fundamental way our services operate. AWS services have been designed so that our customers (not AWS personnel) have complete control over their data and applications. AWS commits to securing the facilities, servers, networking equipment, storage media, and host software systems used to provide our services. Our services, tools, and features allow customers to architect whatever degree of security is appropriate for their data and applications, but AWS cannot configure security measures on behalf of our customers. We have intentionally built our services to restrict anyone but the customer from managing the security of its AWS account. Security and compliance in any cloud environment is a shared responsibility between the provider and the user, which means that AWS cannot unilaterally manage or assume responsibility for the State's security measures (and in fact the way our services are designed make that technically impossible).

More information about the delineation between AWS's responsibilities and our customer's responsibilities (which we refer to as the "AWS Shared Responsibility Model") is available here: <https://aws.amazon.com/compliance/shared-responsibility-model/>.

Please see the AWS Security Standards, included as Attachment B to the AWS Enterprise Agreement, proposed in lieu of the State's sample Software Contract Terms and Conditions. The AWS Security Standards apply globally for every AWS customer. AWS provides one-to-many cloud services using multi-tenant environments (instead of dedicated facilities or hardware) in order to minimize the cost of our services, but that means AWS is not able to meet custom security requirements for any single customer. The security we provide for our facilities, hardware, and network is the same globally for every AWS customer.



the security of the Solution who has sufficient knowledge of the security of the Solution and the authority to act on behalf of Contractor in matters pertaining thereto ("**Contractor Security Officer**").

3. Contractor Responsibilities. Contractor is responsible for establishing and maintaining a data privacy and information security program for the Contractor Network, including physical, technical, administrative, and organizational safeguards, that is designed to help the State:

- (a) ensure the security and confidentiality of the State Data;
- (b) protect against any anticipated threats or hazards to the security or integrity of the State Data;
- (c) protect against unauthorized disclosure, access to, or use of the State Data;
- (d) ensure the proper disposal of any State Data in Contractor's or its subcontractor's possession; and
- (e) ensure that all Contractor Personnel comply with the foregoing.

The State has established Information Technology (IT) PSPs to protect IT resources under the authority outlined in the overarching State 1305.00 Enterprise IT Policy. In no case will the safeguards of Contractor's data privacy and information security program be less stringent than the safeguards used by the State, as documented in the State IT policies and standards, of which the publicly available ones are at https://www.michigan.gov/dtmb/policies/it_policies.

This responsibility also extends to all service providers and subcontractors with access to State Data or an ability to impact the Solution. Contractor responsibilities are determined from the PSPs based on the services being provided to the State, the type of IT solution, and the applicable laws and regulations.

4. Acceptable Use Standard. RESERVED To the extent that Contractor has access to the State's IT environment, Contractor must comply with the State's Acceptable Use Standard, see <https://www.michigan.gov/dtmb/-/media/Project/Websites/dtmb/Law-and-Policies/IT-Policy/13400013002-Acceptable-Use-of-Information-Technology-Standard.pdf>. All Contractor Personnel will be required, in writing, to agree to the State's Acceptable Use Standard before accessing State systems or Data. The State reserves the right to terminate Contractor's and/or subcontractor(s) or any Contractor Personnel's access to State Systems if the State determines a violation has occurred.

5. Protection of State's Information. Throughout the Term and at all times in connection with its actual or required performance of the Services, Contractor will:

5.1 If Hosted Services are provided by a Hosting Provider, ensure each Hosting Provider maintains FedRAMP authorization for all Hosted Services environments throughout the Term, and in the event a Hosting Provider is unable to maintain FedRAMP authorization, the State, at its sole discretion, may either a) require the Contractor to move the Software and State Data to an alternative Hosting Provider selected and approved by the State at Contractor's sole cost and expense without any increase in Fees, or b) immediately terminate this Contract for cause;

5.2 for Hosted Services provided by the Contractor, maintain either a FedRAMP authorization or an annual SSAE 18 SOC 2 Type II audit based on State required NIST Special Publication 800-53 MOD Controls using identified controls and minimum values as established in applicable State PSPs;

5.3 ensure that the Software and State Data is securely stored, hosted, supported, administered, Accessed, and backed up in the United States or its territories. The use of Offshore Resources is

Commented [A21]: Inserted language is required to clarify what the Contractor is responsible for.

Commented [A22]: AWS does not delete data on behalf of our customers because we will not have access to your AWS accounts or your data. We provide our customers with the ability to delete data from their accounts and AWS uses standard practices with respect to decommissioning the storage media used to store customer data. See additional language regarding "Deletion" below in Section 5.14 below.

Commented [A23]: Please see explanation above.

Commented [A24]: Removed so as to avoid any ambiguity around the nature of access a Contractor would have to State's facilities or systems. Contractors should not have access to State's data except as needed to maintain and provide its services. There should be a distinction between data and the system so that the system does not implicate the underlying cloud infrastructure which services millions of customers. AWS may access our own system or network but we not have a need to access customer data. Further, customers are able to limit access to their data by deploying various security measures such as encryption and secure key management.

Commented [A25]: AWS is unable to commit to maintaining FedRAMP for all services. AWS can agree to maintain an information security program designed to provide at least the same level of protection as evidenced by FedRAMP authorization, on the Effective Date, and notify the State as soon as reasonably practical of the deprecation of an existing service from FedRAMP. If the Government changes the FedRAMP requirements, we will use commercially reasonable efforts to implement additional security measures to meet such changed FedRAMP requirements, as necessary.



not permitted; Provide the State with the ability to specify the location(s) where State Data will be stored within the Contractor Network. The Contractor must not access, use, disclose to a third party or transfer State Data from the State's selected Region(s) except as necessary to provide the Services initiated by the State, or as necessary to comply with the law or valid and binding order of a governmental body.

5.5 ensure the data center(s) in which Software and State Data resides minimally meets Uptime Institute Tier 3 standards (<https://www.uptimeinstitute.com/>), or its equivalent;

5.6 maintain an information security program designed to (a) enable the State to secure State Data against accidental or unlawful loss, access, or disclosure, (b) identify reasonably foreseeable risks to the security and availability of the Contractor's Network, and (c) minimize physical and logical security risks to the Contractors Network, including through regular risk assessment and testing; maintain and enforce an information security program including safety and physical and technical security policies and procedures with respect to its Processing of the State Data that complies with the requirements of the State's data security policies as set forth in this Contract, and must, at a minimum, remain compliant with FISMA and NIST Special Publication 800-53 MOD Controls using identified controls and minimum values as established in applicable State PSPs;

5.7 Throughout the Term, Contractor must not provide any part of the Solution from the list of excluded parties in the System for Award Management (SAM) for entities excluded from receiving federal government awards for "covered telecommunications equipment or services.

5.8 provide technical and organizational safeguards for the Contractors Network to ensure:

(a) security of the Contractors Network;

(b) physical security of the facilities;

(c) measures to control access rights for authorized personnel to the Contractors Network; and

(d) processes for regularly testing, assessing and evaluating the effectiveness of the technical and organizational measures implemented by the Contractor; provide technical and organizational safeguards against accidental, unlawful or unauthorized access to or use, destruction, loss, alteration, disclosure, encryption, transfer, commingling or processing of such information that ensure a level of security appropriate to the risks presented by the Processing of State Data and the nature of such State Data, consistent with best industry practice and applicable standards (including, but not limited to, compliance with FISMA, NIST, CMS, IRS, FBI, SSA, HIPAA, FERPA and PCI requirements as applicable);

5.9 take all reasonable measures to make the Contractor's Network accessible only to authorized personnel, and only as necessary to maintain and provide the Services. The Contractor will maintain access controls and policies to manage authorizations for access to the Contractor Network from each network connection and user, including through the use of firewalls or functionally equivalent technology and authentication controls. The Contractor will maintain access controls designed to (i) restrict unauthorized access to data, and (ii) segregate each customer's data from other customers' data

(e) secure and defend all locations, equipment, systems and other materials and facilities employed in connection with the Solution against "malicious actors" and others who may seek, without authorization, to destroy, disrupt, damage, encrypt, modify, copy, access or otherwise use Hosted Services or the information found therein; and

Commented [A26]: AWS customers control the location of their data

Commented [A27]: AWS data centers are generally designed to meet the requirements of concurrent maintainability, which is at the core of the Uptime Institute Tier standards. However, AWS has chosen not to have a certified Uptime Institute-based tiering level so that we have more flexibility to expand and improve performance. AWS' approach to infrastructure ensures the highest level of performance and availability for our customers. Specifically, AWS infrastructure within our Availability Zones exceeds concurrent maintainability standards by also focusing on metrics not tracked by those standards.
<https://aws.amazon.com/compliance/uptimeinstitute/>

Commented [A28]: As a one to many provider, AWS is unable to commit to developing an information security program that complies with individual customers security policies

Commented [A29]: AWS does not have visibility into the nature of the State Data being processed and therefore cannot put in place an appropriate level of security based on the nature of the State Data.

Commented [A30]: Much of 5.9 is already covered by 5.6 and 5.8. AWS proposes language here to focus on access controls and segregation of data.



(b) prevent (i) the State and its Authorized Users from having access to the data of other customers or such other customer's users of the Solution; (ii) State Data from being commingled with or contaminated by the data of other customers or their users of the Solution; and (iii) unauthorized access to any of the State Data;

5.10 ensure that State Data is encrypted in transit and at rest using FIPS validated AES encryption modules and a key size of 128 bits or higher;

5.12 ensure the Hosted Services implements NIST compliant multi-factor authentication for privileged/administrative and other identified access.

5.13 Contractor must permanently sanitize or destroy the State's information, including State Data, from all media both digital and nondigital including backups using National Security Agency ("NSA") and/or National Institute of Standards and Technology ("NIST") (NIST Guide for Media Sanitization 800-88) data sanitization methods or as otherwise instructed by the State. Contractor must sanitize information system media, both digital and non-digital, prior to disposal, release out of its control, or release for reuse as specified above.

5.14 Deletion. The Services provide the State with controls that the State may use to retrieve or delete State Data as described in the Documentation. The Contractor's information security program includes a media decommissioning process that is conducted prior to final disposal of storage media used to store State Data. Prior to final disposal, storage media that was used to store State Data will be degaussed, erased, purged, physically destroyed, or otherwise sanitized in accordance with industry standard practices designed to ensure that the State Data cannot be retrieved from the applicable type of storage media

6. RESERVED Security Accreditation Process. Throughout the Term, Contractor will assist the State, at no additional cost, with its Security Accreditation Process, which includes the development, completion and on-going maintenance of a system security plan (SSP) using the State's automated governance, risk and compliance (GRC) platform, which requires Contractor to submit evidence, upon request from the State, in order to validate Contractor's security controls within two weeks of the State's request. On an annual basis, or as otherwise required by the State such as for significant changes, re-assessment of the system's controls will be required to receive and maintain authority to operate (ATO). All identified risks from the SSP will be remediated through a Plan of Action and Milestones (POAM) process with remediation time frames and required evidence based on the risk level of the identified risk. For all findings associated with the Contractor's solution, at no additional cost, Contractor will be required to create or assist with the creation of State-approved POAMs, perform related remediation activities, and provide evidence of compliance. The State will make any decisions on acceptable risk. Contractor may request risk acceptance, supported by compensating controls, however only the State may formally accept risk. Failure to comply with this section will be deemed a material breach of the Contract.

7. Unauthorized Access. The State may specify which Contractor regions in which State Data will be stored. The State consents to the storage of State Data in, and transfer of State Data into, the Contractor regions the State selects. Contractor will not access or use State Data except as necessary to maintain or provide the Services, or as necessary to comply with the law or a binding order of a government body. Contractor will not (a) disclose State Data to any government or third party, or (b) with the exception of Service Attributes, move State Data from the Contractor regions selected by the State; except in each case as necessary to comply with the law or a binding order of a governmental body (such as a subpoena or court order). Unless it would be in violation of a court order or other legal requirement, Contractor will give the State reasonable notice of any legal requirement or order referred

Commented [A31]: Under AWS's shared responsibility model, the responsibility for encrypting State Data is a customer responsibility. See <https://aws.amazon.com/compliance/shared-responsibility-model/>.

AWS East West and GovCloud meet the FIPS requirements of FedRAMP. AWS publishes FIPS endpoints for customers. Customers are responsible for ensuring their workloads meet the cryptographic policy requirements. See <https://aws.amazon.com/compliance/fips/>

Commented [A32]: See proposed language at 5.14.

Commented [A33]: AWS will not be accessing State systems nor will we have the ability to login to your AWS accounts. The extent of our "access" will only be to provide the electronically automated services you initiate through your AWS Management Console which are executed via application programming interface (API) commands.



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to in this Section 6, to enable the State to seek a protective order or other appropriate remedy. Contractor may not access, and must not permit any access to, State Systems, in whole or in part, whether through the Hosted Services or otherwise, without the State's express prior written authorization. Such authorization may be revoked by the State in writing at any time in its sole discretion. Any access to State Systems must be solely in accordance with the Contract and this Schedule, and in no case exceed the scope of the State's authorization pursuant to this Section. All State authorized connectivity or attempted connectivity to State Systems shall be only through the State's security gateways and firewalls and in compliance with the State's security policies set forth in the Contract as the same may be supplemented or amended by the State and provided to Contractor from time to time.

8. Security Audits

8.1 As of the Effective Date, the Contractor's Information Security Management System (ISMS) is ISO 27001 certified. Contractor will maintain an information security program designed to provide at least the same level of protection as evidenced by that certification on the Effective Date. During the Term, Contractor will maintain complete and accurate records of its data protection practices, IT security controls, and the security logs relating to State Data, including but not limited to any backup, disaster recovery or other policies, practices or procedures relating to the State Data and any other information relevant to its compliance with this Contract.

8.2 Without limiting any other audit rights of the State, the State has the right to review Contractor's data privacy and information security program prior to the commencement of Services and from time to time during the term of this Contract. The State, at its own expense, is entitled to perform, or to have performed, an audit of Contractor's data privacy and information security program. If the State chooses to perform an audit, Contractor will make all such records, appropriate personnel and relevant materials available for inspection and audit by the State or an independent data security expert that is reasonably acceptable to Contractor, provided that the State: (i) gives Contractor at least 5 Business Days prior notice of any such audit; (ii) undertakes such audit no more than once per calendar year, except for good cause shown; and (iii) conducts or causes to be conducted such audit in a manner designed to minimize disruption of Contractor's normal business operations and that complies with the terms and conditions of all data confidentiality, ownership, privacy, security and restricted use provisions of the Contract. The State may, but is not obligated to, perform such security audits.

8.3 Upon Customer's request, and provided that the parties have an applicable NDA in place, Contractor will provide to Customer a copy of the FedRAMP System Security Plan(s), Contractor's System and Organization Controls 1, Type 2 report ("SOC 1 Report") and Contractor System and Organization Controls 1, Type ("SOC 2 Report") or such alternative industry standard reports or certifications that are substantially equivalent as reasonably determined by Contractor. Contractor will make this documentation available to Customer via AWS Artifact (or an alternative means accessible via the Contractor Site) and this documentation will be treated During the Term, Contractor will, when requested by the State, provide a copy of Contractor's and Hosting Provider's (if applicable) FedRAMP System Security Plan(s) or SOC 2 Type 2 report(s) to the State within two weeks of the State's request. The System Security Plan and SSAE audit reports will be recognized as Contractor's Confidential Information.

Commented [A34]: AWS does not allow customers to physically audit its data centers. Cloud security at AWS is the highest priority. AWS customers benefit from data centers and network architecture built to meet the requirements of the most security-sensitive organizations. Customers expect AWS to provide a high level of security and prevent unauthorized third parties from accessing AWS data centers. Permitting customers or their auditors to tour, physically audit, or visit our data centers would reduce security for all customers and could expose Customer Content to risk of unauthorized access. Instead of allowing customers to perform physical audits, AWS has an independent third-party perform audits of its data centers. These audits are conducted in accordance with the Statement on Standards for Attestation Engagements No. 18 (SSAE 18) and the International Standards for Assurance Engagements No. 3402 (ISAE3402) professional standards. These third-party auditors produce a Service Organization Controls 1 (SOC 1) Type 2 report in connection with the audit. AWS will provide the SOC 1 report to customers under non-disclosure agreement (NDA).

Commented [A35]: Customers can assess AWS's compliance program by requesting copies of AWS's various attestations, certificates, and reports through AWS Artifact, a Service that provides on-demand access to AWS's security and compliance documents and is available via the AWS Management Console through the following link:
<https://aws.amazon.com/artifact>.





8.4 With respect to State Data, Contractor must implement any required safeguards as identified by the State or by any audit of Contractor's data privacy and information security program.

8.5 The State reserves the right, at its sole election, to immediately terminate this Contract or a Statement of Work without limitation and without liability if the State determines that Contractor fails or has failed to meet its obligations under this Section 8.

9. ~~RESERVED~~ Application Scanning. During the Term, Contractor must, at its sole cost and expense, scan all Contractor provided applications, and must analyze, remediate and validate all vulnerabilities identified by the scans as required by the State Web Application Security Standard and other applicable PSPs.

Contractor's application scanning and remediation must include each of the following types of scans and activities:

9.1 Dynamic Application Security Testing (DAST) — Authenticated interactive scanning of application for vulnerabilities, analysis, remediation, and validation (may include interactive Application Security Testing (IAST)).

(b) Contractor must dynamically scan a deployed version of the Software using a State approved application scanning tool, and, upon request, provide the State with verification of the scanning and remediation after Contractor has completed such scan. These scans and assessments

(i) must be completed quarterly (dates to be provided by the State) and for each major release;

9.2 Static Application Security Testing (SAST) — Scanning source code for vulnerabilities, analysis, remediation, and validation.

(a) For Contractor provided applications, Contractor, at its sole expense, must provide resources to complete static application source code scanning, including the analysis, remediation and validation of vulnerabilities identified by application source code scans. These scans must be completed for all source code initially, for all updated source code, and for all source code for each major release and Contractor must, upon request, provide the State with verification of the scanning and remediation after Contractor has completed the required scans.

9.3 Software Composition Analysis (SCA) — Third Party and/or Open Source Scanning for vulnerabilities, analysis, remediation, and validation.

(a) For Software that includes third party and open source software, all included third party and open source software must be documented and the source supplier must be monitored by the Contractor for notification of identified vulnerabilities and remediation. SCA scans may be included as part of SAST and DAST scanning or employ the use of an SCA tool to meet the scanning requirements. These scans must be completed for all third party and open source software initially, for all updated third party and open source software, and for all third party and open source software in each major release and Contractor must, upon request, provide the State with a validation that the Contractor has completed the required scans if not provided as part of SAST and/or DAST reporting.

Commented [A36]: Schedule D, Section 9 "Application 10," Section 10, "Infrastructure Scanning," and Section 11 "Nonexclusive Remedy" are not applicable to the self-service cloud infrastructure offerings that AWS provides. We provide the storage/compute building blocks (not applications) and AWS customers retain complete control over their data and applications. AWS will not have visibility or access to the State's applications and therefore will not be in a position to conduct application or infrastructure scanning on the State's IT environment. AWS does however permit its customers to conduct penetration testing in accordance with our Penetration Testing Policy (<http://aws.amazon.com/security/penetration-testing/>).





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~~9.4 In addition, application scanning and remediation may include the following types of scans and activities if required by regulatory or industry requirements, data classification or otherwise identified by the State.~~

~~(a) If provided as part of the solution, all native mobile application software must meet these scanning requirements including any interaction with an application programming interface (API).~~

~~(b) Penetration Testing – Simulated attack on the application and infrastructure to identify security weaknesses.~~

10. ~~RESERVED~~Infrastructure Scanning.

~~10.1 Contractor must ensure their infrastructure and applications are scanned using an approved scanning tool (Qualys, Tenable, or other PCI Approved Vulnerability Scanning Tool) at least monthly and provide, upon request, validation of the scanning and remediation to the State in a format that is specified by the State. Contractor will ensure the remediation of issues identified in the scan according to the remediation time requirements documented in the State's PSPs.~~

11. ~~RESERVED~~Nonexclusive Remedy for Security Breach.

~~11.1 Any failure of the Solution to meet the applicable requirements of this Schedule with respect to the security of any State Data or other Confidential Information of the State, including any related backup, disaster recovery or other policies, practices or procedures, is a material breach of the Contract for which the State, at its option, may terminate the Contract immediately upon written notice to Contractor without any notice or cure period, and Contractor must promptly reimburse to the State any Fees prepaid by the State prorated to the date of such termination.~~





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SCHEDULE E, ATTACHMENT B

~~SAFEGUARD REQUIREMENTS OF CONFIDENTIAL TAX DATA~~

~~This section sets forth the safeguard requirements for handling, storage, and processing of confidential tax information for a Contractor and their subcontractor(s) and is incorporated as an integral part of the Contract. It will facilitate administration and enforcement of the laws of the State of Michigan in a manner consistent with the applicable statutes, regulations, published rules and procedures or written communication.~~

~~I. Authority~~

~~Authority for the Michigan Department of Treasury to require that this section be included in the Contract is contained in 1941 PA 122, as amended, MCL 205.28(1)(f), which subjects current or former contractors to the same restrictions and penalties imposed upon department employees regarding the treatment of confidential information. A private contractor or its employees are strictly prohibited from disclosing taxpayer information to a third party. The prohibition against disclosure does not bar an employee of a private contractor with whom the State of Michigan (State) contracts that processes tax returns or payments pursuant to the Contract from having access to confidential information that is reasonably required for the processing or collection of amounts due this State. Private contractors and any subcontractors will follow Treasury guidelines for Authorized representatives.~~

~~II. Confidentiality~~

~~It is agreed that all information exchanged under this section will be kept confidential in accordance with the confidentiality provisions contained in the Revenue Act, MCL 205.28(1)(f) which states in part:~~

~~"Except as otherwise provided in this subdivision, an employee, authorized representative, or former employee or authorized representative of the department or anyone connected with the department will not divulge any facts or information obtained in connection with the administration of a tax or information or parameters that would enable a person to ascertain the audit selection or processing criteria of the department for a tax administered by the department."~~

~~Confidential information obtained under this contract will not be disclosed except as required by state law, or in the proper administration of applicable laws, promulgated rules and procedures. In the event, confidentiality statutes are amended, Treasury will notify Contractor of any changes. No employee, agent, authorized representative or legal representative of Contractor will disclose any information obtained by virtue of this section to any other division within their company or any other governmental agency, department or unit within such governmental agency whether local, state, federal or foreign, department or unit within such governmental agency, or any unauthorized third party. No tax returns or tax return information accessed by Contractor will be~~

Commented [A37]: IRS Publication 1075, Exhibit 7 is not applicable when AWS personnel do not have access to FTI. There may be instances when AWS will have incidental access but under IRS Publication 1075 section 11.2, such access does not put a vendor in scope for Exhibit 7 requirements.

Schedule E, Attachment B should not be required or should be removed from contract and only entered into by agencies if relevant to their chosen CSP and the service offering being purchased. If and when required, AWS can work with the State to execute an addendum to our Enterprise Agreement that details how AWS enables customer to meet the requirements of IRS Publication 1075 and Exhibit 7 – Safeguarding Contract Language. Please see "IRS Publication 1075 Compliance in AWS" whitepaper for more details.

Available at:

https://d1.awsstatic.com/whitepapers/compliance/irs_pub_1075.pdf.

Please note that under the shared security model, the customer is charged with limiting access to its data and securing its content. AWS does not know the nature of customer's content to know when there may be FTI and relies on the customer to ensure that it is utilizing appropriate safeguards including such that limits/eliminates access to FTI.

The State would be given the ability to create environment that do just that. AWS can assist/advise the State on how to set up such an environment for this purpose. The State's appropriate configuration and security eliminates access by Contractor to FTI and thus this attachment would not be applicable to Contractor.

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~~duplicate or disseminated within or outside the company without the written approval of the Contract Compliance Inspector. Tax returns and tax return information remain the property of Treasury.~~

~~Contractor may use a taxpayer's name, address and Social Security number or employer identification number to the extent necessary in connection with the processing and mailing of forms for any report or return required in the administration of any tax in the performance of the Contract. The use of the Social Security number must be in accordance with the state Social Security Number Privacy Act 454 of 2004, as amended.~~

~~Confidential information obtained under this agreement will not be disclosed in part of a report or document that is subject to FOIA.~~

~~The penalties for violating the confidentiality provisions of the Revenue Act are contained in, MCL 205.28(2) and MCL 205.27(4). MCL 205.28(2) states:~~

~~"A person who violates subsection (1)(e), (1)(f), (4) or (5) is guilty of a felony, punishable by a fine of not more than \$5,000.00, or imprisonment for not more than 5 years, or both, together with the costs of prosecution. In addition, if the offense is committed by an employee of this state, the person will be dismissed from office or discharged from employment upon conviction."~~

~~MCL 205.27(4) states:~~

~~A person who is not in violation pursuant to subsection (2), but who knowingly violates any other provision of this act, or of any statute administered under this act, is guilty of a misdemeanor, punishable by a fine of not more than \$1,000.00, or imprisonment for not more than 1 year, or both.~~

~~Information received by Treasury from the U.S. Internal Revenue Service, pursuant to section 6103(d) of the Internal Revenue Code or any other federal agency will not be subject to the exchange.~~

III. Procedure for Security

~~Contractor will safeguard any tax return information obtained under the Contract as follows:~~

~~A. Access to the tax returns and tax return information will be allowed only to those authorized employees and officials of Contractor who need the information to perform their official duties in connection with the uses of the information authorized in this Contract.~~

~~B. Any records created from tax returns and tax return information will be stored in an area that is physically safe from access by unauthorized persons during duty hours and locked in a secure area during non duty hours, or when not in use.~~

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~~C. Any records matched and any records created by the match will be processed under the immediate supervision and control of authorized personnel in a manner in which will protect the confidentiality of the records, and in such a way that unauthorized persons cannot retrieve any such records by means of a computer, remote terminal or other means.~~

~~D. All personnel who will have access to the tax returns and tax return information and to any records created by the tax return information will be advised annually of the confidential nature of the information, the safeguards required to protect the information and the civil and criminal sanctions for noncompliance contained in MCL 205.28 (2) and MCL 205.27(4) and will sign confidentiality certifications.~~

~~E. All confidential information, electronic and paper, will be secured from unauthorized access and with access limited to designated personnel only. State tax return information will not be commingled with other information. All Michigan tax returns and return information will be marked as follows: **CONFIDENTIAL DO NOT DISCLOSE MICHIGAN TREASURY TAX RETURN INFORMATION**~~

~~F. Treasury, Office of Privacy and Security or Contract Compliance Inspector may make onsite inspections or make other provisions to ensure that adequate safeguards are being maintained by the Contractor.~~

~~G. The Treasury Office of Privacy and Security may monitor compliance of systems security requirements during the lifetime of the Contract or any extension.~~

~~H. Contractor will also adopt policies and procedures to ensure that information contained in their respective records and obtained from Treasury and taxpayers will be used solely as stipulated in the Contract.~~

IV. Computer System Security of Tax Data

~~The identification of confidential tax records and defining security controls are intended to protect Treasury tax return information from unlawful disclosure, modification, destruction of information and unauthorized secondary uses.~~

~~Computer system security and physical security of tax data stored and processed by Contractor must be in compliance with the following security guidelines and standards established by Treasury. These guidelines apply to any computer system developed by Contractor, either through its own systems staff, or through a contractor, subcontractor or vendor):~~

A. Controlled Access Protection

~~All computer systems processing, storing and transmitting Michigan tax information must have computer access protection controls. These security standards are delineated in the National Institute of Standards and Technology (NIST) Special Publications number 800-53 "Recommended Security Controls for the Federal Information Systems" at <http://csre.nist.gov/publications/PubsSPs.html>. To meet these standards, the operating security features~~

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of the system must have the following minimum requirements: a security policy, accountability, assurance, and documentation.

1. **Security Policy**—A security policy is a written document describing the system in terms of categories of data processed, users allowed access and access rules between the users and the data. Additionally, it describes procedures to prevent unauthorized access by clearing all protected information on objects before they are allocated or reallocated out of or into the system. Further protection must be provided where the computer system contains information for more than one program/project, office, or Agency and that personnel do not have authorization to see all information on the system.

2. **Accountability**—Computer systems processing Michigan tax information must be secured from unauthorized access. All security features must be available (audit trails, identification and authentication) and activated to prevent unauthorized users from indiscriminately accessing Michigan tax information. Everyone who accesses computer systems containing Michigan tax information is accountable. Access controls must be maintained to ensure that unauthorized access does not go undetected. Computer programmers and contractors who have a need to access databases, and are authorized under the law, must be held accountable for the work performed on the system. The use of passwords and access control measures must be in place to identify who accessed protected information and limit that access to persons with a need to know.

a) **On line Access**—Users will be limited to any Treasury on line functions, by limiting access through functional processing controls and organization restrictions.

Any employee granted access privileges through the Contractor's Security Administrator will be approved for access and viewing rights to Treasury on line systems by the Department of Treasury, Office of Privacy and Security.

b) Operating Features of System Security

Contractor must meet the following levels of protection with respect to tax return information. Individual user accountability must be ensured through user identification number and password.

i. Access rights to confidential tax information must be secured through appropriate levels of authorization.

ii. An audit trail must be maintained of accesses made to confidential information.

iii. All confidential and protected information must be cleared from a system before it is used for other purposes not related to the enforcement, collection or





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~~exchange of data not covered by this section or by an addendum to this Contract.~~

- ~~iv. Hard copies made of confidential tax return information must be labeled as confidential information.~~
- ~~v. Confidential Treasury tax information will be blocked or coded as confidential on system.~~
- ~~vi. Any computer system in which Michigan tax return information resides must systematically notify all users upon log in of the following disclosure penalties for improperly accessing or making an authorized disclosure of Michigan tax return information:~~

~~NOTICE TO EMPLOYEES AND AUTHORIZED REPRESENTATIVES~~

~~This system contains Michigan Department of Treasury tax return information. DO NOT DISCLOSE OR DISCUSS MICHIGAN RELATED TAX RETURN INFORMATION with unauthorized individuals. The Revenue Act at MCL 205.28(1)(f) prohibits such disclosure.~~

~~MICHIGAN PENALTIES~~

~~A person making a willful unauthorized disclosure or inspection (browsing) of tax return information may be charged with the following Michigan penalties:~~

- ~~• Criminal penalties up to \$5,000 and/or imprisonment for 5 years, plus costs and dismissal from employment if it is found that a current or former employee or authorized representative has made an unauthorized disclosure of a tax return or tax return information or divulged audit selection or processing parameters. [MCL 205.28(2)]~~
- ~~• A misdemeanor, punishable by a fine of not more than \$1,000.00, or imprisonment for not more than 1 year, or both if the person is not in violation pursuant to MCL 205.27(2), but who knowingly violates any other provision of this act, or of any statute administered under this act.~~

~~This statement is subject to modification. A confidentiality statement, subject to modification, will be sent as needed by the Security Administrator to all employees, contractors, and legal representatives of Contractor.~~

- ~~3. Assurance Contractor must ensure that all access controls and other security features are implemented and are working when installed on their computer system. Significant~~

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~~enhancements or other changes to a security system must follow the process of review, independent testing, and installation assurance. The security system must be tested at least annually to assure it is functioning correctly. All anomalies must be corrected immediately.~~

~~a. The Contractor must initiate corrective action for all non-conformities as soon as detected and immediately advise the Contract Compliance Inspector. Notice of the corrective action must be provided to the Contract Compliance Inspector. All non-conformities must be reported to the Contract Compliance Inspector with the following:~~

- ~~a. Duration of non-conformity/interruption~~
- ~~b. Reason for non-conformity/interruption~~
- ~~c. Resolution~~

~~b. All non-conformities to the specifications/tasks of the Contract must be corrected within four (4) hours. The State recognizes there will be instances when adherence to this time frame will not be possible. However, the State will only tolerate this on an exception basis. To request an exception to this time frame, the Contractor must submit a detailed project plan to address the non-conformity within four (4) hours to the Contract Compliance Inspector for approval.~~

~~4. **Documentation** — Design and test documentation must be readily available to the state. The developer or manufacturer should initially explain the security mechanisms, how they are implemented and their adequacy (limitations). This information should be passed on to the security officer or supervisor. Test documentation should describe how and what mechanisms were tested and the results. If recognized organizations/tests/standards are used, then a document to that effect will suffice. For example, a system that has been tested and certified as meeting certain criteria may have a document stating this fact, without detailed tests/results of information. Contractor, however, must ensure the documentation covers the exact system and that it includes the specific computer system used by Contractor.~~

~~Additionally, documentation must include a security administrator's guide. The security administrator's guide is addressed to the System's Administrator and Security Officer and will describe the protection mechanisms provided by the security system, guidelines on their use and how they interact. This document will present cautions about security functions and describe privileges that should be controlled when running a secure system. The document will be secured and locked at all times with access rights only by the Systems Administrator and Security Officer.~~

~~**Note:** When a security system is designed or purchased for a specific computer or computer system, the security mechanisms must be reviewed by the State to ensure that needed security~~





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~~parameters are met. An independent test should be implemented on the specific computer or computer system to ensure that the security system meets the security parameters within this contract and developed with the computer system. The test may be arranged by the developer but must be done by an independent organization. Contractor must assign responsible individuals (Security Officers) with knowledge of information technology and applications to oversee the testing process. These individuals must be familiar with technical controls used to protect the system from unauthorized entry.~~

~~Finally, contingency and backup plans must be in place to ensure protection of Michigan tax information.~~

~~V. Electronic Transmission of Michigan Tax Information~~

~~The two acceptable methods of transmitting Michigan tax information over telecommunications devices are encryption and using guided media. Encryption involves altering data objects in a way that the objects become unreadable until deciphered with the appropriate software at the intended destination. Guided media involves transmission of data over twisted pair cable, coaxial cable or end-to-end fiber optics which are typically used in secure computer networks like the state's Local Area Network (LAN), telephone systems, and television distribution.~~

~~Cryptography standards have been adopted by the IRS and can be used to provide guidance for encryption, message authentication codes or digital signatures and digital signatures with or without an associated certification infrastructure. For further information, see IRS Publication 4075 at the IRS web site.~~

~~Unencrypted cable circuits of fiber optics are an acceptable alternative for transmitting Michigan tax information. Adequate measures must be taken to ensure that circuits are maintained on cable and not converted to unencrypted radio or microwave transmission. Additional precautions should be taken to protect the cable, i.e., burying the cable underground or in walls or floors and providing access controls to cable vaults, rooms and switching centers.~~

~~A. Remote Access~~

~~Accessing databases containing Michigan tax information from a remote location—that is, a location not directly connected to the Local Area Network (LAN)—will require adequate safeguards to prevent unauthorized entry.~~

~~For remote access, the contractor is required to use an identification security card that requires both PIN and card in possession. The State identified and approved methods for remote vendor access are as follows:~~

- ~~• SecureID through VPN—State provided SecureID token and VPN software in order to access State of Michigan resources. Appropriate Acceptable Use policies and signoffs are required.~~
- ~~• Follow the Sun SecureID—Vendor is provided with VPN software and a SOM technical resource coordinates with the DTMB Client Service Center to provide~~

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~~secure ID code access to specific State of Michigan resources. Appropriate Acceptable Use Policies and signoffs are required.~~

~~B. Portable Computer Devices~~

~~Any entrusted confidential information collected or accessed during this Contract must be encrypted when stored on all storage devices and media. This includes, but not limited to, disk drives for servers and workstations, and portable memory media (PDAs, RAM drives, memory sticks, etc.).~~

~~VI. Record Keeping Requirements for Information Received~~

~~Each Contractor, requesting and receiving information will keep an accurate accounting of the information received. The audit trail will be required which will include the following information:~~

- ~~a. Taxpayer's name~~
- ~~b. Identification number~~
- ~~c. Information requested~~
- ~~d. Purpose of disclosure request~~
- ~~e. Date information received~~
- ~~f. Name of Division and employee making request~~
- ~~g. Name of other employees who may have had access~~
- ~~h. Date destroyed~~
- ~~i. Method of destruction~~

~~The Contractor will adopt and implement formal procedures to:~~

- ~~• Ensure proper handling of tax returns and tax return information;~~
- ~~• Secure and safeguard information from unauthorized use; and~~
- ~~• Ensure appropriate destruction of information and materials retrieved from Treasury.~~

~~A. Electronic Media~~

~~Contractor will keep an inventory of magnetic and electronic media received under the Contract.~~

~~Contractor must ensure that the removal of tapes and disks and paper documents containing Michigan tax return information from any storage area is properly recorded on charge out records. Contractor is accountable for missing tapes, disks, and paper documents.~~

~~B. Recordkeeping Requirements of Disclosure Made to State Auditors~~

~~When disclosures are made by Contractor to State Auditors, these requirements pertain only in instances where the Auditor General's staff extracts Michigan tax returns or tax information for further review and inclusion in their work papers. Contractor must identify the hard copies~~

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~~of tax records or if the tax information is provided by magnetic tape format or through other electronic means, the identification will contain the approximate number of taxpayer's records, the date of inspection, the best possible description of the records and the name of the Auditor(s) making the inspection.~~

~~The Disclosure Officer must be notified, in writing, of any audits done by auditors, internal or otherwise, of Contractor that would involve review of Treasury processing parameters.~~

~~VII. Contract Services~~

~~To the extent the Contractor employs an independent agency, consultant, or agent to process confidential information which includes Michigan tax return information, the Contractor will notify the Treasury Disclosure Officer before the execution of any such agreement. Each agreement will include in the agreement the following recommended safeguard provisions:~~

~~A. The identification of confidential tax records and defining security controls are intended to protect Treasury tax return information from unlawful disclosure, modification, destruction of information and unauthorized secondary uses.~~

~~Definition of Treasury Tax Return Information as defined in Revenue Administrative Bulletin (RAB) 1989-39:~~

~~B. Taxpayer's identity, address, the source or amount of his/her income, payments, receipts, deductions, exemptions, credits, assets, liabilities, net worth, tax liability, tax withheld, deficiencies, over assessments, or tax payments whether the taxpayer's return was, is being or will be examined or subject to their investigation or processing, or any other data, received by, recorded by, prepared by, furnished to or collected by the agency with respect to a return or with respect to the determination of the existence, or liability (or the amount thereof) of any person under the tax laws administered by the Department, or related statutes of the state for any tax, penalty, interest, fine, forfeiture, or other imposition or offense. The term "tax return information" also includes any and all account numbers assigned for identification purposes.~~

~~B. An acknowledgment that a taxpayer has filed a return is known as a "fact of filing" and may not be disclosed. All tax return data made available in any format will be used only for the purpose of carrying out the provisions of the Contract between Contractor and the sub-contractor. Information contained in such material will be treated as confidential and will not be divulged or made known in any manner to any person except as may be necessary in the performance of the Contract between Contractor and the subcontractor. In addition, all related output will be given the same level of protection as required for the source material.~~

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~~C. The subcontractor will certify that the data processed during the performance of the Contract between Contractor and the subcontractor will be completely purged from all data storage components of the subcontractor's computer facility, and no output will be retained by the subcontractor at the time the work is completed.~~

~~D. Destruction of tax data, including any spoilage or any intermediate hard copy printout which may result during the processing of Michigan tax return information, will be documented with a statement containing the date of destruction, description of material destroyed, and the method used. Destruction parameters must meet the standards of Section IX, Disposal of Tax Information, of this agreement.~~

~~E. Computer system security and physical security of tax data stored and processed by the subcontractor must be in compliance with security guidelines and standards established by this contract. See section VI (Record Keeping Requirements for Information Received in Paper Format) for more details.~~

~~F. The Contractor will be responsible for maintaining a list of employees authorized to access Michigan tax return information and will provide a copy of such list to Treasury.~~

~~G. No work involving information furnished under the contract will be subcontracted without the specific approval of Treasury. Contractor and approved subcontractors handling Michigan tax return information will be required to sign the *Vendor, Contractor or Subcontractor Confidentiality Agreement* provided by Treasury, (Form 3337, see Attachment A). The original agreements will be returned to the Disclosure Officer for the Department of Treasury and a copy sent to the Contract Compliance Inspector.~~

~~VIII. Transport of Tax Information~~

~~In the event, it is necessary to transport confidential tax return information the Contractor is responsible for holding the carrier responsible for safeguarding the records. The Contractor must obtain a signed *Vendor, Contractor or Subcontractor Confidentiality Agreement* (Form 3337, see Attachment A) for each carrier employee who has access to Michigan tax return information. The original agreements will be returned to the Department of Treasury, Disclosure Officer and a copy sent to the Contract Compliance Inspector.~~

~~If it is necessary to transfer records and responsibility for transport to a third carrier due to a mishap during transportation, the Contractor is responsible for ensuring safeguard standards remain enforce. This type of incident will be documented in accordance with the incident reporting guidelines in procedure PT-03253, "Incident Reporting and Handling".~~

~~Any such incidents must be reported to the Contract Administrator immediately.~~

~~IX. Disposal of Tax Information~~

~~Materials furnished to Contractor, such as tax returns, remittance vouchers, W-2 reports, correspondence, computer printouts, carbon paper, notes, memorandums and work papers will be destroyed by burning, mulching, pulverizing or shredding. If shredded, destroy paper using cross cut shredders which produce particles that are 1 mm x 5mm (0.04in x 0.2 in.) in size (or smaller).~~

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~~Data tracks should be overwritten or reformatted a minimum of three times or running a magnetic strip over entire area of disk at least three (3) times to remove or destroy data on the disk media. Electronic data residing on any computer systems must be purged based on Treasury's retention schedule.~~

~~Contractor and its subcontractor(s) will retain all confidential tax information received by Treasury only for the period of time required for any processing relating to the official duties and then will destroy the records. Any confidential tax information that must be kept to meet evidentiary requirements must be kept in a secured, locked area and properly labeled as confidential return information. See Procedure for Security (Section III of this agreement) for more details.~~

~~X. Security Responsibility~~

~~Contractor will designate a security person who will ensure that each individual having access to confidential tax information or to any system which processes Michigan tax return information is appropriately screened, trained and executes a Vendor, Contractor or Subcontractor Confidentiality Agreement (Form 3337, see Attachment A) before gaining access or transaction rights to any process and computer system containing Treasury tax return information.~~

~~Each Contractor or their subcontractor(s) employees' access and transaction rights will be reviewed periodically to ensure that there is a need to know Treasury tax return information displayed in any media.~~

~~Michigan tax return information will be made available only to individuals authorized by the Contract. Contractor will maintain a list of persons authorized to request and receive information and will update the list as necessary. A copy of the list must be furnished to the Michigan Department of Treasury Disclosure Officer and Contract Compliance Inspector.~~

~~XI. Security Breach Notification~~

~~The Contractor is required to report to Treasury, on Form 4000, Incident Reporting (Attachment B) any use or disclosure of confidential information, whether suspected or actual, immediately after becoming aware of the misuse or disclosure. The Contractor may substitute its internal form for Form 4000 if all pertinent information is included.~~

~~The Contractor agrees to immediately contain the breach if it is determined ongoing.~~

~~Treasury has the right to terminate the Contract when a breach has occurred, and the Contractor cannot demonstrate proper safeguards were in place to avert a breach. Treasury must approve Contractor's resolution to the breach.~~

~~XIII. Certification of Compliance~~

~~The Contractor will fully protect State Tax Information (STI) entrusted to them. Each Contractor or subcontractor who will have access to STI must read and sign a confidentiality agreement. This contract requires that all information obtained from the Michigan Department of Treasury under~~

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~~the Revenue Act, PA 122 of 1941, MCL 205.28 (1)(f) be kept confidential. In the event of a security breach involving STI in the possession of the Contractor, the Contractor agrees to provide full cooperation to conduct a thorough security review. The review will validate compliancy with the Contract, and state laws and regulations.~~

~~If, as a result of the Contractor's failure to perform as agreed, the State is challenged by a governmental authority or third party as to its conformity to or compliance with State, Federal and local statutes, regulations, ordinances or instructions; the Contractor will be liable for the cost associated with loss of conformity or compliance.~~

~~The Contractor understands the cost reflects violation fines identified by the Michigan Social Security Number Privacy Act, 454 of 2004 and the Michigan Identity Theft Protection Act, Act 452 of 2004 as amended.~~

~~XI. Effective Date~~

~~These Safeguard requirements will be reviewed whenever the Contract modifications include specifications or processes that affect tax data.~~





Reset Form

Michigan Department of Treasury
3337 (Rev. 10-16)

Vendor, Contractor or Subcontractor Confidentiality Agreement

The Revenue Act, Public Act 122 of 1941, MCL 205.28(1)(f), the City Income Tax Act, Public Act 284 of 1964, MCL 141.674(1), and Internal Revenue Code (IRC) 6103(d), make all information acquired in administering taxes confidential. The Acts and IRC hold a vendor, contractor or subcontractor and their employees who sell a product or provide a service to the Michigan Department of Treasury, or who access Treasury data, to the strict confidentiality provisions of the Acts and IRC. Confidential tax information includes, but is not limited to, information obtained in connection with the administration of a tax or information or parameters that would enable a person to ascertain the audit selection or processing criteria of the Michigan Department of Treasury for a tax administered by the department.

INSTRUCTIONS. Read this entire form before you sign it. If you do not complete this agreement, you will be denied access to Michigan Department of Treasury and federal tax information. After you and your witness sign and date this form, keep a copy for your records. Send the original to the address listed below.

Company Name and Address (Street or RR#, City, State, ZIP Code)		Last Name	First Name
		Driver License Number/Passport Number	Telephone Number
State of Michigan Department	Division	Subcontractor Name if Product/Service Furnished to Contractor	
Describe here or in a separate attachment the product or service being provided to the State of Michigan Agency (Required).			

Confidentiality Provisions. It is illegal to reveal or browse, except as authorized:

- All tax return information obtained in connection with the administration of a tax. This includes information from a tax return or audit and any information about the selection of a return for audit, assessment or collection, or parameters or tolerances for processing returns.
- All Michigan Department of Treasury or federal tax returns or tax return information made available, including information marked "Official Use Only". Tax returns or tax return information shall not be divulged or made known in any manner to any person except as may be needed to perform official duties. Access to Treasury or federal tax information, in paper or electronic form, is allowed on a need-to-know basis only. Before you disclose returns or return information to other employees in your organization, they must be authorized by Michigan Department of Treasury to receive the information to perform their official duties.
- Confidential information shall not be disclosed by a department employee to confirm information made public by another party or source which is part of any public record. 1099 AC, R 2005.1004(1).

Violating confidentiality laws is a felony, with penalties as described:

Michigan Penalties

MCL 205.28(1)(f) provides that you may not willfully disclose or browse any Michigan tax return or information contained in a return. Browsing is defined as examining a return or return information acquired without authorization and without a need to know the information to perform official duties. Violators are guilty of a felony and subject to fines of \$5,000 or imprisonment for five years, or both. State employees will be discharged from state service upon conviction.

Any person who violates any other provision of the Revenue Act, MCL 205.1, et seq., or any statute administered under the Revenue Act, will be guilty of a misdemeanor and fined \$1,000 or imprisonment for one year, or both, MCL 205.27(4).

City Penalties

MCL 141.674(2) provides that any person divulging confidential City Tax information is guilty of a misdemeanor and subject to a fine not exceeding \$500 or imprisonment for a period not exceeding 90 days, or both, for each offense.

Federal Penalties

If you willfully disclose federal tax returns or tax return information to a third party, you are guilty of a felony with a fine of \$5,000 or imprisonment for five years, or both, plus prosecution costs according to the Internal Revenue Code (IRC) §7213, 26 USC 7213.

In addition, inspecting, browsing or looking at a federal tax return or tax return information without authorization is a felony violation of IRC §7213A subjecting the violator to a \$1,000 fine or imprisonment for one year, or both, plus prosecution costs. Taxpayers affected by violations of §7213A must be notified by the government and may bring a civil action against the federal government and the violator within two years of the violation. Civil damages are the greater of \$1,000 or actual damages incurred by the taxpayer, plus the costs associated with bringing the action, 26 USC 7431.

Failure to comply with this confidentiality agreement may jeopardize your employer's contract with the Michigan Department of Treasury.

Certification		
By signing this Agreement, I certify that I have read the above confidentiality provisions and understand that failure to comply is a felony.		
Print name of employee signing this agreement	Signature of person named above	Date signed
Print Witness Name (Required)	Signature of Witness (Required)	Date signed

Submit your form to the following address:

Office of Privacy and Security/ Disclosure Unit
Michigan Department of Treasury
430 W. Allegan Street
Lansing, MI 48922

Questions, contact the Office of Privacy and Security by telephone, 517-636-4239; fax, 517-636-5340; or email: Treas_Disclosure@michigan.gov

Commented [A38]: Request to strike based on comment to Schedule E, Attachment B.. Also, this Vendor, Contractor, or Subcontractor Confidentiality Agreement is not applicable to AWS based on the nature of AWS's service offering.



AWS Response to Michigan DTMB Cloud Services RFP
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4000 (Rev. 05-14)

Reset Form

Incident Report

INSTRUCTIONS: Complete Parts 1 and 2 and immediately submit Initial Report to the Office of Privacy and Security. After incident resolution, submit Final Report (Parts 1, 2 and 3) to the Office of Privacy and Security. Refer to Procedure PT-03253, Incident Reporting and Handling.

PART 1: A. CONTACT INFORMATION (Reporting Entity)			
Full Name (Last, First, Middle Initial)		Division/Office	
Telephone Number	Fax Number	E-Mail Address	
B. CONTACT INFORMATION (Affected Entity)			
Full Name (Last, First, Middle Initial)		Division/Office	
Telephone Number	Fax Number	E-Mail Address	
PART 2: INCIDENT INFORMATION			
Whose information was involved in the incident? ☐ Treasury ☐ Federal Tax Information ☐ Other State Agency, specify _____ ☐ Other _____			
Incident Category (select all that apply)			
☐ Passwords Shared/Stolen	☐ Computer Virus/Spam	☐ Paper Archives Compromised	
☐ Misrouted Communications	☐ Data Destruction/Deletion	☐ Safe/Lockbox/other Compromise	
☐ Unauthorized Access	☐ Backups Missing or Stolen	☐ Delivery of Documents Lost	
☐ Fraudulent Actions	☐ Hacking of Networks/Systems	☐ Inappropriate Destruction Paper	
☐ Lost/Stolen Information/Data	☐ Improperly Secured Sys/Web	☐ Inappropriate Destruction Media	
☐ Lost/Stolen Cash/Checks	☐ Circumvention of Security Protocols	☐ Lost/Stolen Equipment	
☐ Inappropriate Building Access	☐ _____	☐ _____	
Incident Affects			
☐ Financial Information/Resources	☐ Personal Information (SSN, Driver License No. Financial Information)	☐ Unauthorized/Unlawful Activity	
☐ Confidential/Sensitive Information	☐ Human Resources (threat)	☐ Other _____	
Date Incident Occurred	Time Incident Occurred	Date Incident Discovered	Time Incident Discovered
Incident Location		Number of Individuals Affected	
Involved Parties/Entities		Does this involve personal information (first and last name along with a SSN, driver license number, or credit/debit card account number)? ☐ Yes ☐ No	
Date of Initial Report			
Description of Incident			

Commented [A39]: Request to strike based on
comment to Schedule E, Attachment B.



4000, Page 2

PART 1: CONTACT INFORMATION (Affected Entity)			
Full Name (Last, First, Middle Initial)		Division/Office	
PART 3: INCIDENT RESOLUTION			
Notification issued to affected individuals? ☐ Yes ☐ No		How many notifications were sent? ☐ E-mail ☐ Telephone ☐ US Mail ☐ Web	
Who was notified?		Date notification was issued	
Incident Cost ☐ Check if incident costs are less than \$250. If \$250 or more, complete the detailed summary of costs below.			
Marbours:		Other:	
Treasury \$		Postage \$	
DTMB-OES \$		Credit Monitoring Service \$	
DTMB-Treasury Agency Services \$		\$	
Total Cost of Incident \$			
Action Taken			
Incident Impact			
Post Incident Recommendations			
PART 4: REPORT PREPARER INFORMATION			
Final Report Prepared By:	Date Prepared	Preparer Title	Preparer's Telephone Number
Preparer Signature			Date
OFFICE OF PRIVACY AND SECURITY USE ONLY			
Administrator, Office of Privacy and Security Signature			Date

Commented [A40]: Request to strike based on comment to Schedule E, Attachment B.





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SCHEDULE E, Attachment 1 – PCI Compliance and CEPAS

1. PCI Compliance.

Contractors that process, transmit store or affect the security of credit/debit cardholder data, must adhere to the PCI Data Security Standard. As at the Effective Date, Contractor is validated as compliant as a Level 1 service provider with the Payment Card Industry (PCI) Data Security Standard (DSS) ("PCI DSS"). During the Term, Contractor will maintain an information security program designed to provide at least the same level of protection as evidenced by its by its status as a Level 1 service provider under the PCI DSS on the Effective Date.

The State may access AWS's security and compliance documents, including evidence of AWS's status as a Level 1 service provider under PCI DSS at AWS Artifact (available via the AWS Management Console or <https://aws.amazon.com/artifact/>). FAQs about PCI DSS and AWS's PCI DSS certification are available on the AWS Site (<https://aws.amazon.com/compliance/pci-dss-level-1-faqs/>).

The Contractor is responsible for the security of cardholder data in its possession. The data may only be used to assist the State or for other uses specifically authorized by law.

The Contractor must notify the State's Contract Administrator (within 48 hours of discovery) of any breaches in security where cardholder data has been compromised. In that event, the Contractor must provide full cooperation to the card associations (e.g. Visa, MasterCard, Discover, and American Express) and state acquirer representative(s), or a PCI approved third party, to conduct a thorough security review. The Contractor must provide, at the request of the State, the results of such third party security review. The review must validate compliance with the PCI Data Security Standard for protecting cardholder data. At the State's sole discretion, the State may perform its own security review, either by itself or through a PCI approved third party.

The Contractor is responsible for all costs incurred as the result of the breach. Costs may include, but are not limited to, fines/fees for non-compliance, card reissuance, credit monitoring, and any costs associated with a card association, PCI approved third party, or State initiated security review.

Without limiting Contractor's obligations of indemnification as further described in this Contract, Contractor must indemnify, defend, and hold harmless the State for any and all claims, including reasonable attorneys' fees, costs, and incidental expenses, which may be suffered by, accrued against, charged to, or recoverable from the State in connection with the breach.

The Contractor must dispose of cardholder data when it is no longer needed in compliance with PCI DSS policy. The Contractor must continue to treat cardholder data as confidential upon contract termination.

The Contractor must provide the State's Contract Administrator with an annual Attestation of Compliance (AOC) if or a Report on Compliance (ROC) showing the contractor is in compliance with the PCI Data Security Standard. The Contractor must notify the State's Contract Administrator of all failures to comply with the PCI Data Security Standard.

2. CEPAS Electronic Receipt Processing Standard.

All electronic commerce applications that allow for electronic receipt of credit or debit card and electronic check transactions must be processed via the State's Centralized Electronic Payment Authorization System (CEPAS). To minimize the risk to the State, full credit/debit card numbers, sensitive authentication data, and full bank account information must never be stored on state owned IT resources. For additional information, refer to the CEPAS Integration Guide that can be found at:

https://stateofmichigan.sharepoint.com/teams/insidetreasury/about-treasury/work-areas/Documents/CEPAS/Integration%20Guides%20and%20Hotfix%20Notes/PayPoint%20Merchant%20Integration%20Guide%2014_2021.pdf?CT=1623169629598&OR=Outlook-Body&CID=97F008F1-D094-4ED7-9335-63E0B12988E6

Commented [A41]: This schedule has been updated to reflect AWS's Level 1 validation under Payment Card Industry Data Security Standard (PCI DSS).

Commented [A42]: As described in our above comments for Schedule E, Attachment B, security in a cloud environment is a shared responsibility between the provider and the customer. AWS cannot assume responsibility for cardholder data because we will not even know when cardholder data is being used/stored within the State's AWS account.



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SCHEDULE E, Attachment C - HIPAA BUSINESS ASSOCIATE AGREEMENT

~~The parties to this Business Associate Agreement ("Agreement") are the Michigan Department of Technology, Management and Budget ("DTMB", "Business Associate 1") on behalf of [Insert Name of End User Agency whose PHI is involved] ("Covered Entity") and [Insert Name of Contractor who will be handling PHI] ("Business Associate 2").~~

~~RECITALS~~

- ~~A. Under this Agreement, Business Associate 2 will collect or receive certain information on the Covered Entity's behalf, some of which may constitute Protected Health Information ("PHI"). In consideration of the receipt of PHI, the Business Associate agrees to protect the privacy and security of the information as set forth in this Agreement.~~
- ~~B. Covered Entity and each Business Associate intend to protect the privacy and provide for the security of PHI collected or received by the Business Associate under the Agreement in compliance with the Health Insurance Portability and Accountability Act of 1996, Public Law 104 191 ("HIPAA") and the HIPAA Rules, as amended.~~
- ~~C. The HIPAA Rules require the Covered Entity to enter into an agreement containing specific requirements with Business Associate 1, and likewise Business Associate 1 must enter an agreement with Business Associate 2 before the Business Associate 2's receipt of PHI.~~

~~AGREEMENT~~

~~1. Definitions~~

~~a. The following terms used in this Agreement have the same meaning as those terms in the HIPAA Rules: Breach; Data Aggregation; Designated Record Set; Disclosure; Health Care Obligations; Individual; Minimum Necessary; Notice of Privacy Practices; Protected Health Information; Required by Law; Secretary; Security Incident; Security Measures; Subcontractor; Unsecured Protected Health Information, and Use.~~

~~b. "Business Associate" has the same meaning as the term "business associate" at 45 CFR 160.103 and regarding this Agreement means DTMB ("Business Associate 1") and [Insert Name of Contractor] ("Business Associate 2").~~

Commented [A43]: AWS has its own Business Associate Addendum, which reflects the requirements of AWS's operational model as well as applicable laws, rules and regulations. Specifically, AWS Services operate in a content-neutral manner, meaning that at any given time, AWS will not know which of Customer's accounts or Customer Content include PHI. Therefore, the AWS BAA identifies the steps customers must take to identify which accounts include PHI as well as their obligations under the shared responsibility mode. The AWS Professional Services Business Associate Addendum, attached as Schedule E, Attachment C-1

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~~e. “Covered Entity” has the same meaning as the term “covered entity” at 45 CFR 160.103 and regarding this Agreement means the [Insert Name of End-User Agency whose PHI is involved].~~

~~d. “HIPAA Rules” means the Privacy, Security, Breach Notification, and Enforcement Rules at 45 CFR Part 160 and Part 164.~~

~~2. Obligations of Business Associate 2.~~

~~Business Associate 2 agrees to:~~

~~a. use and disclose PHI only as permitted or required by this Agreement or as required by law.~~

~~b. implement and use appropriate safeguards and comply with Subpart C of 45 CFR 164 regarding electronic protected health information, to prevent use or disclosure of PHI other than as provided in this Agreement. Business Associate 2 must maintain, and provide a copy to the Covered Entity and Business Associate 1 within 10 days of a request from the Covered Entity or Business Associate 1, a comprehensive written information privacy and security program that includes security measures that reasonably and appropriately protect the confidentiality, integrity, and availability of PHI relative to the size and complexity of Business Associate 2’s operations and the nature and the scope of its activities.~~

~~c. report to the Covered Entity and Business Associate 1 within 24 hours of any use or disclosure of PHI not provided for by the Agreement of which it becomes aware, including breaches of Unsecured Protected Health Information as required by 45 CFR 164.410, and any Security Incident of which it becomes aware. If Business Associate 2 is responsible for any unauthorized use or disclosure of PHI, it must promptly act as required by applicable federal and State laws and regulations. Covered Entity and Business Associate 2 will cooperate in investigating whether a breach has occurred, to decide how to provide breach notifications to individuals, the federal Health and Human Services’ Office for Civil Rights, and potentially the media.~~

~~d. ensure, according to 45 CFR 164.502(e)(1)(ii) and 164.308(b)(2), if applicable, that any subcontractors that create, receive, maintain, or transmit PHI on behalf of Business Associate 2 agree to the same restrictions, conditions, and requirements that apply to Business Associate 2 regarding such information. Each subcontractor must sign an agreement with Business Associate 2 containing substantially the same provisions as this Agreement and further identifying Business Associate 1 and Covered Entity as a third party beneficiary of the agreement with the subcontractor. Business Associate 2 must implement and~~

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~~maintain sanctions against subcontractors that violate such restrictions and conditions and must mitigate the effects of any such violation.~~

~~e. make available PHI in a Designated Record Set to the Covered Entity within 10 days of a request from the Covered Entity to satisfy the Covered Entity's obligations under 45 CFR 164.524.~~

~~f. within ten days of a request from the Covered Entity, amend PHI in a Designated Record Set under, 45 CFR § 164.526. If any individual requests an amendment of PHI directly from Business Associate 2 or its agents or subcontractors, Business Associate 2 must notify the Covered Entity in writing within five days of the request and amend the information within ten days of the request. Any denial of amendment of PHI maintained by Business Associate 2 or its agents or subcontractors is the responsibility of Business Associate 2.~~

~~g. maintain, and within ten days of a request from the Covered Entity make available, the information required to provide an accounting of disclosures to enable the Covered Entity to fulfill its obligations under 45 CFR § 164.528. Business Associate 2 is not required to provide an accounting to the Covered Entity of disclosures: (i) to carry out treatment, payment or health care operations, as set forth in 45 CFR § 164.506; (ii) to individuals of PHI about them as set forth in 45 CFR § 164.502; (iii) under an authorization as provided in 45 CFR § 164.508; (iv) to persons involved in the individual's care or other notification purposes as set forth in 45 CFR § 164.510; (v) for national security or intelligence purposes as set forth in 45 CFR § 164.512(k)(2); (vi) to correctional institutions or law enforcement officials as set forth in 45 CFR § 164.512(k)(5); (vii) as part of a limited data set according to 45 CFR 164.514(e); or (viii) that occurred before the compliance date for the Covered Entity. Business Associate 2 agrees to implement a process that allows for an accounting to be collected and maintained by Business Associate 2 and its agents or subcontractors for at least six years before the request, but not before the compliance date of the Privacy Rule. At a minimum, such information must include: (i) the date of disclosure; (ii) the name of the entity or person who received PHI and, if known, the address of the entity or person; (iii) a brief description of PHI disclosed; and (iv) a brief statement of purpose of the disclosure that reasonably informs the individual of the basis for the disclosure or a copy of the written request for disclosure. If the request for an accounting is delivered directly to Business Associate 2 or its agents or subcontractors, Business Associate 2 must, within ten days of the receipt of the request, forward it to the Covered Entity in writing.~~

~~h. to the extent Business Associate 2 is to carry out one or more of the Covered Entity's obligations under Subpart E of 45 CFR Part 164, comply with the requirements of Subpart E that apply to the Covered Entity when performing those obligations.~~



~~i. make its internal practices, books, and records relating to Business Associate 2's use and disclosure of PHI available to the Secretary for purposes of determining compliance with the HIPAA Rules. Business Associate 2 must concurrently provide to the Covered Entity a copy of any PHI that the Business Associate 2 provides to the Secretary.~~

~~j. retain all PHI throughout the term of the Agreement and for a period of six years from the date of creation or the date when it last was in effect, whichever is later, or as required by law. This obligation survives the termination of the Agreement.~~

~~k. implement policies and procedures for the final disposition of PHI and the hardware and equipment on which it is stored, including but not limited to, removal of PHI before re-use.~~

~~l. within ten days of a written request by the Covered Entity, Business Associate 2 and its agents or subcontractors must allow the Covered Entity to conduct a reasonable inspection of the facilities, systems, books, records, agreements, policies and procedures relating to the use or disclosure of PHI under this Agreement. Business Associate 2 and the Covered Entity will mutually agree in advance upon the scope, timing and location of such an inspection. Covered Entity must protect the confidentiality of all confidential and proprietary information of Business Associate 2 to which the Covered Entity has access during the course of such inspection. Covered Entity and Business Associate 2 will execute a nondisclosure agreement, if requested by the other party. The fact that the Covered Entity inspects, or fails to inspect, or has the right to inspect, Business Associate 2's facilities, systems, books, records, agreements, policies and procedures does not relieve Business Associate 2 of its responsibility to comply with this Agreement. Covered Entity's (i) failure to detect or (ii) detection, but failure to notify Associate or require Associate's remediation of any unsatisfactory practices, does not constitute acceptance of such practice or a waiver of the Covered Entity's enforcement rights under this Agreement.~~

~~3. Permitted Uses and Disclosures by the Business Associate.~~

~~a. Business Associate 2 may use or disclose PHI:~~
~~(1) for the proper management and administration of Business Associate 2 or to carry out the legal responsibilities of Business Associate 2; provided, however, either (A) the disclosures are required by law, or (B) Business Associate 2 obtains reasonable assurances from the person to whom the information is disclosed that the information will remain confidential and used or further disclosed only as required by law or for the purposes for which it was disclosed to~~





the person, and the person notifies Business Associate 2 of any instances of which it is aware in which the confidentiality of the information has been breached;

(2) as required by law;

(3) for Data Aggregation services relating to the health care operations of the Covered Entity;

(4) to de-identify, consistent with 45 CFR 164.514(a) — (e), PHI it receives from the Covered Entity. If Business Associate 2 de-identifies the PHI it receives from the Covered Entity, Business Associate 2 may use the de-identified information for any purpose not prohibited by the HIPAA Rules; and

(5) for any other purpose listed here: ~~describe how Business Associate 2 will use and/or disclose PHI under this Agreement~~

b. Business Associate 2 agrees to make uses and disclosures and requests for PHI consistent with the Covered Entity's minimum necessary policies and procedures.

c. Business Associate 2 may not use or disclose PHI in a manner that would violate Subpart E of 45 CFR Part 164 if done by the Covered Entity except for the specific uses and disclosures described above in 3(a)(i) and (iii).

4. Covered Entity's Obligations

Covered entity agrees to:

- a. use its Security Measures to reasonably and appropriately maintain and ensure the confidentiality, integrity, and availability of PHI transmitted to Business Associate 2 under this Agreement until the PHI is received by Business Associate 2.
- b. provide Business Associate 2 with a copy of its Notice of Privacy Practices and must notify the Business Associate of any limitations in the Notice of Privacy Practices of the Covered Entity under 45 CFR 164.520 to the extent that such limitation may affect Business Associate 2's use or disclosure of PHI.
- c. notify Business Associate 2 of any changes in, or revocation of, the permission by an individual to use or disclose the individual's PHI to the extent that such changes may affect Business Associate 2's use or disclosure of PHI.
- d. notify Business Associate 2 of any restriction on the use or disclosure of PHI that the Covered Entity has agreed to or is required to abide by under 45 CFR 164.522 to the extent that such restriction may affect Business Associate 2's use or disclosure of PHI.





~~5. Term. This Agreement continues in effect until terminated or is replaced with a new agreement between the parties containing provisions meeting the requirements of the HIPAA Rules, whichever first occurs.~~

-

~~6. Termination.~~

-

~~a. Material Breach. In addition to any other provisions in the Agreement regarding breach, a breach by Business Associate 2 of any provision of this Agreement, as determined by the Covered Entity, constitutes a material breach of the Agreement and provides grounds for Business Associate 1 to terminate this Agreement for cause at the request of Covered Entity. Termination for cause is subject to 6.b.:~~

-

~~(1) Default. If Business Associate 2 refuses or fails to timely perform any of the provisions of this Agreement, the Covered Entity may notify Business Associate 2 in writing of the non performance, and if not corrected within thirty days, Business Associate 1 may immediately terminate the Agreement at the request of Covered Entity. The Business Associate 2 must continue performance of the Agreement to the extent it is not terminated.~~

-

~~(2) Business Associate 2's Duties. Notwithstanding termination of the Agreement, and subject to any directions from the Covered Entity or Business Associate 1, Business Associate 2 must protect and preserve property in the possession of Business Associate 2 in which the Covered Entity has an interest.~~

-

~~(3) Erroneous Termination for Default. If Business Associate 1 terminates this Agreement at the request of Covered Entity under Section 6(a) and after such termination it is determined, for any reason, that Business Associate 2 was not in default, then such termination will be treated as a termination for convenience, and the rights and obligations of the parties will be the same as if the Agreement had been terminated for convenience.~~

-

~~b. Reasonable Steps to Cure Breach. If the Covered Entity or Business Associate 1 knows of a pattern of activity or practice of Business Associate 2 that constitutes a material breach or violation of Business Associate 2's obligations under the provisions of this Agreement or another arrangement and does not terminate this Agreement under Section 6(a), then the Business Associate 1, at the request of Covered Entity or on its own accord, must notify Business Associate 2 of the pattern of activity or practice. Business Associate 2 must then take reasonable steps to cure such breach or end such violation, as applicable. If the Business Associate 2's efforts to cure such breach or end such violation are unsuccessful, Business Associate 1, at the request of the Covered Entity or on its own accord, may either (i) terminate this Agreement, if feasible or (ii) report Business Associate 2's breach or violation to the Secretary.~~





~~e. Effect of Termination. After termination of this Agreement for any reason, the Business Associate, with respect to PHI it received from the Covered Entity, or created, maintained, or received by Business Associate 2 on behalf of the Covered Entity, must:~~

~~(1) retain only that PHI which is necessary for Business Associate 2 to continue its proper management and administration or to carry out its legal responsibilities;~~

~~(2) return to the Covered Entity (or, if agreed to by the Covered Entity in writing, destroy) the remaining PHI that Business Associate 2 still maintains in any form;~~

~~(3) continue to use appropriate safeguards and comply with Subpart C of 45 CFR Part 164 with respect to electronic protected health information to prevent use or disclosure of the PHI, other than as provided for in this Section, for as long as Business Associate 2 retains the PHI;~~

~~(4) not use or disclose the PHI retained by Business Associate 2 other than for the purposes for which such PHI was retained and subject to the same conditions set out at Section 3(a)(1) which applied before termination; and~~

~~(5) return to the Covered Entity (or, if agreed to by the Covered Entity in writing, destroy) the PHI retained by Business Associate 2 when it is no longer needed by Business Associate 2 for its proper management and administration or to carry out its legal responsibilities.~~

~~7. No Waiver of Immunity. The parties do not intend to waive any of the immunities, rights, benefits, protection, or other provisions of the Michigan Governmental Immunity Act, MCL 691.1401, *et seq.*, the Federal Tort Claims Act, 28 U.S.C. 2671 *et seq.*, or the common law.~~

~~8. Data Ownership. Business Associate 2 has no ownership rights in the PHI. The covered entity retains all ownership rights of the PHI.~~

~~9. Disclaimer. Neither Business Associate 1, nor the Covered Entity, warrants or represents that compliance by Business Associate 2 with this Agreement, HIPAA, or the HIPAA Rules will be adequate or satisfactory for Business Associate 2's own purposes. Business Associate 2 is solely responsible for all decisions made by Business Associate 2 regarding the safeguarding of PHI.~~

~~10. Certification. If the Covered Entity determines an examination is necessary to comply with the Covered Entity's legal obligations under HIPAA relating to certification of its security practices, the Covered Entity or its authorized agents or contractors, may, at the Covered Entity's expense, examine Business Associate 2's facilities, systems, procedures and records as may be necessary for such agents or~~





contractors to certify to the Covered Entity the extent to which Business Associate 2's security safeguards comply with HIPAA, the HIPAA Rules or this Agreement.

11. ~~Amendment.~~ The parties acknowledge that state and federal laws relating to data security and privacy are rapidly evolving and that amendment of this Agreement may be required to provide for procedures to ensure compliance with such developments. The parties specifically agree to take such action as is necessary to implement the standards and requirements of HIPAA and the HIPAA Rules. Upon the request of either party, the other party agrees to promptly enter into negotiations concerning the terms of an amendment to this Agreement embodying written assurances consistent with the standards and requirements of HIPAA and the HIPAA Rules. Either party may terminate the Agreement upon thirty days written notice if (i) one party does not promptly enter into negotiations to amend this Agreement when requested by the other party or (ii) Business Associate 2 does not enter into an amendment to this Agreement providing assurances regarding the safeguarding of PHI that the Covered Entity, in its sole discretion, deems sufficient to satisfy the standards and requirements of HIPAA or the HIPAA Rules.

12. ~~Assistance in Litigation or Administrative Proceedings.~~ Business Associate 2 must make itself, and any subcontractors, employees or agents assisting Business Associate 2 in the performance of its obligations under this Agreement, available to the Covered Entity or Business Associate 1, at no cost to the Covered Entity or Business Associate 1, to testify as witnesses, or otherwise, if litigation or administrative proceedings are commenced against the Covered Entity or Business Associate 1, its directors, officers or employees, departments, agencies, or divisions based upon a claimed violation of HIPAA or the HIPAA Rules or other laws relating to Business Associate 2's or its subcontractors use or disclosure of PHI under this Agreement, except where Business Associate 2 or its subcontractor, employee or agent is a named adverse party.

13. ~~No Third Party Beneficiaries.~~ Nothing express or implied in this Agreement is intended to confer upon any person other than the Covered Entity, Business Associate 1, Business Associate 2 and their respective successors or assigns, any rights, remedies, obligations or liabilities whatsoever.

14. ~~Interpretation and Order of Precedence.~~ Any ambiguity in this Agreement must be interpreted to permit compliance with the HIPAA Rules. Where the provisions of this Agreement differ from those mandated by the HIPAA Rules, but are nonetheless permitted by the HIPAA Rules, the provisions of this Agreement control.

15. ~~Effective Date.~~ This Agreement is effective upon receipt of the last approval necessary and the affixing of the last signature required.





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~~16. Survival of Certain Agreement Terms. Notwithstanding any contrary provision in this Agreement, the Business Associate 2's obligations under Section 6(d) and record retention laws ("Effect of Termination") and Section 12 ("No Third-Party Beneficiaries") survive termination of this Agreement and are enforceable by the Covered Entity or Business Associate 1.~~

~~17. Representatives and Notice.~~

~~a. Representatives. The individuals listed below are designated as the parties' respective representatives for purposes of this Agreement. Either party may from time to time designate in writing new or substitute representatives.~~

~~b. Notices. All required notices must be in writing and must be hand delivered or given by certified or registered mail to the representatives at the addresses set forth below.~~

~~Covered Entity Representative Replace this if Covered Entity is not DHHS.~~

~~James Bowen
Privacy and Security Manager
MDHHS Compliance Office
333 South Grand Ave, 4th Floor
Lansing, MI 48933
(517) 284-1018
MDHHSPrivacySecurity@michigan.gov~~

~~Business Associate 1 Representative Insert DTMB Representative here - Buyer for
Ins. IT, BRM Ins. IT~~

~~Name: _____
Title: _____
Department: _____
Address: _____
Phone: _____
Email: _____~~

~~Business Associate 2 Representative:~~

~~Name: _____
Title: _____
Department: _____
Address: _____~~

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~~Phone: _____~~
~~Email: _____~~

~~Any notice given to a party under this Agreement shall be deemed effective, if addressed to such party, upon: (i) delivery, if hand delivered; or (ii) the third Business Day after being sent by certified or registered mail.~~

~~DTMB as Business Associate 1, on Business Associate 2~~
~~behalf of [Covered Entity]~~

_____	_____
By: _____	By: _____
Date: _____	Date: _____
Print Name: _____	Print Name: _____
Title: _____	Title: _____





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SCHEDULE E, ATTACHMENT C-1: AWS PROFESSIONAL SERVICES BUSINESS ASSOCIATE ADDENDUM

THIS AWS PROFESSIONAL SERVICES BUSINESS ASSOCIATE ADDENDUM (this "Addendum") to the AWS Customer Agreement located at <http://aws.amazon.com/agreement> (and any successor locations designated by AWS) by and between [CUSTOMER NAME] ("you") and Amazon Web Services, Inc. ("AWS"), or other agreement between you and AWS governing your use of the Services (the "Agreement") is effective as of the last signature date below (the "Addendum Effective Date"). Unless otherwise expressly defined in this Addendum, all capitalized terms in this Addendum will have the meanings set forth in the Agreement or in HIPAA.

The parties agree as follows:

1. Applicability. This Addendum applies only to the Use and Disclosure of PHI by AWS Professional Services Consultants to deliver AWS Professional Services under an Eligible ProServe SOW. You acknowledge and agree that this Addendum does not apply to the creation, receipt, maintenance, or transmission by the Services of any "protected health information" (as defined in 45 C.F.R. § 160.103) in an AWS account. Prior to or concurrently with entering into this Addendum, you must enter into a separate business associate addendum with AWS (an "AWS BAA") applicable to such accounts. Both this Addendum and the AWS BAA will be addenda to the Agreement and will apply in accordance with their respective terms.

2. Permitted Uses and Disclosures.

2.1. AWS Professional Services. AWS may Use or Disclose PHI for or on behalf of you to deliver AWS Professional Services as specified in an Eligible ProServe SOW.

2.2. Administration and Management of AWS. AWS may Use and Disclose PHI as necessary for the proper management and administration of AWS. Any Disclosures under this section will be made only if AWS obtains reasonable assurances from the recipient of the PHI that (a) the recipient will hold the PHI confidentially and will Use or Disclose the PHI only as required by law or for the purpose for which it was Disclosed to the recipient, and (b) the recipient will notify AWS of any instances of which it is aware in which the confidentiality of the information has been breached.

3. Obligations of AWS.

3.1. Limit on Uses and Disclosures. AWS will Use or Disclose PHI only as permitted by this Addendum or as required by law, provided that any such Use or Disclosure would not violate HIPAA if done by a Covered Entity, unless permitted under HIPAA for a Business Associate.

3.2. Safeguards. AWS will use reasonable and appropriate safeguards to prevent Use or Disclosure of the PHI other than as provided for by this Addendum, consistent with the requirements of Subpart C of 45 C.F.R. Part 164 (with respect to Electronic PHI) as determined by AWS.

3.3. Reporting.

3.3.1. Reporting of Impermissible Uses and Disclosures. AWS will report to you any Use or Disclosure of PHI by AWS Professional Services Consultants not permitted or required by this Addendum of which AWS becomes aware.

3.3.2. Reporting of Security Incidents. AWS will report to you any Security Incidents involving PHI of which AWS becomes aware in which there is a successful unauthorized access, use, disclosure, modification, or destruction of information or interference with system operations in an Information System in a manner that risks the confidentiality, integrity, or availability of PHI that are caused by an AWS Professional Services Consultant in the course of delivering AWS Professional Services to you under an

Commented [A44]: AWS proposes to include the terms of the AWS Professional Services Business Associate Addendum. At the State's preference, this BAA can be executed separately or the terms added to the contract resulting from this RFP.





Eligible ProServe SOW. Notice is hereby deemed provided, and no further notice will be provided, for unsuccessful attempts at unauthorized access, use, disclosure, modification, or destruction, such as pings and other broadcast attacks on a firewall, denial of service attacks, port scans, unsuccessful login attempts, or interception of encrypted information where the key is not compromised, or any combination of the above.

3.3.3. Reporting of Breaches. AWS will report to you any Breach of your Unsecured PHI that AWS may discover to the extent required by 45 C.F.R. § 164.410. AWS will make such report without unreasonable delay and in no case later than 60 calendar days after discovery of such Breach.

3.4. Subcontractors. If AWS engages any Subcontractors to deliver AWS Professional Services under an Eligible ProServe SOW, AWS will ensure that any such Subcontractors that create, receive, maintain, or transmit PHI on behalf of AWS agree to restrictions and conditions at least as stringent as those found in this Addendum, and agree to implement reasonable and appropriate safeguards to protect PHI.

3.5. Access to PHI. AWS will make PHI in a Designated Record Set available to you so that you can comply with 45 C.F.R. § 164.524.

3.6. Amendment to PHI. AWS will make PHI in a Designated Record Set available to you for amendment and incorporate any amendments to the PHI, as may reasonably be requested by you in accordance with 45 C.F.R. § 164.526.

3.7. Accounting of Disclosures. AWS will make available to you the information required to provide an accounting of Disclosures in accordance with 45 C.F.R. § 164.528 of which AWS is aware, if requested by you.

3.8. Internal Records. AWS will make its internal practices, books, and records relating to the Use and Disclosure of PHI available to the Secretary of the U.S. Department of Health and Human Services ("HHS") for purposes of determining your compliance with HIPAA. Nothing in this section will waive any applicable privilege or protection, including with respect to trade secrets and confidential commercial information.

4. Your Obligations.

4.1. Necessary Consents. You warrant that you have obtained any necessary authorizations, consents, and other permissions that may be required under applicable law prior to providing AWS Professional Services Consultants with access to PHI.

4.2. Restrictions on Disclosures. You will not agree to any restriction requests or place any restrictions in any notice of privacy practices that would cause AWS to violate this Addendum or any applicable law.

4.3. Impermissible Requests. You will not request or cause AWS to make a Use or Disclosure of PHI in a manner that does not comply with HIPAA or this Addendum or your privacy practices.

4.4. Appropriate Safeguards. You will implement appropriate privacy and security safeguards in order to protect your PHI in compliance with HIPAA and this Addendum.

5. Term and Termination.

5.1. Term. The term of this Addendum will commence on the Addendum Effective Date and will remain in effect until the earlier of (a) the termination of the Agreement or (b) the termination of this Addendum by either party as set forth in Section 5.2 below.





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5.2. Termination. Either party has the right to terminate this Addendum for any reason upon 90 days' prior written notice to the other party. A material breach of this Addendum will be treated as a material breach of the Agreement.

5.3. Effect of Termination. At termination of this Addendum, AWS, if feasible, will return or destroy all PHI not in your AWS accounts that AWS Professional Services Consultants still maintain in any form and retain no copies of such information or, if such return or destruction is not feasible, extend the protections of this Addendum to the information and limit further Uses and Disclosures to those purposes that make the return or destruction of the information infeasible.

6. No Agency Relationship. As set forth in the Agreement, nothing in this Addendum is intended to make either party an agent of the other. Nothing in this Addendum is intended to confer upon you the right or authority to control AWS's conduct in the course of AWS complying with the Agreement and Addendum.

7. Nondisclosure. You agree that the terms of this Addendum are not publicly known and constitute AWS Confidential Information under the Agreement.

8. Entire Agreement; Conflict. Except as amended by this Addendum, the Agreement will remain in full force and effect. This Addendum, together with the Agreement as amended by this Addendum, any Eligible ProServe SOW, and any AWS BAA: (a) is intended by the parties as a final, complete and exclusive expression of the terms of their agreement; and (b) supersedes all prior agreements and understandings (whether oral or written) between the parties with respect to the subject matter hereof. If there is a conflict between the Agreement and this Addendum, this Addendum will prevail. If there is a conflict between an Eligible ProServe SOW and this Addendum and the Eligible ProServe SOW explicitly states that it intends to modify the conflicting terms, the Eligible ProServe SOW will prevail. If there is a conflict between any other addendum or amendment to the Agreement covering the subject matter hereof and this Addendum, the document later in time will prevail.

9. Counterparts and Electronic Delivery. This Addendum can be executed in two or more counterparts, each of which will be deemed an original and all of which taken together will be deemed to constitute one and the same document. The parties can sign and deliver this Addendum by electronic signature or facsimile.

10. Definitions.

10.1. "AWS Professional Services Consultant" means an AWS employee providing AWS Professional Services pursuant to an Eligible ProServe SOW.

10.2. "Eligible ProServe SOW" mean any statement of work for AWS Professional Services made between you and AWS under the Agreement that explicitly makes this Addendum applicable to the Use and Disclosure of PHI by AWS Professional Services Consultants to deliver the AWS Professional Services under such statement of work.

10.3. "HIPAA" means the Administrative Simplification Subtitle of the Health Insurance Portability and Accountability Act of 1996, as amended by Subtitle D of the Health Information Technology for Economic and Clinical Health Act, and their implementing regulations.

10.4. "PHI" means "protected health information" as defined in 45 C.F.R. § 160.103 that is Used or Disclosed by an AWS Professional Services Consultant.

[Remainder of Page Intentionally Left Blank]





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IN WITNESS WHEREOF, the parties have executed this Addendum as of the Addendum Effective Date.

AMAZON WEB SERVICES, Inc.:

CUSTOMER NAME:

By:	By:
Name:	Name:
Title:	Title:
Date signed:	Date signed:

[Signature Page to AWS Professional Services Business Associate Addendum]





FEDERAL BUREAU OF INVESTIGATION CRIMINAL JUSTICE INFORMATION SERVICES SECURITY ADDENDUM

The goal of this document is to augment the CJIS Security Policy to ensure adequate security is provided for criminal justice systems while (1) under the control or management of a private entity or (2) connectivity to FBI CJIS Systems has been provided to a private entity (contractor). Adequate security is defined in Office of Management and Budget Circular A-130 as "security commensurate with the risk and magnitude of harm resulting from the loss, misuse, or unauthorized access to or modification of information."

The intent of this Security Addendum is to require that the Contractor maintain a security program consistent with federal and state laws, regulations, and standards (including the CJIS Security Policy in effect when the contract is executed), as well as with policies and standards established by the Criminal Justice Information Services (CJIS) Advisory Policy Board (APB).

This Security Addendum identifies the duties and responsibilities with respect to the installation and maintenance of adequate internal controls within the contractual relationship so that the security and integrity of the FBI's information resources are not compromised. The security program shall include consideration of personnel security, site security, system security, and data security, and technical security.

The provisions of this Security Addendum apply to all personnel, systems, networks and support facilities supporting and/or acting on behalf of the government agency.

1. Definitions

1. ~~Contracting Government Agency (CGA) the government agency, whether a Criminal Justice Agency or a Noncriminal Justice Agency, which enters into an agreement with a private contractor subject to this Security Addendum.~~

2. ~~Contractor a private business, organization or individual which has entered into an agreement for the administration of criminal justice with a Criminal Justice Agency or a Noncriminal Justice Agency.~~

1. Responsibilities of the Contracting Government Agency

1. ~~The CGA will ensure that each Contractor employee receives a copy of the Security Addendum and the CJIS Security Policy and executes an acknowledgment of such receipt and the contents of the Security Addendum. The signed acknowledgments shall remain in the possession of the CGA and available for audit purposes. The acknowledgement may be signed by hand or via digital signature (see glossary for definition of digital signature).~~

1. Responsibilities of the Contractor

1. ~~The Contractor will maintain a security program consistent with federal and state laws, regulations, and standards (including the CJIS Security Policy in effect when the contract is executed and all subsequent versions), as well as with policies and standards established by the Criminal Justice Information Services (CJIS) Advisory Policy Board (APB).~~

1. Security Violations

1. ~~The CGA must report security violations to the CJIS Systems Officer (CSO) and the Director, FBI, along with indications of actions taken by the CGA and Contractor.~~

Commented [A45]: The CJIS Security Addendum is only required when the Contractor is performing criminal justice functions by having unescorted access to unencrypted criminal justice information. Customers can design, configure and manage applications on all AWS US regions using [AWS Key Management Service \(KMS\)](#) and the [AWS Nitro System](#). The AWS Nitro System virtual compute instances operate on a locked down security model prohibiting all interactive administrative access including that of Amazon employees. This will restrict all access (physical and logical) to all managed resources (virtual devices, services, Virtual Private Clouds, etc.) to only authorized customer personnel.

Per the AWS Shared Responsibility concept detailed below, the State will have the ability to perform access and security control which prevent this access. AWS can work with the CJIS Systems Agency (CSA), who is Michigan State Police, to ensure any cloud environment is architected in such a way to ensure this, but also we can also confer with Michigan State Police (MSP) about this and all CJIS-related requirements

AWS Shared Responsibility Model

Security and Compliance is a shared responsibility between AWS and the customer. AWS is responsible for the security of the underlying cloud infrastructure and the customer is responsible for securing workloads (including encryption options), classifying their assets, and using Identity and Access Management (IAM) tools to apply the appropriate permissions. AWS continually monitors the evolving privacy regulatory and legislative landscape to identify changes and determine what tools our customers might need to meet their compliance needs depending upon their applications. TAMs work with AWS Solutions Architects to help customers identify potential risks and potential mitigations. TAMs and account teams can also point customers and APN Partners with specific resources based on their environment and needs.

- AWS is not in the position to provide legal advice and we recommend that customers consult their legal counsel if they have legal questions.
- Customers have control over content. Customers determine where content will be stored, including the type of storage and geographic region of that storage.
- Customers choose the secured state of content. AWS offers customers strong encryption solutions which customer can use for data protection in transit and at rest. AWS provides the customers with the option to create, manage, and distribute encryption keys as desired to meet compliance requirements and objectives.

... [1]





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~~2. Security violations can justify termination of the appended agreement.~~

~~3. Upon notification, the FBI reserves the right to:~~

- ~~a. Investigate or decline to investigate any report of unauthorized use;~~
- ~~b. Suspend or terminate access and services, including telecommunications links.~~
~~The FBI will provide the CSO with timely written notice of the suspension. Access and services will be reinstated only after satisfactory assurances have been provided to the FBI by the CGA and Contractor. Upon termination, the Contractor's records containing CHRI must be deleted or returned to the CGA.~~

~~1. Audit~~

~~1. The FBI is authorized to perform a final audit of the Contractor's systems after termination of the Security Addendum.~~

~~1. Scope and Authority~~

~~1. This Security Addendum does not confer, grant, or authorize any rights, privileges, or obligations on any persons other than the Contractor, CGA, CJA (where applicable), CSA, and FBI.~~

~~2. The following documents are incorporated by reference and made part of this agreement: (1) the Security Addendum; (2) the NCIC 2000 Operating Manual; (3) the CJIS Security Policy; and (4) Title 28, Code of Federal Regulations, Part 20. The parties are also subject to applicable federal and state laws and regulations.~~

~~3. The terms set forth in this document do not constitute the sole understanding by and between the parties hereto; rather they augment the provisions of the CJIS Security Policy to provide a minimum basis for the security of the system and contained information and it is understood that there may be terms and conditions of the appended Agreement which impose more stringent requirements upon the Contractor.~~

~~4. This Security Addendum may only be modified by the FBI, and may not be modified by the parties to the appended Agreement without the consent of the FBI.~~

~~5. All notices and correspondence shall be forwarded by First Class mail to:~~

~~Information Security Officer
Criminal Justice Information Services Division, FBI
1000 Custer Hollow Road
Clarksburg, West Virginia 26306~~





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**FEDERAL BUREAU OF INVESTIGATION
CRIMINAL JUSTICE INFORMATION SERVICES
SECURITY ADDENDUM**

CERTIFICATION

I hereby certify that I am familiar with the contents of (1) the Security Addendum, including its legal authority and purpose; (2) the NCIC Operating Manual; (3) the CJIS Security Policy; and (4) Title 28, Code of Federal Regulations, Part 20, and agree to be bound by their provisions.

I recognize that criminal history record information and related data, by its very nature, is sensitive and has potential for great harm if misused. I acknowledge that access to criminal history record information and related data is therefore limited to the purpose(s) for which a government agency has entered into the contract incorporating this Security Addendum. I understand that misuse of the system by, among other things: accessing it without authorization; accessing it by exceeding authorization; accessing it for an improper purpose; using, disseminating or re-disseminating information received as a result of this contract for a purpose other than that envisioned by the contract, may subject me to administrative and criminal penalties. I understand that accessing the system for an appropriate purpose and then using, disseminating or re-disseminating the information received for another purpose other than execution of the contract also constitutes misuse. I further understand that the occurrence of misuse does not depend upon whether or not I receive additional compensation for such authorized activity. Such exposure for misuse includes, but is not limited to, suspension or loss of employment and prosecution for state and federal crimes.

Printed Name/Signature of Contractor Employee — Date

Printed Name/Signature of Contractor Representative — Date

Organization and Title of Contractor Representative

Exhibit 7 Safeguarding Contract Language

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Commented [A46]: Please see comment Schedule E, Attachment B above regarding the applicability of IRS 1075, Exhibit 7





I. PERFORMANCE

In performance of this contract, the Contractor agrees to comply with and assume responsibility for compliance by officers or employees with the following requirements:

- (1) All work will be performed under the supervision of the contractor.
- (2) The contractor and contractor's officers or employees to be authorized access to FTI must meet background check requirements defined in IRS Publication 1075. The contractor will maintain a list of officers or employees authorized access to FTI. Such list will be provided to the agency and, upon request, to the IRS.
- (3) FTI in hardcopy or electronic format shall be used only for the purpose of carrying out the provisions of this contract. FTI in any format shall be treated as confidential and shall not be divulged or made known in any manner to any person except as may be necessary in the performance of this contract. Inspection or disclosure of FTI to anyone other than the contractor or the contractor's officers or employees authorized is prohibited.
- (4) FTI will be accounted for upon receipt and properly stored before, during, and after processing. In addition, any related output and products require the same level of protection as required for the source material.
- (5) The contractor will certify that FTI processed during the performance of this contract will be completely purged from all physical and electronic data storage with no output to be retained by the contractor at the time the work is completed. If immediate purging of physical and electronic data storage is not possible, the contractor will certify that any FTI in physical or electronic storage will remain safeguarded to prevent unauthorized disclosures.
- (6) Any spoilage or any intermediate hard copy printout that may result during the processing of FTI will be given to the agency. When this is not possible, the contractor will be responsible for the destruction of the spoilage or any intermediate hard copy printouts and will provide the agency with a statement containing the date of destruction, description of material destroyed, and the destruction method.
- (7) All computer systems receiving, processing, storing, or transmitting FTI must meet the requirements in IRS Publication 1075. To meet functional and assurance requirements, the security features of the environment must provide for the managerial, operational, and technical controls. All security features must be available and activated to protect against unauthorized use of and access to FTI.
- (8) No work involving FTI furnished under this contract will be subcontracted without the prior written approval of the IRS.
- (9) Contractor will ensure that the terms of FTI safeguards described herein are included, without modification, in any approved subcontract for work involving FTI.
- (10) To the extent the terms, provisions, duties, requirements, and obligations of this contract apply to performing services with FTI, the contractor shall assume toward the subcontractor all obligations, duties and responsibilities that the agency under this contract assumes toward the contractor, and the subcontractor shall assume toward the contractor all the same obligations, duties and responsibilities which the contractor assumes toward the agency under this contract.
- (11) In addition to the subcontractor's obligations and duties under an approved subcontract, the terms and conditions of this contract apply to the subcontractor, and the subcontractor is bound and obligated to the contractor hereunder by the same terms and conditions by which the contractor is bound and obligated to the agency under this contract.
- (12) For purposes of this contract, the term "contractor" includes any officer or employee of the contractor with access to or who uses FTI, and the term "subcontractor" includes any officer or employee of the subcontractor with access to or who uses FTI.
- (13) The agency will have the right to void the contract if the contractor fails to meet the terms of FTI safeguards described herein.

II. CRIMINAL/CIVIL SANCTIONS

- (1) Each officer or employee of a contractor to whom FTI is or may be disclosed shall be notified in writing that FTI disclosed to such officer or employee can be used only for a purpose and to the extent authorized herein, and that further disclosure of any FTI for a purpose not authorized herein constitutes a felony punishable upon conviction by a fine of as much as \$5,000 or imprisonment for as long as 5 years, or both, together with the costs of prosecution.
- (2) Each officer or employee of a contractor to whom FTI is or may be accessible shall be notified in writing that FTI accessible to such officer or employee may be accessed only for a purpose and to the extent authorized herein, and that access/inspection of FTI without an official need to know for a purpose not authorized herein constitutes a criminal misdemeanor punishable upon conviction by a fine of as much as \$1,000 or imprisonment for as long as 1 year, or both, together with the costs of prosecution.
- (3) Each officer or employee of a contractor to whom FTI is or may be disclosed shall be notified in writing that any such unauthorized access, inspection or disclosure of FTI may also result in an award of civil damages against the officer or employee in an amount equal to the sum of the greater of \$1,000 for each unauthorized

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~~access, inspection, or disclosure, or the sum of actual damages sustained as a result of such unauthorized access, inspection, or disclosure, plus in the case of a willful unauthorized access, inspection, or disclosure or an unauthorized access/inspection or disclosure which is the result of gross negligence, punitive damages, plus the cost of the action. These penalties are prescribed by IRC sections 7213, 7213A and 7431 and set forth at 26 CFR 301.6103(n) 4.~~

~~(3) Additionally, it is incumbent upon the contractor to inform its officers and employees of the penalties for improper disclosure imposed by the Privacy Act of 1974, 5 U.S.C. 552a. Specifically, 5 U.S.C. 552a(n)(1), which is made applicable to contractors by 5 U.S.C. 552a(m)(1), provides that any officer or employee of a contractor, who by virtue of his/her employment or official position, has possession of or access to agency records which contain individually identifiable information, the disclosure of which is prohibited by the Privacy Act or regulations established thereunder, and who knowing that disclosure of the specific material is so prohibited, willfully discloses the material in any manner to any person or agency not entitled to receive it, shall be guilty of a misdemeanor and fined not more than \$5,000.~~

~~(4) Granting a contractor access to FTI must be preceded by certifying that each officer or employee understands the agency's security policy and procedures for safeguarding FTI. A contractor and each officer or employee must maintain their authorization to access FTI through annual recertification of their understanding of the agency's security policy and procedures for safeguarding FTI. The initial certification and recertifications must be documented and placed in the agency's files for review. As part of the certification and at least annually afterwards, a contractor and each officer or employee must be advised of the provisions of IRC sections 7213, 7213A, and 7431 (see Exhibit 4, Sanctions for Unauthorized Disclosure, and Exhibit 5, Civil Damages for Unauthorized Disclosure). The training on the agency's security policy and procedures provided before the initial certification and annually thereafter must also cover the incident response policy and procedure for reporting unauthorized disclosures and data breaches. (See Section 10) For the initial certification and the annual recertifications, the contractor and each officer or employee must sign, either with ink or electronic signature, a confidentiality statement certifying their understanding of the security requirements.~~

~~III. INSPECTION~~

~~The IRS and the Agency, with 24 hour notice, shall have the right to send its inspectors into the offices and plants of the contractor to inspect facilities and operations performing any work with FTI under this contract for compliance with requirements defined in IRS Publication 1075. The IRS' right of inspection shall include the use of manual and/or automated scanning tools to perform compliance and vulnerability assessments of information technology (IT) assets that access, store, process or transmit FTI. Based on the inspection, corrective actions may be required in cases where the contractor is found to be noncompliant with FTI safeguard requirements.~~

BIDDER INSTRUCTIONS

Do you accept these Data Security Requirements as presented?

BIDDER RESPONSE: No; please see the redlines and explanations above for AWS's exceptions to these terms.

If Bidder takes exceptions to these provisions, bidder must redline these terms as part of its proposal response. Exceptions to the terms may be grounds for disqualification at the State's discretion.

General statements, such as that the Bidder reserves the right to negotiate the terms and conditions, may be deemed non-responsive.

Commented [A47]: Please see comment Schedule E, Attachment B above regarding the applicability of IRS 1075, Exhibit 7





SCHEDULE F – DISASTER RECOVERY PLAN

BIDDER INSTRUCTIONS
Please provide a link to Bidder’s Disaster Recovery Plan.
BIDDER RESPONSE:

[Redacted content]

DISASTER RECOVERY PLAN

[Redacted content]

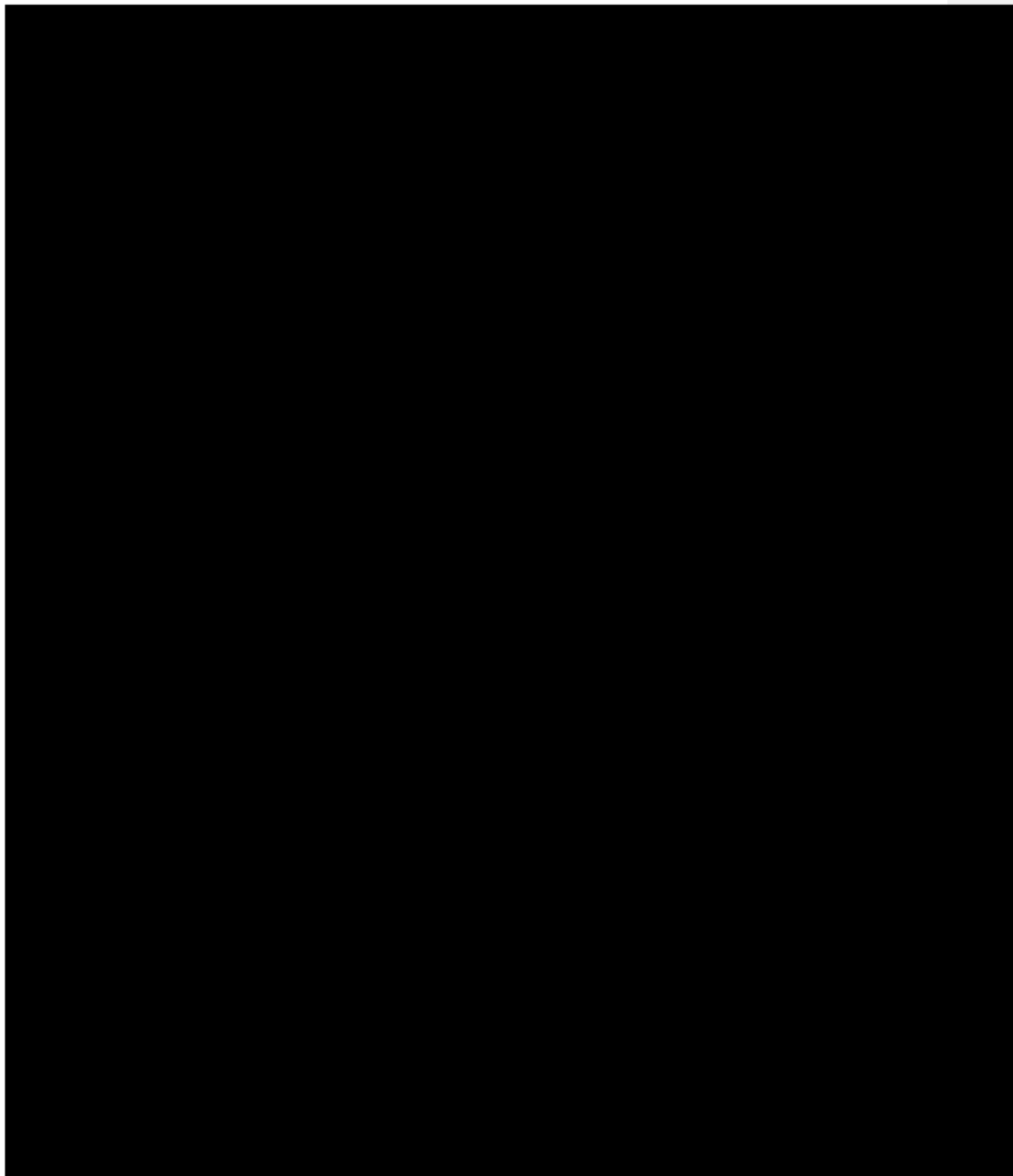
FUNDAMENTAL DISTINCTION: CSPS VS. TRADITIONAL IT VENDORS

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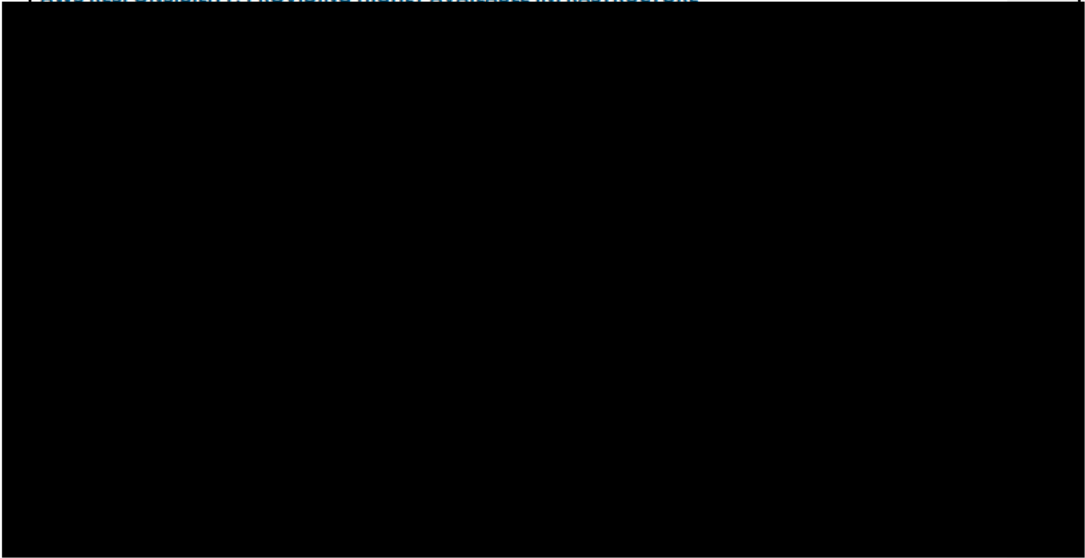
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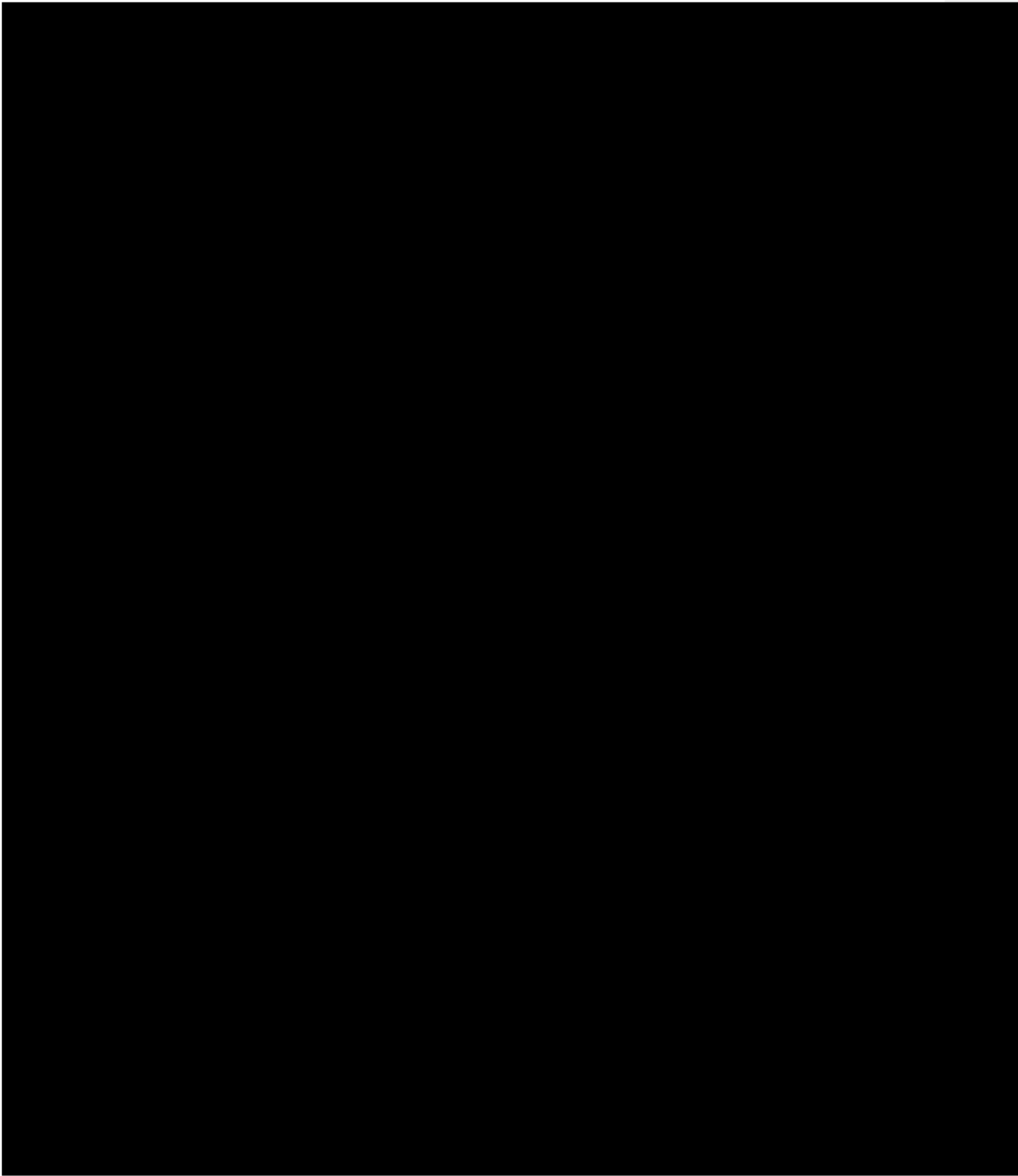
AWS Response to Michigan DTMB Cloud Services RFP
RFP No. 250000000414

AWS RESPONSIBILITY: PROVIDING HIGHLY AVAILABLE INFRASTRUCTURE





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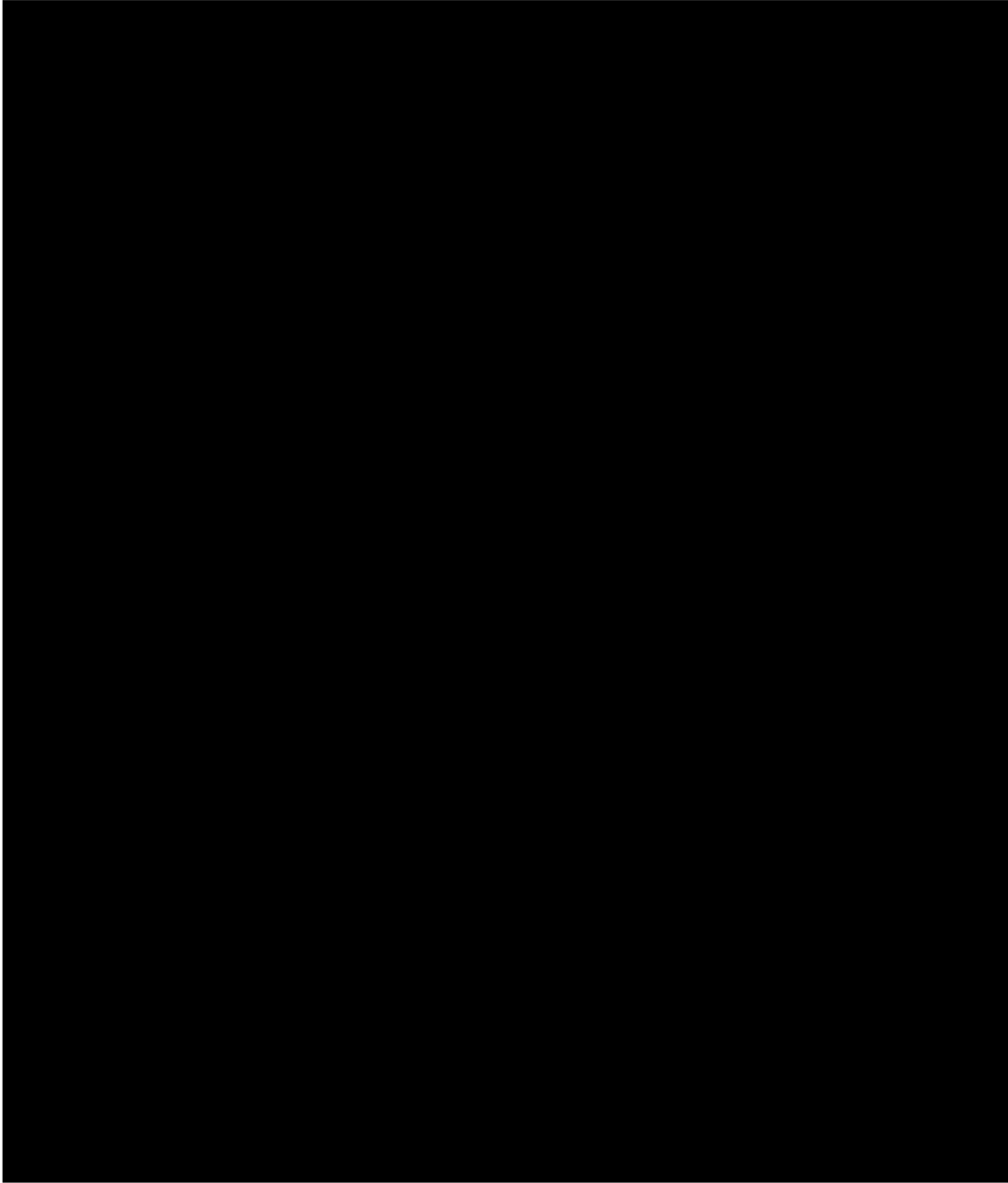
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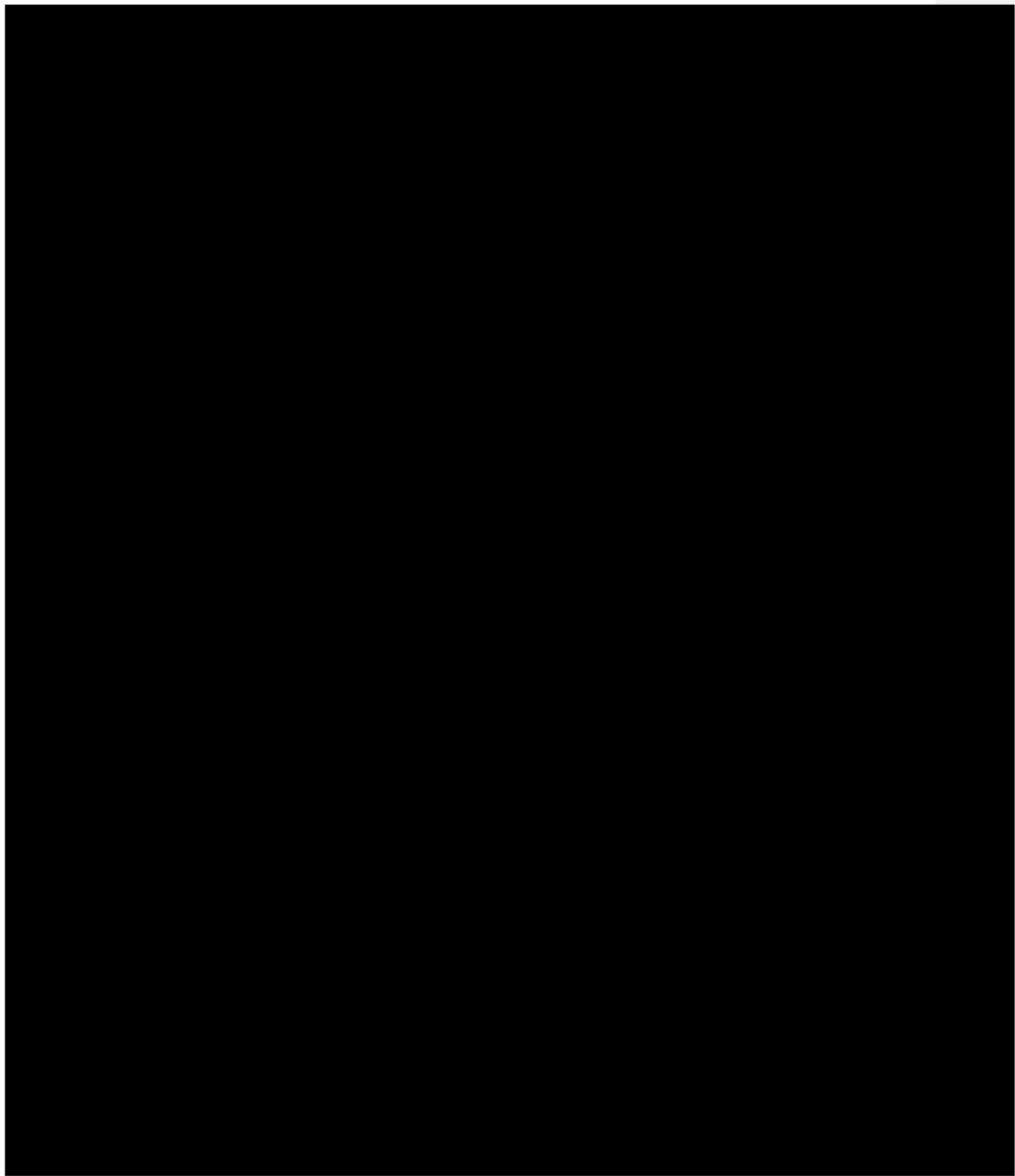


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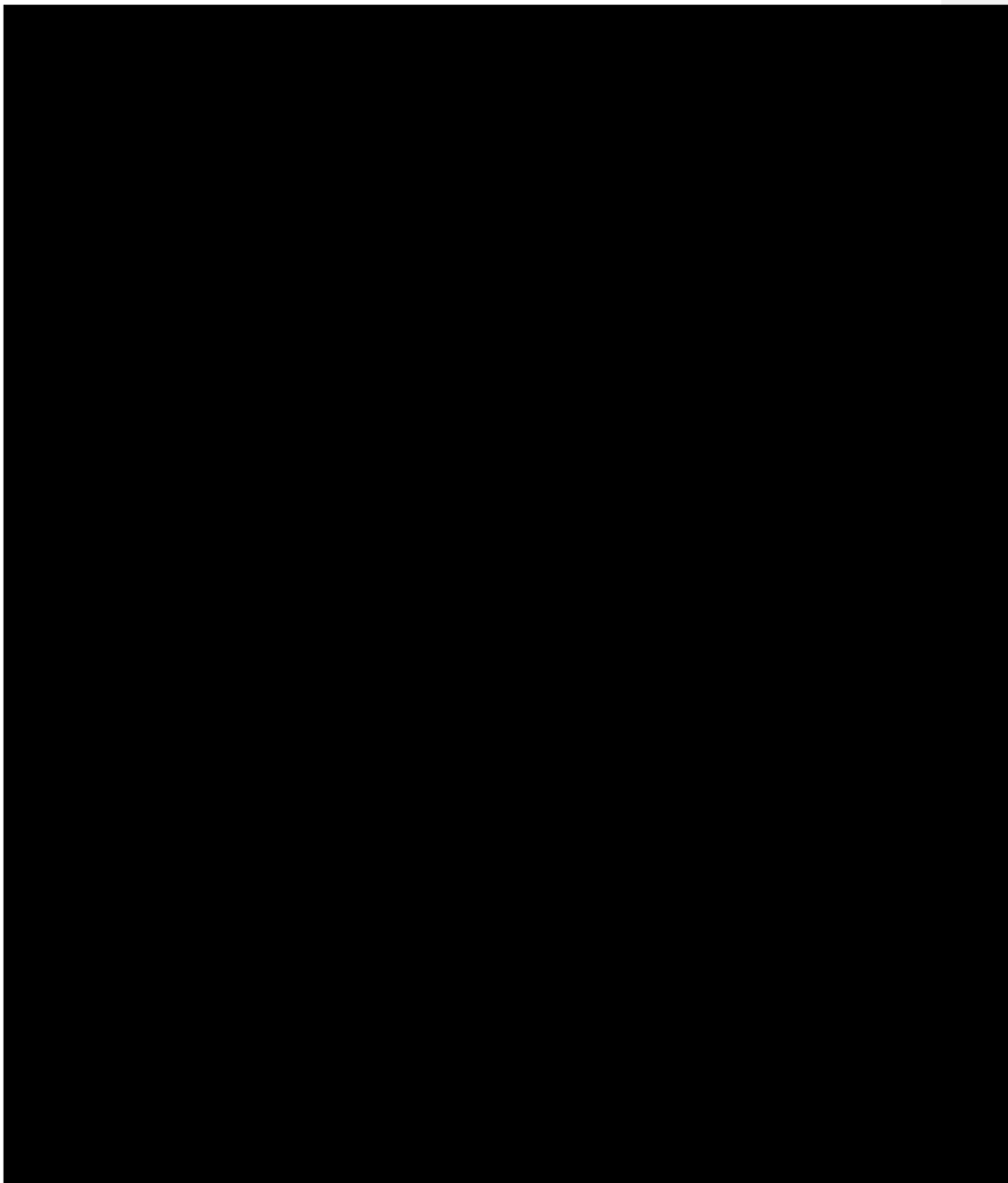
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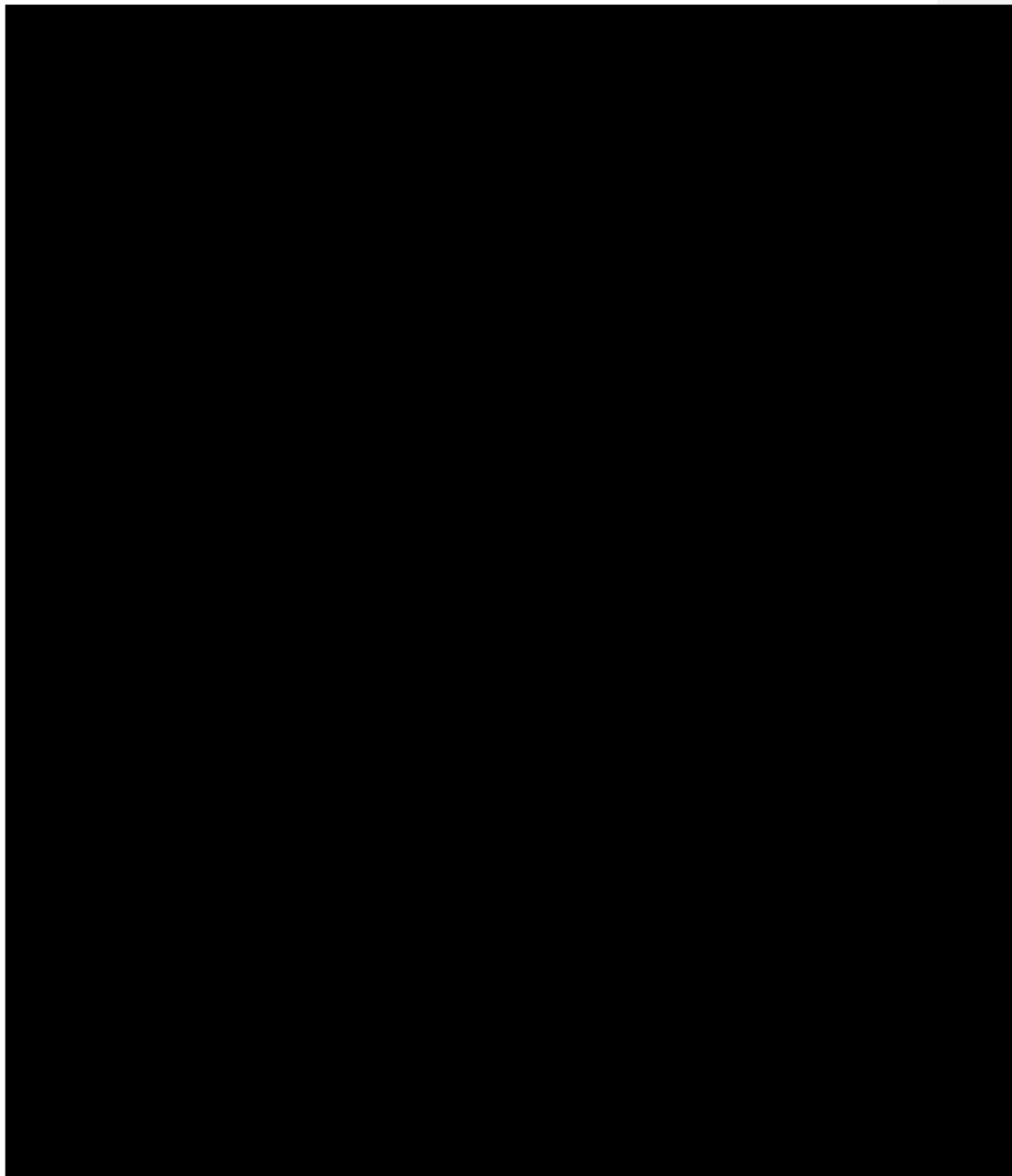
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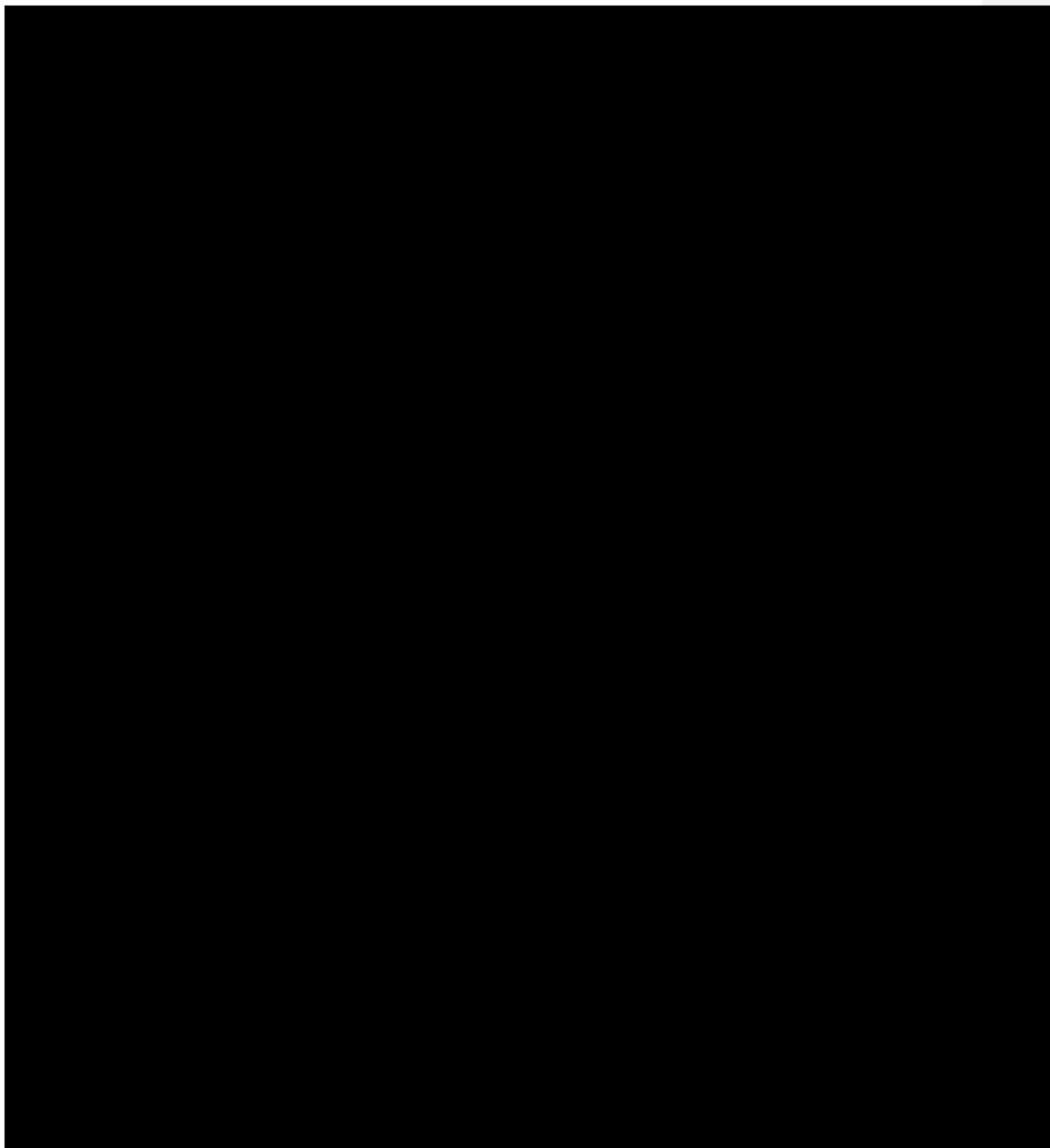
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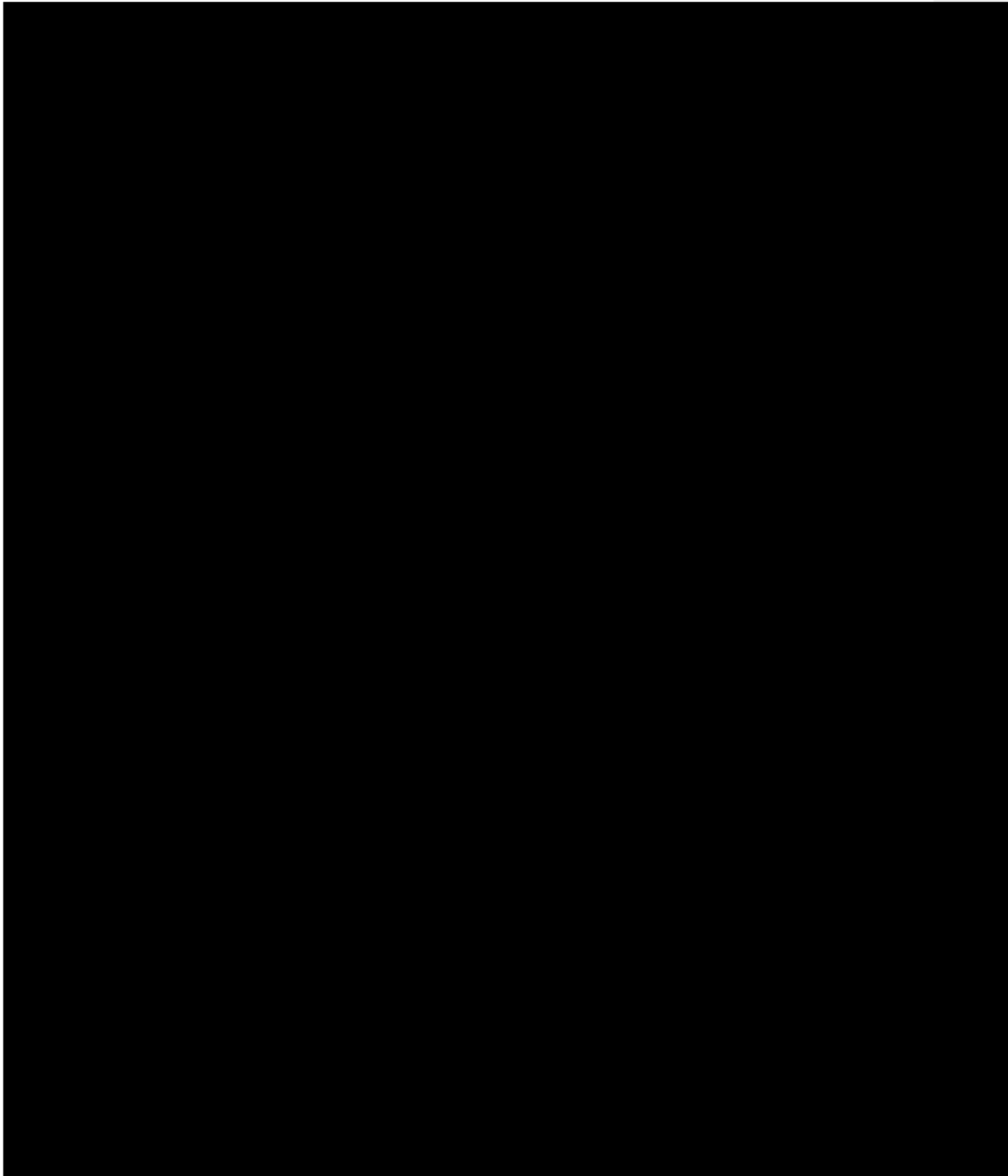
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SCHEDULE G – TRANSITION IN AND OUT

BIDDER INSTRUCTIONS

Bidder must provide a detailed transition-in and transition-out plan, including any roles or responsibilities expected of the State. The plan must demonstrate the steps to migrate services between Bidder and a third-party or the State.

BIDDER RESPONSE:

AWS understands the focus of the Schedule G—Transition In and Out Plan to be application and data migration services. Starting with Contract Kick-Off, AWS will work with the State of Michigan (the State) to help you understand the services, tools, and techniques that can facilitate transition in (and out) of the AWS Cloud.

AWS personnel that will work closely with the State include:

- Contract program manager
- Contract administrator
- Program manager
- Technical account manager (also referred to as a contractor security officer in the Contract) for those accounts under which the State elects to procure AWS Enterprise Support.

We regularly support migration of customers’ data and workloads to the cloud. Migrations to AWS include moving workloads from an on-premises environment, hosting facility, or other cloud environments. AWS has worked with thousands of organizations to migrate workloads such as applications, websites, databases, storage, physical or virtual servers, and entire data centers. Customers that migrate to AWS benefit from IT costs savings, improvements in productivity, business agility, and operational resilience.

AWS and our AWS Partner Network help customers migrate all types of workloads to AWS, including large-scale migrations of tens of thousands of servers. Based on our years of migration experience, we developed the methodology, recommended practices, tools, and services to simplify and accelerate migrations. This helps our customers self-serve to shorten time to business benefits. Customers can also use AWS Professional Services to assist them with their efforts.

TRANSITION IN WITH AWS MIGRATION SOLUTIONS

Our migration solutions address the people, process, technology, and financial considerations throughout a migration to help ensure projects achieve the desired business outcomes. However, transition-in plans are subject to change once we receive additional information from the State about specific goals, target outcomes, workload requirements, desired timelines, qualifications, and more. AWS suggests using a combination of the following migration solutions, which would be refined based on further discussions with the State.

Responsibilities of the State

The State is responsible for providing resources, including the State Contract Administrator and State Program Manager to collaborate with AWS personnel in offering reasonable transition assistance. Additionally, the State must work with AWS personnel to provide any necessary inputs to support AWS in planning for the AWS MAP and other transition-related items for the State.





Following Contract negotiation and award, the AWS Contract Administrator will prepare an onboarding guide to help the State understand how to set up an AWS account and place Orders under the Contract. This guide will offer the State a clear set of processes on how to create AWS Accounts and utilize AWS services to meet the State's needs.

1.1.1 PROVEN MIGRATION PATTERNS AND PROCESSES

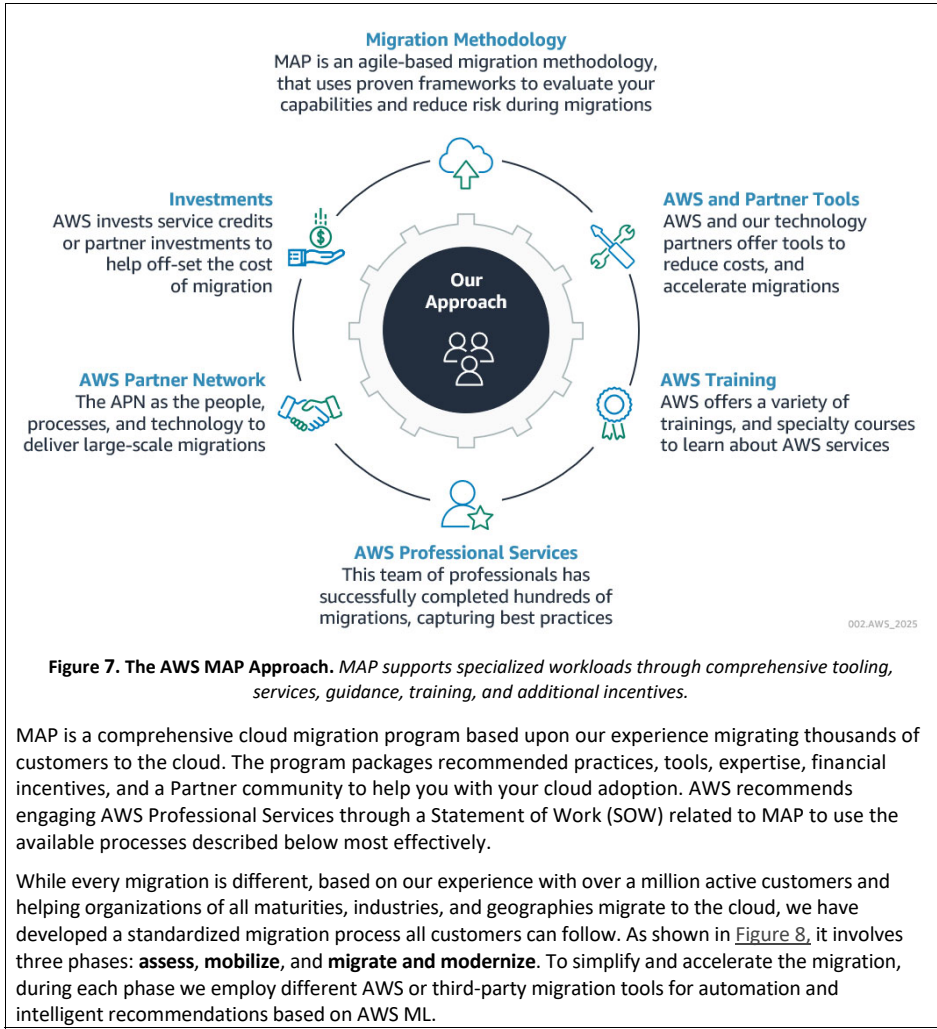
AWS has built a complete migration approach designed to help the State successfully migrate your workloads to AWS. Organizations considering a migration often debate the optimal approach to get there. While there is no one-size-fits-all approach for migration, the focus should be on grouping each of the IT portfolio's applications into buckets defined by one of the migration strategies.

1.1.2 AWS MIGRATION APPLICATION PROGRAM

These frameworks and patterns guide our recommended approach to helping the State migrate your workloads to the AWS Cloud. AWS MAP combines tools, training, and AWS and Partner expertise to support your migration across three Agile-based phases: 1) assess, 2) mobilize, and 3) migrate and modernize. MAP helps you exit on-premises data centers, increase your business agility, improve your workforce productivity, gain transparency of your operational costs, and reduce risk. The program follows a proven methodology of discrete, sequential steps and employs tools to automate and accelerate common migration scenarios. It starts with an assessment to determine baseline capabilities. Once the assessment is complete, you can create a structured migration readiness and planning project to build your desired capabilities and operate them at scale. The process ends with the approach and support to successfully perform those migrations.

By building the foundation to operate mission-critical workloads on AWS, you will build capabilities that can be used across a variety of projects. We offer resources to support and sustain your migration efforts including an experienced Partner community to accomplish migrations, our AWS Professional Services team to offer recommended practices and prescriptive advice, and a training program to help IT professionals understand and carry out migrations successfully. [Figure 7](#) displays our approach to migration.









agility and scalability. Once in the cloud, you can focus on optimization of applications, processes, operations, and costs. This phase typically takes 12–24 months to accomplish.

For specialized workloads, AWS has the following MAP approaches:

- **MAP for Mainframe:** Migrate from mainframe to the cloud to enhance your mission-critical applications and data portfolios by taking advantage of the agility, access, and community that exist on the cloud.
- **MAP for Windows:** Migrate or modernize your Windows workloads to AWS. With MAP for Windows, you can execute large-scale migrations of servers, applications, data centers, and databases.
- **MAP for Storage:** Migrate or modernize data lakes, applications, large unstructured data repositories, file shares, home directories, backups, archives, and more with MAP for Storage.

1.1.3 MIGRATION RESOURCES: VALUE-ADDED SERVICES

In addition to the people-led processes previously described, AWS offers a portfolio of value-added migration and transfer services to fit our various customer use cases. These migration and transfer services are described in the following subsections.

AWS MIGRATION HUB

AWS Migration Hub is a key migration tool that offers a single location to track the progress of all of your application migrations. Using AWS Migration Hub allows you to choose the AWS tools that optimally fit your needs while providing visibility into the status of migrations across your portfolio of applications. AWS Migration Hub also offers key metrics and progress for individual applications, regardless of which tools you use to migrate them. This allows you to get progress updates across all of your migrations, identify and troubleshoot any issues, and reduce the overall time and effort spent on your migration projects.

AWS Migration Hub is a single place to monitor migrations in any AWS Region where your migration tools are available. There is no additional cost for using AWS Migration Hub. You only pay for the cost of the individual migration tools you use and any resources you consume on AWS.

AWS Migration Hub offers the State the following benefits:

Centralized Tracking. Migrations involve various components that must be tracked (such as the status of servers or databases being migrated) and these are typically tracked across different tools. AWS Migration Hub helps address this by providing a central location to track the status of all these components to view overall migration progress and reducing the time spent determining current status and next steps.

Migration Flexibility. AWS Migration Hub lets you use the migration tools that work optimally for your organization. AWS Server Migration Service (AWS SMS), AWS Database Migration Service (AWS DMS), and AWS Application Migration Service (AWS MGN), described in the following subsection, are integrated and automatically report to the AWS Migration Hub. [Figure 9](#) demonstrates AWS Migration Hub workflow.



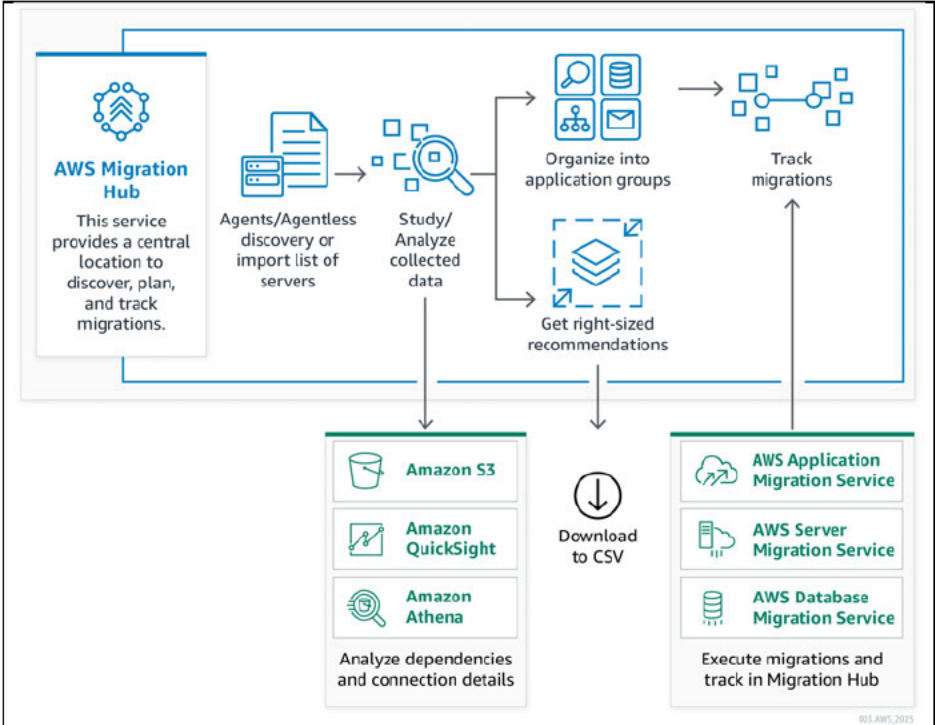


Figure 9. AWS Migration Hub Workflow. AWS Migration Hub streamlines cloud transitions by discovering servers, analyzing dependencies with S3/QuickSight/Athena, organizing applications, and executing migrations through specialized AWS services.

You can consult the [Migration Hub Documentation](#) for details about authorizing tools to send status to AWS Migration Hub.

MIGRATION AND TRANSFER SERVICES

In addition to the AWS Migration Hub, AWS offers a multitude of value-added services that can help you transfer data into the AWS Cloud. [Table 5](#) lists these services and a description of each.

Table 5. AWS Migration and Transfer Services

Service Name	Description
Migration Evaluator	Migration Evaluator offers a business case to make sound AWS planning and migration decisions. With Migration Evaluator, your organization gets access to AWS expertise, visibility into the costs associated with multiple migration strategies, and insights on how reusing existing software licensing reduces costs further.





AWS Application Discovery Service	AWS Application Discovery Service collects and presents data to help customers understand the configuration, usage, and behavior of servers in their IT environments. Server data is retained in the AWS Application Discovery Service, where it can be tagged and grouped into applications to help organize AWS migration planning. You can export collected data can for analysis in Excel or other cloud migration analysis tools. AWS Application Discovery Service helps you obtain a snapshot of the current state of your data center servers by collecting server specification information, hardware configuration, performance data, and details of running processes and network connections. Once the data is collected, you can use it to perform a TCO analysis, then create a cost-optimized migration plan based on your unique business requirements.
AWS Application Migration Service (AWS MGN)	AWS MGN uses automated processes to rehost many of your physical, virtual, or cloud servers to AWS without compatibility issues, performance disruption, or long cutover windows. Cutover for your critical databases and applications—including SAP CRM, Oracle E-Business Suite, and Microsoft SharePoint—is smooth thanks to automatic server conversion and continuous replication, combined with non-disruptive tests. Using AWS MGN, you can rehost applications from VMware vSphere, Microsoft Hyper-V, Amazon Elastic Compute Cloud (Amazon EC2), Amazon Virtual Private Cloud (Amazon VPC), and other clouds to AWS.
AWS Database Migration Service (AWS DMS)	AWS DMS helps you migrate and deploy your databases to AWS. The source database remains fully operational during the migration, minimizing downtime to applications that rely on the database. Additionally, AWS DMS can migrate your data to and from widely used commercial and open-source databases. This service supports homogeneous and heterogeneous migrations from different database platforms, such as Oracle, Microsoft SQL Server, PostgreSQL, MySQL, MongoDB, and Maria DB. Part of AWS DMS is the free AWS Schema Conversion Tool (SCT). This tool automates the conversion of Oracle PL/SQL and SQL Server T-SQL code to equivalent code in the Amazon Aurora/MySQL dialect of SQL or the equivalent PL/pgSQL code in PostgreSQL.
AWS Elastic Disaster Recovery	AWS Elastic Disaster Recovery helps organizations minimize downtime and data loss with prompt, reliable recovery of on-premises and cloud-based applications using affordable storage, minimal compute, and point-in-time recovery. AWS Elastic Disaster Recovery continuously replicates your source servers to your AWS account without impacting performance. It reduces costs compared to traditional on-premises disaster recovery solutions by removing idle recovery site resources, and instead uses affordable AWS storage and minimal compute resources to maintain ongoing replication. If you need to recover applications on AWS, you can do so within minutes.
Amazon Elastic VMware Service (EVS)	EVS lets you to run VMware Cloud Foundation (VCF) directly within your Amazon VPC. You can use the scale, resilience, and performance of AWS with familiar VCF software and tools. With Amazon EVS, you can deploy a ready-to-use VCF environment. Choose from self-managed or managed options for control and customization of your VMware architecture.
AWS DataSync	AWS DataSync is an online data transfer service that simplifies, automates, and accelerates moving data between on-premises storage systems and AWS storage services, and between AWS storage services. You can use AWS DataSync to migrate active datasets to AWS, archive data to free up on-premises storage





	capacity, replicate data to AWS for business continuity, or transfer data to the cloud for analysis and processing.
AWS Transfer Family	The AWS Transfer Family offers fully managed support for file transfers directly into and out of Amazon Simple Storage Service (Amazon S3). With support for Secure File Transfer Protocol (SFTP), File Transfer Protocol over SSL (FTPS), and File Transfer Protocol (FTP), the AWS Transfer Family helps you migrate your file transfer workflows to AWS by integrating with existing authentication systems, and providing domain name system (DNS) routing with Amazon Route 53 so nothing changes for your customers and partners, or their applications. With your data in Amazon S3, you can use it with AWS services for processing, analytics, ML, and archiving.

1.1.4 ADDITIONAL MIGRATION RESOURCES: VALUE-ADDED TOOLS AND TECHNIQUES

In addition to the migration resources and approaches previously described, we offer other self-serve resources and migration frameworks. These resources have helped some of the largest organizations in the world make similar decisions about how streamline their migration to the cloud. The State can review the following additional resources and to learn more about cloud migrations, migration outcomes, and metrics to measure success.

- Visit the [Migrate and Modernize with AWS](#) webpage—a collection of recommended practices, frameworks, and [Cloud Migration Resources](#) to help you migrate to the AWS Cloud.

1.2 TRANSITION OUT OF AWS

While AWS focuses on providing innovative services to our customers to offer industry-leading tools, services, and hosting solutions, we also offer tools and services to help customers migrate from AWS should that become necessary, minimizing vendor lock-in.

1.2.1 TRANSITIONING DATA OUT OF THE AWS CLOUD

Responsibilities of the State

The State will retain control and ownership of your data, and can move data off the AWS Cloud at any time.

The State can use AWS services and tools to assist you in moving data on to or off of AWS storage. For example, [AWS Storage Gateway](#) is a hybrid cloud storage service that gives you on-premises access to virtually unlimited cloud storage. You use AWS Storage Gateway to simplify storage management and reduce costs for key hybrid cloud storage use cases. These include moving backups to the cloud, using on-premises file shares backed by cloud storage, and providing low latency access to data in AWS for on-premises applications.

We built AWS services on numerous open standards such as SQL, Linux, and Xen. Our services support data migration both into and out of AWS. With this flexibility, the State can securely move information in and out of the cloud regardless of where that information is going—from cloud-to-cloud or from cloud-to-data center.

Further, AWS is designed so you only use the services when you see value, and to use the technology of your choice. AWS offers pay-as-you-go pricing for the vast majority of our cloud services. Pay-as-you-go pricing allows you to shut down your environment, export your data and virtual machines (VMs), and walk away without incurring additional expenses. AWS Support Plans function similarly





and are billed monthly without any long-term commitments or contracts, regardless of tier. The following subsections delineate responsibilities of the State when transitioning out of the AWS Cloud.

CLOSING YOUR AWS ACCOUNT

Before closing your account, back up any applications and data that you want to retain.

AWS will not be able to retrieve your account data after your account is closed. Hardware used by a closed account is eventually allocated to other accounts, but no other accounts will ever have access to the data you stored on that hardware. If you are concerned about the data on your AWS resources, you can manually terminate or delete resources before closing the account.

Only the AWS account root user can close an AWS account. AWS cannot close accounts on your behalf. If you have any questions throughout the process, you can contact your account representative or contact [AWS Support](#) for assistance.

1.2.3 IDENTIFY AND TERMINATE ACTIVE RESOURCES

To check if you have any active resources in your account, do the following:

1. Open the [Billing and Cost Management console](#).
2. Choose **Bills** in the navigation pane.
You can see the charges incurred by different services in the **Bill details by service** section.
You can see the charges incurred in different AWS Regions in the **Bill details by account** section.
Note: It is a recommended practice to check the **Bill details by service** section for the previous month to identify all services that are generating charges.
3. For each service, identify the Regions where the services have incurred charges.

To terminate the identified active resources under different services, you should take the following steps:

1. Open the [AWS Management Console](#).
2. For **Find services**, enter the service name.
3. After opening the service console, terminate all your active resources. Be sure to check each Region where you have allocated resources.
Tip: You can change the Region with the Region selector in the navigation bar.

1.2.3.1 AWS SUPPORT

AWS Support will help you close out your accounts, based on the AWS Support Plan level of support procured. AWS recommends that the State secure AWS Enterprise Support—we offer more information in our submission for **Schedule A—Statement of Work** and pricing is included in our submission for **Schedule B—Pricing**. For customers with an AWS Enterprise Support plan, we recommend using your designated Technical Account Manager (TAM) to help you:

- Plan for a smooth transition to your post-AWS end state
- Coordinate the closure of your account
- Move out of your AWS environment according to recommended practices.

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1.2.1 NOTICE OF TERMINATION AND POST-CLOSURE PERIOD

The closure of your AWS account serves as notice to us that you want to terminate the AWS Customer Agreement or other agreement with AWS that governs your AWS account, solely with respect to the specific AWS account. If you reopen your AWS account during the post-closure period (that is, within 90 days after your account is closed), you agree that the same agreement terms will govern your access to and use of the service offerings through your reopened AWS account.

1.2.2 ACCESS TO AWS MANAGEMENT CONSOLE

Your access to the AWS Management Console for the closed AWS account is restricted. During the post-closure period, you can still sign in to your AWS account to view your past billing information and access AWS Support. You cannot access any other AWS services or start any new AWS services in the closed account.

1.2.3 RETRIEVAL OF CONTENTS

After the post-closure period, any remaining content in your AWS account is deleted, and services that are still in use are terminated. Before closing your account, you should retrieve all content from the account. For instructions on how to retrieve your content, see the documentation for that service. For more information about the post-closure period, see [Accessing your AWS account after closure](#).

1.2.4 BILLING

During the post-closure period, billing for On-Demand charges stops. However, you are billed for any usage that has accrued up until the time you closed your account. You will be charged for that usage at the beginning of the next month. In addition, if you purchased any subscriptions with ongoing payment obligations, you might continue to be charged for them after your account is closed.





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SCHEDULE H – RESERVED

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SCHEDULE I – RESERVED





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SCHEDULE J – FEDERAL PROVISIONS ADDENDUM

BIDDER INSTRUCTIONS

NOTE: Neither the State nor Contractor may alter these federally required provisions.

Do you accept these Federal Provisions as presented?

BIDDER RESPONSE:

AWS accepts these Federal Provisions as presented. However, to the extent that the State utilizes funds from the federal government that requires the inclusion of specific contract language from 2 C.F.R Part 200 and/or Appendix II to Part 200, the State agrees to notify AWS, and the parties agree that AWS is a “contractor” as defined in 2 CFR 200.331(b), and is only subject to the terms that are required for a “contractor.” Further, all AWS Content and Services (as defined in the AWS Enterprise Agreement) provided under a contract resulting from the RFP, which may include software, processes, and intangible property (as defined in 2 CFR § 200.1), remain owned by AWS and are subject to the [AWS Intellectual Property license](#), as specified in the AWS Enterprise Agreement.

Contractor acknowledges and agrees that the State may utilize funds obtained from the federal government which may have additional contractual requirements. Contractor agrees that, if the State determines that federal rules or regulations require the appendage of specific contractual language to this Contract related to specific types of federal funding, including but not limited to [Title 2 of the Code of Federal Regulations \(C.F.R.\) Part 200](#) and [Appendix II to Part 200 – Contract Provisions for Non-Federal Entity Contracts Under Federal Awards](#), Contractor agrees to, through a Contract Change Notice, append such required contractual language to this Contract if reasonably necessary to keep the State and Contractor in compliance with federal funding requirements and comply with the terms set forth therein.

This addendum applies to purchases that will be paid for in whole or in part with funds obtained from the federal government. The provisions below are required, and the language is not negotiable. Contractor agrees to comply with all obligations under federal rules or regulations for such funding, including but not limited to the provisions contained in this addendum. If any provision below conflicts with the State’s terms and conditions, including any attachments, schedules, or exhibits to this Contract, the provisions below take priority to the extent a provision is required by federal law; otherwise, the order of precedence set forth in the Contract applies. Further, Contractor agrees to, through a Contract Change Notice, append or modify specific federal provisions to this Contract, if reasonably necessary to keep the State and Contractor in compliance with federal funding requirements, and comply with the terms set forth therein. Hyperlinks are provided for convenience only; broken hyperlinks will not relieve Contractor from compliance with the law.

A. Equal Employment Opportunity

This Contract is not a “**federally assisted construction contract**” as defined in [41 CFR Part 60-1.3](#).

B. Davis-Bacon Act (Prevailing Wage)

This Contract is not a “**federally assisted construction contract**” as defined in [41 CFR Part 60-1.3](#), nor is [it a](#) prime construction contract in excess of \$2,000.

C. Copeland “Anti-Kickback” Act

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This Contract is not a “**federally assisted construction contract**” as defined in [41 CFR Part 60-1.3](#), nor is it a prime construction contract in excess of \$2,000 where the Davis-Bacon Act applies.

D. Contract Work Hours and Safety Standards Act

The Contract does not involve the employment of mechanics or laborers.

E. Rights to Inventions Made Under a Contract or Agreement

If this Contract is funded by a federal “funding agreement” as defined under [37 CFR §401.2 \(a\)](#) and the recipient or subrecipient wishes to enter into a contract with a small business firm or nonprofit organization regarding the substitution of parties, assignment or performance of experimental, developmental, or research work under that “funding agreement,” the recipient or subrecipient must comply with [37 CFR Part 401](#), “Rights to Inventions Made by Nonprofit Organizations and Small Business Firms Under Government Grants, Contracts and Cooperative Agreements,” and any implementing regulations issued by the awarding agency.

F. Clean Air Act and the Federal Water Pollution Control Act

If this Contract is in excess of \$150,000, the Contractor must comply with all applicable standards, orders, and regulations issued under the Clean Air Act ([42 USC 7401-7671g](#)) and the Federal Water Pollution Control Act ([33 USC 1251-1387](#)), and during performance of this Contract the Contractor agrees as follows:

(1) Clean Air Act

- (i) The Contractor agrees to comply with all applicable standards, orders or regulations issued pursuant to the Clean Air Act, as amended, 42 U.S.C. § 7401 et seq.
- (ii) The Contractor agrees to report each violation to the State and understands and agrees that the State will, in turn, report each violation as required to assure notification to the Federal Emergency Management Agency or the applicable federal awarding agency, and the appropriate Environmental Protection Agency Regional Office.
- (iii) The Contractor agrees to include these requirements in each subcontract exceeding \$150,000 financed in whole or in part with Federal assistance provided by FEMA or the applicable federal awarding agency.

(2) Federal Water Pollution Control Act

- (i) The Contractor agrees to comply with all applicable standards, orders, or regulations issued pursuant to the Federal Water Pollution Control Act, as amended, 33 U.S.C. 1251 et seq.
- (ii) The Contractor agrees to report each violation to the State and understands and agrees that the State will, in turn, report each violation as required to assure notification to the Federal Emergency Management Agency or the applicable federal awarding agency, and the appropriate Environmental Protection Agency Regional Office.
- (iii) The Contractor agrees to include these requirements in each subcontract exceeding \$150,000 financed in whole or in part with Federal assistance provided by FEMA or the applicable federal awarding agency.

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G. Debarment and Suspension

A “contract award” (see [2 CFR 180.220](#)) must not be made to parties listed on the government-wide exclusions in the [System for Award Management](#) (SAM), in accordance with the OMB guidelines at [2 CFR 180](#) that implement [Executive Order 12549 \(51 FR 6370; February 21, 1986\)](#) and 12689 ([54 FR 34131; August 18, 1989](#)), “Debarment and Suspension.” SAM Exclusions contains the names of parties debarred, suspended, or otherwise excluded by agencies, as well as parties declared ineligible under statutory or regulatory authority other than [Executive Order 12549](#).

- (1) This Contract is a covered transaction for purposes of 2 C.F.R. Part 180 and 2 C.F.R. Part 3000. As such, the Contractor is required to verify that none of the Contractor’s principals (defined at 2 C.F.R. § 180.995) or its affiliates (defined at 2 C.F.R. § 180.905) are excluded (defined at 2 C.F.R. § 180.940) or disqualified (defined at 2 C.F.R. § 180.935).
- (2) The Contractor must comply with 2 C.F.R. Part 180, subpart C and 2 C.F.R. Part 3000, subpart C, and must include a requirement to comply with these regulations in any lower tier covered transaction it enters into.
- (3) This certification is a material representation of fact relied upon by the State. If it is later determined that the contractor did not comply with 2 C.F.R. Part. 180, subpart C and 2 C.F.R. Part. 3000, subpart C, in addition to remedies available to the State, the Federal Government may pursue available remedies, including but not limited to suspension and/or debarment.
- (4) The bidder or proposer agrees to comply with the requirements of 2 C.F.R. Part 180, subpart C and 2 C.F.R. Part 3000, subpart C while this offer is valid and throughout the period of any contract that may arise from this offer. The bidder or proposer further agrees to include a provision requiring such compliance in its lower tier covered transactions.

H. Byrd Anti-Lobbying Amendment, 31 U.S.C. § 1352 (as amended)

Contractor has applied or bid for an award of **more than \$100,000** and shall file the required certification in *Exhibit 1 – Byrd Anti-Lobbying Certification* attached to the end of this Addendum. Each tier certifies to the tier above that it will not and has not used federally appropriated funds to pay any person or organization for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, officer or employee of Congress, or an employee of a Member of Congress in connection with obtaining any federal contract, grant, or any other award covered by 31 U.S.C. § 1352. Each tier shall also disclose any lobbying with non-federal funds that takes place in connection with obtaining any federal award. Such disclosures are forwarded from tier to tier up to the recipient who in turn will forward the certification(s) to the federal awarding agency.

I. Procurement of Recovered Materials

If this Contract is a procurement to purchase products or items designated by the EPA under [40 C.F.R. part 247](#) during the course of a fiscal year, then under [2 CFR 200.323](#), Contractors must comply with section 6002 of the Solid Waste Disposal Act, as amended by the Resource Conservation and Recovery Act.

- (1) In the performance of this contract, the Contractor shall make maximum use of products containing recovered materials that are EPA-designated items unless the product cannot be acquired:
 - (i) Competitively within a timeframe providing for compliance with the contract performance schedule;

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- (ii) Meeting contract performance requirements; or
- (iii) At a reasonable price.
- (2) Information about this requirement, along with the list of EPA- designated items, is available at EPA's Comprehensive Procurement Guidelines web site, <https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program>.
- (3) The Contractor also agrees to comply with all other applicable requirements of Section 6002 of the Solid Waste Disposal Act.

J. Prohibition on Contracting for Covered Telecommunications Equipment or Services

Contractor acknowledges and agrees that [Section 889\(b\) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019, Pub. L. No. 115-232 \(the "McCain Act"\)](#), and [2 C.F.R. §200.216](#), prohibit the obligation or expending of federal award funds on certain telecommunication products or with certain entities for national security reasons on or after August 13, 2020.

During performance of this Contract, the Contractor agrees as follows:

- (a) *Definitions.* As used in this Section J. Prohibition on Contracting for Covered Telecommunications Equipment or Services ("Section J"):
 - (1) the terms "backhaul," "critical technology," "interconnection arrangements," "reasonable inquiry," "roaming," and "substantial or essential component" have the meanings defined in 48 CFR § 4.2101;
 - (2) the term "covered foreign country" has the meanings defined in § 889(f)(2) of the McCain Act; and
 - (3) the term "covered telecommunications equipment or services" has the meaning defined in § 889(f)(3) of the McCain Act.
- (b) *Prohibitions.*
 - (1) Unless an exception in paragraph (c) of this Section J applies, neither the Contractor nor any of its subcontractors may use funds received under this Contract to:
 - (i) Procure or obtain any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology of any system;
 - (ii) Enter into, extend, or renew a contract to procure or obtain any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology of any system;
 - (iii) Enter into, extend, or renew a contract with an entity that uses any covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system; or
 - (iv) Provide, as part of its performance of this contract, subcontract, or other contractual instrument, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

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(c) Exceptions.

(1) This Section J does not prohibit Contractor from providing—

- (i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or
- (ii) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(d) Reporting requirement.

(1) In the event the Contractor identifies covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, or the contractor is notified of such by a subcontractor at any tier or by any other source, the Contractor shall report the information in paragraph (d)(2) of this Section J to the recipient or subrecipient, unless elsewhere in this contract are established procedures for reporting the information.

(2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this Section J:

- (i) Within one business day from the date of such identification or notification: The contract number; the order number(s), if applicable; supplier name; supplier unique entity identifier (if known); supplier Commercial and Government Entity (CAGE) code (if known); brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.
- (ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this Section J: Any further available information about mitigation actions undertaken or recommended. In addition, the contractor shall describe the efforts it undertook to prevent use or submission of covered telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

(e) *Subcontracts*. The Contractor shall insert the substance of this Section J, including this paragraph (e), in all subcontracts and other contractual instruments.

K. Domestic Preferences for Procurements

As appropriate, and to the extent consistent with law, the Contractor should, to the greatest extent practicable, provide a preference for the purchase, acquisition, or use of goods, products, or materials produced in the United States. This includes, but is not limited to iron, aluminum, steel, cement, and other manufactured products.

For purposes of this Section K – Domestic Preferences for Procurements:

“Produced in the United States” means, for iron and steel products, that all manufacturing processes, from the initial melting stage through the application of coatings, occurred in the United States.

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“Manufactured products” mean items and construction materials composed in whole or in part of non-ferrous metals such as aluminum; plastics and polymer-based products such as polyvinyl chloride pipe; aggregates such as concrete; glass, including optical fiber; and lumber.

L. Affirmative Socioeconomic Steps

For all contracts utilizing federal funding sources subject to Title 2 of the Code of Federal Regulations (C.F.R.) Part 200 issued on or after November 12, 2020, if subcontracts are to be let, the prime contractor is required to take all necessary steps identified in 2 C.F.R. § 200.321(b)(1)-(5) to ensure that small and minority businesses, women’s business enterprises, and labor surplus area firms are used when possible.

M. Copyright and Data Rights

Pursuant to 2 CFR § 200.315(b), the State may copyright any work which is subject to copyright and was developed, or for which ownership was acquired, under a Federal award. The Federal awarding agency reserves a royalty-free, nonexclusive and irrevocable right to reproduce, publish, or otherwise use the work for Federal purposes, and to authorize others to do so.

N. Additional FEMA Contract Provisions

This Contract does not involve purchases that will be paid for in whole or in part with funds obtained from the Federal Emergency Management Agency (FEMA).

O. Other Federal Contract Provisions

No additional federal provisions currently apply to this Contract.





SCHEDULE J – EXHIBIT 1

Byrd anti-lobbying certification

BIDDER INSTRUCTIONS

NOTE: Neither the State nor Contractor may alter these federally required provisions.
Do you accept these Federal Provisions as presented?

BIDDER RESPONSE:

AWS accepts these Federal Provisions as presented. However, AWS has no visibility into the federal funds that the State may receive in connection with this contract. AWS can attest that it has not used any Federally appropriated funds to influence an officer or employee of DTMB or the State of Michigan, or any Member of Congress in connection with the awarding of this Contract. AWS would like the opportunity to further discuss the form’s applicability if there are questions.

Contractor must complete this certification if the purchase will be paid for in whole or in part with funds obtained from the federal government and the purchase is greater than \$100,000.

APPENDIX A, 44 C.F.R. PART 18 – CERTIFICATION REGARDING LOBBYING

Certification for Contracts, Grants, Loans, and Cooperative Agreements

The undersigned certifies, to the best of his or her knowledge and belief, that:

1. No Federal appropriated funds have been paid or will be paid, by or on behalf of the undersigned, to any person for influencing or attempting to influence an officer or employee of an agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any Federal contract, the making of any Federal grant, the making of any Federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any Federal contract, grant, loan, or cooperative agreement.
2. If any funds other than Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with this Federal contract, grant, loan, or cooperative agreement, the undersigned shall complete and submit Standard Form-LLL, “Disclosure Form to Report Lobbying,” in accordance with its instructions.
3. The undersigned shall require that the language of this certification be included in the award documents for all subawards at all tiers (including subcontracts, subgrants, and contracts under grants, loans, and cooperative agreements) and that all subrecipients shall certify and disclose accordingly.

This certification is a material representation of fact upon which reliance was placed when this transaction was made or entered into. Submission of this certification is a prerequisite for making or entering into this transaction imposed by section 1352, Title 31, U.S. C. Any person who fails to file the required certification shall be subject to a civil penalty of not less than \$10,000 and not more than \$100,000 for each such failure.





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The Contractor, Amazon Web Services, Inc., certifies or affirms the truthfulness and accuracy of each statement of its certification and disclosure, if any. In addition, the Contractor understands and agrees that the provisions of 31 U.S.C. Chap. 38, Administrative Remedies for False Claims and Statements, apply to this certification and disclosure, if any.

DocuSigned by:

Faisal Hanafi

275414A1C2FF49A...

Signature of Contractor’s Authorized Official

Faisal Hanafi Authorized Signatory

Name and Title of Contractor’s Authorized Official

February 5, 2025

Date





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APPENDIX A. AWS IDENTITY AND ACCESS MANAGEMENT USER GUIDE


User Guide

AWS Identity and Access Management



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APPENDIX B. AWS CLOUD ADOPTION FRAMEWORK WHITEPAPER

aws

AWS Whitepaper

An Overview of the AWS Cloud Adoption
Framework



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APPENDIX C. AWS SECURITY BLOG: THREE COMMON CLOUD ENCRYPTION QUESTIONS

[AWS Security Blog](#)

Three common cloud encryption questions and their answers on AWS

by Peter M. O'Donnell and Supriya Anand on 07 DEC 2020 in [Foundational \(100\)](#), [Security, Identity, & Compliance](#) [Permalink](#) [Comments](#) [Share](#)

August 31, 2021: AWS KMS is replacing the term *customer master key* (CMK) with *AWS KMS key* and *KMS key*. The concept has not changed. To prevent breaking changes, AWS KMS is keeping some variations of this term. [More info](#).

At [Amazon Web Services \(AWS\)](#), we encourage our customers to take advantage of encryption to help secure their data. Encryption is a core component of a good data protection strategy, but people sometimes have questions about how to manage encryption in the cloud to meet the growth pace and complexity of today's enterprises. Encryption can seem like a difficult task—people often think they need to master complicated systems to encrypt data—but the cloud can simplify it.

In response to frequently asked questions from executives and IT managers, this post provides an overview of how AWS makes encryption less difficult for everyone. In it, I describe the advantages to encryption in the cloud, common encryption questions, and some AWS services that can help. Cloud encryption advantages

The most important thing to remember about encryption on AWS is that you always own and control your data. This is an extension of the [AWS shared responsibility model](#), which makes the secure delivery and operation of your applications the responsibility of both you and AWS. You control security *in* the cloud, including encryption of content, applications, systems, and networks. AWS manages security *of* the cloud, meaning that we are responsible for protecting the infrastructure that runs all of the services offered in the AWS Cloud.

Encryption in the cloud offers a number of advantages in addition to the options available in on-premises environments. This includes on-demand access to managed services that enable you to more easily create and control the keys used for cryptographic operations, integrated identity and access management, and automating encryption in transit and at rest. With the cloud, you don't manage physical security or the lifecycle of hardware. Instead of the need to procure, configure, deploy, and decommission hardware, AWS offers you a managed service backed by hardware that meets the [security requirements of FIPS 140-2](#). If you need to use that key tens of thousands of times per second, the elastic capacity of AWS services can scale to meet your demands. Finally, you can use integrated encryption capabilities with the AWS services that you use to store and process your data. You pay only for what you use and can instead focus on configuring and monitoring logical security, and innovating on behalf of your business.

Addressing three common encryption questions

For many of the technology leaders I work with, agility and risk mitigation are top IT business goals. An enterprise-wide cloud encryption and data protection strategy helps define how to achieve fine-grained access controls while maintaining nearly continuous visibility into your risk posture. In combination with

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the wide range of AWS services that integrate directly with [AWS Key Management Service \(AWS KMS\)](#), AWS encryption services help you to achieve greater agility and additional control of your data as you move through the stages of cloud adoption.

The configuration of AWS encryption services is part of your portion of the [shared responsibility model](#). You're responsible for your data, [AWS Identity and Access Management \(IAM\)](#) configuration, operating systems and networks, and encryption on the client-side, server-side, and network. AWS is responsible for protecting the infrastructure that runs all of the services offered in AWS.

That still leaves you with responsibilities around encryption—which can seem complex, but AWS services can help. Three of the most common questions we get from customers about encryption in the cloud are:

- How can I use encryption to prevent unauthorized access to my data in the cloud?
- How can I use encryption to meet compliance requirements in the cloud?
- How do I demonstrate compliance with company policies or other standards to my stakeholders in the cloud?

Let's look closely at these three questions and some ways you can address them in AWS.

How can I use encryption to prevent unauthorized access to my data in the cloud?

Start with IAM

The primary way to protect access to your data is access control. On AWS, this often means using [IAM](#) to describe which users or roles can access resources like [Amazon Simple Storage Service \(Amazon S3\)](#) buckets. IAM allows you to tightly define the access for each user—whether human or system—and set the conditions in which that access is allowed. This could mean requiring the use of multi-factor authentication, or making the data accessible only from your [Amazon Virtual Private Cloud \(Amazon VPC\)](#).

Encryption allows you to introduce an additional authorization condition before granting access to data. When you use [AWS KMS](#) with other services, you can get further control over access to sensitive data. For example, with S3 objects that are encrypted by KMS, each IAM user must not only have access to the storage itself but also have authorization to use the KMS key that protects the data. This works similarly for [Amazon Elastic Block Store \(Amazon EBS\)](#). For example, you can allow an entire operations team to manage Amazon EBS volumes and snapshots, but, for certain Amazon EBS volumes that contain sensitive data, you can use a different KMS key with different permissions that are granted only to the individuals you specify. This ability to define more granular access control through independent permission on encryption keys is supported by all [AWS services that integrate with KMS](#).

When you configure [IAM](#) for your users to access your data and resources, it's critical that you consider the principle of least privilege. This means you grant only the access necessary for each user to do their work and no more. For example, instead of granting users access to an entire [S3](#) bucket, you can use IAM policy language to specify the particular Amazon S3 prefixes that are required and no others. This is important when thinking about the difference between using a service—*data plane* events—and managing a service—*management plane* events. An application might store and retrieve objects in an S3





bucket, but it's rarely the case that the same application needs to list all of the buckets in an account or configure the bucket's settings and permissions.

Making clear distinctions between who can use resources and who can manage resources is often referred to as the principle of *separation of duties*. Consider the circumstance of having a single application with two identities that are associated with it—an *application* identity that uses a key to encrypt and decrypt data and a *manager* identity that can make configuration changes to the key. By using [AWS KMS](#) together with services like [Amazon EBS](#), [Amazon S3](#), and many others, you can clearly define which actions can be used by each persona. This prevents the application identity from making configuration or permission changes while allowing the manager to make those changes but not use the services to actually access the data or use the encryption keys.

Use AWS KMS and key policies with IAM policies

AWS KMS provides you with visibility and granular permissions control of a specific key in the hierarchy of keys used to protect your data. Controlling access to the keys in KMS is done using [IAM](#) policy language. The [AWS KMS key](#) has its own policy document, known as a key policy. [AWS KMS](#) key policies can work together with [IAM](#) identity policies or you can manage the permissions for a KMS key exclusively with key policies. This gives you greater flexibility to separately assign permissions to use the key or manage the key, depending on your business use case.

Encryption everywhere

AWS recommends that you encrypt as much as possible. This means encrypting data while it's in transit and while it's at rest.

For customers seeking to encrypt data in transit for their public facing applications, our recommended best practice is to use [AWS Certificate Manager \(ACM\)](#). This service automates the creation, deployment, and renewal of public TLS certificates. If you've been using SSL/TLS for your websites and applications, then you're familiar with some of the challenges related to dealing with certificates. ACM is designed to make certificate management easier and less expensive.

One way ACM does this is by generating a certificate for you. Because AWS operates a certificate authority that's already trusted by industry-standard web browsers and operating systems, public certificates created by ACM can be used with public websites and mobile applications. ACM can create a publicly trusted certificate that you can then deploy into [API Gateway](#), [Elastic Load Balancing](#), or [Amazon CloudFront](#) (a globally distributed content delivery network). You don't have to handle the private key material or figure out complicated tooling to deploy the certificates to your resources. ACM helps you to deploy your certificates either through the [AWS Management Console](#) or with automation that uses [AWS Command Line Interface \(AWS CLI\)](#) or AWS SDKs.

One of the challenges related to certificates is regularly rotating and renewing them so they don't unexpectedly expire and prevent your users from using your website or application. Fortunately, [ACM](#) has a feature that updates the certificate before it expires and automatically deploys the new certificate to the resources associated with it. No more needing to make a calendar entry to remind your team to renew certificates and, most importantly, no more outages because of expired certificates. Many customers want to secure data in transit for services by using privately trusted TLS certificates instead of publicly trusted TLS certificates. For this use case, you can use [AWS Certificate Manager](#)

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[Private Certificate Authority \(ACM PCA\)](#) to issue certificates for both clients and servers. ACM PCA provides an inexpensive solution for issuing internally trusted certificates and it can be integrated with ACM with all of the same integrative benefits that ACM provides for public certificates, including automated renewal.

For encrypting data at rest, I strongly encourage using [AWS KMS](#). There is a broad range of AWS storage and database services that support KMS integration so you can implement robust encryption to protect your data at rest within AWS services. This lets you have the benefit of the KMS capabilities for encryption and access control to build complex solutions with a variety of AWS services without compromising on using encryption as part of your data protection strategy.

How can I use encryption to meet compliance requirements in the cloud?

The first step is to identify your compliance requirements. This can often be done by working with your company's risk and compliance team to understand the frameworks and controls that your company must abide by. While the requirements vary by industry and region, the most common encryption compliance requirements are to encrypt your data and make sure that the access control for the encryption keys (for example by using AWS KMS key policies) is separate from the access control to the encrypted data itself (for example through Amazon S3 bucket policies).

Another common requirement is to have separate encryption keys for different classes of data, or for different tenants or customers. This is directly supported by AWS KMS as you can have as many different keys as you need within a single account. If you need to use even more than the 10,000 keys AWS KMS allows by default, contact AWS Support about raising your quota.

For compliance-related concerns, there are a few capabilities that are worth exploring as options to increase your coverage of security controls.

[Amazon S3](#) can [automatically encrypt](#) all new objects placed into a bucket, even when the user or software doesn't specify encryption.

You can use batch operations in Amazon S3 to [encrypt existing objects](#) that weren't originally stored with encryption.

You can use the Amazon S3 [inventory report](#) to generate a list of all S3 objects in a bucket, including their encryption status.

AWS services that track encryption configurations to comply with your requirements

Anyone who has pasted a screenshot of a configuration into a word processor at the end of the year to memorialize compliance knows how brittle traditional on-premises forms of compliance attestation can be. Everything looked right the day it was installed and still looked right at the end of the year—but how can you be certain that everything was correctly configured at all times?

AWS provides several different services to help you configure your environment correctly and monitor its configuration over time. AWS services can also be configured to perform automated remediation to correct any deviations from your desired configuration state. AWS helps automate the collection of compliance evidence and provides nearly continuous, rather than point in time, compliance snapshots.

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[AWS Config](#) is a service that enables you to assess, audit, and evaluate the configurations of your AWS resources. AWS Config continuously monitors and records your AWS resource configurations and helps you to automate the evaluation of recorded configurations against desired configurations. One of the most powerful features of AWS Config is [AWS Config Rules](#). While AWS Config continuously tracks the configuration changes that occur among your resources, it checks whether these changes violate any of the conditions in your rules. If a resource violates a rule, AWS Config flags the resource and the rule as noncompliant. AWS Config comes with a wide range of prewritten [managed rules](#) to help you maintain compliance for many different AWS services. The managed rules include checks for encryption status on a variety of resources, [ACM](#) certificate expiration, [IAM](#) policy configurations, and many more.

For additional monitoring capabilities, consider Amazon Macie and AWS Security Hub. [Amazon Macie](#) is a service that helps you understand the contents of your S3 buckets by analyzing and classifying the data contained within your S3 objects. It can also be used to report on the encryption status of your S3 buckets, giving you a central view into the configurations of all buckets in your account, including default encryption settings. Amazon Macie also integrates with [AWS Security Hub](#), which can perform automated checks of your configurations, including several checks that focus on encryption settings. Another critical service for compliance outcomes is [AWS CloudTrail](#). CloudTrail enables governance, compliance, operational auditing, and risk auditing of your AWS account. With CloudTrail, you can log, continuously monitor, and retain account activity related to actions across your AWS infrastructure.

[AWS KMS](#) records all of its activity in CloudTrail, allowing you to identify who used the encryption keys, in what context, and with which resources. This information is useful for operational purposes and to help you meet your compliance needs.

How do I demonstrate compliance with company policy to my stakeholders in the cloud?

You probably have internal and external stakeholders that care about compliance and require that you document your system's compliance posture. These stakeholders include a range of possible entities and roles, including internal and external auditors, risk management departments, industry and government regulators, diligence teams related to funding or acquisition, and more. Unfortunately, the relationship between technical staff and audit and compliance staff is sometimes contentious. AWS believes strongly that these two groups should work together—they want the same things. The same services and facilities that engineering teams use to support operational excellence can also provide output that answers stakeholders' questions about security compliance.

You can provide access to the console for [AWS Config](#) and [CloudTrail](#) to your counterparts in audit and risk management roles. Use AWS Config to continuously monitor your configurations and produce periodic reports that can be delivered to the right stakeholders. The evolution towards *continuous compliance* makes compliance with your company policies on AWS not just possible, but often *better* than is possible in traditional on-premises environments. AWS Config includes several managed rules that check for encryption settings in your environment. CloudTrail contains an ongoing record of every time [AWS KMS](#) keys are used to either encrypt or decrypt your resources. The contents of the CloudTrail entry include the KMS key ID, letting your stakeholders review and connect the activity recorded in CloudTrail with the configurations and permissions set in your environment. You can also use the reports produced by [Security Hub](#) automated compliance checks to verify and validate your encryption settings and other controls.





Your stakeholders might have further requirements for compliance that are beyond your scope of control because AWS is operating those controls for you. AWS provides [System and Organization Controls \(SOC\) Reports](#) that are independent, third-party examination reports that demonstrate how AWS achieves key compliance controls and objectives. The purpose of these reports is to help you and your auditors understand the AWS controls established to support operations and compliance. You can [consult the AWS SOC2 report](#), available through [AWS Artifact](#), for more information about how AWS operates in the cloud and provides assurance around AWS security procedures. The SOC2 report includes several AWS KMS-specific controls that might be of interest to your audit-minded colleagues.

Summary

Encryption in the cloud is easier than encryption on-premises, powerful, and can help you meet the highest standards for controls and compliance. The cloud provides more comprehensive data protection capabilities for customers looking to rapidly scale and innovate than are available for on-premises systems. This post provides guidance for how to think about encryption in AWS. You can use [IAM](#), [AWS KMS](#), and [ACM](#) to provide granular access control to your most sensitive data, and support protection of your data in transit and at rest. Once you've identified your compliance requirements, you can use [AWS Config](#) and [CloudTrail](#) to review your compliance with company policy over time, rather than point-in-time snapshots obtained through traditional audit methods. AWS can provide on-demand compliance evidence, with tools such as reporting from CloudTrail and AWS Config, and attestations such as SOC reports.

I encourage you to review your current encryption approach against the steps I've outlined in this post. While every industry and company is different, I believe the core concepts presented here apply to all scenarios. I want to hear from you. If you have any comments or feedback on the approach discussed here, or how you've used it for your use case, leave a comment on this post.

And for more information on encryption in the cloud and on AWS, check out the following resources, in addition to our [collection of encryption blog posts](#).

- [Cryptographic details technical paper](#)
- [Using AWS KMS for data protection, access control, audit](#)
- [Using AWS in the Context of Common Privacy and Data Protection Considerations](#)
- [Data Classification: Secure Cloud Adoption](#)



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The CJIS Security Addendum is only required when the Contractor is performing criminal justice functions by having unescorted access to unencrypted criminal justice information. Customers can design, configure and manage applications on all AWS US regions using [AWS Key Management Service \(KMS\)](#) and the [AWS Nitro System](#). The AWS Nitro System virtual compute instances operate on a locked down security model prohibiting all interactive administrative access including that of Amazon employees. This will restrict all access (physical and logical) to all managed resources (virtual devices, services, Virtual Private Clouds, etc.) to only authorized customer personnel.

Per the AWS Shared Responsibility concept detailed below, the State will have the ability to perform access and security control which prevent this access. AWS can work with the CJIS Systems Agency (CSA), who is Michigan State Police, to ensure any cloud environment is architected in such a way to ensure this, but also we can also confer with Michigan State Police (MSP) about this and all CJIS-related requirements

AWS Shared Responsibility Model

Security and Compliance is a shared responsibility between AWS and the customer. AWS is responsible for the security of the underlying cloud infrastructure and the customer is responsible for securing workloads (including encryption options), classifying their assets, and using Identity and Access Management (IAM) tools to apply the appropriate permissions. AWS continually monitors the evolving privacy regulatory and legislative landscape to identify changes and determine what tools our customers might need to meet their compliance needs depending upon their applications. TAMs work with AWS Solutions Architects to help customers identify potential risks and potential mitigations. TAMs and account teams can also point customers and APN Partners with specific resources based on their environment and needs.

- AWS is not in the position to provide legal advice and we recommend that customers consult their legal counsel if they have legal questions.
- Customers have control over content. Customers determine where content will be stored, including the type of storage and geographic region of that storage.
- Customers choose the secured state of content. AWS offers customers strong encryption solutions which customer can use for data protection in transit and at rest. AWS provides the customers with the option to create, manage, and distribute encryption keys as desired to meet compliance requirements and objectives.
- Customers manage access to content and to AWS services and resources through users, groups, permissions, and credentials that you control.

AWS will not disclose Customer Content unless required to do so to comply with the law or a binding order of a government body. If a governmental body sends AWS a demand for Customer Content, we will attempt to redirect the governmental body to request that data directly from the customer. If compelled to disclose Customer Content to a government body, we will give customers reasonable notice of the demand to allow the customer to seek a protective order or other appropriate remedy unless AWS is legally prohibited from doing so. See Using AWS in the [Context of Common Privacy & Data Protection Considerations](#) for more information.



